



PROFILE OF INTERNAL DISPLACEMENT : COLOMBIA

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PROFILE SUMMARY

Colombia: “Democratic security” policy fails to improve protection of IDPs

Displacement has been an endemic feature of the 40-year long conflict in Colombia, and over three million Colombians have been displaced since 1985. The IDP crisis has become one of the world's worst, disproportionately affecting Afro-Colombians and indigenous people, who make up some of the country's poorest people. The protection of displaced people has not improved since 2002 when President Uribe's government launched a new effort under its so-called “democratic security” policy to end the conflict by military means. The new strategy drew more civilians into the conflict, allowing armed groups to displace over 175,000 people in 2003 and leaving widespread human rights violations unpunished. Although Colombia has some of the most progressive IDP legislation, the government has undermined the existing legal framework through various amendments. The number of new displacements decreased in 2003, partly because many IDPs avoided to officially register for fear of reprisal attacks by armed groups. Without this status they are often denied the limited welfare services the state offers. A United Nations plan launched in 2002, which aimed to provide a more effective response to the crisis, has received very little funding. The government has made return of IDPs one of its central objectives. However, for returns to be sustainable, the government needs to do more to ensure security in return areas and provide the IDPs with the necessary means to re-build their livelihoods.

Forty years of conflict

The displacement of civilians in Colombia has been an endemic feature of the country's 40-year conflict. Colombia is burdened by a long history of socio-political violence. One of the root causes is the economic marginalisation of low-income farmers. Serious agrarian reform which would improve their situation has been blocked by a powerful clique of landowners, government officials and paramilitaries.

Various armed actors have been responsible for displacements in this complex war. Armed guerrilla movements first emerged in Colombia in the 1960s in reaction to the power-monopoly established by the Liberal and Conservative parties in 1957. The most notable of the groups are the Colombian Revolutionary Armed Forces (FARC) and the National Liberation Army (ELN), which were both initially engaged in armed struggle for land and social equity. Paramilitaries – who act in connivance of some army officials and are opposed to the guerrillas and anyone suspected of sympathising with them – have been active since the 1980s.

In response to the intensification of the conflict and the worsening of the humanitarian crisis, and following the failure of a negotiated peace in early 2002, President Uribe, who took office in August that year, launched the policy of “democratic security”. This new policy aimed at defeating insurgents and regain control over territories held by rebels and paramilitaries by increasing military presence and intensifying the fumigation of illicit crops in an attempt to destroy the insurgents' economic basis. While the administration reported considerable progress in the fight against armed groups, many measures adopted to reach this goal, including anti-terrorist legislation granting the military judicial powers, have met strong disapproval from human rights organisations (ICG, 13 November 2003).

Indeed, the “democratic security” policy ignores core principles of international humanitarian law by blurring the distinction between civilians and combatants through the militarisation of society. Under the policy, the government has established a contingent of 15,000 peasant soldiers and a network of over one million paid informants. A number of other measures granting the army judicial powers; removing judicial supervision; restricting freedom of movement and interfering in civilians' private lives, were declared unconstitutional by the Constitutional Court in November 2002 (UNCHR, 24 February 2003, pp. 7-11; 45).

In a positive step, the new government concluded an agreement with the main paramilitary group, the United Self-Defence Forces of Colombia (AUC), in July 2003, on its demobilisation by the end of 2005. This would neutralise the actor most responsible for displacements and could create conditions conducive for renewed dialogue with guerrillas. However, this agreement is controversial because it is feared that many demobilised paramilitaries will not be held accountable for the crimes they committed and the land they illegally appropriated (ICG, 16 September 2003). In addition, many paramilitary groups are not part of the agreement.

Causes of Displacement

Forced displacement in Colombia is widely seen as a strategy of war rather than a by-product of the conflict. People are deliberately displaced to establish control over strategic territories, expand the cultivation of narcotics, or take possession of land and private properties. Colombians are forced to flee as a result of threats and attacks, including assassinations of community leaders, by armed groups which suspect them of supporting the other side.

An estimated 30,000 people were displaced in 2003 as a result of the fumigation of illicit crops ordered by the government to deprive armed groups of a major source of income (CODHES, 10 December 2003). Fumigations have stripped peasants off their basic means of survival by indiscriminately destroying food alongside coca crops. In the Catatumbo region for example, where the destruction of narcotics was accompanied by a military offensive, the so-called “Operation Holocaust”, more people were displaced in 2003 than anywhere else in Colombia (CODHES, 2 January 2004). Most people displaced by fumigations remain unrecognised, as they are considered “migrants” by the authorities and are excluded from official IDP registers. The state has not provided affected populations with substitution crops, and it has ignored proposals to replace aerial fumigations with pesticides by manual eradication of coca. An estimated total of 35,000 families have been uprooted in connection with fumigations since 1999 (CODHES, 29 October 2003, p.26).

Under Plan Colombia, the US has provided significant military and financial support, worth US\$3 billion, to the government’s counter-insurgency operations, particularly focusing on counter-narcotics measures. The Plan has been criticised for failing to address the humanitarian consequences of these operations.

Colombia is among the countries with the largest internally displaced population in the world, after Sudan and the Democratic Republic of Congo. Over three million people have been displaced by violence since 1985 according to the leading NGO monitoring displacement, CODHES (Consultoría para los Derechos Humanos y el Desplazamiento) (10 December 2003). Although the government estimate is lower, at 1.2 million people displaced since 1994, the yearly figures published by the NGOs and the government are increasingly converging thanks to methodological improvements (GoC, 15 December 2003).

Key Statistics*

Total number internally displaced since 1985:	3.090.000
Total Colombian population:	43.775.839
Percentage internally displaced:	7%
Municipalities affected by displacement in 2003:	904 out of 1100
People killed in fighting yearly:	4000-8000
*All figures are estimates based on available information	

All figures relating to the total number of IDPs in Colombia are cumulative estimates not taking into account returns, resettlements, multiple displacements and demographic changes in the displaced population. In addition, a third of IDPs reportedly avoided official registration for fear of reprisals (Actualidad Colombiana, 26 May 2003). But all sources agree that the number of new displacements has significantly increased since 1994 and that it peaked in 2002, with an unprecedented rate of 1,144 people uprooted daily that year (CODHES).

During the first nine months of 2003, about 175,270 people were newly displaced. Although this indicates a significant decrease compared to 2002, the total number of displaced people continued to rise in 2003. Displacement affected nearly all municipalities in 2003 (904 out of 1100), up from less than half in 2000. During 2003, the departments most affected by displacements were Antioquia, Cundinamarca, Norte de Santander and Caquetá (CODHES, 10 December 2003).

Protection mechanisms undermined

Although the government has acknowledged that it has largely failed to prevent displacement, it has still not taken adequate measures to address this gap. An early-warning system has been established but reports of imminent risk of displacement are often ignored by the authorities. In addition, Ombudsman Offices, which play a key role in monitoring human rights violations, receive little funding and, as a result, are not able to maintain a presence in many areas affected by displacement (UNCHR, 24 February 2003, p7).

Moreover, the government has proposed a number of measures which, if implemented, would further undermine the right of IDPs to legal protection. These plans include the closure of Ombudsman offices, and the reform of the right of injunction (*Acción de Tutela*) which in effect would deny IDPs the right to appeal when the State fails to fulfil its obligations under national legislation to respect their social, economic and cultural rights.

The government has also paid insufficient attention to the specific protection needs of vulnerable groups such as Afro-Colombians and indigenous people. These communities have suffered disproportionately from displacement because they often live in areas of strategic interest to the warring parties. Afro-Colombians and indigenous people represented about a quarter of the displaced in 2003, even though they make up only 11 percent of the total national population (CODHES, 10 December). In order to protect themselves, members of minority groups have formed “peace communities” to demonstrate their neutrality in the conflict. Nevertheless, authorities have done little to prevent attacks, blockades and consecutive displacement of these communities.

Like in many war-affected countries, Colombians forced to flee from war in the countryside have attempted to integrate into overcrowded city-slums, triggering accelerated urbanisation. Some 480,000 IDPs have fled to Bogotá since 1985, giving it the highest concentration of IDPs: some 23 percent of the country’s total displaced population (UNHCR, 1 July 2003, p.23).

Instead of finding safety in the cities, IDPs have been increasingly exposed to crime and violence that forces them to flee again, notably in cities like Medellín, Cali, Barrancabermeja, Bogotá, Cartagena, Cúcuta and Bucaramanga. For instance, Cúcuta combines one of the highest arrival and expulsion rates of IDPs with the highest urban crime rates after Medellín (PCS, 17 March 2003). The increased presence of armed actors in urban centres has created complex networks of organised crime. “Cleansing squads” have been set up to purge major cities of “undesirable” residents, and IDPs and community leaders are primary victims of urban warfare. The principal agents of intra-urban displacement are paramilitary-backed militias (Actualidad Colombiana, 1 January 2003). Intra-urban or intra-municipal displacements are rarely recognised by the authorities because these people have not fled beyond their “habitual place of residence”. This severely limits their access to humanitarian assistance (ICG, 9 July 2003).

Living Conditions

Eighty per cent of Colombian IDPs live in extreme poverty and have insufficient access to nutritional foods. As government assistance is limited to three months, the nutritional status of IDPs considerably deteriorates afterwards. Moreover, two-thirds of IDPs live in inadequate housing with no access to basic sanitation (WFP, 16 June 2003).

Only 22 per cent of IDPs receive medical attention, according to a report by the Pan-American Health Organization published in 2002 (Marie Stopes International, etc, 13 February 2003). National legislation entitles registered displaced people to free and unlimited access to health care and medicines. In practice, however, hospitals commonly refuse to treat IDPs because they are often not reimbursed for the costs of the services provided due to administrative inefficiencies. As a result, about half of the displaced do not seek medical assistance due to lack of money (IOM 6 June 2002). In addition, access to medical care is hindered because most IDPs lack identification papers – a requirement for receiving medical aid. A survey found that morbidity among IDPs is six times the national average (WFP, 16 June 2003, p.9).

Although women and girls represent nearly half of the displaced population, there is no comprehensive policy to address their specific gender and reproductive health needs (UNHCHR, 24 February 2003). Nearly one third of displaced women have had either miscarriages or stillbirths, of whom only 63 per cent received treatment. Although one quarter of displaced women reported having been raped, gender-based violence remains largely un-addressed (Marie Stopes International, etc, 13 February 2003).

National Response

While Colombia has probably the most advanced IDP legislation in the world, it remains poorly implemented. The government has taken several measures to address the problem of internal displacement – notably through Law 387 of 1997. However, this legislation has proven ineffective in responding to the needs of the displaced, because insufficient resources have been allocated to the institutions mandated to assist the IDPs and a complex bureaucracy has often hindered rather than facilitated access to its benefits.

The government has largely failed to implement the recommendations made by the Representative to the United Nations Secretary-General on Internally Displaced Persons during his last visit in 1999. For example, it has yet to appoint a focal point on internal displacement within the government. It has taken few measures to prevent displacement and protect IDPs and has shown little political will to bring perpetrators of displacement – a war crime – to justice. As for durable solutions, the government has provided insufficient reparation to enable uprooted people to achieve socio-economic stability (CCJ, Mencoldes, 15 November 2002).

The government restricts its assistance provided to IDPs to the first three months after their registration. However, even this limited aid covers only one-third of emergency needs and in 2002, the majority of new IDPs (57%) received no assistance (UNHCR, 3 May 2003, p.1). Although the government extended its agreement with the Office of the Commission on Human Rights, it ignored its recommendation to extend the time limit on assistance and the deadlines set for IDP registration.

Displaced Colombians have organised themselves and worked to assert their demands. In 2000, IDP representatives formed a national coordinating body to advocate for better government assistance. Attacks on civil society leaders remain a major obstacle to the work of national NGOs; and hundreds of leaders of displaced communities have been assassinated. Despite security risks, local human rights and humanitarian agencies have been increasingly active in providing IDPs with legal advice, psychosocial support, food and medical assistance. Many NGOs in Colombia work to promote long-term solutions for IDPs, strengthening leadership, capacity building and integrating IDPs in host communities. Their impact, however, is limited by lack of funds, attacks, lack of state support and insufficient coordination.

Despite an increasing number of assassinations against its members, the Catholic Church, through the Pastoral Social and the Colombian Red Cross, has played a key role in assisting IDPs. It provides them with registration, food and medical aid and advocates for their rights.

Unsafe returns

The government has often not lived up to its responsibility to ensure safe, voluntary, and dignified return of IDPs. The government's stated objective is to facilitate the return of some 150,000 displaced persons by 2006 (CCJ, 8 October 2003). Some 11,143 displaced families have already been assisted in returning. In many cases, however, conditions in areas of return are not conducive to sustainable reintegration. The government return policy envisages the provision of housing subsidies, income-generation projects, vocational training and land titling, but this is rarely implemented. For example, the IDPs who were encouraged to return to Bellavista a year after they had fled the massacre in the town church in May 2002, have still not received adequate assistance (UNCHR, 30 June 2003, pp.11-12).

In other cases assisted returns have taken place amidst ongoing conflict and with the continued presence of actors who prompted displacement in the first place. Rural Convención is one of the three pilot areas where the government plans to return IDPs despite ongoing conflict, landmines, a lack of school facilities (as teachers are military targets), and frequent embargoes on medical and food supplies (PCS, 17 March 2003). As a result of such inadequate conditions, people have often been forced to flee again, particularly returned Afro-Colombian and indigenous communities. Prevailing impunity of the groups that caused displacement also undermines the reintegration of returnees and the restitution of their property.

The principle of voluntariness is often not respected under the current return policy. Sometimes state institutions have threatened to cut off assistance if IDPs chose not to return (PCS, 17 March 2003). Also, lack of adequate assistance and increased violence in places of refuge have motivated returns to unsafe areas. For instance, hundreds of people who had sought refuge in Cúcuta spontaneously returned to rural Convención, citing sub-human standards of living and increased urbanisation of warfare as reasons.

Despite the lack of safe return options, the government has neglected the support of alternatives including the resettlement and integration of IDPs.

International Response

While the government response to the problem of IDPs remains inadequate and under-resourced, similarly, the international community response has not been adequate to the extent of the crisis. Since November 2002, however, the UN has sought to strengthen its collective response with the launching of a Humanitarian Plan of Action (HPA). This reflects a growing awareness of the need to improve inter-agency cooperation, joint-strategic planning and implementation in Colombia. By concentrating international support on the prevention of displacement and post-emergency assistance, the HPA complements government and ICRC emergency activities. It provides the government with technical support and capacity-building, to better design policies and implement the normative framework for IDPs.

Under the HPA it is intended to increase the international field presence through sub-offices as well as expand its activities with IDPs in urban areas. It aims at reinforcing an existing rapid response system, bringing more attention to the displacement crisis through advocacy, and disseminating the Guiding Principles. The UN planned to double its financial resources with a budget of US\$79.4 million for 2003, but received only a small fraction of this amount.

While the UN system focuses on prevention and technical assistance, ICRC covers most of the emergency response in coordination with the Social Solidarity Network (RSS) – the government agency coordinating

the National System of Comprehensive Assistance to IDPs. The ICRC has the largest international presence in the country with 17 field offices, enabling rapid emergency responses and regular contact with all armed groups. In addition to emergency assistance programmes, the ICRC implements training and advocacy projects aiming at promoting respect of international humanitarian law.

NGOs have proposed to the government to officially invite the UN Representative of the Secretary General on IDPs, in order to follow up on his recommendations made during his last visit in 1999 and to support the government in designing appropriate policies to respond to the plight of the displaced.

CAUSES AND BACKGROUND OF DISPLACEMENT

Background

Colombia has suffered from four decades of socio-political violence (1957-2003)

- Colombian 20th century history is marked by violent confrontations between successively peasants and landlords, Liberals and Conservatives, guerilla movements, paramilitaries and the army
- In 1957 Liberal and Conservative former enemies established a bipartisan junta in defense of its urban interests thereby excluding other political sectors and the rural poor
- In the 60s context of cold war polarization emerged guerrilla movements and the state involved groups of armed civilians as counter-insurgency strategy
- Since the 1960s and 1970s drug trafficking has given rise to new forms of criminality and corruption
- Colombia records the world's highest number of politically motivated killings and kidnappings
- Violence is increasingly urban and affecting civilian population, it involves attacks on elected officials, human rights defenders, indigenous leaders, journalists and trade unionists
- Most affected by conflict in 2002 were the areas of the Pacific, Urabá (Antioquia and Chocó, Arauca and Casanare, Eastern Antioquia and south Bolívar
- Government showed incapacity of protecting civilian populations and abide by the principles of distinction and proportionality
- The military regained control over some territory and set up 'rehabilitation and consolidation zones'

"Colombia has historically been marked by political and social violence. In this century, the phenomena of political, economic, social and cultural exclusion led to the peasants' campaigns of the 1930s and 1940s, and, later on, to a long period of violence between the two traditional parties, the Liberals and the Conservatives. In 1957, by means of a constitutional reform, a system of alternation and parity between these parties was established. This meant that other political sectors were deprived of any share in power. From the 1960s onwards, a guerrilla movement came to prominence and its origins can in part be explained by the context of the polarization and cold war prevailing at that time. In order to deal with this rebellious movement, the State involved groups of armed civilians in its counterinsurgency activities, and with the passage of time these groups became a new source of disturbances of law and order. In the 1970s, the drug trafficking phenomenon came to the fore and, spreading to broad sections of Colombian society, gave rise to new forms of criminality and corruption." (CHR 9 March 1998, para. 12)

"Historically, Colombia's bipartisan political elite has focused on the defense of its urban interests. However, the political exclusion of the rural poor, who were also marginalized by great social inequality, a highly concentrated pattern of land ownership and an inefficient justice system, created the conditions for the development of autonomous political movements. Sporadic outbreaks of inter-party strife contributed to a culture of political violence, and imported ideologies ultimately led to the emergence of several guerrilla groups during the Frente Nacional era (1958-74). The two main guerrilla groups still active, the Ejército de Liberación Nacional (ELN) and the Fuerzas Armadas Revolucionarias de Colombia (FARC), began operating in the mid-1960s." (EIU, 26 February 2002).

“In the 1980s, Colombia achieved international notoriety as a major narcotics trafficking center. [...] Nonetheless, the country's involvement with drugs was rooted farther back in history.

The real takeoff of Colombian marijuana production began in the mid- and late 1960s as a result of the growing demand generated by the United States market. By the early 1970s, Colombia had emerged as a major United States supplier [...]. The Colombian cocaine trade followed in the footsteps of the marijuana traffickers. In the early 1970s, as demand for cocaine expanded rapidly in the United States, the limited raw coca supplies produced in Colombia were augmented with coca paste imported from Bolivia and Peru, refined in "kitchen laboratories" in Colombia, and smuggled into the United States. Although Colombia had long been accustomed to extraordinarily high levels of violence, the rise of the drug mafia provoked a qualitative change. They also contributed significantly to the "devaluation" of life throughout Colombia and converted murder and brutality into a regular source of income for some sectors of society.” (U.S. Library of Congress, Federal Research Division, December 1988)

“[In the year 2000] more than 4,000 people were victims of political killings, over 300 “disappeared”, and an estimated 300,000 people were internally displaced. At least 1,500 people were kidnapped by armed opposition groups and paramilitary organizations; mass kidnaps of civilians continued. Torture –often involving mutilation- remained widespread, particularly as a prelude to murder by paramilitary groups. “Death squad”-style killings continued in urban areas.” (AI Report 2001)

“Continuing a disturbing trend from 2000, the average number of victims of political violence and deaths in combat has risen. This violence is increasingly urban and involves attacks on elected officials and government investigators as well as community leaders, human rights defenders, indigenous leaders, journalists and trade unionists. Colombians continue to flee their homes and even their country in record numbers, facing hunger, the elements, and disease in desperate efforts to save themselves and their families.” (HRW, 15 March 2002)

“Colombia continues to suffer the world’s highest number of politically motivated killings and kidnappings in a decades-old internal conflict that includes left-wing guerrilla groups, right-wing paramilitary organizations, and the Colombian armed forces. Narco-traffickers and other criminal elements also participate in Colombia’s violence.” (USCR June 2001)

“26. A marked deterioration occurred in the armed conflict as a result of the increased fighting and the enlargement of the area under dispute to include urban areas, [...] thus increasingly affecting the civilian population. This tendency became more marked at the beginning of 2002 with the crisis in the peace negotiations between the Government and FARC-EP, and matters worsened further when the peace talks and agreed demilitarized zone were abandoned.

27. The number of clashes between armed groups rose in 2002 compared with a year earlier, leading to an increase in the number of deaths among combatants that is hard to determine, since many casualties are not recorded as homicides and because illegal armed groups tend to take their dead away with them. According to the Office of the Vice-President, [...] the municipalities most affected by the fighting were those of the Pacific area, Urabá (Antioquia and Chocó), Arauca and Casanare, those of Eastern Antioquia and those of the south of Bolívar. A high homicide rate coincided with fighting in several municipalities in those departments, and in the cities of Medellín (Antioquia) and Cúcuta (Norte de Santander).

28. Events like the FARC-EP attack on civilians in the municipality of Bojayá (Chocó), in May, or the clashes between illegal armed groups and security forces in neighbourhoods of Medellín, with their high cost in human lives, show how difficult it has been for the Government to protect the civilian population and to enforce the principles of distinction and proportionality. The new Government changed its strategy on armed conflict by pursuing a security policy aimed at strengthening the military capacity of the State and at regaining control over several parts of the country, especially the road network. An important facet of the new strategy concerned the rehabilitation and consolidation zones. [...]

29. FARC-EP, ELN and the paramilitary groups held their ground with a high concentration of military force in peripheral areas, even seeking control of strategic zones, which offered either a direct outlet to the sea or a corridor for the transit and trafficking of drugs and arms. Furthermore, moves by FARC-EP in some departments of the country, such as Cauca, were backed by ELN forces in a strategic alliance directed against the paramilitaries. Simultaneously, the conflict became increasingly urbanized, as a result partly of the strategy adopted by guerrilla groups to bring the fighting to the cities in order to put greater pressure on the Government and to enhance their negotiating power, and partly of the paramilitaries' policy of concentrating their action in urban areas in order to control operations in rural areas. Greater conflict in urban areas also reflected a strategy of achieving objectives by neutralizing, manipulating or sponsoring gangs of common criminals. In Comuna 13 of Medellín alone, the Antioquia authorities recorded 442 violent deaths among troops and civilians between 1 January and 9 October 2002. This represents an increase of over 100 per cent compared with 2001." (UNCHR, 24 February 2003, paras.26-29)

For an in-depth analysis of the Colombian Conflict see part one of UNDP May 2003 report 'El Conflicto, Callejón con Salida - Informe Nacional de Desarrollo Humano para Colombia 2003' [[External Link](#)]

For a chronology of recent history of Colombia, see website of the [Colombia Human Rights Network](#) [[External link](#)]

For a detailed review of the conflict in Colombia, see paras. 18-28 in [Profiles in Displacement: Colombia](#) by the Representative of the Secretary-General on IDPs, Mr. Francis Deng [[External link](#)], and Chapter I of the [Third Report on Colombia](#) by the Inter-American Commission on Human Rights [[External link](#)]

Conflict-induced displacements rooted in coca, oil and economic opening (2003)

- ELN controlled the Catatumbo region since the 60s and since 2001 AUC came to 'cleanse' the area from guerrilla and civilians alike
- Paramilitaries have imposed road blocks to debilitate the guerilla which as a result has also deprived 12,000 indigenous Bobalí people of food and medicines since January 2002
- La Gabarra is one of the largest coca field of Colombia cultivated since mid 1990s facilitated by historical absence of state
- Catatumbo is very rich in oil and carbon resources and Colombia's economic policies are aimed at attracting foreign capital in the area
- Catatumbo lies in strategic territory for trans-border routes of legal and illegal trade, disputed by various armed actors
- Since the 1980s farmers have grown coca in South Bolivar due to strong presence of armed actors who benefit from the war economy and weak state presence
- Since 2001 both guerilla and paramilitaries dispute control over resources in Arauca, in particular the coca economy
- FARC often enforce coca cultivation and levy taxes on it, and AUC groups are increasingly interested in controlling the war economy
- In Putumayo, coca fumigations led to more municipalities cultivating less coca

Catatumbo

"10. Drug trafficking, in its various complex dimensions, continued to be one of the negative factors bound up with the armed conflict. The production and marketing of narcotics is a substantial source of revenue for the various illegal armed groups, while generating violence in areas where the plants are grown and social

confrontation between many communities. It also gives rise, directly and indirectly, to many enforced displacements and is a major factor in corruption in administrative affairs.” (UNCHR, 24 February 2003)

“With the arrival of the paramilitary territorial control has changed hands. Paramilitary incursions pushed the guerilla further up into the mountain, debilitating the ELN, the historic actor who had controlled the region since the 1960s. Paramilitary forces took until May 2002 to cleanse the region from the guerrilla and civilians alike. Since then, the Auc have gained a strong presence in the urban centers of Ocaña and Convención. They are also controlling the two major roads leading to the peasant and indigenous communities of the Motilona, a zone with a strong guerrilla presence. Roadblocks and stringent paramilitary controls of the zone are to prevent military equipment, new troops, medicine and food from reaching the guerrilla. There is particular concern about the fate of 12,000 people who have been trapped in the Bobalí indigenous reservations since January 2002. Food and medicine blockades, although targeted at the guerrilla have serious implications for the communities who remain in the region. Given that armed actors are making no distinction between combatants and non-combatants, civilians are extremely vulnerable.

[...]

It is no coincidence that fierce battles over territorial control are taking place in the Catatumbo. War is generated by a particular political economy. The Catatumbo’s richness in natural resources such as oil and carbon is also its plight. This is particularly true since Colombia’s adoption of neoliberal policies during the early 1990s and the evolution of a globalized economy which has simultaneously facilitated transnational connections and fuelled war economies.

Coca cultivation: The Gabarra has one of the largest coca fields in Colombia. Coca was introduced during the mid-1990s and has been facilitated by the historic absence of the state, a trend to further impoverishment of the region following the state’s adoption of the neoliberal project. Violent conflict, the subsequent destruction of local markets and forced displacement are phenomena that have produced an army of ‘raspuchinos’ or coca harvesters who present a potential workforce on the coca fields. The Gabarra has become one of Plan Colombia’s main destinies for fumigation strategies, which, some argue, may lead to the displacement of coca cultivation from the Lower Catatumbo of the Gabarra into the regions around La Trinidad. Indeed, there are already some indications of the coca plant having been introduced in the Upper and Central Catatumbo. In this context, the military fears that the unblocking of the region would fuel coca cultivation and drug trafficking in the zone.

[...]

Catatumbo shares its borders with Venezuela, an advantage that lends itself to the promotion of transborder trade. Cocaine can easily be transported across the borders along Catatumbo river towards the Mar de Maracaibo from which products leave Latin America for the US and Europe. Ocaña constitutes the door to the Catatumbo, hence the interests of all armed actors to control the city.” (PCS, 11 February 2003)

“South Bolivar’s coca industry

Coca first surfaced during the 1980s against the backdrop of the strong presence of armed actors [4], a historically weak state presence and, above all, a thriving war economy (based on coca, oil, gold and emeralds industries). Before its appearance, peasants subsisted on agricultural production, gold washing, wood exploitation and cattle raising. Today, most farmers and their families depend upon the income from growing coca leaves. Coca is cultivated in most of the municipalities of the South Bolivar, but particularly in the municipalities of Cantagallo, San Pablo, Santa Rosa, and Simití.” (PCS, 28 August 2003)

Arauca

“In 2001, however, the guerrillas’ free rein in Tame was challenged by the right-wing paramilitaries of the United Self-Defense Forces of Colombia (AUC). The AUC’s Bloque Vencedores de Arauca (Arauca Vanquishers’ Bloc) moved about 450 of its fighters into Tame to try to dismantle the guerrilla hold on the municipality. They coalesced with certain local ranchers and politicians who had been victimized most by the FARC and the ELN.

[...]

The paramilitaries, meanwhile, surged into Tame in numbers not seen elsewhere in the department. As is all too common when territory changes hands in Colombia, upon gaining control, the paramilitaries went about eliminating those they felt had collaborated with the guerrillas during their reign in Tame. The guerrillas responded in kind, and civilians were caught in the middle.

[...]

This wave of selective assassinations and forced disappearances from 2001 onward have made Tame one of the most violent municipalities -- if not the most violent -- in Colombia. In the past two and a half years, more than 300 people have been killed in the municipality, which a few years ago numbered 80,000 inhabitants but has dwindled to between 60,000 and 70,000 as a result of conflict-generated displacement.

[...]

There are a number of economic factors driving the combat and displacement in the rural sector. For starters, the flat, open areas around Tame are considered some of Colombia's finest agricultural and grazing land. Over the years, small and medium-sized fincas have provided decent livings to many campesinos in the Tame municipality, while ranchers have been able to raise mass quantities of livestock. But the intensified fighting has forced thousands of peasant families off their land, with all armed participants in the conflict causing displacement

[...]

Tame's ranchers have often had their livestock stolen by the guerrillas, who have at times turned the animals over to peasants but more often sought to trade them for legitimate livestock and other supplies just across the remote and uncontrolled Venezuelan border. Ranchers, too, have been forced to flee, with many making for the relative safety of Bogotá.

[...]

Petroleum is another factor at play in the territorial warfare in Arauca. The department's oil fields and its Caño-Limón pipeline, operated in part by U.S.-based Occidental Petroleum, generate significant wealth -- when they are functioning.

[...]

Likewise, by bombing pipelines and oil installations, the guerrillas routinely affected oil revenues, demonstrating a capacity to interrupt the business agenda of the Colombian state and its multinational partners. These attacks, including 170 bombings of the Caño-Limón pipeline in 2001, were instrumental in bringing about the arrival of U.S. Special Forces troops in Saravena, with the task of training Colombian soldiers in counterinsurgency and the protection of the oil assets. So central to the economy of Arauca is oil that the logo of the Navos Pardo Battalion is an oil derrick guarded by a soldier. Though Tame municipality is not at the center of the Araucan oil fields, it borders on those areas, lending it a territorial value of its own.

Another resource being exploited by the paramilitaries and the guerrillas is coca, the plant provides the basic ingredient for cocaine. Recent years have seen an explosion in coca cultivation in the Arauca department, with the FARC considered to be the chief force behind the surge. Many peasants have been forced by the armed groups to replant their fields with coca. Three years ago, some 978 hectares of land were thought to be under coca cultivation in Arauca department. Estimates now put that figure between 12,000 and 18,000 hectares,²³ a direct result of Plan Colombia's fumigation "successes" in southern Colombia leading to the displacement of coca cultivation to new areas of Colombia, as well as across the border into Peru and Ecuador.

Police commander Lt. Col. López suggests that the paramilitaries are having a relatively easy time asserting themselves in Tame in part because the guerrillas are retreating toward the Venezuelan border, where aside from the black market trade in stolen livestock and other goods, they can slip vast quantities of cocaine into Venezuela, from whence it heads north to the U.S. market. He argues that, "The advance of the self-defense groups toward the Venezuelan border is to cut off the FARC's narcotrafficking business. This is the war: the war between the extreme right and the left is for coca cultivation, which is what gives these groups their highest profits." (Colombia Journal, 4 August 2003)

President Alvaro Uribe ‘military’ solutions to the conflict have not improved security (2003)

- UNCHR reported that in 110 out of 1,100 municipalities voters could not enjoy freedom of vote in 2002
- Alvaro Uribe sworn in August 2002 proposed a ‘policy of democratic security’ to defeat the insurgency and regain territorial control
- ‘Democratic security’ consists in the creation of a contingent of 15 thousands peasant soldiers, ‘zones of rehabilitation and consolidation’ and the creation of a Network of Informants for public authorities
- Decree No. 2002 – ruled unconstitutional – targets ‘rehabilitation and consolidation zones’ where to restore ‘public order’
- 1.623 people were displaced daily between July and October 2002, in total 149.387 people compared to 90.179 and 113.555 during the first two trimesters of 2002
- Uribe’s military solutions are criticized by human rights organization, UN and NGOs alike for violating international humanitarian law, undermining the rule of law and the work of democratic institutions, and failing to distinguish between civilians and combatants
- Guerrilla groups have increasingly attacked civilian populations, using explosive devices against governing institutions and socio-economic infrastructures
- Displacements are caused by strategies of control or recuperation of territories, and the withdrawal or counter-attacks from various armed groups
- In spite of advances against armed groups and drugs, the policy of ‘democratic security’ has not yet improved security in Colombia
- After the state of emergency declared by Uribe was ended by a constitutional court decision, the new administration submitted an anti-terrorist bill granting judicial powers to the military

2002 Elections

“11. Despite many threats and repeated violence, attributable both to the guerrilla groups and the paramilitaries, the country was able to hold the two elections planned for 2002, though both took place in a climate of tension and polarization. Congressional elections were held on 10 March and presidential elections on 26 May. On both occasions the blatant weakness of the political parties adversely affected the overall functioning of the democratic system.

12. During these two elections, the antidemocratic pressures brought to bear on many sectors of the population by the illegal armed groups were manifest. Through violence and terror, the guerrilla groups and the paramilitaries succeeded in affecting the exercise by a substantial number of Colombian citizens of their political rights. In about 110 municipalities in the country (out of a total of 1,100), neither were voters allowed complete freedom to cast their votes, nor were candidates able to conduct their campaigns under conditions of full equality and security. One example of this was the kidnapping of presidential candidate Ingrid Betancourt. Voter turnout in the two elections was 43 per cent and 46 per cent respectively.

13. In the legislative elections held in March, most congressional seats were won by supporters of Alvaro Uribe. In the presidential elections held in May, the winner turned out to be the opposition liberal candidate, Alvaro Uribe, who obtained 53 per cent of the votes cast, making a second round of voting unnecessary. During his electoral campaign, Mr. Uribe, as a mainstay of his programme, had emphasized what he referred to as “a policy of democratic security”, based chiefly on confronting the insurgency with the military power of the State. However, in the statement he made on taking office, the new Head of State declared himself to be willing, under certain conditions, to seek dialogue and negotiation with the rebel groups. In the same statement, Mr. Uribe announced that his Government would initiate a process of significant constitutional reform by referendum.

14. The main points of the “policy of democratic security” included the strengthening of the armed forces, an increase in the numbers of military and police personnel, the creation of a network of informers and helpers among the civilian population and a new system for recruiting soldiers among the peasantry.

15. On 7 August, during the inaugural ceremonies, mortars were fired in the centre of Bogotá, causing the death of 21 civilians, injuring 100 others and spreading terror in the neighbourhood where the attack, attributed to FARC-EP, took place. Four days later, invoking article 213 of the Constitution, the new Government issued Decree No. 1837 of 2002, in which it declared a state of internal commotion throughout the national territory. In its Ruling No. C-802, delivered on 2 October, the Constitutional Court decided that the declaration was in conformity with the Constitution.

16. Under the terms of Decree No. 2002, issued on 11 September, the Government took stern measures to restore public order. This decree redrew the rehabilitation and consolidation zones, established a procedure for defining their boundaries and laid down rules for their operational monitoring. It also made it possible to restrict freedom of movement and residence in those areas, to limit the movement and residence of foreigners, to make use of privately owned property and to oblige citizens to supply technical or professional services.

17. In a ruling issued on 25 November, the Constitutional Court declared several of the provisions in Decree No. 2002 unconstitutional, including those allowing the security forces - including the military - to carry out arrests, conduct searches and intercept mail and telephone calls with or without a warrant.” (UNCHR, 24 February 2003, para10-17)

“Situation in the former demilitarized zone

70. With the restoration of governmental control after the termination of the demilitarized zone, the authorities established only a limited presence. This took the form mainly of security forces, which were active in urban and occasionally in rural areas, constituting in some cases the only form of State authority present. The municipal authorities which had existed previously were weakened by the prevailing insecurity and, in some cases, mayors and municipal ombudsmen had to leave their municipalities. No permanent presence of judicial and supervisory authorities was ever re-established, and the Office of the Ombudsman, which was maintained with international support until the end of November, was unable to remain in the area after that date.

71. FARC-EP increased their pressure and violent action against the civilian population in the zone, particularly in rural areas, carrying out selective killings, restricting traffic and performing forced recruitments, and staging terrorist acts in urban areas.

72. Paramilitary groups were also observed to be present from the end of September onwards, mainly within the urban boundaries of Mesetas, San Vicente del Caguán and Vistahermosa, while serious complaints were received of collusion with members of the security forces.

73. Thus the civilian population continued to be extremely vulnerable to the activities of illegal armed groups, besides being stigmatized by the Army, and official institutions, especially the civilian authorities, were thinly represented and did little. The situation of members of the former civic police forces was particularly critical.” (UNCHR, 24 February 2003, paras 70-73)

'Democratic Security' Policy

« En este trimestre (julio-septiembre) son evidentes las consecuencias de la ruptura de los diálogos de paz entre el gobierno y los grupos insurgentes, y el inicio de la política de "seguridad democrática" del nuevo gobierno que tomó posesión el 7 de agosto y declaró la conmoción interior el 11 de agosto , tras los ataques de las FARC contra el Palacio de Nariño y el Capitolio Nacional.

En desarrollo del estado de conmoción interior el gobierno dictó varios decretos, entre ellos el que crea las zonas de rehabilitación y consolidación . Así mismo, el ejecutivo procedió a conformar la Red de Informantes o cooperantes, estableció los "lunes de las recompensas" y anunció la conformación de un contingente de "15 mil soldados campesinos".

Sin embargo, la declaratoria de guerra que siguió a la ruptura de los diálogos, las acciones de la insurgencia contra funcionarios públicos y la infraestructura energética y vial del país, la persistencia del paramilitarismo y el triunfo del presidente Uribe con una tesis de mano dura contra la guerrilla, afianzaron un clima de confrontación que tiende a crecer y a expandirse, generando nuevas dinámicas del conflicto armado y, tal vez, configurando una nueva etapa en su ya largo y traumático desarrollo.

[...]

En el trimestre comprendido entre julio 1 y septiembre 30 de 2002 el desplazamiento forzado interno, ocasionado por factores de violencia, presenta un incremento significativo respecto de las estimaciones de los últimos 17 años. En efecto, en estos tres meses el número de personas obligadas a desplazarse alcanzó la cifra de 149.387, frente a las 90.179 y 113.554 de los dos primeros trimestres. Es decir, un promedio de 1623 personas cada día, 67 personas cada hora, -una familia cada 10 minutos.

[...]

En síntesis, luego de presentar este panorama, queda claro que la guerra sigue su curso sin límites, sin perspectivas inmediatas de regulación en el marco del derecho internacional humanitario, sin garantías ciertas de protección por parte de un Estado ineficaz para prevenir las causas del desplazamiento forzado, y sin ninguna voluntad real de las guerrillas y los grupos paramilitares para excluir a los civiles de las hostilidades que siguen afectando a los más indefensos.

[...]

Las principales tendencias del desplazamiento reflejan los efectos de las estrategias de control y recuperación territorial y el repliegue o contraataque por parte de los distintos actores armados, y especialmente en sectores urbanos. Una característica de dicha tendencia es la visibilización del desplazamiento intraurbano.

[...]

Las restricciones, bloqueos y castigo a quienes se desplacen, completan el marco de crisis humanitaria en el que se debaten cada vez más sectores sociales.» (CODHES, 18 November 2002)

“Under the DSP, Uribe has sought to regain control of the country by increasing the numbers and capacity of troops and police units and by deploying them across the country to challenge the guerrillas. This has been accompanied by a major increase in the eradication of illicit crops, aimed as much at denying revenues to the guerrillas and paramilitary groups as at reducing coca and opium poppy production.

[...]

While strengthening Colombia's formal security structure, Uribe unveiled three other, less formal mechanisms to boost security which have generated widespread controversy. First, he initiated a network of more than one million civilian collaborators and informants who are paid to provide information about the insurgents. This has raised concerns that the collaborators may use their power to pursue personal vendettas and that such a system undermines community trust. Secondly, he organised a semi-trained peasant militia force whose members operate in their own home communities. Their isolation and generally poor training, however, have left them vulnerable to targeted attacks by the Fuerzas Armadas Revolucionarias de Colombia (FARC). Thirdly, initially through executive decree and subsequently through anti-terrorist and other proposed legislation, Uribe has begun to grant the military a range of police powers, with neither judicial approval nor oversight, limiting individual civil liberties in the process.

[....]

The bulk of the conflict, including the increased number of clashes resulting from Uribe's more aggressive security policy, has taken place in rural Colombia. The absence of any coherent rural development policy constitutes perhaps the most serious threat to the potential effectiveness of the DSP.” (ICG, 13 November 2003)

“In spite of the government’s focus, there has not yet been an appreciable improvement in the security situation across the country. So far there are no indications that a solution to the armed conflict is at hand – or even close.

[...]

Although the administration can show advances against the armed groups and drugs, the statistics remain subject to dispute.

[...]

The DSP’s stated goal is “to protect the rights of citizens and democratic values and institutions and foment solidarity and civilian cooperation in the defence of democracy”. [...] The government defines “terrorism” as the main threat to peace and democracy in Colombia, in conjunction with drug and arms trafficking, kidnapping, extortion and homicide. [...] Security, in turn, is defined as “the permanent and effective presence of the democratic authorities across the national territory as a result of a collective effort of the whole society”.

[...]

The president’s declaration of a state of “public unrest” on 11 August 2002, which came a few days after the FARC’s mortar attack on his inauguration ceremony, was ended by a constitutional court decision which found it violated the 1991 constitution. The government subsequently submitted anti-terrorist, justice reform and “veiled amnesty” [...] bills to parliament. [...] Through the proposed laws, it is seeking, on the one hand, to give broad judicial powers of detention to the military, reduce judicial oversight on the executive in security matters, and increase the pressure on the irregular armed groups; and on the other hand, to stimulate desertions from those groups. [...]

The first anti-terrorist bill, submitted to parliament in April 2003, would give the state security forces, including the military, permanent legal powers to intercept communications, conduct house searches and arrest individuals without a judicial warrant.

[...]

The most controversial items of the judicial reform bill are its proposed restrictions of the constitutional court’s areas of competence and of the right of citizens to legal protection of all fundamental rights (*tutela*).” (ICG, 13 November 2003, pp.1-6)

“Meanwhile, since early 2002 when the always tenuous peace talks finally broke down completely, there has been a sharp increase in forced internal displacement and countless violations of international humanitarian law (IHL) and human rights not only by the irregular armed groups, but also by state agents. That constant rise in violence is sad evidence that government policy has not yet appreciably improved the security of the most vulnerable sectors of Colombian society.[...]

[...]

Nevertheless, the many internal displacements through the first half of 2003 show that the intensification of the conflict has produced increased civilian suffering.” (ICG, 9 July 2003, p.2,8)

Conflict increasingly spreading to urban areas causes intra-urban displacements (2003)

- Presence of armed actors in urban centers has created complex web of organized crime, gangs, guerilla militias and paramilitary squads
- ‘Cleansing squads’ have been set up with and army back-up to respond to the crime wave
- Government’s focus on counter-insurgency in rural areas has created a heaven in towns
- As of November 2002 FARC controlled 83 out of 116 municipalities in Cundinamarca a
- Since mid1990s paramilitaries are disputing Cundinamarca territory with guerilla groups
- Guerilla terrorist activity in the capital has considerably stepped up
- Paramilitary increased presence in Cundinamarca is not officially recognized

- IDPs and community leaders are primary victims of armed actors urban warfare which led to intra-urban displacements

“The sharp increase in levels of poverty and inequality coincide with an increase in the presence of armed actors in and around the capital, in particular in poverty-stricken urban districts. Many analysts believe that the combination of unemployment, social exclusion, difficulties to access formal education and health facilities are variables that feed into urban conflict. Indeed, urban slums such as Cazuca have become breeding grounds for youth gangs, left wing militia groups, the paramilitary and organized crime. Urban conflict has taken on a logic that links organized crime, human rights abuses and armed actors. Young people are particularly vulnerable and rapidly drawn into the dynamics of urban violence. The local NGO Fedes has established how, in the light of lack of reference points such as family life and schools, young people of the Cazuca neighborhood are gradually swallowed up by youth gangs and subsequently paramilitary groups. The upsurge in organized crime has sparked the creation of ‘grupos de limpieza’ consisting of traders, merchants, shopkeepers and so on that have close links with the police and receive protection by armed actors¹⁴. Recruitment and forced recruitment has become commonplace in poor districts, while levels of homicides¹⁵, kidnappings, disappearances and inter-urban displacement have also gone up. While levels of violence experienced in Bogota can not yet be compared with those of Medellin and Cucuta, Colombia’s other major cities, in which the presence of armed actors is strongly felt and levels of violence have increased sharply during the last couple of years, many analysts claim that urban violence will escalate in the capital in the month and years to come.

[...]

Indeed, the government’s focus on tightening security measures implemented in particular in rural zones have turned large cities into relative safe havens from which armed actors can more easily operate or go underground.

The guerrilla has historically had a strong presence in Cundinamarca department, in particular areas around Sumapaz (see map). Today, the Farc has a presence in 83 out of 116 municipalities in Cundinamarca¹⁶. The paramilitary became interested in setting up control during the mid-1990s. Zones such as Sumapaz, located south of Bogota have become a sight of territorial dispute between right and left wing armed actors. Here the escalation of violence has meant that government institutions have been particularly affected [...].

[...]

The director of the District Planning Center believes that the guerrilla seeks to blockade the city in order to harm the city’s economy. Recent terrorist activities¹⁸ have increased fears about a potential escalation of urban warfare in the capital.

[...]

In spite of the increase of a paramilitary presence in Cundinamarca, their presence is not officially recognized. According to the Colombian ombudsman, one of the dilemmas is the invisibility or negation of the increasing presence of the Auc in southern Bogota by state authorities and the military, which increases the state’s incapacity to provide physical security in those areas with a high presence of armed actors. This is particularly affecting community leaders who are often a target. Inter-urban displacement has increased as a result. What is also worrying is that Bogotanos continue to believe that conflict is a rural problem, that doesn’t touch upon city life. The north-south or rich-poor divide helps to sustain the invisibility of urban violence in the center and northern part of the city, inhabited by the middle and upper classes. Given that armed actors operate in those poor zones where most displaced settle, their physical security is constantly being undermined.” (PCS, 31 December 2002)

The Colombian civil conflict is spilling over its borders (2004)

- About 20,727 people were displaced along Colombia's borders in 2003 and 47,375 in 2002
- 600 indigenous Panameans fled to Boca de Cupe were displaced from Paya after 4 indigenous Emberá leaders were massacred by paramilitaries

- Venezuelan president ordered bombing raids against Colombian irregular forces on Venezuelan territory (Mar 2003)
- Between 200 and 600 Venezuelan civilians and indigenous Bari fled to Rio de Oro in north-western Venezuela following paramilitary incursions (Mar 2003)
- Brazil deployed 28 thousand men in permanent alert along its northern border with Colombia in September 2002
- Venezuela added 7 thousands soldiers to the 20 thousands already deployed along its border with Colombia in August 2002
- Peru also considerably militarized its border by setting point of vigilance, military and police posts
- Equator had a permanent contingent of 15 thousand men along its border with Colombia (as of Nov 2002), 3 times higher than during the war with Peru
- Asylum policies of neighbouring countries towards Colombians seeking protection are increasingly restrictive
- While the majority of asylum requests in Equator were solicited between September and October 2002, acceptance declined to 18.3% compared to 30% at the beginning of the year
- Clashes between guerrilla and paramilitaries and attacks on civilians continue unabated along Colombia's borders

“Durante el período correspondiente a enero- septiembre [...], se desplazó una población estimada en 20.727 personas hacia 45 municipios ubicados en zonas de frontera de Colombia con países vecinos mientras que alrededor 15 mil connacionales buscaron protección en Ecuador, Venezuela y Panamá. Ante esta situación los departamentos fronterizos carecen de procesos de prevención y precarias prácticas de protección de las poblaciones campesinas, afrodescendientes, pueblos indígenas, afectados por la crisis humanitaria de desplazamiento, violaciones de derechos humanos e infracciones al DIH como lo muestran los siguientes datos:

Tasa Nacional de expulsión: Putumayo, Guajira, Arauca, Norte de Santander, Cesar, Chocó, superan la tasa nacional de 342 personas por cada cien mil habitantes.

Fumigaciones: Las zonas de cultivos ilícitos son ejes de expulsión e incluyen los departamentos fronterizos de Putumayo, Nariño, Norte de Santander y Cesar [...].

Militarización: Aumento del impacto del desplazamiento en Putumayo y Arauca, departamentos en los que se adelantan acciones militares y de fumigación en el marco del Plan Colombia.

Subregistro: en los escenarios fronterizos internos y en los países vecinos, por escepticismo frente a la agilidad de las respuestas de los gobiernos vecinos y por las implicaciones que la búsqueda formal de protección tiene en términos de estigmatización de los colombianos.” (CODHES, 2 January 2004)

“A los flujos de solicitantes de refugio se suman los desplazados que no cruzan las fronteras y se asientan en los municipios limítrofes, y que en 2002 ascendieron a 47.375 personas.” (CODHES, 28 April 2003)

Panamá:

“According to reports from UNHCR's partners in the area, 472 Panamanian indigenous people, including 324 children, fled in search of protection to Boca de Cupe in the Central Darien region of Panama this week after their villages were attacked by Colombian paramilitaries.” (UNHCR, 24 January 2003)

« 1) Un grupo de campesinos colombianos salieron de la comunidad de Arquía, Municipio de Ungía, norte del departamento de Chocó -zona de control paramilitar- con destino a territorio panameño (Paya), en las montañas de Pinogana, Provincia del Darién. El sábado 18 de enero, se produjo una incursión paramilitar

procedente de Colombia, de aproximadamente 150 personas, en la comunidad de Paya y luego, en la de Pucuró. Primero, mataron a un líder indígena emberá (kuna en Panamá) y, desaparecieron a tres más que luego fueron encontrados muertos.

Como consecuencia de estos hechos de violencia, se produjo el desplazamiento de aproximadamente 600 personas desde Paya hacia Boca de Cupé, donde existe una guarnición de la Guardia Nacional panameña. Asimismo, hubo acciones de robo y quema de ranchos que constituye una violación a los derechos a la propiedad. El grupo armado dejó un campo minado para favorecer su fuga, lo que constituye una violación a la Convención para la Prohibición del Uso, Almacenaje, Producción y Transferencia de Minas Antipersonales, aunque haya sido cometido por un actor armado no estatal.

2) Hasta donde se conoce, la incursión armada tenía como objetivo, cobrarse algunas deudas pendientes y como escarmiento, por un supuesto apoyo de la población a la guerrilla. Horas antes, esta misma columna armada capturó y retuvo a tres periodistas (dos norteamericanos y un canadiense) que se encontraban en el lugar.

[...]

Dichos actos de violencia acarrearán el riesgo que la reacción del Gobierno de Panamá, se refleje en una creciente "militarización" de las zonas de frontera, donde precisamente viven la mayoría de los 1,500 solicitantes de refugio colombianos (Jaqué, Darién Central, Puerto Obaldía). Ello pudiera significar que el espacio humanitario necesario para el adecuado tratamiento del refugio en la frontera entre Colombia y Panamá, empeore en los próximos meses. » (NRC, 23 January 2003, pp.1-2)

Venezuela:

"Over the last two weeks, there have been reports of armed clashes between Colombian guerrilla and paramilitaries in the border zone with Venezuela. These irregular armed groups also reportedly clashed with the Venezuelan army. Last weekend, Venezuelan President Hugo Chavez declared that he had ordered a bombing raid against suspected Colombian irregular forces inside Venezuelan territory.

Some 200 persons, including more than 90 children, fled the remote Rio de Oro area of north-western Venezuela when Colombian paramilitaries entered the zone, according to local authorities, human rights non-governmental agencies and media sources.

[...]

The refugee agency has also received unconfirmed reports that some 600 persons, including indigenous Bari people, had fled into the mountainous area near Rio de Oro.

[...]

UNHCR has requested the Venezuelan authorities to provide all the necessary security guarantees for humanitarian staff to undertake an assessment mission to the area as soon as possible. The refugee agency and its partners are ready to assist the local authorities in attending to the displaced population's immediate needs for protection and humanitarian assistance.

The recent events signal a worrying escalation of the Colombian conflict and underscore the growing humanitarian impact on the countries neighbouring Colombia. UNHCR has urged all combatants to respect the rights of the civilian population. It has also appealed to all governments in the region to continue to abide by their international obligations and ensure the right to asylum." (UNHCR, 1 April 2003)

Ecuador, Peru and Brazil:

« El desplazamiento forzado en las zonas de frontera de Colombia, se enfrenta con una coyuntura cada vez más compleja para quienes buscan protección en los países vecinos. En primer lugar, es necesario mencionar la regionalización del conflicto y la política de seguridad hemisférica de Estados Unidos, lo que ha producido el fortalecimiento de la militarización y el incremento del pie de fuerza en las fronteras.

Por ejemplo, en Brasil durante el mes de septiembre se movilizaron aproximadamente 28 mil hombres hacia el norte -territorio vecino a Colombia-, quienes se encuentran en estado de "alerta permanente". En el mes de agosto, el gobierno venezolano anunció el aumento de 7 mil soldados más hacia la frontera, que

se sumaron a los 20 mil apostados en las bases militares de los estados limítrofes con Colombia. El gobierno de Perú ha reforzado su presencia a través de la militarización de la frontera -funcionan 17 puestos de vigilancia entre Puerto Asís, Putumayo y el Estrecho, Perú; 2 destacamentos militares y 9 comisarias de la Policía Nacional. En Ecuador, de acuerdo con información suministrada por el Centro de documentación "Segundo Montes Mozo S.J", permanece un contingente militar de aproximadamente 15 mil hombres, tres veces más que el número de efectivos presentes en la última guerra entre Perú y Ecuador.

En segundo lugar, las prácticas de protección de los gobiernos vecinos son cada vez más restrictivas. Por ejemplo, en Ecuador, según cifras del Ministerio de Relaciones Exteriores de este país, durante el trimestre se presentaron 1563 solicitudes de refugio, de las cuales sólo 286 fueron aceptadas, aproximadamente el 18.3%, comparado con una proporción de reconocimiento del 30% a comienzos del año. La mayoría de los solicitantes de refugio y asilo se presentaron durante los meses de septiembre y octubre del presente año. Paralelo a esta dinámica, el gobierno ecuatoriano manifestó su disposición de revisar su política migratoria respecto de Colombia. Preocupan las declaraciones de los solicitantes de refugio relacionadas con las fumigaciones como uno de los motivos de desplazamiento. En el Putumayo de acuerdo con los datos suministrados por SISDES, durante el trimestre julio-septiembre, fueron desplazadas 2836 personas.

En el caso de Panamá, prosigue la indefinición del estatus jurídico de los colombianos(as) en la región de Darién. En Venezuela, aún no se ha puesto en marcha la Comisión de Elegibilidad encargada de aplicar la Ley de Asilados(as) y Refugiados(as) promulgada en el año 2001. » (CODHES, 18 November 2002)

For more information about the regional destabilizing effects of the Colombian conflict read ICG report: "Colombia and its Neighbours: The Tentacles of Instability", 8 April 2003 [[External link](#)]

Plan Colombia: US military assistance for war on drugs fuelled conflict and displacement (2000-03)

- Since 2000 the US gave US\$3 billion mostly in counter-narcotics military aid to Colombia (end 2003)
- Since August 2000, there has been a noticeable deepening in the humanitarian crisis and a deterioration in security conditions
- Indigenous communities are concerned that areas where illegal crops are grown have turned into dangerous war zones due to the war on drugs
- Nearly 80% of the aid will be for military antinarcotic efforts in the Caquetá and Putumayo region, in southern Colombia
- Funds will go to military equipment, to train two antinarcotics battalions, to carry out drug traffic interdiction, and to equipment for crop eradication
- US government officials reportedly admit that as many as 150.000 people might be displaced as a result of the US financed counter narcotics activities in Colombia
- More than US\$ 490 million in military aid are planned for 2003 by President Bush, for the "counter-insurgency war", with complete disregard for the already noted incrementation in violence and paramilitaries' human right abuses
- The Bush administration removed all restrictions on U.S. military aid to Colombia notably those imposing human rights standards

“Since 2000, Washington has provided approximately U.S.\$3 billion in support of Plan Colombia, largely aimed at stemming the production and flow of drugs to the U.S. For FY2004, the aid flow – mostly military – to its closest South American ally in the “global war on terrorism” is expected to continue. [...] The U.S. plans to appropriate approximately U.S.\$424 million in military and police assistance and U.S.\$150 million

in social and economic aid through the Andean Counter-Drug Initiative (ACI). An additional U.S.\$108 million would be provided by the defence department in foreign military assistance.” (ICG, 13 November 2003, p.12)

"On January 11th [2000] the Clinton Administration announced an aid package to Colombia for more than \$1 billion over the next two years. This will be in addition to the more that \$300 million in the current budget. Nearly 80% of the aid will be for antinarcotic efforts in the Caqueta and Putumayo region, in southern Colombia. Included are funds to buy military equipment (\$400 million to buy Blackhawk helicopters), to train two antinarcotic battalions, carry out drug traffic interdiction, and equipment for crop eradication. The remaining 20% will go for alternative development programs, strengthening of the judicial system, and human rights protection.

USCR considers that the Clinton Administration's plan to spend \$1.3 billion purported counter-narcotics efforts in Colombia is misguided and will probably backfire—to the detriment of both the United States and the Colombian people. "This so-called aid package is warped. It proposes massive amounts of military aid that will undoubtedly be used as much for counter-insurgency as for counter-narcotics, but provides only a few scraps to the million-plus internally displaced Colombians who are the main victims of the conflict in their homeland," said Hiram Ruiz, USCR Senior Policy Analyst. Displaced Colombians live in fear, with little or no assistance from their own government or the international community. Given the dangerous, marginalized lives displaced Colombians already endure, it is particularly egregious that the Administration's proposed aid package encourages and funds a military offensive into southern Colombia that it anticipates will displace thousands more civilians from their homes. The aid package language demonstrates this by calling for funds to "provide shelter and employment to the Colombian people who will be displaced" by the offensive. According to Ruiz, "It is shocking that instead of helping alleviate the plight of displaced Colombians, the United States plans to help swell their ranks." (USCR February 14, 2000)

"Since August 2000, there has been a noticeable deepening in the humanitarian crisis and a deterioration in security conditions, which adversely affect the protection of the civilian population. Moreover, the Colombia Plan has led to the increasing polarization of Colombian society. The personnel of humanitarian agencies are also affected to varying degrees by the escalation in the armed conflict. In addition, civilians are being constantly kidnapped, sometimes in large groups, by illegal elements, and displaced persons have been directly threatened (for example, the case of the Buga and Tuluá camps)." (TGD 19 January 2001)

"The indigenous communities have also alleged that the fight against drugs has resulted in the militarization of many areas where illegal crops are grown and where significant indigenous populations also reside. This militarization creates an environment propitious for violations of the human rights of the indigenous inhabitants. This problem is aggravated by the fact that the Colombian government and military associate the production and trafficking of narcotics with the guerrilla movement. As a result, the areas where illegal crops are grown have been converted into war zones. This situation affects negatively the indigenous persons who reside in these areas, including those who produce narcotics as well as those who do not. These persons are frequently accused of collaborating with armed dissident groups." (IACHR 1999, chapter X, para. 53)

"On January 10, 2002, United States President George W. Bush signed Public Law 107-115, which covers most foreign aid. The legislation included \$625 million for the Andean region, most destined for Colombia. A large portion of this aid will be spent on security assistance to the Colombian military." (AI, HRW and WOLA, 5 February 2002)

"Although the military component of Plan Colombia was not due to come into effect until early 2001, its impact was immediate. In response to the US military aid package, the FARC launched a series of attacks throughout the country. The southern department of Putumayo, the principal focus of Plan Colombia, was particularly affected by an upsurge in violence. Civilians were caught in the crossfire as the FARC and army-backed paramilitary forces fought for control of the region." (AI Annual Report 2001)

"El Plan Colombia, como también lo advertimos, creó una situación de desconfianza en los comienzos del proceso de paz e impuso la lógica perversa de más dinero para la guerra que fue respondida por las Farc con sus impuestos ilegales y el incremento del secuestro, de las extorsiones y de los recursos procedentes del narcotráfico.

Una última advertencia formulada hace dos años se refería a que el Plan Colombia era el comienzo de una intervención militar creciente que se incrementaría en medio de su propio fracaso. Pues bien, el gobierno de Estados Unidos se propone ahora aumentar la asistencia militar en más de 490 millones de dólares para el próximo año, dirigidos a la guerra contrainsurgente, ya sin condicionamientos y sin reparar la situación de derechos humanos o el crecimiento del paramilitarismo." (CODHES 15 February 2002)

"To end curbs on aid to Colombia the Bush administration announced plans, on Friday 15th March, to ask Congress to remove all restrictions on U.S. military aid to Colombia, including those that limit assistance to counter-narcotics efforts, impose human rights standards on the Colombian military and cap the number of U.S. military personnel in the country. The administration will also seek permission for U.S.-trained brigades, along with U.S. equipment and ammunition, to be used in military operations against the Armed Revolutionary Forces of Colombia (FARC). The proposal, which also aims to prevent restrictions on any future aid, will be included in legislation for additional funds for global and domestic anti-terrorism efforts this year. The Pentagon recently proposed including Colombia in the global war on terrorism." (US Office on Colombia, 18 March 2002)

"Ahora bien, las posibilidades de extension e incremento del fenomeno del desplazamiento forzado son graves y preocupantes si se tiene en cuenta que la dinamica interna de agudizacion del conflicto armado tendria un nuevo componente: la aprobacion por parte del Congreso de Estados Unidos de un paquete de ayuda para Colombia de aproximadamente 1.600 millones de dolares, cuyo principal objetivo es fortalecer uno de los actores comprometidos en la confrontacion, las Fuerzas Militares, para combatir los cultivos y el procesamiento de la hoja de coca en territorios de influencia de la guerrilla. [The proposed aid is mainly to set up and train three special anti-drug battalions, equipped with 63 combat helicopters. Their mission is to penetrate and secure the coca-growing regions of southern Colombia, thereby allowing for extensive counternarcotics operations in the area]

Las propias autoridades estadounidenses calculan en 150 mil las personas que seran desplazadas del sur del pais como consecuencia del plan de erradicacion de cultivos uso ilicito que se sumarian a los desplazados por el conflicto armado de otras regiones multiplicando la crisis humanitaria que ya vive Colombia por este problema social, demografico y de derechos humanos. [Pie de pagina: La cifra fue divulgada por la senora Julieth Tab, de la Oficina de Refugiados del Departamento de Estado de Estados Unidos en reunion sostenida con CODHES y otras Ong de Colombia con la delegacion encabezada por el Subsecretario de Asuntos Politicos, Thomas Pickering, 14 de Febrero de 2000]" (CODHES , 22 February 2000, p.2)

Historical background

"El 80% de los ingresos de la guerrilla vienen del narcotráfico ya que es más seguro que el secuestro. Aunque los paramilitares también está altamente involucrados en ele negocio, en particular en la Gabarra. Los cultivos ya están bajando más cerca de los grupos de población, hacia Ocaña, Convención y Sardinata."(PCS, 8 November 2002)

"During late May and most of June 2003, spray planes flew over the southern part of the department of Bolivar in the heart of Colombia, indiscriminately fumigating vast jungles, grazing land, rural dwellings and both licit and illicit crops with the chemical glyphosate.

[...]

South Bolivar's coca industry

Coca first surfaced during the 1980s against the backdrop of the strong presence of armed actors [4], a historically weak state presence and, above all, a thriving war economy (based on coca, oil, gold and emeralds industries). Before its appearance, peasants subsisted on agricultural production, gold washing,

wood exploitation and cattle raising. Today, most farmers and their families depend upon the income from growing coca leaves. Coca is cultivated in most of the municipalities of the South Bolivar, but particularly in the municipalities of Cantagallo, San Pablo, Santa Rosa, and Simití.

[...]

The main obstacle to successful coca eradication is that the government's carrot and stick approaches of fumigation and alternative development programs do not respond to the complexity of local situations, with their extremely bad infrastructure, the presence of armed groups – FARC, ELN and AUC – that often impose economic and food blockades on the local population, and a historically weak state presence:

Geographical remoteness is a problem. It is difficult to reach rural areas given the poor road conditions and high transport costs. Among other factors, the lack of passable roads makes some rural areas extremely inhospitable for legal cash crops. For example, the cost of transporting a truckload of cassava to the nearby urban centre of San Pablo – just 30 km away from Virgencita - is 20,000 pesos while the cassava itself would only bring 30,000 pesos on the market, leaving the family with 10,000 pesos or approx US\$3 (without including cultivation and harvesting costs). While traditional agricultural products cost too much to produce and hardly yield any profit, coca paste is easily transportable and pays enough to earn a living.

The presence of irregular armed actors has a number of consequences: (1) they undermine manual eradication of coca crops, (2) impose taxation on coca leaves and paste and enforce roadblocks, and (3) weaken social structures. Armed actors have adopted a hostile stance toward crop substitution and rural development. Local farmers told the mission that they had received threats and were advised not to agree to manual eradication, which would secure alternative development in the region. Armed actors stigmatize and exploit farmers, impose taxation on coca leaves and paste, engage in the looting of livestock and food and increasingly impose economic and food blockades. Indeed, frequent restrictions on movement and trade means that commerce is almost impossible in the region.

[...]

Intensifying restrictions on trade and migrations have dissuaded farmers from investing in traditional activities such as cattle ranching and instead encourage coca cultivation. Furthermore, the presence of the paramilitary and guerrilla groupings has weakened social structures. Community leaders in particular have been subjected to systematic disappearances, massacres and forced displacements.

The lack of welfare and basic service provision has pushed many farmers to opt for the coca economy. Local community leaders have continuously insisted on funds for road improvements, employment schemes, schools and health care, but so far regional authorities have not responded to their needs, according to peasant leaders of rural San Pablo. Peasant communities feel criminalized by the state, which depicts them as guerrilla supporters and coca producers. Aerial fumigation and lack of socio-economic investment, far from eliminating coca crops, are fuelling anti-government sentiments, particularly in guerrilla-controlled areas.

[...]

Most families of Agualinda have lost both their coca and food crops, but no one has received any aid to date. Families are now running out of food.

[...]

In spite of these controversies, President Uribe restarted fumigation in October 2002, following a temporary halt because of the Ombudsman's appeal to investigate Plan Colombia's impact on public health.

Uribe intends to target all areas where coca is being cultivated in order to stamp out drug production and trafficking by 2006; the government's determination is outlined in the latest *'Plan de Seguridad Democrática'* [...]. This year's target is the fumigation of a 200,000-hectare area, twice the amount of existing crops [...], and Uribe is now frantically fumigating to meet his goal. The Magdalena Media region has an estimated 30,000 hectares of coca land, of which 10,000 hectares are to be sprayed during the course of the year. Spraying has also become an instrument to combat insurgents groups – the war on drugs and terrorism are interlinked, according to the US and Colombian governments – in order to re-establish state control over its regions and take charge of its economic resources again.

To meet the objective of total eradication, the government designed a multifaceted strategy that combines aerial fumigation, the apprehension of drug trafficking networks, socio-economic investment and alternative development programs. The plan states that farmers wishing to benefit from drug substitution projects must commit to a total eradication of illicit crops (*Política de Defensa y Seguridad Democrática*, 2003) The problem is that unless alternative rural development programs are implemented – at a national level - prior to eradicating the coca, illicit crops will keep moving to other impoverished rural areas throughout Colombia and the Andean region. While the government has Plan Colombia funds available for social programs that seek to facilitate and promote the eradication of illicit crops (i.e. funds for emergency aid and alternative development programs), nothing has to date been invested in the way of assisting locals of rural San Pablo.

Consequences and impacts of fumigation

Aerial fumigation has exacerbated economic hardship, inflicted a humanitarian crisis and also meant that many had to leave the area. Fumigation policies in general have long raised questions about the impact on food security, the environment and health, as well as its relation to forced displacement. Although the impact of aerial fumigation has been studied widely [...] such evaluations have not been taken into account by the US and Colombian governments.” (PCS, 28 August 2003)

Peace efforts

Frozen dialogue between GOC and FARC (Fuerzas Armadas Revolucionarias de Colombia) (Dec 2003)

- FARC refused to negotiate on Uribe’s conditions of ceasefire, end to kidnappings and release of all kidnap victims
- FARC demanded the re-establishment of the demilitarized zone despite widespread criticism that FARC used it as a base from which to launch attacks and cultivate coca
- FARC refused UN mediation for potential negotiations with GOC (Dec 2002)
- FARC refused dialogue with GOC as long as it would not cease all relations with paramilitaries
- Faltering Colombian peace process, since 1999, came to an end on 20 February 2002
- The international community express concern about increased displacements, particularly in the former FARC-controlled zone, since the end of the peace process
- UNHCR Director in Bogotá stated that displacement further increased beyond 40% recorded between 2000-2001 partly the result of the breakdown of peace dialogue (February 2002)
- Government agencies, and international aid organizations prepare for emergency assistance to internally Pastrana ordered its troops to retake the ‘demilitarized zone’ granted to FARC in February 2002 which will likely increase displacements (Mar 2002)
- Unless negotiations between the government and AUC include processes of truth, justice and reparation it is unlikely peace talks with FARC will resume

“At the start of the Uribe Administration, the FARC announced its refusal to negotiate on the basis of the conditions of prior ceasefire, end to kidnappings and release of all kidnap victims and insisted on the reestablishment of a demilitarised zone (DMZ) within two Colombian departments. [...]Virtually every sector in Colombia has been critical of the way in which the FARC misused the original DMZ concept during the Pastrana administration, not only initiating violent actions from within the zone and expanding or protecting coca cultivation there, but also using it as a sanctuary in which to hold kidnap victims. In late November, the FARC once again attacked the government’s policy as one of war, and it has been reluctant even to open discussions with the designated UN intermediary. In recent weeks, it also has stepped up its

urban bombing campaign, aimed at President Uribe, members of the Colombian Congress, and the mayor of Bogotá.

[...]

FARC spokesman Raúl Reyes stated that his organisation is only interested in exchanging “political prisoners” for “political hostages”, i.e. abducted congressmen, senators and former presidential and vice-presidential candidates, Ingrid Betancourt and Clara Rojas. This would exclude hundreds of other kidnapping victims, and without substantial modifications such a limited prisoner exchange accord would likely be unacceptable to the government.

The announcement of a ceasefire with the AUC has drawn an even more vitriolic response from the FARC, which has asserted that a fundamental condition of any talks with the government must include both a new DMZ and severance of any government relations with the AUC” (ICG, 19 December 2002, p.10)

“On January 9, Colombian President Andrés Pastrana announced the end of the peace negotiations with the Revolutionary Armed Forces of Colombia-People’s Army (FARC-EP), putting three years of bumpy talks aimed at ending the country’s nearly four decade-old civil war on hold.

In November 1998, just three months after having taken office, President Pastrana granted the FARC a Switzerland-sized area in southern Colombia as a goodwill gesture to move peace talks along. He promised the area would remain demilitarized and re-authorized his decision at intervals.” (AFP, 10 January 2002)

“In January 1999 the official peace talks between the government and the FARC began in the southern town of San Vicente del Caguán, but 10 days later the FARC already froze negotiations, charging that the government had done nothing to clamp down on the right-wing United Self-Defense Forces of Colombia (AUC) paramilitary group.

The peace talks were resumed, but during the years 2000 and 2001 negotiations were halted several times by both sides.

In October 2001 former Culture Minister Consuelo Araujonoguera, the Attorney General’s wife, was kidnapped and killed by the FARC. Despite the serious threat to the peace process Pastrana maintained the demilitarized zone until January 2002, but stepped up military controls around the region. The FARC refused to resume peace negotiations until the government would call off military over-flights of the demilitarized zone and close military checkpoints outside the area. On November 6, on the eve of a visit to Washington, Pastrana rejected the FARC demands.

At the beginning of January 2002, both sides met again in San Vicente del Caguan to salvage the peace process, but failed to give in on the issue of military controls. On January 9, Government negotiator Camilo Gomez said the FARC “is not continuing in the peace process and therefore has asked for 48 hours to leave the neutral zone.” (AFP, 10 January 2002)

“Lima, [the director of UNHCR Bogotá] [...] said displacement increased 40 per cent between 2000 and 2001. So far in 2002, it has continued to increase because the conflict has intensified and due to the breakdown of the peace process between the government and the FARC [Revolutionary Armed Forces of Colombia] on 20 February.” (BBC Monitoring International Reports, 24 March 2002)

"Most at risk are the people living in the demilitarized zone, an area comprising five municipalities of the departments of Caquetá and Meta which the government had conceded to Colombia's main armed opposition group, the *Fuerzas Armadas Revolucionarias de Colombia* (FARC) in November 1998 as a means of facilitating peace talks. The Colombian armed forces are set to retake this area militarily on Monday, 14 January if efforts to resume peace talks this weekend fail.

'These people were not given a choice as to whether they wanted to live in FARC-controlled territory, but have been stigmatized as 'FARC collaborators' and consequently may be the victims of reprisals at the hands of the Colombian army and its paramilitary allies' " (Amnesty International, 11 January 2002)

"Since 20 February, when President Pastrana ordered his forces to start retaking the area he had handed over to the FARC guerrillas, over 200 bombing raids have been carried out. FARC counter-attacks cut roads and blew up power lines. Worst of all, paramilitaries are reported to have entered the area to hunt down 'guerrilla sympathizers'.

[...]

"Because of military control, little information about conditions in the region is reaching the media. Aid organizations warn, however, that 'if the armed conflict continues without a return to peace negotiations, the humanitarian situation will undoubtedly deteriorate further. Increased numbers of deaths, rising internal displacement, and worsening refugee situations in neighboring Ecuador, Venezuela, and Panama are all likely, with the worst yet to come.'" (CAFOD, 13 March 2002)

"21. The new administration took some steps to renew contact, through the good offices of the Secretary-General, with FARC-EP to discuss such topics as "humanitarian exchange". (UNCHR, 24 February 2003, para21)

"If the government fails to conduct paramilitary demobilisation and reintegration in an accountable and transparent way, with due consideration given to justice, truth and reparations, the possibility of new, UN-facilitated peace talks with the FARC would probably be undercut. [...] Likewise, resumption of talks with the ELN, pointed to by Uribe after the group pledged not to interfere with the elections, would probably not be possible." (ICG, 13 November 2003, p.11-12)

In order to read an in-depth analysis of the various peace processes in Colombia see 'Alternatives to war, Colombia's peace processes', ACCORD January 2004 [[External Link](#)]

For more details see "Chronology of peace process in Colombia 1998-2001", [[External Link](#)]

Dialogue between GOC and ELN (National Liberation Army) at standstill (Dec 2003)

- ELN spokesmen rejected resumption of negotiations with GOC because the administration had prioritized military struggle (Dec 2002)
- 3 Sets of talks were held in Cuba (Dec 2002)
- Colombian Government and ELN start discussing truce in March 2002
- The GOC was said to have paid more attention to negotiations with the National Liberation Army (ELN), than with the FARC, when peace negotiations with the latter were faltering
- The ELN brake of peace talks with the GOC and conflict intensified on all fronts in April 2001

"The only early positive response to Uribe's invitation to negotiate came from the ELN, with which exploratory conversations were started in Cuba. According to ICG sources, the government has presented a proposal that conditions substantive negotiations upon a ceasefire. [...] ELN spokesman Ramiro Vargas stated recently that a resumption of negotiations was out of the question because the Uribe administration has given priority to the military struggle. The ELN was not prepared to concede a truce or give up its demand of a Zone of Encounter (ZOE) where a National Convention (NC) could meet and a peace accord could be forged. Nevertheless, three sets of talks were held in Cuba, indicating some readiness on the part of the ELN to explore the potential for agreement." (ICG, 19 December 2002, p.8)

"Colombia's government and its second-largest leftist insurgency, the National Liberation Army, have begun weighing the possibility of an internationally monitored ceasefire, the two sides said in a statement [...].

"Given what the country is going through, it is necessary to reaffirm that peaceful solution to conflict is possible; to that end we have begun to study a truce that could become a tangible peace achievement for

Colombians” said the statement, read to media by government negotiator Camilo Gomez and ELN chief Pablo Beltran." (AFP, 12 March 2002)

ELN spokesman Pablo Beltrán said that the ELN would be needing finances from both the government, the business community and the media during the time of the truce, as the ELN would be developing a political and social program just like any other opposition group.

"En la medida en que el Eln desarrolle un programa político y social, y que actúe durante la tregua como un movimiento opositor al régimen, pues se necesitará una financiación, tal como ocurre con los partidos de Europa", dijo desde Cuba a la prensa colombiana el vocero 'Pablo Beltrán', miembro del Comando Central del Eln.

Beltrán añadió que el tema de la eventual financiación de los 4.000 efectivos del Eln será discutido en la ronda de conversaciones que los voceros de esa organización sostienen en La Habana con los delegados del gobierno colombiano.

[...]

De acuerdo con Beltrán, en la financiación del Eln deberían participar el Estado, los empresarios y los medios de comunicación, "cuyo papel consistiría en llevar a cabo una acción pedagógica en favor de la paz y no en exaltar la guerra en Colombia".

También señaló que "si hay recursos para la tregua, se deberá establecer una auditoría nacional o internacional para que los dineros sean bien administrados".

[...]

"La tregua deberá ser integral en el sentido militar, económico, político y social, y buscando que beneficie a la población colombiana", señaló.

Beltrán dijo que, en caso de firmarse el acuerdo con el gobierno, los efectivos del Eln cesarán los secuestros y los ataques contra la infraestructura petrolera, vial, de energía eléctrica y de telecomunicaciones del país.

El jefe guerrillero dijo que grupo está elaborando un censo para establecer cuántas personas tiene como rehenes y calificó de "inflada" la cifra del ejército, según la cual el Eln fue el responsable del 40% de los 3.000 secuestros cometidos el año pasado en Colombia. [...]" (Government of Colombia, 12 March 2002)

Overview of the ELN-GOC peace process:

"Various foreign Governments and national political and social leaders have given active backing. Cuba, Spain, France, Norway and Switzerland formed a 'Group of Friends' to further the talks between the Government and the ELN" (UN HCHR 8 February 2001, chapter VI, para. 125).

"Talks between the Government of Colombia (GOC) and the Colombian Revolutionary Armed Forces (FARC) have faltered, despite the promise that emerged from the February Los Pozos accords. The GOC has thus begun to pay more attention to negotiations with the National Liberation Army (ELN), the second largest rebel group.

While peace talks with the ELN began over a year ago, they have always been overshadowed within the GOC by negotiations with the FARC. Current discussion is centred on whether the ELN will receive a zone of free operation that would be similar to the zone the FARC was granted over two years ago. Although GOC and ELN negotiations outlined where the ELN zone would be several months ago, the GOC subsequently backed off the talks in order to negotiate more closely with the FARC (who are sworn enemies of the ELN). In the interim, the right-wing paramilitaries organized in the proposed ELN zone and are now prepared to fight to prevent ELN control. The paramilitaries have also undertaken several attacks designed specifically to undermine GOC-ELN negotiations.

The GOC, in what may be an indication that they now intend to negotiate seriously with the ELN, invited a high-level team of international peace negotiations to Colombia to explore additional talks with the ELN. Indeed, many observers believe the ELN is a more realistic partner for peace than the FARC." (USAID March 2001)

"Colombia's second largest group, the National Liberation Army (ELN), again broke off peace talks with the Government of Colombia (GOC) on Good Friday, April 13 [2001]. They blamed paramilitary/military collaboration for the sabotage of the talks." (USAID April 2001).

21. [...] "The direct contacts it maintained with ELN raised the hope in many quarters that they might lead before long to the announcement of a ceasefire by this rebel group. As this report was being finalized, however, the discussions that had begun outside the country appeared to be at a standstill." (UNCHR, 24 February 2003, para21)

In order to read an in-depth analysis of the various peace processes in Colombia see 'Alternatives to war, Colombia's peace processes', ACCORD January 2004 [External Link]

For more information on GOC-ELN peace negotiations read ICG report: "Colombia: The prospects for peace with the ELN", 4 October 2002, [External Link]

Controversial 'peace' negotiations' between the GOC and AUC (Autodefensas Unidas de Colombia) (2002-3)

- Resolution 216 declares initiated the peace process with the AUC of the Cacique Nutibara Block following negotiations between GOC and AUC since November 2002 under the auspices of the Catholic Church
- AUC unilateral ceasefire announced in December 2002 does not involve all paramilitary groups
- The AUC are pressing GOC for political recognition rather than being labelled as terrorists or criminals, demand to suspend all legal actions against it and release imprisoned members
- The negotiation process is controversial given the historical ties linking paramilitaries and the government
- Act No. 782 of 2002 enabled the GOC to enter into peace dialogue with armed groups with no political recognition such as the paramilitary group AUC
- The peace process with AUC involves amnesty for paramilitaries who are responsible for most displacements thus undermining IDPs' right to justice and reparation
- The president aims at disbanding the AUC by end 2005 and as of August 2003, most of the 2000 illegal armed men demobilised were from the FARC
- On 15 July 2003 the government and AUC signed a 'unilateral ceasefire'
- The negotiations could remove from the conflict the armed group most responsible for displacements

"On 25 November 2002, the government confirmed that it is evaluating the possibility of negotiations with the paramilitary AUC. This followed the announcement by Minister Londoño that meetings with paramilitary leaders had been arranged with the Catholic Church's aid. It appears that AUC thinking is influenced by recent U.S. indictments of Carlos Castaño, Salvatore Mancuso and a handful of other senior paramilitary officials for drug trafficking, the possibility of Colombian law enforcement and military units being assigned specific responsibility for pursuing AUC leaders, and military pressure, from both the FARC and, however inconsistently, the Colombian military. It may also be affected by the high priority the Uribe administration has placed on improving security throughout the country, which undercuts the AUC's self-justification for its own existence. [...]"

On 29 November the AUC announced an indefinite unilateral ceasefire from 1 December, although it attached some conditions.⁶² However, at least two of the AUC contingents representing more than one thousand troops have only committed themselves to a Christmas truce. One AUC demand is that the government designate it as an "actor of the political and armed conflict of Colombia", rather than a criminal

or terrorist organisation. This issue may be mooted by congressional passage of a new public order law which permits the government to enter negotiations with irregular armed groups, even if those groups are not given political status.⁶³ The AUC has also called for all legal actions against it to be suspended and its imprisoned members to be released. Given the links between the AUC and the military, the dynamic of any talks with the group will be quite different than with the FARC or the ELN, fundamentally because the AUC is not attacking the government or army.” (ICG, 19 December 2002, p.8-9)

“22. Towards the end of the year, Congress adopted Act No. 782 of 2002, by which it authorized the Government to begin dialogue and negotiations and sign agreements with spokespeople or representatives of outlawed armed groups without first granting them political recognition as the law had previously required.

23. The President of the Republic asked the Catholic bishops to intervene in order to open up a channel of communication with AUC. As a result of the Church’s mediation efforts, the main paramilitary leaders announced the beginning of a ceasefire early in December and expressed a willingness, subject to certain conditions, to undertake discussions and negotiations with the Government, leading to the signing of a peace accord. Towards the end of December, the Government formed an exploratory commission that would study the viability of a peace process with this group. This new attitude on the part of the paramilitaries, which was welcomed by Government spokesmen and representatives of civil society, raises a number of questions, including how, from a legal point of view, to deal with the war crimes perpetrated by members of AUC, and what is to become of the rural properties which in recent years have been expropriated by force in areas under their control.” (UNCHR, 24 February 2003, paras.22-23)

"Recientes medidas gubernamentales, como el decreto 128 de 2003 [...] y la propuesta presentada por el mismo Presidente Uribe de un proyecto de ley para facilitar la desmovilización, abren las puertas para que los responsables de violaciones de derechos humanos y de desplazamientos forzados puedan ser beneficiados del indulto, sin que a las víctimas se les garantice el derecho a la verdad, a la justicia, a la reparación integral, reforzando de esta manera los esquemas de impunidad. A la decisión del poder ejecutivo, la antecedió una modificación de la ley 418 de 1997, a través de la cuál se posibilitó una negociación con los paramilitares. " (CODHES, 10 June 2003)

"De los 2.000 desmovilizados que van desde que cobró vigencia el Decreto 128, 1.207 pertenecían a las Farc, 377 al Eln, 321 a las autodefensas ilegales y 95 a grupos disidentes. " (GOC, 30 August 2003)

"An accord signed on 15 July 2003 after an AUC “unilateral ceasefire” and seven months of highly confidential preliminary talks directs the start of formal negotiations with the goal of completely disbanding the AUC by 31 December 2005. It offers the first break in more than a year of escalating violence.

The news was received with a mixture of hope and suspicion. The U.S. and EU expressed support for the negotiation process but stressed that demobilisation should not come at the expense of justice. Colombian analysts welcomed the potential benefit of eliminating from the conflict one of the illegal armed groups most responsible for civilian casualties but also warned of difficulties. Fearful the AUC would not be held accountable for past crimes and suspicious it would not be kept strictly to the ceasefire, domestic and international human rights groups were the strongest critics.

[...]

Implicit in the concern, however, is uncertainty about what the Uribe administration is actually prepared to offer the paramilitaries to lay down their arms. There is worry that parts of the government and the AUC may not really see themselves as full adversaries; that just as elements in the country’s traditional power structures may have fostered the paramilitaries’ rise, so they may be preparing to use the peace talks to cleanse them politically and thus legitimise their wealth and power.

[...]

All paramilitary fighters will need to be subjected to judicial screening to determine whether they are responsible for serious crimes, such as massacres and kidnapping. Those found guilty for such crimes will need to be dealt with severely while the rights of paramilitary victims should be protected through means

such as an independent truth and reconciliation commission and a special reparation fund, with some benefits coming from confiscation of paramilitaries' drug profits." (ICG, 16 September 2003)

In order to read an in-depth analysis of the various peace processes in Colombia see 'Alternatives to war, Colombia's peace processes', ACCORD January 2004 [External Link]

To access Resolution 216 by which is declared the start of the peace process between the government of Colombia and the paramilitary group AUC of the Cacique Nutibara Block click here [External Link]

Causes of displacement

Displacement increasingly used as a strategy of war according to UNCHR (2003)

- Displacement in Colombia is not only the side effect of armed conflicts but an end in itself
- 48% of forced displacements were to blame on paramilitary groups, 29% on insurgency groups and 16% by unknown perpetrators, during 2000
- Displaced people cited main causes for fleeing as threats 34%, fear 18%, assassinations 14%, clashes 10% and massacres 9% during 2000
- 20 civilians daily died at home, in the street or at work, victims of socio-economic violence in 2000
- 53.6% cases of displacement during first half of 2001 were attributable to paramilitaries, the 19% to guerrilla and 1.47% to the armed forces according to the government Network
- While the number of cases attributed to state agents decreased and those attributed to paramilitary groups increased, suggests a strong connivance between the two according to the High Commissioner on Human Rights (2002)
- Intra-urban displacement has dramatically increased during 2002
- Paramilitaries were responsible for 30% of displacements, guerrillas 14% and armed forces 1% in 2002 according to government Network for IDPs
- 52% of displacements were caused by two or more armed factions in 2002
- Forced displacement increased by 100% during first half of 2002, compared to same period in 2001
- Main causes of displacement in 2002 were generalized threats 46%, fighting 22% and massacres 8%

Typology of conflict-related causes of displacement:

"The Delegate Procurator General for Human Rights in Colombia has identified four types of displacement:

1. Displacement of peasant populations deliberately brought about by the different actors involved in the violence through killing or physically assaulting peasants until they manage to drive away the entire group or community. This is mainly caused by paramilitary groups in the Chocó region, part of the Urabá region in the Department of Antioquia, in Bolívar and in Magdalena;

2. Non-deliberate displacement resulting from confrontation between armed groups, bombardment, or military actions that indiscriminately target the local population, who lack minimum guarantees and protection for their life and physical integrity. This situation arose in the regions of Antioquia, Magdalena Medio, Bolívar and Meta;

3. Displacement caused by groups of people intent on taking possession of the land, who act through private-interest action groups that force peasants to abandon their homes and crops;

4. Voluntary displacement of people to forestry or wildlife reserves, whose aim is to cultivate illicit crops cultivation and who generate another type of conflict." (IACHR 1999, chapter VI, para. 21)

Displacement as military strategy:

"During the year 2000, the forced displacement of civilians continued to be used as a military control strategy in the armed conflict. Some 48% of the cases of internal displacement were carried out by the paramilitary groups, while 29% were the work of armed dissidents. Displacement caused by unknown parties rose 16% of the total, which would seem to indicate that the protagonists in the conflict do not always want to claim responsibility for the acts of violence that cause and attend displacement." (IACHR 2000, chapter IV, para. 43)

"In a report released in 2000, Francis Deng, the UN secretary-general's representative on internally displaced persons, described Colombia's situation as 'among the gravest in the world...[D]isplacement in Colombia is not merely incidental to the armed conflict but is also a deliberate strategy of war.'" (HRW 2001)

"Death threats are the mechanism that the armed groups use most frequently to get rid of people considered "undesirable" because of their alleged collaboration with the "enemy" and to take over their property or to motivate them to displace. Furthermore, threats continue to be the means used to force shopkeepers, businessmen, cattle ranchers and other groups in the economic sector to make payments to the different armed groups.

[...]

Among the violations of the right to life are death threats made by phone or by mail with the aim of intimidating the recipients into leaving the country or moving to another area, or of halting judicial or administrative proceedings intended to clarify human rights violations or war crimes. During the first 10 months of 2001, the Ombudsman's Office received 474 reports of death threats." (UN HCHR, 28 February 2002, para. 144, 88)

"11. One tactic of the illegal groups is to "besiege" rural communities, preventing villagers from leaving, and blocking access to food, fuel, medicines and the basics for survival. Communities sometimes find themselves enclaved or isolated between two or more armed bands and cannot displace themselves, although their circumstances are objectively similar to those described in article 1 of Law No. 387/97." (GTD, 29 November 2002, p6)

Reasons for fleeing:

"Over the past few years and owing to the very nature of the armed conflict, displacement has been caused by armed groups: the United Self-Defence Forces of Colombia (AUC), guerrilla groups and Government forces. The Social Solidarity Network (RSS) notes in a study on forced displacement that the proportional responsibility of each of these groups has varied considerably; while there was a sharp increase in the proportional responsibility of AUC that of the Government forces declined. The participation of guerrilla groups fluctuated, although there has been an upward trend in recent months.

The reasons given by internally displaced persons for their flight can be broken down as follows: threats 34 per cent; fear 18 per cent; assassinations 14 per cent; clashes 10 per cent; and massacres 9 per cent (the percentage of persons citing massacres increased in the second half of 2000)." (TGD 2001)

"En promedio, las massacres son las acciones armadas que más desplazan población, en promedio en cada masacre se desplazan 224 personas. La segunda acción armada que más desplaza población es la amenaza generalizada (ordenes de desalojo a la población) en las que migran en promedio 144 personas, le siguen en orden : enfrentamientos armados 102 personas, tomas a municipios 78, ataques indiscriminados 33 y amenazas específicas 15." (RSS, 3 July 2001)

"With regard to alleged responsibility for displacement, the Network attributed 53.6 per cent of cases to the paramilitaries during the first half of 2001, which represents a slight decrease in percentage terms over 2000 (when the figure was 58 per cent) but a considerable increase in absolute terms.[...] Paramilitary activity occurred chiefly in the northern part of the country during consolidation operations, and in the Cauca during an expansion drive.[...] The guerrillas were blamed in 19 per cent of the cases, a significant increase compared to 2000 (11 per cent).[...] Displacements caused by the guerrillas were more common in the southern part of the country and owed much to the fear of forced recruitment by FARC. The Network also reported an increase in displacements directly attributed to the security forces (1.47 per cent in the first half of 2001, as compared with 0.02 per cent for the same period in 2000). This increase was due primarily to military operations in the department of Vichada." (UN HCHR, 28 February 2002, para. 227)

"The reduction in the number of cases attributed to State agents, taken together with a simultaneous increase in the cases attributed to paramilitary groups, suggests that several of these actions benefit from cover-up or connivance." (UN HCHR, 11 March 2002)

"According to the Colombian Lawyers' Commission,[...] between April and September 2000, on average nearly 20 people a day were victim of socio-economic violence, i.e. 3,538 people. If we deduct from this figure the number of combatants killed in the battlefield, this would leave us with 2,660 civilian victims. Most of these deaths took place outside the hostilities. The daily percentage has doubled compared to 1988 and continues to increase. These 20 daily victims are the result of extra-judicial executions (including massacres), forced disappearances, combat and social cleansing operations.

As for the authors of human rights and international humanitarian law violations, 4.55% are imputed to government forces, 79.1% to the paramilitary, and 16.25% to the guerrillas. Since 1993, there has been a rapid increase in the number of violations perpetrated by the paramilitary (20% that year and over 75% since 1997), whereas violations by government agents dropped from 50% in 1993 to less than 5% in 1997. The Lawyers' Commission has established a link between both phenomena, pinpointing that "this suggests that government agents may be directly or indirectly accountable for many actions that are performed underhand or tolerated".[...] Regarding IHL violations by dissident armed groups, they have usually violated fundamental principles such as distinction and proportionality, mainly by means of the use of car-bombs and gas cylinders as well as taking hostages and recruiting minors". (González Bustelo, December 2001, ch.9)

"88. Enforced displacements increased substantially, affecting much of the country, [23] the reason being that they are increasingly used as a war strategy. A disturbing characteristic of the year was the increase in intra-urban displacements. According to the Social Solidarity Network [...] (referred to henceforth as the Network), in the first nine months of 2002 the paramilitaries were responsible for 30 per cent of displacements and the guerrillas for 14 per cent. Only 1 per cent of cases were blamed on the Armed Forces. In 52 per cent of cases, two or more armed factions are believed to be responsible. [...]

[Endnote 23: According to the Compared Sources Estimation System (SEFC), enforced displacements increased by 100 per cent in the first half of 2002 compared with the same period in 2001. The main cause was generalized threats (46 per cent), followed by fighting (22 per cent) and massacres (8 per cent). The Social Solidarity Network reported that 887 out of the total of 1,098 municipalities are affected by enforced displacements.]" (UNCHR, 24 February 2003, para.88)

32. Death threats were the tactic most frequently used by illegal armed groups to bring about the displacement of persons considered "undesirable", either because they were suspected of collaborating with the "enemy", or to seize their belongings, or to terrorize them and bring them under control, or else to decimate social organizations, or to exact a financial contribution. By means of threats, these groups prevented free movement between urban and rural areas. The Office received complaints of threats against the civilian population that were attributed to the Army, for instance during an operation in Santa Ana (Antioquia) in September, when soldiers accused the local inhabitants of belonging to guerrilla forces and threatened several of them." (UNCHR, 24 February 2003, para.32 Sect.III)

Agents of displacement: paramilitary groups (2003)

- Self-defence groups appeared in the 1970s in areas of guerrilla activity and little State presence to protect private interests in mining, cattle raising, intensive agriculture, and illegal drug trafficking
- The best-known paramilitary organizations is the AUC Autodefensas Unidas de Colombia
- Paramilitary groups have recently become the biggest cause of collective displacement, according to human rights organisations
- Paramilitary groups had over 8,000 members in 2000 (81% increase between 1998-2000) and were active in more than 400 municipalities (40% of the country)
- According to the government, paramilitaries were responsible for 71% of forced displacement in 2000
- Selective killings and systematic 'social cleansing' are methods adopted by AUC, especially in Barrancabermeja (Santander) and Northern Cauca
- Paramilitaries have expanded and consolidated their presence in Arauca, the former 'demilitarised zone', Guaviare, Cundinamarca, Valle del Cauca, Sucre and Putumayo during 2002
- Some paramilitary groups have managed to sit at the negotiating table with the GOC
- Paramilitaries are exercising an ever tighter control on civilian populations

Background:

"In areas of guerrilla activity and little State presence, self-defence groups began to be formed [in the 1970s], sometimes with the support of drug traffickers or the encouragement of the forces of law and order. Some of these groups later became the private armies of civilians; others are whole politico-military organizations, offensive in nature, known as 'paramilitaries'. Local and international financial enterprises in mining, cattle raising and intensive agriculture have also contributed to social conflicts and violence, often by hiring these groups or creating them, in order to protect their interests. Such was the case in the 'Magdalena Medio', where ranchers forced out peasants who had no formal title to their land." (CHR 3 October 1994, para. 22)

"[S]ome paramilitary groups have strong ties to elements of the State's public security forces although they often operate with significant autonomy. In addition, there exists significant evidence establishing connections between paramilitary groups and illegal drug trafficking.

[...]

"The best-known regional paramilitary organization is known as the Peasant Self-Defense for Córdoba and Urabá ('ACCU' – Autodefensas Campesinas de Córdoba y Urabá). This group, which has been sponsored by two brothers, Fidel and Carlos Castaño, originally operated in the region of Urabá in northwest Colombia. More recently, the organization has extended its influence to new areas including the Departments of Sucre and Bolívar, as well as to northern Antioquia. [...]

The ACCU apparently has strong ties to the relatively new national organization referred to as the United Colombian Self-Defense Organization ('AUC' – Autodefensas Unidas de Colombia) or the Self-Defense Organization for Colombia (Autodefensas de Colombia). The decision to create a national organization for paramilitary groups was reached in a conference of paramilitary groups which resulted in the preparation of a document reflecting that decision." (IACHR 1999, Chapter I, paras. 43-47)

"The Commission is deeply disturbed by the growing influence that paramilitary groups exert and by the actions and omissions of government agents who sometimes allow and even collaborate in the commission of very egregious violations of human rights. The figures that the Ministry of Defense provided indicate that currently, paramilitary groups have over 8,000 members, which is an increase of 81% in the last two

years. Their rapid growth is mirrored in the degree to which the geographic scope of their operations has increased. They are now active in more than 400 municipalities in 40% of the country." (IACHR 2000, chapter IV para. 36).

"The AUC continue to conduct 'sweeps' and 'cleansing' operations against the civilian populations that they accuse of aiding or sympathizing with armed dissident groups. The Ministry of Defense reports that the AUC is attacking people to drive them off lands that their financial backers want to seize. In the areas they control the paramilitary set up illegal patrols to check the identity of those traveling through the area and restrict commerce in staples and fuel. Often the establishment of these patrols presages disappearances, extrajudicial executions and displacements. In some cases, they operate in areas where the Army has a presence, as in the case of the patrol near the peace community of San Jose de Apartadó, in the Urabá Antioqueño, which is under the protection of provisional measures ordered by the Inter-American Court." (IACHR 2000, chapter IV, para. 37)

"The AUC's stated objective is to rid Colombia of the guerrillas, but it has many other political and economic interests. According to Colombia's Ministry of Defence, 'In many places, narcotraffickers interested in expanding their rural properties have armed and utilized rural self-defence [paramilitary] groups not only to eradicate the guerrillas from certain areas, but also to expel other land owners, generally small and medium land owners, with the aim of appropriating their lands.

According to the government, in 2000, para-militaries were responsible for 71 percent of forced displacement. According to the CCJ, between April and December 2000, paramilitaries killed or 'disappeared' 1,218 civilians" (USCR June 2001).

"Paramilitary activity occurred chiefly in the northern part of the country during consolidation operations, and in the Cauca during an expansion drive [during 2001]." (UN HCHR, 28 February 2002, para.227)

"Colombia's Army has five divisions, but many Colombians told Human Rights Watch that paramilitaries are so fully integrated into the army's battle strategy, coordinated with its soldiers in the field, and linked to government units via intelligence, supplies, radios, weapons, cash, and common purpose that they effectively constitute a sixth division of the army". (HRW Report September 2001)

"Despite repeated government promises to dismantle paramilitary forces, no effective action was taken to curtail, much less to end, their widespread and systematic atrocities. In contrast to their declared aim to combat guerilla forces, paramilitary actions continued to target the civilian population through massacres, torture, the destruction of communities and the displacement of the population." (AI Annual Report 2001)

"According to information received by the Special Rapporteur human rights violations for which paramilitary groups are accountable have shown a rapid increase since 1993 (when they accounted for less than 20 per cent of all such violation, but accounting for more than 75 per cent since 1997), while those directly perpetrated by State agents have decreased more than 50 per cent of violations in 1993 and less than 5 per cent since 1997). The theory that a relationship exists between these two phenomena has been discussed, a hypothesis that has seemingly been confirmed. The reduction in the number of cases attributed to State agents, taken together with a simultaneous increase in the cases attributed to paramilitary groups, suggests that several of these actions benefit from cover-up or connivance." (UN HCHR 11 March 2002)

Paramilitaries allied under the umbrella United Self-Defense Group of Colombia (Autodefensas Unidas de Colombia, AUC) expanded their radius of action and troop strength in 2001. In some situations, as with the temporary seizure of a community of displaced people in Esperanza en Dios and Nueva Vida, Chocó, paramilitaries reportedly operated with as many as 800 troops at a time. Large concentrations of paramilitaries were rarely challenged by the Colombian security forces." (HRW, 15 March 2002)

"The departments where most extrajudicial executions took place were Antioquia, Cauca, Sucre, Valle del Cauca and Tolima. Members of the paramilitary groups perpetrated a significant number of these

executions. During 2001, the paramilitaries are considered to have been responsible for 89 massacres,[...] in which 527 people lost their lives. In several cases there were reports that members of the security forces and other State officials were involved in these killings." (UN HCHR, 28 February 2002, para. 76)

New pattern of selective killings against socially "undesirable" by the AUC (2002):

"Most of these executions appear to be politically motivated, but some of them were perpetrated against members of social groups that are discriminated against or marginalized, or against persons in a situation of "manifest weakness" owing to their financial, physical or mental condition (homosexuals, street vendors, drug addicts, needy persons, people with psychological disorders, street prostitutes, transvestites, street children, etc.). This practice would appear to indicate the existence of "social cleansing" campaigns."

[...]

Threats have also been used to intimidate people who are the targets of extermination or so-called "social cleansing" campaigns. This was the case, for example, in Lorica (Córdoba), where in April paramilitaries made death threats against 28 people, whom they accused of using or selling drugs, considering them "harmful" to the "people of Lorica". A similar incident occurred in the municipality of Sahagún (Córdoba). (UN HCHR, February 28 2002, para. 75, 90)

"Over the period the Office has identified a new pattern of selective killings adopted by the AUC: in some parts of the country the incidence of selective killings is steadily increasing to outnumber massacres, the characteristic modus operandi of the self-defence groups in the past. This pattern, which seeks to diminish the public impact of killings, is particularly marked in Barrancabermeja (Santander) and some municipalities of Northern Cauca. In addition, the Office has learned that in other areas dominated by paramilitaries, social cleansing has been systematically practised against prostitutes, homosexuals, criminals, drug addicts, street children and informal garbage collectors, among others. There are few official reports on this phenomenon, which has been observed mainly in areas such as Montería and Tierralta (Córdoba), Remedios and Segovia (Antioquia), Santa Marta (Magdalena) and Quibdó (Chocó)." (UNHCHR 8 February 2001, chapter V, para. 35)

AUC's expansion and rise to quasi-political recognition:

"32. Paramilitary groups have continued to expand into new regions and consolidate their presence in many of the areas they already dominated, while dealing with internal divisions and making repeated attempts to improve their public image, win greater political legitimacy and be considered as independent players in any possible peace process. In view of the fact that the new Government appeared prepared to negotiate with all the illegal armed groups, the paramilitaries developed strategies that included offers of agreements and negotiation. This shift has also been affected by external pressures on their leaders, such as requests for extradition lodged by the United States authorities.

33. In their search for legitimacy, and in order to lessen the impact of practices such as massacres, the paramilitary groups opted for selective killings and death threats, issuing specific instructions to this effect within their ranks. They extended their activities to new areas of Arauca, the former "demilitarized zone", Guaviare, Cundinamarca, Valle del Cauca, Sucre and Putumayo, among others. At the same time, they consolidated their activities in both rural and urban areas where they were already present. Such activities go beyond purely military aspects and include extortion and tighter control over the civilian population, plus control over access routes, State institutions and illegal trafficking (coca crops and contraband gasoline) and even agricultural, stockbreeding and commercial activities. In this way, paramilitarism has succeeded in permeating the social fabric by dominating its public and private sectors.

34. In their activities, the paramilitaries continued to take advantage of the lack of action, tolerance or complicity shown by public officials in several regions of the country. In many of these areas, the paramilitaries have replaced the Government in important aspects of public life, including the use of armed force." (UNCHR, 24 February 2003, paras.32-34)

Clashes between paramilitary groups cause displacements

“At least 600 peasants, including many children, have fled their homes in lawless northern Colombia as heavy fighting raged between rival right-wing paramilitary groups despite peace talks with the government, authorities and witnesses said on Monday.

[...]

Witnesses said some 2,000 heavily armed illegal fighters of the United Self-Defense Forces of Colombia, known in Spanish as AUC, and the Central Bolivar Block, or BCB, launched an offensive against the rival Metro Block about 10 days ago.

There were no independent reports of casualties.

The AUC, Colombia's largest paramilitary force, declared a cease-fire in December and is engaged in peace talks with President Alvaro Uribe. But the Metro Block, a former ally of the AUC, has refused to join the talks, saying it will only lay down arms when leftist rebels are defeated.

The well-armed paramilitaries sprang up in the 1980s as vigilante armies funded by cattle ranchers to combat rebels. But paramilitary factions began fighting among themselves when the illegal force became involved in the drug trade.

The 13,000-strong AUC has threatened several times to "annihilate" the 1,500-strong Metro Block but the San Roque combats are believed to be the first major clash between the two groups.” (Reuters 22 September 2003)

For more detailed information on violations of international humanitarian law by paramilitary forces, see HRW's report "The 'Sixth Division' Military-paramilitary Ties and U.S. Policy in Colombia" [\[External link\]](#); "War Without Quarter - Colombia and International Humanitarian Law", [Chapter IV "Paramilitary Violations of International Humanitarian Law" \[External link\]](#); and the Colombia 2000 report of the Inter-American Commission on Human Rights, Chapter IV, section B/III "The advance of the paramilitary movement" [\[External link\]](#)

Agents of displacement: guerrilla groups (2003)

- The guerilla groups initially were engaged in land struggles and multiplied and strengthened their presence in many areas of the country throughout the 1960s and 1970s
- The two main guerilla groups active are the FARC (Revolutionary Armed Forces of Colombia) and the ELN (National Liberation Army)
- The FARC maintains several battle fronts throughout Colombia and included at least 17,000 members in 2001
- Estimates of the percentage share of displacements attributed to the paramilitaries varies between 14 to 28 between 2000-2002
- Displacement inducing practices include use of anti-personnel mines, hostage-taking, kidnappings, destruction of civilian property, and attacks on vital civil works
- In 2002 FARC stepped up attacks on State institutions and also indiscriminately targeted civilians in acts of terrorism and kidnappings
- In May 2002 FARC-EP killed 119 civilians in a church in Bojayá (Chocó) during a clash with paramilitaries
- FARC mostly resort to kidnappings, selective killing and ‘social cleansing’ according to the UNCHR

"The guerilla groups initially were engaged in land struggles. They multiplied and strengthened their presence in many areas of the country throughout the 1960s and 1970s. These groups were the

Revolutionary Armed Forces of Colombia, or FARC, made up initially of peasants demanding land; the People's Liberation Army, or EPL; the National Liberation Army, or ELN; the M-19 Movement, created after allegations of fraud during the 1970 presidential elections; the Quintín Lame Armed Indigenous Movement; the Ricardo Franco Commando; and others." (Obregón & Stavropoulou 1998, p. 412)

"The main insurgent armed groups (guerrillas) in Colombia that oppose the State are the following: the Revolutionary Armed Forces of Colombia (Fuerzas Armadas Revolucionarias de Colombia (FARC), the National Liberation Army (Unión Camilista-Ejército de Liberación Nacional (UC-ELN) and the People's Liberation Army (Ejército Popular de Liberación (EPL)" (UNHCHR 8 February 2001, chapter V, para. 26)

"Full-time guerrillas are operating in more than 100 semiautonomous groups in 30 of the nation's 32 departments. These groups undertook armed actions in nearly 700 of the 1,073 municipalities." (U.S. DOS 26 February 1999, section 1g)

Displacement-inducing practices:

"Armed opposition guerrillas also committed abuses, and were considered responsible for 20 percent of the killings of civilians recorded in the six months from October 1999. The FARC received foreign dignitaries, U.N. officials, and Wall Street billionaires in the five southern municipalities ceded to them to promote peace talks, but continued to murder civilians, execute captured government soldiers and rival guerrilla combatants after surrender, threaten and kill civilians who refused to accede to their demands, take hostages, and force thousands of Colombians to flee and become displaced. The group maintained an estimated seventy battle fronts throughout Colombia thought to include at least 17,000 trained, uniformed, and armed members." (HRW 2001)

"From the outset and for both historical and strategic reasons, [guerrilla groups] have opted to operate in rural areas and gradually advance on urban centers. [...] Although observers agree that rural zones are the worst affected, armed violence does not exclude towns and cities, where persons displaced from rural areas again encounter the same kinds of violations and insecurity." (IACHR 1999, Chapter VI, para. 72)

"According to the Consultoria para los Derechos Humanos y Desplazamiento (CODHES), an NGO that tracks the number of displaced and the causes of their displacement, guerrillas were responsible for approximately 28 percent of forced displacements during over the first six months of 2000." (UNHCHR 8 February 2001, chapter VI, para.141)

"According to the government, in 2000, the guerrillas were responsible for 14 percent of forced displacement. [...]

The FARC and ELN fund their insurgencies both through kidnappings and taxing coca growers and narcotraffickers in areas under their control." (USCR June 2001).

"The guerrillas were blamed in 19 per cent of the cases, a significant increase compared to 2000 (11 per cent).[...] Displacements caused by the guerrillas were more common in the southern part of the country and owed much to the fear of forced recruitment by FARC." (UN HCHR, 28 February 2002, para. 227)

"Violation of international humanitarian law (in 2000) by armed opposition groups increased significantly. Several hundred people, including scores of civilians, were deliberately and arbitrarily killed by armed opposition groups. [...] Kidnappings and hostage-taking reached unprecedented levels. Of a reported 3,000 cases, more than half were believed to have been carried out by armed opposition groups and paramilitary organizations. Children accounted for 200 of the victims." (AI Annual Report 2001)

"Causing mass exoduses by means of terror was one of the armed group's warfare strategies. Sometimes, displacement was sparked by the fear that the arrival of one of the armed groups was imminent. The groups did not always have to make specific threats, since the population already knew what to expect if they were to turn up. Other displacements took place in the aftermath of massacres. On 1 January, ELN [National Liberation Army] forced 1,100 peasants in the eastern part of the department of Antioquia to

move, as retaliation for a similar action by AUC involving people who lived near the Medellín-Bogotá highway." (UN HCHR, 28 February 2002, para. 174)

“30.[...] [T]he guerrilla groups stepped up their attacks. Pursuing their policy of attacking State institutions at all levels FARC-EP in particular adopted new war strategies, pulling back their forces in the countryside and avoiding excessive exposure to the security forces. These strategies included threats and attacks against public officials, such as mayors or municipal ombudsmen, which caused serious disruptions to local democracy. The methods used to attack the civilian population, including more frequent hostage-taking and terrorist acts, combined with an intensification of their attacks on public infrastructure, threaten the country’s political and economic integrity and seriously restrict public life. The indiscriminate use of inappropriate weaponry has had the effect of victimizing the civilian population. The new strategy of open war on anything to do with the State has made the country much harder to govern and badly affected regional institutions. It would appear also that kidnappings by FARC-EP were intended not only to fill its war chest but also to make the group’s presence felt in defiance of the Government’s policy, already challenged by acts of terrorism.

[...]

57. Although the number of massacres is estimated to have decreased, the number of violent deaths continued to rise. In this respect, it is worth noting the increased incursions by FARC-EP, including acts of terrorism, death threats, selective killings and “social cleansing”, as well as indiscriminate attacks. The worst such attack, which occurred on 2 May 2002 in Bojayá (Chocó), caused the deaths of 119 civilians when a gas-cylinder bomb launched by FARC-EP during a clash with paramilitaries hit a church where a group of civilians had taken refuge. [...] A number of such acts are also attributed to ELN. An increase was observed moreover in attacks on medical personnel and units, hostage-taking and the recruitment of minors by illegal armed groups. The paramilitary groups continued to perpetrate massacres, although they more often went in for selective killings and “social cleansing”. The illegal armed groups, especially FARC-EP, have adopted new pressure tactics including threats and attacks on public officials such as mayors and municipal ombudsmen, causing serious disruption to local democracy.” (UNCHR, 24 February 2003, paras30, 57)

For more detailed information on violations of international humanitarian law by the guerilla movements, see HRW's report "War Without Quarter - Colombia and International Humanitarian Law", [Chapter V "Guerrilla Violations of International Humanitarian Law"](#) [External link]; and the Colombia 1999 report of the Inter-American Commission on Human Rights, [Chapter IV](#), section D "Violence carried out by armed dissident groups" [External link]

Agents of displacement: Colombian armed forces (2003)

- Successive Governments have assigned the armed forces a growing role not only in the counter-insurgency fight, but also in maintaining public order in general
- President Uribe’s ‘counter-insurgency’ strategy based on Decree No.2002 which rules that guerrillas are infiltrated in the Colombian social fabric is blurring the distinction between combatants and civilians (2002-3)
- Reports of violations of international humanitarian law and indiscriminate use of force by security forces have increased (2002-3)
- As Uribe took office (Aug 2002) he declared state of internal commotion granting the military with judiciary police powers
- Decree No. 2002 (Sept 2002) which sets ‘rehabilitation and consolidation zones’ was declared unconstitutional by the Constitutional Court (Nov 2002) for violating freedom of movement, residence, rights to privacy and due process
- Security forces have been authorized to perform arrests, raids and searches without a warrant

- Uribe's new policy includes the use of hooded informers, some of whom were then killed by guerilla groups

"Not uncommonly, the Government's response to social instability and insurgency has been to make use of state-of-siege legislation, periodically ceding large parts of the country to the military.

In the 1970s armed insurgency continued to grow, while the State adopted increasingly repressive measures to combat it. The country has been under a state of siege virtually since the end of the *Violencia* [in 1958]. Successive Governments have assigned the armed forces a growing role not only in the counter-insurgency fight, but also in maintaining public order in general. One example has been the loss of autonomy of the police, which was subordinated to the Minister of Defence, until recently a senior general of the Army." (UN CHR 3 October 1994, paras. 20-21)

Displacement-inducing practices

"Most observers agree that during the period of effect of Presidential Decree No. 717, of April 18, 1996, when almost 25% of the country was declared a 'special public order zone', in which the armed forces were granted emergency powers, the situation of displaced persons worsened, and that 'an extremely high percentage of human rights violations and infringements on provisions of humanitarian law has gone unpunished.' [Office of the Human Rights Ombudsman, Third Annual Report of the Human Rights Ombudsman to the Congress of Colombia, 19996, pp. 28-29]" (IACHR 1999, chapter VI, paras. 67-68)

"CODHES estimated that the government forces were responsible for approximately 5 percent of displacements over the first six months of 2000." (UNHCHR, 8 February, 2001, chapter VI, para. 141)

"37. In areas where the Army applied its new offensive strategy mentioned above, there were complaints that on occasion the civilian population fell victim to a failure to distinguish between combatants and civilians. In this regard, an important factor has been the attack on alleged civilian "support networks" for the guerrillas, which was one of the announced objectives included in the measures adopted during the state of internal commotion and an integral part of the counter-insurgency strategy. The Army's strategy of cutting off the guerrilla forces' supplies wherever possible without then guaranteeing the principle of distinction, has, on several occasions, caused difficulties for the civilian population on account of blockades imposed on the transport of food, gasoline and other articles of prime necessity. That was the case in Sierra Nevada de Santa Marta and in Chalán (Sucre). On the other hand, shortcomings in military intelligence may well be to blame for inadequate warning and protection of the civilian population, for the failure to apply the principle of distinction, and for the adoption of questionable methods of combating violence, such as establishing networks of informers and conducting large- scale raids.

[...]

58. Reports of breaches of international humanitarian law by the security forces also increased, especially in connection with the principles of distinction, limitation and proportionality. The State added roadblocks, commonly used by all armed groups, to its policies for impeding support and supplies supposedly provided by civilians to the illegal armed groups: for example in Urrau (south-east Antioquia) and Bahía Solano (Chocó) in September and October, and in the river Atrato area. This approach to the problem is in fact suggested in Decree No. 2002, which says that criminal groups are blending into the civilian population. On the other hand, the State was clearly unable to prevent attacks by illegal armed groups or mount an adequate response to them. As the Government itself admits, the effectiveness of its preventive mechanisms has been limited. [...]" (UNCHR, 24 February 2003, para37-58)

State of internal commotion further undermines the rule of law:

"63. The Office in Colombia, under the terms of its mandate, gave advice regarding the compatibility of the rules and measures brought in under the state of internal commotion with the Government's international commitments. It expressed an opinion on some of the provisions of Decree No. 2002 of 2002, which set up rehabilitation and consolidation zones (special public order zones) and imposed restrictions on the rights to freedom of movement and residence, to respect for private life and domicile, to individual freedom and to

due process, in a manner incompatible with international principles. On 26 November, the Constitutional Court declared several of its provisions to be inapplicable, as described in chapters III and VIII of this report.

[...]

65. In view of the short time during which the state of emergency has been in effect, any firm conclusions would be premature. Nevertheless, the Office of the High Commissioner wishes to mention its concern at the abusive and indiscriminate use of force and the violations of due process and other fundamental rights entailed by measures that are not founded on the principle of legality and are removed from the prior and subsequent independent supervision of the courts and the Department of Public Prosecution. The main concerns in this respect focus on the need for adequate means of ensuring effective, independent State supervision. Moreover, the danger that the civilian population may end up being disproportionately affected and increasingly vulnerable, especially in the case of groups such as human rights defenders, social leaders and displaced persons, must be examined prudently and responsibly.” (UNCHR, 24 February 2003, paras 63, 65)

Decree No. 2002 – ruled unconstitutional by the Constitutional Court set up ‘rehabilitation and consolidation zones’:

“68. In many of the operations, the security forces made use of the powers they had been given under the decree (which were subsequently declared unconstitutional by the Constitutional Court), authorizing them to perform arrests, raids and searches without a warrant; this led to the detention of many individuals, of whom only a minority were ever brought before the courts. In several cases, the use of hooded informers damaged the reputations of the individuals they singled out. The arrests of some 2,000 people in Saravena (Arauca), on 12 and 13 November, led to the prosecution of 49 of them, of whom almost 20 belonged to social or trade union organizations. Also in Saravena, at least five relatives of informers were killed by guerrilla groups. In addition, grave abuses by the Army were reported, including executions, especially in Arauquita, where similar problems had already arisen prior to the establishment of the zone.

69. At the same time as the security forces intensified their counter-insurgency operations in the rehabilitation zones, which cover areas traditionally under guerrilla control, paramilitary groups penetrated some places, as in the town of Sincelejo and other municipalities in Sucre, such as Chalán and Ovejas. In other places, such as Arauca, they maintained their presence despite the military operations.” (UNCHR, 24 February 2003, paras 68-69)

Collusion between Colombian security forces and paramilitary groups aggravate the problem of displacement

- Collusion between the armed forces and paramilitary groups and widespread impunity are factors seriously aggravating the situation of displacement
- Reports indicate that paramilitaries consolidated their presence in areas where the army had conducted counter-insurgency operations like in Arauca, the ‘former demilitarized zone’, Valle del Cauca, Guaviare and El Catatumbo
- 76% of violations committed by ‘unknown’ agents are allegedly attributed to State agents, 5% of which directly and 71% indirectly according to the Colombian Commission of Jurists (2002)
- Paramilitaries are de facto assuming state functions by imposing codes of conduct on the population and imposing that public resources be channeled through organizations under their control (2002-3)
- Colombians have recurrently identified members of the military forces among the paramilitaries and often soldiers wear no kind of identification
- Paramilitary and armed forces joint operations are to blame for the massacre of El Limón and the theft of WFP supplies according to UNHCHR

- The great majority of paramilitaries and public officials linked to them enjoy impunity for the crimes they commit

"The Colombian Commission of Jurists (CCJ) and other local and international human rights organizations charge that the government is responsible for many of the abuses committed against civilians, including forced displacement, because it supports or tolerates the actions of the paramilitary groups. According to the CCJ, 'In many of the crimes committed by the paramilitaries, there is active or passive participation of government forces.'

The Colombian government continued to deny accusations that it supports or colludes with paramilitary groups. A December 2000 report on paramilitary groups issued by the vice-presidents office said that the findings of a government study on this issue 'disproved accusations that the government finances, organizes, or plans joint operations with 'self defence' [paramilitary] groups.' The report noted, however, 'That does not mean that some of its [the government's] agents do not have an attitude towards these organizations [paramilitaries] that is sympathetic, or even supportive.'" (USCR June 2001).

"Collusion between the Colombian security forces, particularly the army, and paramilitary groups continued and, indeed, strengthened. Instances of collaboration included the sharing of intelligence information, the transfer of prisoners, the provision of ammunition by the armed forces to the paramilitary, and joint patrols and military operations in which serious human rights violations were committed." (AI 2001)

"During 2001, the Office continued to observe that paramilitary activity was strengthening and spreading throughout much of the country's territory. The Office noted the limited effectiveness of the measures taken against paramilitary groups to curb their activities, contain their advance and respond to their aggressions, as well as the fickle commitment on the part of the State in this struggle. The members of the paramilitary groups continued to be the main parties responsible for the increase in human rights violations. They also greatly contributed to the deterioration in the conflict through their systematic use of violence and terror against the civilian population in zones under their control and in areas affected by their raids. Toleration, support and complicity on the part of public servants, as well as non-fulfilment of their duty to safeguard rights, with respect to several acts by these groups, mean that the State continues to bear responsibility." (UN HCHR 28 February 2002, para. 202)

"Human Rights Watch has documented abundant, detailed, and compelling evidence that certain Colombian army brigades and police detachments continue to promote, work with, support, profit from, and tolerate paramilitary groups, treating them as a force allied to and compatible with their own.

At their most brazen, the relationships [...] involve active coordination during military operations between government and paramilitary units; communication via radios, cellular telephones, and beepers; the sharing of intelligence, including the names of suspected guerrilla collaborators; the sharing of fighters, including active-duty soldiers serving in paramilitary units and paramilitary commanders lodging on military bases; the sharing of vehicles, including army trucks used to transport paramilitary fighters; coordination of army roadblocks, which routinely let heavily-armed paramilitary fighters pass; and payments made from paramilitaries to military officers for their support.

In the words of one Colombian municipal official, the relationship between Colombian military units, particularly the army, and paramilitaries is a "marriage." (HRW September 2001)

"A wide-ranging pattern of collusion between the national police, the army and paramilitary forces in the area of Puerto Asís, Putumayo department, was revealed to the authorities by a member of the national police and the local human rights ombudsman. According to their sworn testimonies, paramilitary groups consorted openly with army personnel and police in the town of Puerto Asís. On the outskirts of the town they maintained a base, where people who had been abducted were taken to be tortured and killed. The base was only a few hundred metres from the headquarters of the army's 24th Brigade and a base of the 25th

Battalion. Army officers held regular meetings with paramilitary leaders in the base." (AI Annual Report 2001)

"The office (of the High Commissioner for Human Rights) noted that "disciplinary and judicial investigations reveal that direct links between some members of the Armed Forces and paramilitary groups persist" and described the government's efforts to break those links as virtually nonexistent." (HRW World Report 2001)

"[...] Colombian human rights groups submitted a list of five massacres carried out by paramilitaries in 2001 and January of 2002 in which there is credible evidence that Colombian military units either took direct part or allowed the killings to take place and the perpetrators to escape. Separately, Human Rights Watch received recent, credible, and detailed reports of continued collaboration between the Colombian military and paramilitary groups in the Middle Magdalena region, [...] the southern Pacific coast, [...] the department of Putumayo, [...] the Urabá region, [...] and the department of Antioquia. These are not isolated incidents, but rather widespread patterns of behavior and collusion." (AI, HRW, WOLA, February 2002)

"Approximately 76% of the homicides of political and socially marginalized individuals and of forced disappearances, in which the generic perpetrator is known, are allegedly attributed to State agents. Five percent (5%) are attributed directly (127 victims), while 71% (1,882 victims), indirectly, because of omission, tolerance, acquiescence, or support to the violations committed by paramilitary groups. 24% (628 victims) of the cases were allegedly attributed to guerrillas." (Asamblea Permanente de la Sociedad Civil por la Paz, etc...)

"38. It is worth noting that several times the paramilitaries moved into and stationed troops in areas of the country where the security forces had previously conducted counter- insurgency operations. This occurred, for instance, in the municipalities of Mesetas, Vistahermosa and San Vicente del Caguán (the former demilitarized zone), in the province of Ocaña (Norte de Santander), in Curillo (Caquetá), and in Cravo Norte, Puerto Rondón and Tame (Arauca), and in Medellín.

[...]

59. The critical human rights and humanitarian law situation, combined with the worsening armed conflict, has aggravated problems with governability and the rule of law. The problems are also due to indiscriminate action by illegal armed groups and the lack of a Government presence in several areas of the country. The paramilitaries have continued with their strategy of usurping functions that properly belong to the State, aking advantage of the tolerance or passive attitude of the authorities and of some sectors of society. The expansion and consolidation of paramilitary forces in several areas under their control have enabled them to infiltrate the State system as part of their strategy, going so far in several regions as to set up a kind of parallel State, at great implicit risk to the continued enforcement of the rule of law. Perhaps the most blatant public sign of this de facto assumption of State functions, though by no means the only one, is the way they have imposed codes of conduct on the whole population. The Office in Colombia has received complaints of municipal or departmental decisions having to be approve by paramilitary chiefs, and of pressure being brought to bear on the choice of recipients of funds, with indications of where and how funds should be invested, or requiring public resources to be channelled through organizations under the paramilitaries' control.

[...]

75. Concerns are partly due to the frequent failure to act in response to reiterated complaints and public awareness of the existence of permanent paramilitary bases, checkpoints and operations. The Office in Colombia has received reports of the security forces themselves announcing the impending arrival of paramilitary groups, and even of cases where local inhabitants recognized members of the military forces among paramilitary contingents. This coordination between the two is also indicated by the fact that paramilitary incursions have occurred either immediately before or after major military operations, such as in Arauca, the former "demilitarized zone", Valle del Cauca, Guaviare and El Catatumbo. Further doubts are raised by the fact that soldiers sometimes wear no kind of identification to distinguish them from other armed groups. One reported example of failure to act concerns the events in Bojayá, which were preceded by paramilitary boats coming along the river Atrato from Turbo, thus having to pass several security force

control posts. In some cases, the reports were not only of the security forces tolerating or failing to respond to paramilitary activities, but also of complicity or direct involvement by the security forces in such activities, such as the massacre in El Limón (Guajira) on 31 August, the theft of World Food Programme (WFP) food supplies in July in Cesar (blamed on paramilitaries but recovered by the Army, which said that it had confiscated the supplies from the guerrilla forces), and the meetings between commandos or members of AUC and the Armed Forces in Vigía el Fuerte (Antioquia) on 9 and 10 May.” (UNCHR, 24 February 2003, paras38,58,75)

Impunity:

“Officers implicated in serious abuses remained on active duty, and only in exceptional cases were they suspended. Military judges generally continued to ignore a 1997 Constitutional Court decision requiring that cases involving soldiers accused of gross human rights violations be prosecuted in civilian courts.” (HRW World Report 2001)

“Despite some prosecutions and convictions, the authorities rarely brought higher-ranking officers of the security forces and the police charged with human rights offenses to justice. Members of the security forces collaborated with paramilitary groups that committed abuses, in some instances allowing such groups to pass through roadblocks, sharing information, or providing them with supplies or ammunition. Despite increased government efforts to combat and capture members of paramilitary groups, security forces also often failed to take action to prevent paramilitary attacks. Paramilitary forces still find support among the military and police, as well as among local civilian populations in many areas.” (U.S. Department of State, March 2002)

“The Inter-American Commission on Human Rights, which visited Colombia in December 2001, said that it remained striking that “the confessed perpetrators of crimes against humanity, with pending orders of arrest against them, move throughout Colombia while giving press interviews.” The Commission also concluded that paramilitaries continue to depend on the active coordination with and the tolerance of units within the security forces.” (AI, HRW, WOLA, February 2002)

"Members of the Colombian military continued to accuse government investigators, agencies, and nongovernmental organizations of having been infiltrated by opposition guerrillas, and questioned the legitimacy of investigations." (HRW 2001)

“77. The fact that the great majority of these cases go unpunished and public officials are never held criminally liable for their links with paramilitary groups and operations, is one of the more questionable aspects of the commitment to oppose such situations. Furthermore, the transfer of several such cases to the military courts, as mentioned in the following section, detracts from the independence of investigations and limits their effectiveness. These factors undermine the maintenance and construction of an institutional base which is both democratic and respectful of the rule of law, and confirm the impression that paramilitarism is tolerated, even accepted, among certain sectors of the population.” (UNCHR, 24 February 2003, para.77)

Displacement induced by the drug trafficking (2002)

- Colombian territory has one of the largest illicit drugs cultivated areas in the world which generates high levels of violence and corruption
- Colombian potential cocaine production has increased at over 150% since 1995
- Colombian authorities found evidence of the existence of a network of 162 new narco Colombian groups, directly involving at least 4,060 persons, which in turn are connected to more than 40 international criminal organizations (2002)

- Displacement of indigenous populations from their territories is also a result of the growing invasion of settlers involved in growing coca (often with the support of the paramilitaries), guerrilla activities and the repression against those activities
- The Colombian border zones worst affected by armed conflict in recent years, have been areas of illicit drugs cultivation, and of strategic interest for the illicit traffic of arms and drugs.

"Despite its anti-drug campaigns, including record fumigations of drug crops in 1997, Colombian territory produces one of the largest illicit drug crops in the world. According to Colombian National Police statistics, 50,000 hectares of Colombian land support coca crops. Other estimates are even higher.

The drug trade is inherently violent, because it involves activities outside of the boundaries of the law which include the handling of large amounts of money. Because the norms and mechanisms of the law do not apply to these activities, the disputes which inevitably arise are also resolved illegally, usually with violence.

In addition, those involved in the drug trade must constantly seek to protect themselves and their business from the scrutiny of the law. They use their capacity to commit acts of violence as the primary means of obtaining this end. At the same time, using the threat of violence, they engage in acts of bribery and extortion of public officials, introducing extreme levels of corruption into the State entities which must deal with the trade. Thus, the State is affected, either through violence against its agents or through their corruption.

In this way, drug trafficking agents and the business itself bring levels of violence and corruption which are intolerable and which threaten the very social, political and economic fabric of the country. In addition, the money which the State must place into the fight against drugs might otherwise be used to strengthen State programs addressing the needs of the poor. The diversion of these funds contributes to the situation of social and economic inequality which, in turn, often leads to additional violence." (IACHR 1999, chapter I, paras. 48-51)

"Colombian potential cocaine production has increased at over 150% since 1995." (U.S. DOS, 16 May 2001)

"According to the CIA, the illegal crops increased with 25% last year. 170,000 hectares of the country are covered with coca crops." (El Tiempo, 24 March 2002)

"Las autoridades colombianas tienen evidencias sobre la conformación de cerca de 162 nuevos grupos de narcos que involucran directamente a por lo menos 4.060 personas en el país y que están conectados con más de 40 organizaciones delictivas internacionales. [...]"

Como en la décadas de los ochenta y los noventa, los narcotraficantes están tratando de infiltrar organismos de seguridad y cuerpos colegiados, coinciden oficiales colombianos de inteligencia. [...]"

La arremetida de la mafia también se detecta en la creciente conformación de pequeños carteles. [...]"

"Prácticamente ya no existe un gran cartel como tal. Ahora, hay organizaciones que se concentran en una etapa del negocio y luego se asocian. La estrategia es no ser detectadas fácilmente por las autoridades y tener rendimientos económicos más seguros y con menos riesgo", dice otro investigador de la Policía. [...]"

Hechos de violencia ligados con la mafia [...]" (El Tiempo, 24 March 2002)

Illegal crops and indigenous populations

"For the indigenous peoples of Colombia, law enforcement activities against illicit crops (especially coca, poppy, and marijuana) and their trafficking has special consequences entailing increased violence, invasion of indigenous territories by settlers who grow coca, and the loss of cultural identity and deterioration of their unique organizations and authorities. The impact is accentuated in Colombia, as the production of illicit crops is not an extension of ancestral indigenous commercial practices, but rather a relatively new phenomenon.

The Commission has received information indicating that although some indigenous persons appear to be involved directly with illicit crops (e.g. poppy in Cauca, coca in the Orinoco basin and middle Amazon region), in other cases the drug trade affects them more than it involves them. One study [C.S. Perafan-Simmonds, Impacto de cultivos ilícitos en Pueblos Indígenas de Colombia, Indigenous Peoples and Community Development Unit, Department of Social Programs and Sustainable Development, Inter-American Development Bank, November 17, 1997] found that '41.12% of the [Colombian] indigenous are affected by such crops, and in some cases involved in them.' A total of 17.01% of the illicit crops in Colombia are located in indigenous resguardos or reservas, i.e. within legally-recognized indigenous territories: 18.95% of the poppy crops; 71.43% of the marijuana crops; and 10.8% of the coca crops." (IACHR 1999, chapter X, paras. 50-51)

"The Commission also received a situation report from the Regional Indigenous Organization for Putumayo (Organización Zonal Indígena de Putumayo - 'OZIP') that included the same types of complaints as those noted by the indigenous in the rest of the country, but in addition reflected the particularly severe internal displacement of the indigenous population to other areas, due to the growing invasion of settlers, especially those involved in growing illicit crops, guerrilla activities and the repression against those activities." (IACHR 1999, chapter X, para. 55)

"[W]ith anti communist propaganda and a land expansion agenda, the drug traffickers and their paramilitary alliances have obtained extensive property by killing or threatening the local population and forcing them to sell their land cheaply or abandon it altogether. Through this method they have managed to "cleanse" entire areas of the country and repopulate them with those who are more receptive to their economic and political agenda. This would explain why drug traffickers are directly responsible for only 2 to 4 percent of the displacement but indirectly, through their alliances, for much more." (Obregon and Stavropoulou 1998, p. 414-415)

"En los últimos años, algunas regiones fronterizas colombianas se han visto afectadas de manera creciente por el conflicto armado interno. Las zonas más afectadas son aquellas en donde hay cultivos ilícitos, recursos naturales estratégicos y condiciones favorables para el tráfico de armamento y de productos ilícitos, como las regiones con Ecuador ; y el Tapón del Darién, que limita con Panamá." (RSS, February 2001)

Displacements caused by fumigations and Plan Colombia (2004)

- 35 thousand families have already been displaced by fumigations since 1999 while the US department of state estimated that only 15,000 risked to be displaced
- About 30,000 people were displaced by military operations and fumigations part of Plan Colombia in 2003
- Departments most affected by displacements caused by fumigations were North of Santander, Caquetá, Putumayo, Guaviare, Nariño and Meta in 2002
- Farmers whose land had been fumigated said fruit trees and vegetable crops were destroyed, leaving the soil totally infertile for food-crops – ironically coca can grow on infertile land
- President Uribe restarted fumigation in October 2002 as an instrument to destroy illicit cultivation which subsidise the activities of insurgent groups labelled as terrorists
- Local authorities demands to central government to consider manual eradication of coca have been ignored and fumigations in La Gabarra are displacing coca cultivation to indigenous reserves
- Farmers are willing to substitute coca crops with other crops but government policy of no assistance before 'total eradication' leaves farmers in hunger and destitution, and only shifts coca cultivation to other impoverished areas

- Irregular armed actors have undermine manual eradication of coca, they impose taxation on coca products and enforce roadblocks making licit agricultural production unviable and weaken social structures
- Operation Holocaust to combat insurgents and their war economy launched in September 2003 displaced many families in North of Santander

“Se estima que el número de familias que tuvieron que desplazarse por efectos de las fumigaciones, desde 1999 a la fecha es de 35 mil.” (CODHES, 29 October 2003, p.26)

Eradication policies

"The Commission also examined the conditions surrounding the implementation of illicit-crop eradication programs by the military in zones allegedly under guerilla control. The aim of such programs is to destroy coca plantations using chemicals like tebuthiuron, which is classed as one of the most harmful to humans and future crops. Reports from several sources allege that military forces have caused the displacement of coca growers using these methods, as well as extreme violence against persons they alleged were connected with insurgents." (IACHR 1999, chapter VI, para. 71)

"The Colombian Government has presented to the international community an aid package known as "Plan Colombia". Plan Colombia is based on a drug-focussed analysis of the roots of the conflict and the human rights crisis, which completely ignores the Colombian state's own historical and current responsibility. It also ignores deep-rooted causes of the conflict and the human rights crisis. The Plan proposes a principally military strategy (in the US component of Plan Colombia) to tackle illicit drug cultivation and trafficking through substantial military assistance to the Colombian armed forces and police. Social development and humanitarian assistance programs included in the Plan cannot disguise its essentially military character. [...] Humanitarian assistance programs for internally displaced persons fail to address the causes of displacement and are merely designed to mitigate its consequences and thereby reduce the visibility of the internally displaced, including those people displaced as a consequence of the Plan's military operations." (AI, 10 July 2000)

“Como indicado en el anterior informe del GTD, las Naciones Unidas [...] admiten la erradicación forzada y la fumigación, siempre y cuando se haga en el respeto de los derechos humanos y fundamentales (en los cuales se incluye la salud humana) la protección de medio ambiente y el respeto de los usos tradicionales de la hoja de coca. Esto significa que la fumigación se aplique como última instancia – cuando no haya posibilidades de lograr formas de erradicación voluntaria y sustitución de cultivos, y que de toda manera no se fumiguen áreas de pequeños cultivos de menos de 3 hectáreas y áreas de comunidades indígenas.” (GTD, 23 November 2002, p.26)

"In the region of Catatumbo, Norte de Santander, fumigation of illicit crops continues and is producing displacement of farmers from rural areas to the urban centers. In order to tackle the rising problem, regional authorities are asking the central government to consider the manual eradication of coca plants instead of chemical fumigations." (WFP, 16 October 2003)

"In spite of these controversies, **President Uribe** restarted fumigation in October 2002, following a temporary halt because of the Ombudsman's appeal to investigate Plan Colombia's impact on public health.

Uribe intends to target all areas where coca is being cultivated in order to stamp out drug production and trafficking by 2006; the government's determination is outlined in the latest *'Plan de Seguridad Democrática'* [...]. This year's target is the fumigation of a 200,000-hectare area, twice the amount of existing crops [...], and Uribe is now frantically fumigating to meet his goal. The Magdalena Media region has an estimated 30,000 hectares of coca land, of which 10,000 hectares are to be sprayed during the course of the year. Spraying has also become an instrument to combat insurgents groups – **the war on drugs and**

terrorism are interlinked, according to the US and Colombian governments – in order to re-establish state control over its regions and take charge of its economic resources again.

To meet the objective of total eradication, the government designed a multifaceted strategy that combines aerial fumigation, the apprehension of drug trafficking networks, socio-economic investment and alternative development programs. The plan states that farmers wishing to benefit from drug substitution projects must commit to a total eradication of illicit crops (*Política de Defensa y Seguridad Democrática*, 2003) The problem is that unless alternative rural development programs are implemented – at a national level - prior to eradicating the coca, illicit crops will keep moving to other impoverished rural areas throughout Colombia and the Andean region. While the government has Plan Colombia funds available for social programs that seek to facilitate and promote the eradication of illicit crops (i.e. funds for emergency aid and alternative development programs), nothing has to date been invested in the way of assisting locals of rural San Pablo.” (PCS, 28 August 2003)

“En Norte de Santander si bien se han dado fumigaciones este año desde el mes de enero, ha sido en el mes de septiembre [2003] en el que más se ha visto afectada la población. La operación militar Holocausto que acompañó las fumigaciones en el mes de septiembre generó entre otras cosas el desplazamiento forzado de población desde la Gabarra hacia otras regiones del departamento y hacia el otro lado de la frontera.” (CODHES, 2 January 2004)

Consequences and impacts of fumigation

“Las fumigaciones mediante aspersión aérea de cultivos de uso ilícito en zonas de conflicto armado, desplazaron alrededor de 39.397 personas durante el año 2002, que representan el 15% del total de la población expulsada en el país.

Los departamentos más afectados por expulsión en zonas de cultivo de coca y/o amapola fueron Norte de Santander (13.571 personas), Caquetá (10.956), Putumayo (10.813), Guaviare (1.528) Nariño (1.476) y Meta (1.053).

Según fuentes de la Policía Nacional, en 2002 fueron fumigadas 129.125 hectáreas con cultivos de coca y 3.342 hectáreas con cultivos de amapola en estos departamentos.

En 2000, cuando se inicio el Plan Colombia, el Departamento de Estado afirmó que alrededor de 150 mil personas estaban vinculadas a los cultivos de uso ilícito, pero que las fumigaciones podían desplazar a 15 mil personas. Sin embargo, si sumamos los desplazados en zonas de fumigación de 2001 y 2002, alrededor de 75.597 han sido afectados por esta política.

El agravante es que estas personas no son consideradas desplazadas por el gobierno colombiano, que las califica como “migrantes voluntarios”, desconociendo el contexto de guerra en el que se producen estas fumigaciones.” (CODHES, 28 April 2003)

"USCR travelled to Putumayo in June. Farmers whose land had already been fumigated said that the fumigation had destroyed fruit trees and vegetable crops, leaving the soil so contaminated that they were not able to re-plant their food crops, and that contamination of streams and ponds has resulted in widespread deaths of fish and farm animals. The mayor of Puerto Asis municipality said that fumigation 'will not end coca production. That will just move deeper into the jungle.' Many farmers said that they would be glad to substitute other crops for coca, but the government would have to help them." (USCR June 2001)

“The Office has received evidence that fumigations on land inhabited by indigenous and Afro-Colombian communities affect the environment and the food security of the local inhabitants by destroying crops and impoverishing the soil. This has happened in the departments of Cauca, Norte de Santander and Putumayo.” (UNCHR, 24 February 2003, para.100)

" La zona fronteriza se compone de 57 municipios que se ubican en los departamentos de Nariño, Putumayo, Amazonas, Vaupés, Guainía, Vichada, Arauca, Boyacá, Norte de Santander, Cesar y La Guajira. En ellos el desplazamiento es consecuencia de las fumigaciones que afectan cultivos de consumo y la seguridad de la población civil por la presencia de actores armados, la respuesta de militarización por parte de gobiernos de países vecinos. ." (CODHES, 15 February 2002)

" Norte de Santander es el tercer departamento después de Putumayo y Guaviare de concentración de cultivos ilícito y el 4° en producción de los 23 productores del país.

[...]

Con las fumigaciones los cultivos se estima extendiendo a los territorios indígenas de Perijá y Motilonia, porque son parques naturales y esta prohibida la fumigación. Esto puede provocar la invasión de los territorios indígenas por los cultivadores de coca, provocando el desplazamiento de la población indígena que vive en la región (se calculan según la ONIC que existen una 23 comunidades en la zona, (aproximadamente 4, 000 personas)." (PCS, 8 November 2002)

Problems to be addressed for effective coca eradication

"During late May and most of June 2003, spray planes flew over the southern part of the department of Bolivar in the heart of Colombia, indiscriminately fumigating vast jungles, grazing land, rural dwellings and both licit and illicit crops with the chemical glyphosate.

[...]Geographical remoteness is a problem. It is difficult to reach rural areas given the poor road conditions and high transport costs. [...] While traditional agricultural products cost too much to produce and hardly yield any profit, coca paste is easily transportable and pays enough to earn a living.

The presence of irregular armed actors has a number of consequences: (1) they undermine manual eradication of coca crops, (2) impose taxation on coca leaves and paste and enforce roadblocks, and (3) weaken social structures. Armed actors have adopted a hostile stance toward crop substitution and rural development. Local farmers told the mission that they had received threats and were advised not to agree to manual eradication, which would secure alternative development in the region. Armed actors stigmatize and exploit farmers, impose taxation on coca leaves and paste, engage in the looting of livestock and food and increasingly impose economic and food blockades. Indeed, frequent restrictions on movement and trade means that commerce is almost impossible in the region.

[...]

The lack of welfare and basic service provision has pushed many farmers to opt for the coca economy. Local community leaders have continuously insisted on funds for road improvements, employment schemes, schools and health care, but so far regional authorities have not responded to their needs, according to peasant leaders of rural San Pablo. Peasant communities feel criminalized by the state, which depicts them as guerrilla supporters and coca producers. Aerial fumigation and lack of socio-economic investment, far from eliminating coca crops, are fuelling anti-government sentiments, particularly in guerrilla controlled areas.

[...]

Most families of Agualinda have lost both their coca and food crops, but no one has received any aid to date. Families are now running out of food." (PCS, 28 August 2003)

"CODHES destaca en su informe la expulsión de por lo menos 29.980 personas de las zonas de fumigación aérea de cultivos de uso ilícito, 2.831 indígenas que huyeron de sus territorios y alrededor de 40.512 personas pertenecientes a comunidades afrocolombianas obligadas a salir forzosamente. El 81 por ciento de los desplazamientos ocurridos en zonas de fumigación se produjo en los departamentos de Putumayo, Caquetá, Guaviare, Norte de Santander y Cesar." (CODHES, 10 December 2003)

Displacement rooted in territorial and resource interests (2003)

- Biodiversity and potential expansion of cultivation of illicit crops are causes why armed groups displace indigenous and Afro-Colombian communities
- Distribution of land is at the root of the social violence: 3 percent of landowners own more than 70 percent of the arable land as a result of the state's failure to implement a comprehensive agrarian reform
- Displacement is significantly more pronounced in areas where political violence coincides with violence associated with land ownership
- Dispute over territory among parties to the conflict has also led to an increase in the number of displacement
- Interests of certain economic sectors which support paramilitary groups with the aim of increasing their hold over natural resources and productive land have also forced small-scale farmers to leave their lands
- Wealthy drug traffickers have pushed their own process of 'counter-agrarian reform' through several years of buying or appropriating land abandoned by peasants who fled from paramilitary groups or by landowners exhausted from guerrilla pressures
- Colombian strategy of war intimately linked to strategies of re/depopulation of areas aiming at transforming land and property-ownership
- Deliberate displacement for control over resources, strategic territories and political loyalties is changing the population and socio-cultural map of Colombia
- Catatumbo is very rich in oil and carbon resources and Colombia's economic policies are aimed at attracting foreign capital in the area
- Bari indigenous people have been granted territorial autonomy in the Catatumbo-Bari Reserve in 1978 and stand in the way of multinational exploitation
- Many indigenous people opposed to encroachment on their land argue that armed actors forcibly displace them to suit national and multinational economic interests

“La ubicación estratégica y el correlativo control de territorios en disputa abarcan corredores de tránsito, zonas de retaguardia o avanzada de los actores armados. Pero desde una lectura complementaria al registro de la confrontación armada, la disputa por recursos no menos estratégicos relacionados con la oferta biofísica: biodiversidad, agua dulce, yacimientos de hidrocarburos, carbón, gas natural, oro, platino, la existencia o posibilidad de expansión de cultivos de uso ilícito, entre otros recursos, hacen parte de los motivos por los cuales se expulsan de sus territorios a indígenas, afrocolombianos y campesinos. [...]

El Gobierno colombiano reconoce claramente la superposición de formas de gobernabilidad indígena expresada en el gobierno propio y la autonomía territorial, el desarrollo de la guerra e intereses económicos: ". . . el mapa de los territorios indígenas en el país coincide, en parte, con el de grandes proyectos de infraestructura, con el de una gran biodiversidad, con el de riquezas del subsuelo, con el de cultivos ilícitos y con el de la lucha armada"

Los análisis que convergen en esta misma dirección señalan que "Esta situación ha dado lugar a conflictos que se traducen en el desconocimiento de la posesión indígena de su territorio; la concentración de fuerzas e intereses; la violencia física, en especial contra los líderes y dirigentes; el desplazamiento [forzado] de la población; la integración acelerada a la sociedad nacional y, paulatinamente, su arrinconamiento geográfico y cultural". Todo lo anterior, en relación con que aproximadamente el 28% del territorio colombiano ha sido declarado constitucionalmente 'territorio colectivo', con carácter inalienable, imprescriptible e inembargable para 91 pueblos indígenas cuya población asciende a aproximadamente 800.000 habitantes, y para cerca de cuatro millones y medio de afrocolombianos » (Harvey, 8 January 2003)

Issue of land distribution as the root cause for violence:

The issue of distribution of land is at the heart of the social conflicts in Colombia. According to one report, 3 per cent of the landowners own more than 70 per cent of the arable land in the country. / Asociación SETA, Colombia: Misión de Identificación de Derechos Humanos en Colombia, Informe de Misión at 7./ However, in the last 35 years the number of very large land properties has decreased somewhat. / See CPDIA report at 14-15./ As one government official said, effective action by the State in this field has never been possible; for instance, the first agrarian reform in the 1930s was restricted to defining the ownership titles of the coffee haciendas south of Bogotá. Another one, in the 1960s, was phased out in 1971 due to opposition by the landowners. A third one, in the 1980s, originating in the demobilized guerrillas, was also partial. Another commentator suggested that because agrarian reform implies a change in the land rights and in politics, Governments have never engaged in it seriously.[...] Thus, invasions and conflicts associated with them have never been avoided, since peasants have had to resort to occupation and, as is the case in Meta, have subsequently been forced out by wealthier landowners. One government official, describing this process as 'colonization' and calling it absurd, noted that in areas where land distribution has been carried out, settlements tend to be more peaceful. Colonization also affects the environment, as it often entails clearing the jungle to establish a field or a pasture. (CHR 3 October 1994, para. 30)

"For its part, the study by Dr. Alejandro Reyes, a political analyst, states that displacement is significantly more pronounced in areas where political violence coincides with violence associated with land ownership (Atlantic Coast, Chocó and the Urabá region of Antioquia) than in areas where, despite the level of political violence, the incidence of land disputes is less (Northeast, Central Andean Region, Southwest). Dr. Reyes believes that, 'in local wartime conditions it is not only impossible to put forward social demands, but the problem becomes one of how to safeguard the stability of the population in their territory, since the territory acquires strategic value for the opposing sides. Displacement occurs when threats force a dilemma between property and life and the State is incapable of providing protection for the population.' [Alejandro Reyes Posada, *El problema territorial del desplazamiento forzado*, annexed to Final Report on the on-site technical assistance mission on internal displacement in Colombia of the Permanent Consultation on Internal Displacement in the Americas (CPDIA), Technical Secretariat, Inter-American Institute of Human Rights, 1997]. This analysis and the Commission's own confirmations during its on-site visit, satisfy it in the conviction that there is a close connection between social injustice, particularly land takeovers, and internal displacement, the prime causes of which predate the current armed conflict. (IACHR 1999, chapter VI, para. 22)

Economic interests:

The Commission has received information stating that 65% of heads of displaced households who owned land had to abandon it as a result of the acts of violence that forced them to flee. This statistic tends to confirm once more that, concealed behind the phenomena of violence and armed confrontation, are economic interests associated with the so-called agrarian counter-reform that affects small and medium-scale landowners." (IACHR 1999, chapter VI, para. 23)

"While some 30 million hectares of indigenous lands have been recognized, these claims and even the possession of lands already recognized are hindered and opposed in some cases by threats, harassment, and violence. Various actors are responsible for these acts of violence and threats, but frequently they are carried out by large landowners acting in cooperation with paramilitary groups and, in many cases, members or units of the Colombian State public security forces." (IACHR 1999, chapter X, para. 23)

Displacement is also a way of gaining possession of land. The existence of natural resources and/or the implementation of large-scale economic projects tend to create pressures which force small-scale farmers to leave their land. The Office has received reports of compulsory sales of land at far below market values. (CHR 15 March 1999, para. 97)

Land and illicit cultivations:

"Wealthy drug traffickers have pushed their own process of 'conteragrarian reform' through several years of buying or appropriating land abandoned by peasants who fled from paramilitary groups or by landowners

exhausted from guerrilla pressures. This process has shifted the concentration of land from the traditional elites to the emerging narco-businessmen." (Obregon and Stavropoulou 1998, pp. 408-409)

"This trend continues, with drug traffickers buying huge tracts abandoned by fleeing families. 'Land-buying by drug traffickers changes the war's course, because these new land owners become part of the paramilitary structure,' commented Alejandro Reyes, a sociologist who has studied political violence, in an interview with Human Rights Watch. 'It is then that the traffickers begin to defend themselves territorially.'" (HRW October 1999, chapter IV)

De/Re-population strategies :

« Nuevamente es necesario llamar la atención sobre la necesidad de analizar la complejidad de este problema en Colombia. Además de los rigores de la guerra, muchas veces el desplazamiento obedece también a estrategias de repoblamiento con propósitos destinados a la transformación drástica y vertiginosa de la tenencia y la propiedad en Colombia, del control del acceso a recursos y territorios estratégicos. El destierro como estrategia intencional modifica el mapa poblacional y sociocultural del país, las posibilidades reales de participación y movilización social, así como la reivindicación de derechos y garantías democráticas. El desarraigo violento está reconfigurando la territorialidad del poder y el control político, económico y cultural en los ámbitos locales y regionales; los responsables del desplazamiento y quienes los apoyan, intentan moldear las lealtades y solidaridades de la población en beneficio de sus proyectos. » (CODHES, 18 November 2002)

The example of Catatumbo:

"The interesting question for the purpose of holistically viewing the rationale behind regional armed conflict is how the *apertura económica* based on attracting foreign capital to modernize the Colombian economy, within the context of a regional free trade agreement supported by mega projects is fuelling this war economy dynamic further? The Catatumbo's abundant supply of natural resources coupled with a cheap supply of labor and a favorable geo-strategic position has it that the region attracts multinational and national companies eager to extract oil and carbon. Big parts of these resources lay in the northeastern territory of the Catatumbo, the 158,000 square km National Park of the Catatumbo-Bari. Under the 1978 law, the indigenous people of Bari were granted autonomy over this territory, and this has remained a stumbling block in multinationals exploiting the zone. Indigenous are refusing exploitations. In the light of this, many have argued that armed actors are inducing displacement in order for multinational or national companies to explore these territories. There is a need for researchers to further explore the development of the war economy, within the context of armed elites competing for control of Colombia's natural resources." (PCS, 11 February 2003)

POPULATION PROFILE AND FIGURES

Global figures

Over 3 million Colombians displaced by violence since 1985 (CODHES 2003)

- 172,851 people were displaced in 2003 according to government sources, in total 1,222,671 people since 1994
- 175,270 people were displaced according to CODHES, between January and September 2003, rising to 3,090,123 the total estimate accumulated since 1985
- Decrease in annual numbers of IDPs in 2003 is attributed to an increase in the number of besieged communities, and under-registration due to fear or exclusion notably of people displaced by fumigations or within their own municipalities
- While the number of new displaced people decreased by half in 2003, the extent of displacement was high, affecting 904 municipalities out of 1100, up from 480 in 2000
- The three departments experiencing the most displacements in 2003 were Putumayo, Caquetá and Arauca
- 412,553 people were displaced during 2002, 1,144 daily a 20% increase compared to 2001, according to CODHES
- 1.623 people were displaced daily between July and October 2002, in total 149.387 people compared to 90.179 and 113.555 during the first two trimesters of 2002
- Inadequacy in detecting individual displacement by the government Network is reflected by the Network estimating 90% IDPs fleeing through mass displacement in 2001, while CODHES estimated only 22%

NEWLY DISPLACED PEOPLE IN COLOMBIA YEARLY

Year	CODHES	GoC SUR
1985-94	720,000	
1995	89,000	247
1996	181,000	2,528
1997	257,000	10,867
1998	308,000	33,214
1999	288,000	26,180
2000	317,375	268,660
2001	341,925	327,606
2002	412,553	379,289
2003	175,270 (Jan-Sept)	172,851
Total Cumulated*	3,090,839	1,222,671

Sources: CODHES "Tendencias del desplazamiento en Colombia de 1985 a 3er. Trimestre año 2002", [\[External Link\]](#).

CODHES Informa bulletin no.46, 10 December 2003

GoC, RSS-SUR, 23 December 2003, [\[External Link\]](#)

**The total figure is inaccurate in absolute terms, as it is an accumulated count since 1985 and therefore does not reflect returns, multiple displacements and demographic changes in the displaced population. In addition, many IDPs take refuge in urban peripheries where they settle along other indigent communities, further blurring their IDP-specific needs. The various registration systems in Colombia have no de-registration system for people returning or resettled. Nevertheless, Government and CODHES yearly figures have become increasingly similar in the last 2 years due to methodological improvements.*

“La organización no gubernamental señaló que durante los primeros nueve meses de 2003 una población aproximada de 175.270 personas se desplazó dentro del territorio nacional por situaciones de violencia asociadas al conflicto armado, lo que representa una disminución del 49% con respecto al mismo período de 2002.

[...]

La población fue expulsada de 904 municipios, de los cuales el 91% corresponde a zonas rurales y pequeños municipios, mientras que el 9% restante corresponde a personas expulsadas de capitales de departamentos.

[...]

Desde 1985 Colombia vive un reacomodamiento social y demográfico cruzado por la violencia que se manifiesta en el desplazamiento forzado de una población estimada en 3.090.123 personas, en un proceso sostenido que aumenta o disminuye de acuerdo con las dinámicas de la guerra, con la consolidación de hegemonías político militares en las regiones o con el agotamiento demográfico en regiones en las que ya no hay a quien desplazar.” (CODHES, 10 December 2003)

“Although the number of new IDPs is decreasing in Santander and Huila, this appears to be related not to an improvement in the security situation for the rural population but to the escalating violence between the military and the armed groups, which makes escape harder for the affected population.” (ICG, 13 November 2003,p.14)

“The table shows a reduction in the figures registered during the first half of 2003, compared with the same period for 2002. Nevertheless, CODHES cautions that the trend is not evident throughout the country and that conditions in Putumayo, Caquetá, and Arauca are still a matter of concern. CODHES also warned that reduction in displacement figures might be attributed to a change in the dynamics of the armed conflict and an increase in the number of besieged communities. Also, displaced people are often reluctant to register for fear of retaliation or forced return.” (UNCT, 21 October 2003)

“President Álvaro Uribe announce in his speech to the United Nations General Assembly that forced displacement had been reduced during the first half of this year by 66% in relation to the same period last year. CODHES however, maintains that this reduction did not exceed 42%.

CODHES also maintains that structural dynamics in the conflict must be taken into account when analyzing the tendencies in displacement, such as the increase of displacement since the rupture of the peace process in February 2002, and the increase of communities under siege or blocked in 2003.” (UNCT, 30 September 2003)

“In its semi-annual report ending June 30th 2003, the SSN reported a cumulative figure of 1,112,244 people registered in the SUR: 50% women, 42% minors, 90% of rural or semi-rural origin, and 50% are located in poverty belts around large cities. 900 municipalities were affected, 102 of them experiencing critical conditions. In 2002, 311,664 people were registered, while in the first half of 2003, 75,201 people were recorded displaced in individual events. The SSN also informed that in 2002 there were 64,453 people displaced, and 22,387 in 2003. On the other hand, CODHES indicated that during the first half of this year, there were 119,690 displaced persons in Colombia. CODHES estimates that there were 67,726 personas during the first quarter of this year and 51,964 during the second quarter. The three departments that

experienced the greatest impact for the number of displaced persons were: Putumayo: 5,489 persons; Caquetá: 5,670; and Arauca, 2,325 displaced.

[...]

CODHES also warned about the increase in the number of besieged communities, which not only influences the displacement statistics but also show an increase in serious violations of human rights and humanitarian law. There are other simultaneous factors that may also have an impact on forced displacement, such as changes in the dynamics of the Colombian armed conflict, and violence and intimidation that makes displaced people reluctant to register with any of the information systems. The negotiation process with armed groups and the reduction in military actions by armed groups during the first half of 2003 should also be considered as they also affect migratory trends in the interior of the country.” (UNCTC, 30 August 2003)

“According to data gathered, the NGO Advisory Office for Human Rights (CODHES) indicates that 2,903,920 persons have been displaced in Colombia since 1985 (6.8% of the population), while registration by the government's Social Solidarity Network (SSN) records 912,463 officially displaced persons over the past 7 years.

Data for 2002 shows an increase both in the number of displaced persons and in the areas impacted by displacement. In 2002, SEFC (System of Cross-Referenced Forced Displacement Estimates by the Social Solidarity Network) data reported 312,048 displaced persons, as compared to 2001, an increase of 69.82%. Data from CODHES indicated a 17.57% rise in displacement, from 341,925 persons to 402,000 in 2002.” (OCHA, 3 June 2003)

“Esta es la otra guerra detrás de la guerra. El país sigue huyendo y cada año que pasa sin resolver el conflicto armado representa un incremento del desplazamiento forzado con relación al anterior. Esta diáspora permanente afectó en el 2002 a una población estimada en 412.553 personas, es decir, un promedio de 1.144 por día, 20% más que el año inmediatamente anterior.

[...]

En 2002, el 85% del total de los municipios, es decir 955, expulsó población, lo que constituye una ampliación de los lugares en los cuales ya es evidente la guerra y su degradación. De estos municipios expulsores, al menos 152 registraron una significativa disminución de población, mientras que 124 fueron sometidos a un crecimiento atípico como consecuencia de la llegada intempestiva de nuevos habitantes. En suma, 276 municipios, que constituyen el 25% del total del país, están inmersos en un proceso de reordenamiento social y demográfico forzado por las circunstancias de la guerra.” (CODHES, 28 April 2003)

« Es decir, durante los primeros nueve meses de 2002, una población estimada en 353.120 personas fue desplazada en desarrollo de una estrategia de guerra que intenta imponer lealtades políticas por la vía de la fuerza en cada vez más territorios, generando una vertiginosa recomposición social y demográfica de impredecibles consecuencias y agravando la crisis humanitaria y de derechos humanos en el país.

La magnitud del desplazamiento en este período refuerza la hipótesis según la cual esta estrategia de guerra se asocia con mecanismos de repoblamiento, que responden a intereses políticos y económicos de quienes promueven la guerra interna para controlar territorios y recursos con fines que trascienden la lógica militar.

El hecho de que un promedio diario de 1.623 personas tenga que huir de la violencia impuesta por los actores armados, es tal vez la peor manifestación de la degradación de un conflicto que se ensañó contra la población civil sometida, cada vez más, a una condición de indefensión y a un estado de desprotección por la violación masiva y sistemática de sus derechos fundamentales.

[...]

En el trimestre comprendido entre julio 1 y septiembre 30 de 2002 el desplazamiento forzado interno, ocasionado por factores de violencia, presenta un incremento significativo respecto de las estimaciones de los últimos 17 años. En efecto, en estos tres meses el número de personas obligadas a desplazarse alcanzó

la cifra de 149.387, frente a las 90.179 y 113.554 de los dos primeros trimestres. Es decir, un promedio de 1623 personas cada día, 67 personas cada hora, -una familia cada 10 minutos" (CODHES, 18 November 2002)

“Enforced displacements increased substantially, affecting much of the country, [23] the reason being that they are increasingly used as a war strategy.

[Endnote 23: According to the Compared Sources Estimation System (SEFC), enforced displacements increased by 100 per cent in the first half of 2002 compared with the same period in 2001. The main cause was generalized threats (46 per cent), followed by fighting (22 per cent) and massacres (8 per cent). The Social Solidarity Network reported that 887 out of the total of 1,098 municipalities are affected by enforced displacements.]” (UNCHR, 24 February 2003, para.88)

“89. One factor to blame for this situation is the lack of any comprehensive prevention policy on the part of the Government. Another is the lack of progress in bringing those responsible for the displacements to justice. According to the Network, some 231,000 persons were displaced between 1 January and 30 September [2002]. Over the same period, the Advisory Office for Human Rights and Displacements (Consultoría para los Derechos Humanos y el Desplazamiento, CODHES (a non-governmental organization)), recorded rather more than 350,000 displaced persons. Despite the improved coverage obtained thanks to the Single Registration System (SUR) and emergency humanitarian assistance, there are still obstacles to access to State programmes and lasting solutions, and difficulties in exercising economic, social and cultural rights. Of particular concern is the situation of displaced women, children, indigenous persons and Afro-Colombians.” (UNCHR, 24 February 2003, para 89)

NGO estimates:

“There has been a dramatic increase in the flow of displaced persons since the 1980s. The geographic areas from which they come have also shown an alarming expansion. The total number of displaced persons in Colombia is estimated to be somewhere between 720,000 and over 2 million, depending on the source (governmental or non-governmental) and the period under study (the last five years for the first figure and the last 15 years for the second figure).” (UN CHR, 11 March 2002)

“A record 341,000 people fled their homes because of political hostilities last year [2001], making Colombia the world’s fourth-largest host of internally displaced people, with over two million in a country of 40 million.” (WOLA, Colombia Monitor March 2002)

"341.925 personas fueron desplazadas durante el año 2001 porque las partes del conflicto (contrainsurgencia legal e ilegal y guerrillas) no respetaron los derechos humanos o violaron las normas de la guerra que excluyen a los civiles de la confrontación armada. Codhes reporta 586 municipios receptores de población en situación de desplazamiento en 2001, cifra que de alguna manera refleja las dimensiones de esta crisis humanitaria.

El año 2001 muestra un balance dramático en cuanto a la intensificación del conflicto armado, la violación sistemática de los DH y las infracciones del DIH. En el período analizado los distintos actores armados no cesaron de realizar bloqueos, amenazas, reclutamientos, secuestros, asesinatos selectivos, masacres y provocar el desplazamiento individual, familiar y en forma de éxodos masivos y múltiples. Estas acciones fueron mucho más funestas y visibles en zonas rurales, particularmente en los territorios de propiedad colectiva de comunidades afrocolombianas e indígenas.

[...]

Dichos hechos violentos produjeron el desplazamiento forzado de 68.385 familias aproximadamente, con la consecuente ruptura de redes familiares y comunitarias. Esta cifra corresponde a un estimativo global de 341. 925 personas, un equivalente a 39 personas por hora o 937 personas por día; quienes arribaron al área urbana de 586 municipios ubicados en 32 departamentos del país (94% de los departamentos -tan sólo Vaupés y San Andrés y Providencia no reportan información sobre el fenómeno-)." (CODHES, 15 February 2002, Boletín 40)

"Mil desplazados cada día. Este ha sido el peor año en desplazamiento por causa del conflicto armado. Según un informe entregado anoche por la Consultoría para los Derechos Humanos y el Desplazamiento CODHES, alrededor de mil personas dejaron cada día su tierra entre enero y septiembre pasados." (Diario El Tiempo, 27 November 2001, in CODHES, 31 November 2001, Boletín 39)

"El Sistema de Información de Hogares Desplazados y Derechos Humanos Sisdes reportó en el año 2000 una población estimada en 317 mil personas que integran 65 mil hogares en situación de desplazamiento y que se sumaron al inmenso flujo de colombianos y colombianas que en años anteriores ya habían sido sometidas al desarraigo forzado, producto del conflicto armado interno y otras expresiones de violencia política y social. " (CODHES, 1 January 2001, Boletín 35)

"According to the independent Advisory Committee for Human Rights and Displacements (CODHES), some 308,000 persons were forcibly displaced from their homes by violence during the year [1998], the highest number during any year during the past decade. CODHES estimated that the government forces were responsible for approximately 6 percent of displacements during the year. Internally displaced citizens during 1995-98 probably exceeded 750,000, but the total number--and the number of those who were permanently displaced--was difficult to discern. CODHES states that some persons have been displaced for as long as 10 years, but is unable to identify a typical timeframe for displacement. Some persons return to their homes within days or weeks, others within months, and some never return. Some displaced persons move several times after fleeing their original home, making tracking difficult. The Government does not consider persons to be displaced after 2 years. CODHES estimated that perhaps 65 percent of displacements became permanent." (U.S. DOS 26 February 1999, section 1g)

Government estimates :

"Se estima que entre el 2000 y el 2001 se desplazaron 319.297 personas." (RSS, 13 February 2002)

"In terms of the extent and development of the problem, by applying the system for estimates of forced displacement by contrasting sources (SEFC), [...] the Network recorded a 64 per cent increase in the number of displaced persons [in 2001] compared to the same period in 2000 (85,012 during the first half of the year) and a 118 per cent increase in the number of displacement events (1,019). An additional 318 municipalities were affected. For the same period, CODHES recorded 191,928 newly displaced persons.[...] The Network estimates that 90 per cent of these people were displaced as the result of mass displacements, while CODHES puts that figure at around 22 per cent. This may suggest that although the Network improved its coverage, it still had difficulties in adequately detecting cases of individual displacement." (UN HCHR, 28 February 2002, para. 226)

"In 2000, RSS [Social Solidarity Network] estimates that some 125,000 people were displaced.
[...]

In its document 3057 of November 1999, the National Council on Economic and Social Policy estimated that there were 400,000 displaced persons in Colombia who needed assistance and that, since 1996, about 25,000 families (125,000 persons) have been displaced every year. If the RSS estimate of the number of persons displaced in the year 2000 is added to this figure, we would have an overall official figure of some 525,000 displaced persons in need of assistance. For their part, non-governmental organizations estimate that more than 2 million persons may have been displaced since 1995. This total does not include displaced persons who returned to their places of origin or resettled elsewhere. Nor does it provide information on the percentage of persons who were displaced more than once.

[...]

It should be noted that both government and non-governmental sources agree that not only is there a steady increase in the total number of internally displaced persons in Colombia, but also that the phenomenon is taking on crisis proportions. Since the overall figures are going up, the humanitarian crisis is deepening." (TGD 19 January 2001)

"Both RSS and the Advisory Office for Human Rights and Displacement (CODHES) indicate the ongoing increase in the number of displacements during the past years as well as an increase in the number of

persons displaced. According to RSS, 190,454 people were displaced during 2001. This is 48 per cent increase in the number compared to the year 2000 and a 118 per cent increase in the number of displacements.” (UN CHR 11 March 2002)

“Exact numbers of displaced persons are difficult to obtain because some persons were displaced more than once, and many displaced persons do not register with the Government or other entities. However, while no consensus exists regarding the exact number of internally displaced persons (IDP's), observers agreed that there has been a significant increase in displacements over the past 3 years.” (U.S. DOS, 4 March 2002)

"Según estadísticas oficiales, entre 1995 y 2002 se han desplazado alrededor de 890.000 personas, lo que evidencia un crecimiento sostenido semestre a semestre del 45%.

[...]

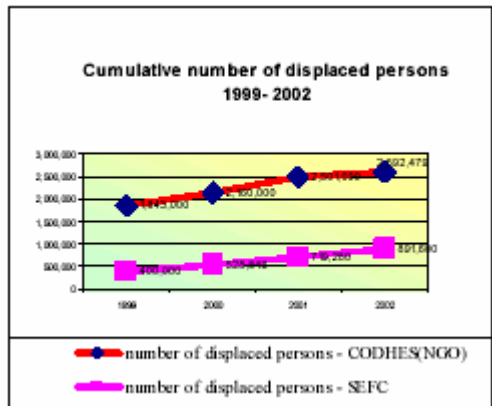
Desde el punto de vista geográfico, la expansión del fenómeno también es evidente. Mientras que 480 municipios fueron afectados en el año 2000 por eventos de recepción o expulsión de población, en 2001 se registraron 819 y en el primer semestre de 2002, 887 municipios, con lo cual un 87% del territorio nacional se encuentra afectado por el desplazamiento." (GTD, 23 November 2002, p.61)

Government and NGO IDP figures differ but both agree that the total number has increased since 1994 (2003)

- Daily average persons displaced increased from 472 to 772 during the first half of 2001 compared to the same period in 2002 according to government sources
- The number of municipalities affected by conflict also increased from 547 to 967, from the first half of 2001 compared to the same period in 2002
- NGO IDP figures are one million and a half higher than government figures because they start counting IDPs 10 years earlier
- Both the government and NGOs agree that under-registration reaches up to 35%
- RSS government agency estimates IDP numbers from two sources: the Estimation System for Contracting Sources (SEFC) and the System for Registration of IDPs (SUR)
- The SEFC collects information about the events that led to displacement and the SUR registers physical persons who will be eligible for assistance
- SEFC collects information from the National System for Assistance to the Displaced (located in 35 departments) including government, NGOs, churches, and the displaced themselves
- The government system only takes into account displacements occurring over the last three to four years, and on more limited sources than those used by CODHES
- CODHES estimates that about 65% displacements are permanent

“4. [...] According to SSN, in 2001 the number of displaced persons increased by 48 per cent over the previous year.

[...]



6. Increased displacement is closely linked to the worsening of the internal armed conflict. According to the SSN System of Cross-Referenced Forced Displacement Estimates (SCRE), an estimated 85,012 persons were displaced during the first half of 2001. During the second half of 2001, the figure increased to 105,425. A total estimated of displaced people in 2001 was 190,437. Data available in 2002 clearly show that the number continues to rise. It is estimated that 173,320 persons were displaced during the first half of this year (a 102% increase over the first quarter of 2001). The trend of increased displacement is also evident in the daily average of displaced persons: in the first half of 2001 the number was 472, as opposed to 772 during the first half of 2002.

[...]" (GTD, 29 November 2002, p.4-6)

"According to the System for Estimating Forced Displacement through Contrasting Sources (SEFC), 1,351 displacing events occurred in 2000, or four displacements per day. These involved 128,843 people from 26,107 homes, which breaks down to 352 people per day or 15 people per hour. [...] The average number of displacements increased in 2001, with 5,134 more people displaced every month than during the previous year. This works out to 539 people per day or 22 people an hour. The situation became even more drastic in 2002 when 685 people displaced every day, almost doubling the number of daily displacements in 2000. [...]

In 2000, 480 municipalities registered as being affected by displacement. Of those, 158 were only affected by expulsions, 158 by arrivals only, and 164 by both conditions.

[...]

In 2001, events related to displacement were reported in 819 municipalities. This shows that displacement was affecting a growing proportion of Colombian territory, with 74 percent of all municipalities affected in 2001. Of these affected municipalities, 183 were exclusively expulsions, while 120 only received displaced populations and 516 municipalities both displaced and received populations.

[...]

A December 15, 2002 SUR report showed an alarming increase in registered displaced families between 1995 and 2002. In 1995, 61 families were registered as displaced, 591 in 1996, 2,233 in 1997, 8,967 in 1998, 7,210 in 1999, 57,063 in 2000, and 67,727 in 2001. Another 67,759 families had registered by December 2002, for a total of 211,611 families since 1995. In the same time period, displaced people had fled from 788 municipalities (71 percent of all municipalities) and entered 454 municipalities (41 percent). [...]"(Colombia Journal, 23 June 2003)

"Both RSS and the Advisory Office for Human Rights and Displacement (CODHES) indicate the ongoing increase in the number of displacements during the past years as well as an increase in the number of persons displaced. According to RSS, 190,454 people were displaced during 2001. This is 48 per cent increase in the number compared to the year 2000 and a 118 percent increase in the number of displacements." (UN CHR 11 March 2002)

"In 2000, RSS [Social Solidarity Network] estimates that some 125,000 people were displaced.

[...]

In its document 3057 of November 1999, the National Council on Economic and Social Policy estimated that there were 400,000 displaced persons in Colombia who needed assistance and that, since 1996, about 25,000 families (125,000 persons) have been displaced every year. If the RSS estimate of the number of persons displaced in the year 2000 is added to this figure, we would have an overall official figure of some 525,000 displaced persons in need of assistance. For their part, non-governmental organizations estimate that more than 2 million persons may have been displaced since 1995. This total does not include displaced persons who returned to their places of origin or resettled elsewhere. Nor does it provide information on the percentage of persons who were displaced more than once.

[...]

It should be noted that both government and non-governmental sources agree that not only is there a steady increase in the total number of internally displaced persons in Colombia, but also that the phenomenon is taking on crisis proportions. Since the overall figures are going up, the humanitarian crisis is deepening." (TGD 19 January 2001)

Methodologies to estimate the number of displaced people in Colombia

« *Varias consideraciones distancian las cifras de las dos instituciones. En primer lugar, CODHES incluye en sus registros un acumulado de población desplazada desde 1985, mientras que la Red de Solidaridad tiene datos desde 1995. Este hecho marca, de comienzo una diferencia de casi un millón y medio mas de desplazados.*

[...]

«*La última gran discusión se refiere al subregistro. La Red afirma que la cifra asciende a 35%, muy similar a la opinión de CODHES, mientras que INDH asegura que el fenómeno no supera el 10 %.* » (Actualidad Colombiana, 26 May 2003)

"Exact numbers of displaced persons are difficult to obtain because some persons were displaced more than once, and many displaced persons do not register with the Government or other entities. However, while no consensus exists regarding the exact number of internally displaced persons (IDP's), observers agreed that there has been a significant increase in displacements over the past 3 years." (U.S. DOS, 4 March 2002)

"In order to quantify the dimensions of forced displacement the Report bases itself on figures published by the NGO CODHES, which operate an information system which attempts to estimate displacement through monitoring of information published in a national press, a periodical sampling of institutions, and a survey of the displaced population.

For the same purpose of making global estimates of displacement, the Social Solidarity Network (RSS) operates its system for estimates of forced displacement by contrasting sources (SEFC), based on a regular procedure for consultation and comparison of sources which are part of the National System for Assistance to the Displaced, among them government agencies, NGOs, the churches, community sources and the displaced themselves, from 35 RSS information points located in the 32 departments of Colombia. " (UN HCHR 16 March 2001)

"The Colombian Social Solidarity Network attempts to bring together information on a national level and permanently track the displaced population using two main sources: the Estimation System for Contrasting Sources (SEFC) and the System for Registration of the Displaced Population (SUR).

The magnitude of forced displacement in areas of expulsion, arrival, return, and resettlement is measured through the SEFC. In order for the SEFC to accept information, the source or displaced population itself must provide details such as an account of the events that led to the displacement, information concerning the armed conflict, and the time frame in which the displacement occurred. The SEFC aims to identify the source of the information provided, the department and municipality in which the event occurred, the date, and the number of households and people displaced. With this information, the SEFC creates a profile of the displaced population, including age, gender, and ethnicity, which in turn leads to an understanding of

provocations and parties responsible for the displacement. This system allows for a comprehensive estimate of the total displaced population of Colombia. [...]

The SUR, on the other hand, explicitly identifies displaced individuals and provides the Attorney General's office with notices of their displacement. This also allows for a basic characterization of the displaced sector gaining access to benefits available under the law. While these people are not necessarily representative of the displaced population as a whole, SUR's work helps form policies and strategies on the amount and quality of services provided. [...]” (Colombia Journal, 23 June 2003)

"The government of Colombia also compiles data on displacement [...] However, the government estimate takes into account only new displacement in the last three to four years, and its sources are more limited than those available to CODHES. USCR finds the CODHES figures to be more complete and a better reflection of the actual level of displacement." (USCR June 2001)

"CODHES states that some persons have been displaced for as long as 10 years, but it is unable to identify a typical timeframe for displacement. Some persons return to their homes within days or weeks, others within months and some never return. Some displaced persons move several times after fleeing their original home, making tracking difficult. The Government does not consider persons to be displaced after 2 years. CODHES estimated that perhaps 65 percent of displacement became permanent. In an attempt to determine the true scope of the problem, the Government, in cooperation with the U.N. High Commissioner for Refugees (UNHCR), developed a computerized system for collecting data on the displaced and estimating total numbers." (U.S. DOS February 2001)

For more information about IDP registration systems in Colombia see the section on ‘Documentation needs and citizenship of click here [\[Internal Link\]](#)

Geographical distribution

Displacements in the Northeastern departments of North of Santander, Magdalena and Bolívar (2003)

- Catatumbo registered the highest expulsion rate in the country with 14,007 people per 100,000 inhabitants expelled during 2002
- International agencies considered there were about 100,000 IDPs in Northern Santander as of October 2002, due to massive under-registration in the zone, while the RSS estimated 23,000 IDPs
- 7000 IDPs fled to Cúcuta adding to the 22,000 people already displaced in Cúcuta during 2002, most of whom from La Trinidad, according to RSS
- At least 15,000 people were displaced by counter-insurgency paramilitary attacks in rural zones of Convención in 2001, most of whom fled to urban centres of Convención and Ocaña
- IDPs in the Catatumbo settle in urban areas and receive hardly any humanitarian assistance due to the weak presence of NGOs, UN or state institutions
- Cúcuta is one of the most violent city after Medellín with 128/100,000 violent deaths yearly and 184/100,000 respectively 80% of which, due to warfare
- IDP from Catatumbo fall victim to paramilitary attacks as they are stigmatized as guerrilla supporters because the zone was historically controlled by ELN
- 39,857 persons were expelled and 22,908 entered the Magdalena Medio region as of during 2002

“Five hundred people have been displaced from their village in the region of Catatumbo, department of Norte de Santander, driven by hunger as a result of forced blockades and intensive fighting between government military and illegal armed groups. These people have relocated to an area near the Venezuelan border and have not yet been reached by humanitarian aid organizations.” (WFP, 31 October 2003)

“An influx of a large number of farmers into the Municipality of Tibú (Catatumbo region), Norte de Santander from nearby rural areas is provoking a social crisis. This displacement is due to the latest crop-spraying operation as part of the government's Plan Colombia. Fumigations have affected food harvests and left people without food or income. In addition, the Army is presently carrying out an operation in the area, which has affected civilians and forced them to leave their farms.” (WFP, 10 October 2003)

“La tasa de expulsión de la región del Catatumbo (14.007 personas por cada 100.000 habitantes) es, con creces, la más alta del país. Cinco de sus municipios presentan las tasas de expulsión más altas del país: El Tarra (25.953), Convención (25.542), Teorama (24.603), San Calixto (10.639) y Tibú (9.080) sobrepasan la tasa nacional de expulsión hasta en seis veces la tasa nacional de desplazamiento (586 personas).” (CODHES, 28 April 2003)

“La RSS estima en 23.000 el número de personas desplazadas en Norte de Santander a octubre 2002. El número de muertes violentas y selectivas, para la misma fecha, es de 1.170. La población desplazada interna en el departamento se encuentra en Convención, Ocaña, Cúcuta y Tibú. Ha habido retornos espontáneos hacia las zonas rurales y caseríos de Teorama (1,500 personas).
[...]

Prácticamente en todos los municipios del departamento existe presencia de actores armados. Existen entre 10,300 y 10,800 hectáreas de cultivos ilícitos en el departamento, aunque las UMATAS hablan de 30,000. Las AUC tienen un mayor dominio de las zonas urbanas y donde hay mayor concentración de población. La guerrilla está replegada a las zonas rurales. El grado de sub-registro es enorme. Existen alrededor de 100, 000 desplazados reales en el departamento, en particular en la ciudad de Cúcuta.” (PCS, 8 November 2002)

“The 2001 invasion resulted in the exodus of at least 15,000 people, who initially moved into the nearby urban centers of Convencion and Ocaña (Minga report), [...] the Red de Solidaridad Social (RSS) registered an influx of approx 22,000 internally displaced people into Cucuta during 2002 most of whom came from the rural zones around La Trinidad.” (PCS, 11 February 2003)

“In December 2001 the AUC initiated a counterinsurgency campaign in the rural zones of Convención (details outlined in the previous Catatumbo report of 11 February 2003). In the logic of decreasing the guerrilla's base of support the paramilitary forcibly displaced at least 12,000 people from the region. No distinctions were made between combatants and non-combatants, neither were rules of war followed. Warring parties burnt crops, leveled homes and destroyed communities. Entire peasant communities fled to the urban centers of Ocaña, Convención and Cucuta, leaving numerous villages deserted.

The situation of IDPs (internally displaced people) in Cúcuta

Most IDPs from the Catatumbo self-settled in the urban shanties at the margin of cities such as Ocaña, Convención and predominantly Cucuta, which meant that they generally received little or nothing in the way of assistance from government and NGO agencies. Getting aid to the displaced has proved a challenge, given that there are few NGOs and grass root organizations present in the Norte de Santander department, a consequence of years of armed incursions, which have subsequently penetrated the entire fabric of grassroots social relations as a means of exerting social control.

According to the Red de Solidaridad Social (RSS), a government body responsible for tackling forced displacement, during 2002 approx 7,000 internally displaced people settled in Cucuta, bringing number of IDPs in Cucuta up to 22,000. An overwhelming majority came from the Catatumbo region. Government let humanitarian assistance has proved arbitrary and inefficient; indeed, aid has been limited to food, housing

and kits. What is more, hundreds of people are still waiting to receive the three months humanitarian assistance to which the state has to comply with under the 387 law.

Today, Cucuta has become one of the most violent cities in Colombia. Collective violence and organized crime left more than 1,300 people dead in 2002 (that is an average of 3.5 people per day). Cucuta's official homicide rate is calculated at 128 per 100,000 people, nearly as high as that of Medellin, Colombia's most violent city (184/100,000 people). The police estimate that approx 80% of homicides in Cucuta are linked to violent conflict and another 20% to delinquency. The trend has been followed during 2002 in San Cristobal, the Venezuelan frontier city just forty minutes from Cucuta.

Numerous reasons contribute to the sharp increase in violence. First, violence has been on the increase since the early 1990s when coca cultivation in the northern region of La Gaborra was introduced, subsequently, cultivation, production and illicit trade rose sharply. Second, as the capital of the Norte de Santander department and frontier city, Cucuta has developed dynamics in which drug trafficking, poverty, licit and illicit transborder trade activities, organized crime and common delinquency are thriving. Third, the escalation of war in the Catatumbo is having an impact on Cucuta. The paramilitaries are seeking to consolidate the entire region, including Cucuta. Conversely, to the guerrilla urban centers such as Cucuta constitute safe havens in which they can further develop counterattacks and mobilize combatants. Urban militias (Farc, Eln, and Epl) have a strong presence in poor shanties at the city's periphery. At the same time, paramilitary groups (bloques Cordoba, Uraba, Cesar) frequently patrol poor urban barrios and engage in social cleansing. There is a clear trend by the guerrilla to move away from rural to urban warfare, a new strategy which seeks to undermine Uribe's security measures. The recent bombing of a shopping center at the heart of Cucuta (on 6 March 2003), which according to local police officials was the work of the Eln, exemplifies the overall trend of an urbanization of war." (PCS, 17 March 2003)

Magdalena Medio and Bolívar

"Río Viejo: Displacement of 60 families, 30 of them from the Casa de Barro township and 30 other from the surroundings. The displacement was a consequence of the machine-gun and mortar attacks that the Marine Infantry carried out on September 21st. Civilians got hurt in the attacks." (UNCTC, 30 September 2003)

"A displacement of 130 persons has occurred in the Municipality of San Jacinto, Bolivar. Civilians had to flee due to military operations in the area and the arrest of many farmers, suspected to belong to illegal armed groups. The families have sought temporary shelter in a village church. According to a WFP Field officer who talked to the local priest, some people have been under arrest for six months without having been given proper judicial assistance. The Defensoría del Pueblo (Ombudsman's Office), UNHCR and the International Committee of the Red Cross have been alerted of the situation." (WFP, 30 September 2003)

"As of 15 October 2002, there have been 39,857 persons expelled from the region and 22,908 received within the region, with large net expulsions from Bolívar and César departments. The municipalities most impacted by displacement are San Pablo, Barrancabermeja and Santa Rosa." (GTD, 29 November 2002, Pilot MM)

"[...] Tras enfrentamientos en las estribaciones de la Sierra Nevada entre grupos armados al margen de la ley, a mediados del mes de enero [2002] más de 11 mil campesinos fueron desplazados hacia los corregimientos de Guachaca, Puerto Nuevo y El Calabazo de la ciudad de Santa Marta, en el departamento del Magdalena, en plena troncal del caribe." (RSS, 12 March 2002)

Displacements in Medio Atrato Chocó and Antioquia Departments (2003)

- 600 displaced families evacuated from the suburbs of Medellín and Bello (2003)

- 774 people displaced in Antioquia due to armed conflict in September 2003 between 3 paramilitary groups returned within one month
- 1,300 subsistence farmers displaced as a result of fighting between guerrilla and paramilitary groups took refuge in San Francisco Antioquia (2003)
- 15 families of the CAVIDA peace community in Cuenca del Cacarica fled the humanitarian zone "Esperanza en Dios" following false accusations by senior army official that they allegedly support guerrillas
- In January 2003 430 farmers fled the municipality of San Carlos following 17 massacres committed by FARC
- The area of the Rio Atrato is a strategic zone for the control of arms and drug trafficking since long contested
- 119 out of the 500 displaced who took refuge from the fight between FARC and paramilitary groups in a church, were killed by a hand-made explosive thrown by FARC
- 3.605 people fled to Quibdó capital of the department in (May 2002)
- 4,000 Afro-Colombian were displaced by paramilitary threats in Chocó on the 4 of June 2001 according to OHCHR
- Up to 17,000 people fled Medio Atrato in mass during the first 4 months of 1997 due to military and paramilitary counter-insurgency tactics

“(a) The municipal mayor of Sansón in the Department of Antioquia has alerted the WFP field office in Medellín of a possible massive displacement in the municipality. The Mayor confirmed to WFP that 225 families have already fled over the last two months and is calling for immediate, integrated assistance from humanitarian organizations.

(b) In the suburbs of Medellín and Bello, 600 displaced families were evacuated, now looking for places to live. The majority of the displaced are children and women. Local government authorities are clarifying their situation.

[...]

(d) The "Social Solidarity Network", government counterpart of WFP, reported more than 100 families (480 persons) displaced from the region of Medio Atrato (Chocó) over the last two months due to fighting between the Army and illegal armed groups.” (WFP, 10 October 2003)

“New displacements have been reported in the department of Choco where 200 persons were forced to leave farms and fishing villages due to clashes between government forces and illegal armed groups. The 45 families are temporarily sheltered in the Communal House of Bellavista, receiving food from the local municipality. Bellavista was the village where in May 2002 illegal armed groups killed 108 people--including 40 children -- hiding from armed confrontation in the village church. A Department level committee for displaced persons met on 30 October to prepare a contingency plan in view of the growing number of displaced due to violence.” (WFP, 4 November 2003)

“**San Roque:** Displacement of 774 persons, among them 160 minors and 60 elderly adults, that were displaced to the inner-city of this municipality. The displacement occurred as a consequence of combats between the two illegal armed groups. The clashes began on September 11th, and it was not until the end of the month that the population could return accompanied by several humanitarian agents. Although most of the population fled to San Roque’s inner-city a small number of persons displaced from San Roque to San Rafael.” (UNCTC, 30 September 2003)

[On the 3 January 2003]

“*En el sitio conocido como Bocas de Tamboral, en zona rural de Riosucio (Chocó), se presentó el desplazamiento de 300 campesinos que huyeron de los combates entre subversivos de las FARC y las autodefensas ilegales.* » (GOC, 14 August 2003)

«[...] el 20 de enero en el municipio de San Carlos (Antioquia), al menos 430 campesinos abandonaron sus casas y parcelas tras los homicidios de 17 labriegos por parte de guerrilleros de las FARC » (GOC, 23 July 2003)

« Durante los últimos 20 días, 15 familias de la Cuenca del Cacarica se han desplazado forzosamente de la Zona Humanitaria "Esperanza en Dios". Hoy, 12 de septiembre, a eso de las 6:30 de la mañana 60 adultos, 9 patriarcas y matriarcas y 90 niños iniciaron su desplazamiento forzoso de la Zona Humanitaria "Esperanza en Dios". » (Comisión Intereclesial de Justicia y Paz, 12 September 2003)

"Situación política de la región del Medio Atrato"

El municipio de Bojayá- Bellavista departamento de Chocó, y el municipio de Vigía del Fuerte, departamento de Antioquia, están divididos por el río Atrato e integran la región conocida como Medio Atrato; zona que cuenta con importantes recursos económicos y una estratégica ubicación geográfica ya que hace parte del la conexión interoceánica. El río Atrato es corredor de entrada y salida entre los departamentos de Chocó y Antioquia.

Esta zona ha estado en los últimos años sitiada por los grupos armados ilegales que transitan por el río Atrato y que se disputan la región para así controlar el transporte de armas y drogas, generando confrontación entre la guerrillas y las autodefensas ilegales. » (RSS, 30 May 2002).

“Heavy fighting between Colombian guerrillas and paramilitary groups has sent all of the area's rural population into the town of San Francisco. Some 1,300 persons, mostly subsistence farmers, have fled the countryside, doubling the town's population.” (UNHCR, 11 April 2003)

« Los hechos ocurridos

El 1 de mayo se iniciaron combates en Vigía del Fuerte entre paramilitares y la guerrilla de las FARC, concentrándose posteriormente en Bojayá- Bella Vista, razón por la cual cerca de 500 habitantes se refugiaron en la iglesia.

El 2 de mayo la población civil que se encontraba en la iglesia fue afectada por una pipeta de gas que la guerrilla de las FARC disparó, causando la muerte de 119 civiles entre ellos 45 niños, más de un centenar de heridos y el desplazamiento de cientos de familias de la zona hacia la capital del departamento, Quibdó. [...]

El censo de población desplazada realizado hasta el 22 de mayo indica que han llegado a Quibdó 3.605 personas desplazadas, sin embargo, este censo no es definitivo, ya que sigue llegando gente a declarar, con el apoyo de los Comités Comunitarios el proceso de registro arrojará datos consolidados la próxima semana.

El gran porcentaje de las familias que han llegado a Quibdó están alojadas en casas de familiares y amigos, y el 7.7% de población restante, en su mayoría procedente de Vigía del Fuerte y de Bellavista, está en dos albergues temporales adecuados por la RSS, el Instituto Colombiano de Bienestar Familiar -ICBF- y la Alcaldía Municipal..” (RSS, 30 May 2002).

“En este sentido, en su informe del año 1997 la Alta Comisionada manifestó: “Desde diciembre de 1996 se sucedieron varios desplazamientos masivos en el departamento de El Chocó debido a la presencia paramilitar en la zona del Bajo y Medio Atrato, a los combates entre guerrilla y paramilitares en enero de 1997 y a los bombardeos indiscriminados efectuados por el ejército en el marco de la "Operación Génesis" iniciada el 23 de febrero de 1997 a lo que se sumó el control del abastecimiento de alimentos y medicamentos por parte del ejército y los paramilitares como forma de combatir a la guerrilla. Como consecuencia de los hechos reseñados, entre 15.000 y 17.000 personas se vieron forzadas a salir de la zona, la mayor parte de las cuales en los primeros 4 meses del año.” Véase Informe de la Alta Comisionada de las Naciones Unidas para los Derechos Humanos, documento E/CN.4/1998/16, párrafo 103.

[...]

En su informe del año 2001, la Alta Comisionada mencionó: “Las FARC dieron muerte, entre otros, al alcalde de Juradó (Chocó) “(véase párrafo 139), así como destacó “el desplazamiento masivo de 4.000 afro colombianos del municipio de Pie de Pato (Chocó) el 4 de junio, por amenazas de grupos paramilitares.” Véase Informe de la Alta Comisionada de las Naciones Unidas para los Derechos Humanos, documento E/CN.4/2002/17, párrafo 303.” (OHCHR, 20 May 2002, footnote 4)

Displacements in Cundinamarca department (2003)

- The government agency in charge of IDPs assisted about 35 thousand IDPs in Bogotá between 1999 and 2002
- The NGO CODHES estimates the arrival of about 177,000 IDPs to Bogotá between 1999 and 2002
- CODHES estimates that 480,000 people displaced arrived in Bogotá since 1985, 500 people fled paramilitary attacks and threats from the Peasant Self-Defence Forces of Casanare (ACC) despite the unilateral cease-fire declared in November 2002
- After a generation of guerrilla control in the zone paramilitaries gave 3 days to alleged ‘guerrilla collaborators’ to ‘disappear’ or to become ‘military targets’
- Although the army deployed 400 men and claims the zone is calm, IDPs do not trust the army for its well-known collusion with paramilitary groups
- Officially 17,000 displaced are believed to live in the shanty town of Cazuca in Soacha municipality where the AUC is gradually taking control
- Government estimates that out of the 363,000 people living in Soacha only 17,751 or 5, 7 percent are displaced by conflict (2003)
- GOC estimates about 4 new IDPs arrive in Bogotá per hour, and 1000 monthly while NGOs estimate 6 daily and 4500 monthly
- 65% of IDPs arriving in Bogotá end up in Soacha slums
- Over 250,000 IDPs arrived in Altos de Cazuca since late 1980s

« De acuerdo con las cifras del sistema de informaci n de la Unidad de Atenci n Integral a la Poblaci n Desplazada -UAID- del Distrito Capital, que se fundamentan en los datos oficiales del Sistema Nacional de Registro de la Red de Solidaridad Social, entre mayo de 1999 y agosto de 2002, en Bogot  se ha orientado y atendido a 8.362 familias desplazadas, equivalentes a 35 mil personas aproximadamente [...].

No obstante, de acuerdo con los registros de la Consultor a para los Derechos Humanos y el Desplazamiento   CODHES   que datan de 1985, para esa fecha (agosto de 2002) ser an ya alrededor de 480.000 personas (es decir, el 23% del total de la poblaci n desplazada del pa s), las que habr an llegado a Bogot  huyendo del conflicto armado y de las diversas formas de violencia pol tica y social del territorio nacional.

Desde 1999 a septiembre de 2002, el CODHES ha contabilizado 177.000 personas. La enorme diferencia entre esta cifra y la de la UAID radica en que muchas personas desplazadas, por seguridad (y en menor proporci n por desinformaci n y por desconfianza), se notifican ante la Iglesia y ante la Conferencia Episcopal, y no ante la Red de Solidaridad Social. » (UNHCR, 1 July 2003, p.23)

“Some 2,500 have fled the fields to take refuge in the town of Viota after right-wing paramilitary fighters threatened to kill anyone who collaborated with the leftist rebels who have controlled the area for a generation.

During a swift expedition into the area, the right-wing militias hacked a peasant to death and kidnapped eight others, including a 14-year-old girl.

It all began before dawn Saturday, when many of the peasants were heading out to the fields. Three trucks loaded with about 30 men armed with rifles, wearing camouflage uniforms and the armband of the feared Peasant Self-Defense Forces of Casanare, or ACC, began to roam the villages of the region.

"To all the collaborators of the guerrillas, we give you three days beginning today to disappear from the zone, or you will be a military target," Ramiro Ramirez says he was told at gunpoint.

Ramirez, a short, stocky man of 44, believed the threat and fled to Viota with his wife, two daughters and dozens of neighbors.

The same scene was repeated in several villages.

[...]

"It was horrible to see Wilson that way," said a family member who was too scared to give his name. "His wife came to my house but she doesn't want to talk of the fear."

The army says it has deployed 400 soldiers to the area.

"This zone is calm; it's already occupied by troops," said Lt. Col. Rodrigo Gonzalez. He thinks the peasants who have fled their fields are being held hostage by rumors, since very few say they were actually approached by the ACC.

[...]

"This isn't just any zone," said political analyst Alejo Vargas. "It seems like an attempt to challenge the established order in a region that has an important political tradition for the communists and the FARC."

The ACC incursion is surprising not only because it occurred in a historically communist area, but because the ACC is one of three paramilitary organizations that declared a temporary end to hostilities late last year while its leaders try to negotiate a peace deal with the government.

Whatever prompted the incursion, the results are all too familiar. Hundreds of refugees crowded into Viota's church, sleeping outside in the town plaza, cooking over open fires on the street, in need of the most basic assistance just to survive. The International Committee of the Red Cross sent 10 tons of food to help the desperate villagers.

[...]

The army insists that troops have the region secured, but many here don't trust the military, which has often been accused of collaborating with the paramilitaries." (UNHCR, 5 April 2003)

IDPs in Bogotá

"Soacha, a grim marginal municipality bordering Bogotá to the south, is Colombia's major reception center for internally displaced people. Approximately 17,000 displaced people live there, according to the official register DANE, though local NGOs believe the figure may be higher. Like other large cities in the country previously relatively unscathed by decades of war, many of its poor neighborhoods (*barrios*) have become battlegrounds for irregular armed actors, in which the paramilitary group called AUC is gradually taking control. Impoverishment, a result of government neglect, has also made it a breeding ground for youth gangs." (PCS, 4 December 2003)

"In Soacha in Cundinamarca a census was carried out by the Government indicating that some 363,000 people live in Soacha, 17,751 (5.7 percent) of whom are displaced due to armed conflict. The large majority of them are "living in poverty and have difficulties to integrate into the country's socio-economic life." WFP is present in this area with several important activities for school, and pre-school children, nutritional recovery, mother and child projects, and others." (WFP, 19 September 2003)

“If the 2.7 million internally displaced people (IDPs) living in Colombia more than 400,000 are resident in Bogota. Colombia’s capital has always been and remains the highest receiver of IDPs. A startling number given the six million residents living in Bogota, indeed, the internally displaced population accounts for 6.7% of the capital’s total population [...]. Counting the number of IDPs is horrendously difficult, indeed, while the government says that approx four displaced people arrive in Bogota every hour NGOs insist that the number is closer to six. According to Codhes, a non-governmental organization (NGO) approx 4,500 people arrive in Bogota every month. Conversely, the Social Solidarity Network (RSS) [...], a government body responsible for dealing with displacement in the country estimates that this number is closer to 1,000 [...].

While in the past few years the majority of displaced settled in the urban barrios of Ciudad Bolivar, Kennedy, Bosa and Usme [...] located in the south of the city, the reduction of physical space in many of Bogotá’s urban centers has meant that today most displaced settle for the neighboring municipality of Soacha, bordering Bogotá’s urban slums south of Ciudad Bolivar [7]. Here, most people move into marginal areas such as the sprawling Cazuca neighborhood where it is said that 7,000 displaced families [8] are spread over numerous hillsides with their simple shanties of scrap lumber and recycled metal. In Soacha an overwhelming majority of the population are IDPs (Codhes) [...].

[Footnote 7: According to the NGO Fedes, approx 65% of IDPs arriving in Bogota eventually end up in Soacha, specially the barrios of Altos de Cazuca.]

[Footnote 8: According to the Colombian ombudsman 7,000 displaced families arrived since 1999. However, the barrios of Altos de Cazuca received more than 250,000 displaced people since the late 1980s.]” (PCS, 31 December 2002)

Department of Tolima

[On the 18 August 2003]

“Al municipio del Líbano (Tolima), llegaron cerca de 400 personas provenientes del corregimiento de Santa Teresa. El desplazamiento se produjo a raíz de los enfrentamientos que sostienen los grupos armados ilegales. » (GOC, 14 August 2003)

Displacements in the South-Western departments of Putumayo, Nariño and Valle del Cauca (2003)

- Putumayo is the department concentrating highest number of people displaced by fumigations, with la Hormiga municipality registering the highest rate of reception and expulsion
- In Nariño municipalities most affected by displacement are those where conflicts over territories intensified due to the expansion of coca cultivation
- RSS registered 20,000 IDPs in Cauca about 13,000 of whom are living in Popayán (June 2003)
- In Buenaventura 400 displaced by armed clashes between FARC and paramilitaries in August 2003 and 20 families displaced due to Colombian Air Force bombings and
- Most people displaced by fumigations are not recognized nor registered in official sources
- Most IDPs of Putumayo take refuge in Mocoa town which hosts about 13,000 IDPs
- 2836 people were displaced between July and September 2002 as a result of fumigations according to SISDES

« *El principal municipio receptor del departamento es Mocoa, que, de acuerdo con las cifras de la Federación de Asociaciones de Desplazados del Putumayo, concentra aproximadamente el 60% de la población desplazada..*

[...]

Durante el primer semestre del año 2003 se observa la misma tendencia en el departamento de Putumayo, es decir, la correlación de la tasa de recepción de población en situación de desplazamiento con el número de hectáreas fumigadas. El principal cambio registrado fue el incremento del desplazamiento en el municipio de la Hormiga, que presentó las tasas más altas de expulsión y recepción y en donde la mayoría de la zona rural ha sido fumigada indiscriminadamente durante este año. En el departamento de Nariño se observa un cambio fundamental y es la correlación significativa en casi todos los municipios (excepto Roberto Payán y Tumaco) del número de hectáreas fumigadas con las tasas de recepción y expulsión de población en situación de desplazamiento. Los municipios más críticos este año que muestran la confluencia de estas tres variables son El Tablón, Barbacoas, Santa Cruz y Samaniego, es decir, zonas donde se ha intensificado el conflicto por disputa territorial, hacia donde se han trasladado los cultivos desde el Putumayo y en donde la presencia de instituciones civiles del Estado es precaria. También son municipios en donde se han incrementado las agresiones y presiones por parte de actores armados irregulares hacia la población civil.” (CODHES, 29 October 2003, pp.26,27,30,)

Cauca

“Popayán was recently designated as the municipality with the greatest number of displaced persons in Cauca province. The latest statistics provided by the Social Solidarity Network or SSN (a government entity charged with assistance to IDP’s) registered 20,000 IDPs in Cauca; approximately 13,000 are living in Popayán.” (IOM, 17 June 2003)

“VALLE DEL CAUCA

Population affected by the humanitarian crisis Buenaventura: The Interdenominational Commission for Justice and Peace reported temporary displacements of population due to bombings inflicted on August 25th by the Colombian Air Force in the headwaters of the Cajambre River. According to local population, 20 families have been displaced to the lower lands of the area (Las Bocanas).

[...]

Actions

Buenaventura: The regional Ombudsman of Valle participated in a humanitarian mission to El Pital, Barranco, Veneral and Puerto Merizalde townships. The mission confirmed the displacement of approximately 400 persons affected by the clashes between armed groups. The Buenaventura Local Ombudsman Office, the Office of the Peace administrator, the RSS and the Office of the Mayor of Buenaventura were also part of the mission.” (UNCTC, 30 September 2003)

“From January to the end of August 2003, this department has received a displaced population flow of approximately 140 families per month. This figure is lower than statistics for that same period the previous year (220 families). According to the SSN figures, as of August 21st, the municipality with the largest numbers of displaced people are: Mocoa, Puerto Asís, and Villagarzón, accounting for 73% of the total displaced population; followed by Orito, Puerto Leguizamo and Sibundoy, with 16%. The main expelling municipalities are: Valle de Guamuéz, Puerto Asís, Orito, Puerto Guzmán, San Miguel, and Puerto Caicedo.” (UNCTC, 30 August 2003)

“[...] el 6 de febrero en la Hormiga (Putumayo), cerca de 390 campesinos se desplazaron debido a los enfrentamientos entre subversivos de las FARC y miembros de las autodefensas » (GOC, 23 July 2003)

« Si bien la existencia del fenómeno del destierro o desplazamiento forzado se remonta a la década de los ochenta en el departamento de Putumayo, adquiere progresiva relevancia social durante los últimos años fundamentalmente debido a la intensificación del conflicto armado en el sur del país, la creciente presión que ejercen los actores armados sobre la población civil y el incremento de los operativos de fumigación aérea (cuyas víctimas no son reconocidas como personas desplazadas forzosamente) [1] .

[Footnote 1 : Según las organizaciones sociales del Putumayo, que las fumigaciones también han sido una causa del desplazamiento lo expresa el seguimiento que se hizo a las familias firmantes de los pactos de erradicación voluntaria: en promedio, 600 familias han salido de las veredas, es decir, en promedio una familia por vereda (aproximadamente 50 mil personas).]

En efecto, según el registro oficial de la Red de Solidaridad Social, la evolución del número de personas desterradas sigue el siguiente derrotero. Mientras durante los años 1998 y 1999, fueron desplazadas 14 familias conformadas por 39 personas, en 2000 se produjeron desplazamientos masivos de 735 familias, que ocurrieron principalmente durante el desarrollo del paro armado impulsado por las FARC, y desplazamientos individuales de 374 familias. Durante 2001, el número total de familias desplazadas se incrementa, respecto a 2000, en más de la cuarta parte (28,76%): 389 familias se desplazaron en éxodos y 1.039 familias en forma aislada. Hasta noviembre de 2002, el incremento del número de familias desplazadas supera las cuatro quintas partes (82,77%): 108 familias se desplazaron en éxodos y 2.052 familias en forma aislada.

[...]

El análisis de la dinámica del desplazamiento forzado en Putumayo permite señalar provisionalmente: Los sectores de la población más afectados por el desplazamiento forzado son campesinos, indígenas, docentes(2), líderes comunales, inspectores de policía, en algunos casos promotores de salud y miembros de las iglesias cristianas y evangélicas; en segundo lugar, es llamativo que los periodos más críticos de desplazamientos, durante 2002, coincidieron con los momentos previos y posteriores a las jornadas electorales de marzo y mayo; y por último, existe una tendencia entre la población desplazada de asentarse en Mocoa porque es la ciudad del departamento que más expectativas de trabajo y seguridad ofrece, según las mismas personas desplazadas, y porque además ofrece a las víctimas menos dificultad para acceder a la reclamación de sus derechos, pues allí funcionan la administración departamental y algunas entidades encargadas de velar por la protección de los derechos humanos.

De otra parte, las familias desplazadas deben hacer frente a múltiples dificultades para garantizar las mínimas condiciones de vida posibles (educación, empleo, vivienda, servicios públicos, salud y documentación, entre otras), en un contexto en el que los actores armados cada vez más logran mayor presencia en los cascos urbanos y en el que la población y las instituciones básicas de los lugares en que se asientan las familias desplazadas abierta y veladamente las discriminan (especialmente ocurre con las niñas y los niños en las escuelas a las que asisten). A esto se suma que a nivel departamental, es claro que todos los alcaldes están desentendidos de las personas que salieron de sus municipios y de aquellas que han arribado como desplazadas, de modo que en los presupuestos de 2003 no están previstos recursos para atender a las personas desplazadas. Es el caso de Mocoa que tiene más de 13 mil personas desplazadas.

[...]

"En mayor medida que en Caquetá, el departamento ha sufrido un incremento en su desplazamiento debido al combate entre paramilitares y guerrilla, así como entre las fuerzas armadas y la guerrilla, además de fumigaciones a gran escala en la región. En varios municipios de Bajo Putumayo se cree que los paramilitares tienen poder sobre las capitales municipales y que la guerrilla domina las áreas rurales. Este fenómeno, combinado con la incidencia de desplazamientos relacionados con fumigaciones, los cuales no se incorporan a los registros oficiales, hace que el desplazamiento en el departamento sea difícil de cuantificar o rastrear". Organización Internacional de Migraciones – OIM » (Actualidad Colombiana, 12 March 2003)

« Paralelo a esta dinámica, el gobierno ecuatoriano manifestó su disposición de revisar su política migratoria respecto de Colombia. Preocupan las declaraciones de los solicitantes de refugio relacionadas con las fumigaciones como uno de los motivos de desplazamiento. En el Putumayo de acuerdo con los datos suministrados por SISDES, durante el trimestre julio-septiembre, fueron desplazadas 2836 personas. » (CODHES, 18 November 2002)

Displacements in the 'zone of consolidation and rehabilitation' in Arauca (2003)

- In May 2003 about 327 Guahibo indigenous people fled the reserve of Betoyes to Saravena following gross massacres and rapes in their community

- FARC and ELN were present since years in Arauca and while AUC established a presence since 2001 and the Armed Forces deployed in Arauca were not able to contravene AUC's expansion
- Coca cultivation has increased during the last couple of years reaching 8000 hectares
- Violence has considerably intensified in the area since 2001 with an increased of forced disappearances and selective killings
- Main targets of violence who were forced to flee were mayors, ombudsmen, politicians, human rights defenders and journalists, who as a result were prevented from doing their work by illegal armed groups as well as from the Armed Forces

“La Oficina en Colombia del Alto Comisionado de las Naciones Unidas para los Derechos Humanos ha realizado varias misiones de observación al departamento de Arauca, la última de ellas del 22 al 24 de enero de este año. En las misiones, la Oficina se ha entrevistado con autoridades civiles y militares de la región, con representantes de la Iglesia, con representantes de organizaciones sociales y con varios sectores de la población civil.

Durante estas misiones, la Oficina ha podido observar la disputa territorial existente entre los paramilitares de las AUC -Bloque Vencedores de Arauca-y las FARC-EP -frentes 10 y 45- y el ELN -Frente Domingo Lain-.

El ELN y las FARC-EP han tenido presencia en Arauca desde hace varios años. La presencia de las AUC comenzó en el sur del departamento aproximadamente en agosto del año 2001. Ha llamado la atención que a pesar del despliegue de la Fuerza Pública no se haya podido contrarrestar la expansión de las AUC, con lo cual se ha complicado la situación de Arauca.

Es de notar también que durante los últimos años han crecido los cultivos ilícitos de coca en el departamento, llegando a tener una extensión de por los menos 8000 hectáreas. Por la intensidad de la violencia en los últimos dos años (2001-2002) se ha registrado un deterioro dramático de la vida de los pobladores de Arauca, que se refleja en el aumento de desapariciones forzadas y de homicidios selectivos, especialmente en los municipios de Arauca y Tame.

[...]

Los homicidios selectivos, los atentados, los secuestros y las múltiples amenazas por parte de las AUC, las FARC-EP y el ELN contra alcaldes, diputados, concejales y personeros han limitado significativamente la posibilidad de que cumplan con su respectiva labor. Al mismo tiempo, el uso de esos métodos contra defensores de derechos humanos y contra periodistas ha restringido la libertad de expresión y opinión, provocando autocensura, silenciamiento y desplazamiento forzado de muchas de estas personas. También hay informaciones creíbles que dan cuenta de una presión indebida sobre los periodistas, y de medidas de control sobre la información, que ha estado ejerciendo la Fuerza Pública en Arauca.

El establecimiento de la Zona de Consolidación y Rehabilitación en el mes de septiembre de 2002 ha llevado a que se dé una mayor presencia militar en los municipios de Arauca, Arauquita y Saravena, hasta el momento con efectos variados. » (UNHCHR, 2 February 2003)

“The turmoil that rural communities in Tame and elsewhere in Arauca experience is exemplified by an incident at the indigenous reserve of Betoyes, composed of a number of small hamlets near Tame. In early May this year, an armed group attacked the indigenous Guahibo community at Betoyes. Three Guahibo girls, ages 11, 12, and 15, were raped by the assailants. A pregnant 16-year-old, Omaira Fernández, was also raped, and then the attackers reportedly cut her womb open to pull out the fetus, which they hacked apart with machetes, before dumping her body and the fetus in a river. That same day, three indigenous men were shot and disappeared. Some 327 of the remaining Guahibos fled the reserve for Saravena, a town in the northwest corner of the Arauca department. Once there, the Guahibos took up residence in an abandoned school, protesting their displacement by occupying a church.

Who attacked, raped, murdered, and displaced these Guahibos? Almost all accounts point toward soldiers from the 18th Brigade's Navos Pardo Battalion -- the same group providing security to Tame's town center - - perhaps working in conjunction with the paramilitaries.” (Colombian Journal, 4 August 2003)

Displacements in the former demilitarized region Meta and Caquetá (2003)

- 1,000 people displaced by worsening conflict between illegal armed groups in the department of Guaviare
- 80 families displaced in Meta in August 2003
- FARC warned civilians of the former demilitarized zone that if they stayed and were not killed by the army or paramilitaries they would be considered as enemies and military targets
- Extent of displacement is impossible to gauge but took place towards capitals of Caquetá, Huila, Meta and Nariño
- Defensoria del Pueblo recorded 454 people displaced to San Vicente del Caguan by October 2002
- Most displaced from the former demilitarized zone refuse to register as IDP as they are stigmatized as guerrilla sympathizers, persecuted and harassed by security forces
- Humanitarian assistance to San Vicente's uprooted is near to nil as a result of under registration and serious lack of state presence in the zone
- Human Rights defenders and Priests in the former 'demilitarized' zone have requested to be escorted by international observers as they are the targets of attacks for being stigmatized as guerrilla sympathizers
- 700 people fled the town of La Uribe towards rural areas

Guaviare department

“**San José del Guaviare:** Massive displacement of 1.000 persons. The habitants of neighbouring villages to the capital had to flee as a consequence of the worsening conflict between illegal armed groups.” (UNCTC, 30 September 2003)

Meta department

« *El pasado viernes 1 de agosto, en desarrollo de la guerra implementada a través de la política de Seguridad "Democrática" en las zonas altas se produjeron bombardeos, horas después ametrallamientos indiscriminados que generaron el desplazamiento de más 80 familias de los pobladores del municipio de El Castillo, departamento del Meta, de los poblados "20 de julio", "La Esperanza". La primera huida forzosa se produjo en razón de las operaciones oficiales.* » (Comisión Intereclesial de Justicia y Paz, 4 August 2003)

“In August [2003] there was a marked increase in confrontations between armed groups which worsened the humanitarian crisis in the region. Puerto Lopez was the most affected municipality receiving a constant flow of displaced individuals.” (UNCTC, 30 August 2003)

“The FARC are now challenging army control of the former DMZ partly by waging a war against those it perceives as collaborating with its enemies. This has involved the violation of IHL, including the killing of civilians; threats against members of the community, many of which have been displaced; forced recruitment, including of minors; and cruel, inhuman and degrading treatment. However, the scale of the problem is probably more serious than the evidence would suggest, since many members of the community are too afraid to denounce the guerrilla to the authorities, such as the *Defensoría del Pueblo* and *Personería*, for fear of retaliation.

[...]

The FARC warned the civilian members - who were ordinary members of the community - that if they stayed and were not killed by the security forces or the paramilitaries, then they would assume that they were collaborating with them. They would therefore become "legitimate military targets". Most have been threatened and have left the area. Many have left for Bogotá where, because they have been labelled as guerrilla sympathizers, are constantly harassed and threatened. For the same reason, the authorities are reluctant to provide the help they are entitled to as displaced persons.

[...]

There have been some displacements since the breakdown of the peace talks but exact figures are difficult to obtain. Most displacement has taken place towards bordering areas and in particular towards the capitals of the departments of Caquetá, Huila, Meta and Nariño. Since Caquetá and Meta departments are not currently in dispute between the armed sectors to the same degree as other regions, such as Antioquia and Bolívar, the level of displacement of the civilian population is not as severe. However, the number of displaced persons is likely to increase if the former DMZ becomes, as many fear, the focus of a power struggle between the FARC and the security forces and their paramilitary allies.

In the immediate aftermath of the bombing campaign, the *Red de Solidaridad*, Solidarity Network, the main state body responsible for the welfare of displaced persons, estimated that 130 people were displaced to San Vicente, although this figure has fallen since then. According to the *Defensoría del Pueblo*, a total of 454 individuals have so far been displaced to San Vicente, some as a result of threats to their lives and others because they were ordered to do so by the guerrilla. This figure is most likely a significant underestimate, since the stigma attached to being a displaced person, especially one from the former DMZ, has dissuaded many from registering. Many more would also like to leave the area but are too scared to travel by road and lack the resources to travel by air. There have also been reports of intra-rural displacement within the municipality of San Vicente del Caguán.

However, the presence of the *Red de Solidaridad* in San Vicente has been patchy - visiting every two weeks - and it has been unable to offer any real assistance to those in need. People who have succeeded in relocating to the cities, especially Bogotá, have not fared any better. State assistance has been scarce, while they continually suffer harassment due to the perception, common among public officials and the population as a whole, that they are guerrilla sympathizers. In Bogotá many displaced persons from San Vicente have allegedly been followed and interrogated by the security forces. Some have become so desperate that they are even willing to collaborate with the military in return for assistance. As stated earlier, the civilian members of the Civic Police have been particularly vulnerable in this respect. It is thought that there are between 16 and 20 members of the Civic Police living in Bogotá. Many of the civilians displaced from San Vicente to Bogotá have also refused to register for fear of being classified as guerrilla." (AI, 16 October 2002)

"El Huila comenzó a recibir a decenas de familias provenientes de la extinta zona de distensión y de localidades vecinas, quienes huyen de un posible enfrentamiento entre ejército y guerrilla." (CODHES, 11 March 2002)

"Según la organización Benposta, el departamento presenta una situación crítica por el desplazamiento de varias personas que están camino a Villavicencio y vienen del Caquetá, ya que tendrían que pasar por Granada, municipio bajo control paramilitar. Hay un bloqueo del Ejército en el Ariari que no se levantó con el rompimiento de los diálogos. Enfrentamientos entre Ejército y FARC en Vistahermosa. Hay dos regiones en riesgo de desplazamiento por ser estigmatizadas como colaboradoras de la guerrilla: el Nhora (a donde antes de romperse los diálogos llegaban entre 20 y 30 familias 'gota a gota') y La Reliquia. En este último municipio hay una lista de 12 personas que impusieron acción de tutela para no ser desplazados nuevamente. Los sacerdotes de la zona de distensión están pidiendo acompañamiento de una misión internacional."

Pastoral Social de Villavicencio coordinó un plan de contingencia para cubrir la seguridad y acogida de 5.000 personas que podían llegar desplazadas. La situación más crítica la registran Mesetas, La Uribe y Vistahermosa. Del comité Cívico en Villavicencio sólo queda una persona y los personeros tienen temor

porque están estigmatizados como colaboradores de la guerrilla, por lo cual enviaron memorando al gobierno y a la opinión pública pidiendo acompañamiento de una misión de observación internacional." (Defensoría del Pueblo, Oficina desplazados in CODHES 11 March 2002)

"At present [March 2002] the ICRC does not anticipate movements of tens of thousands of civilians from the 42,000 square-kilometer zone towards neighboring areas. However, it anticipates movements of civilians in search of safer areas within the former zone, mainly from rural areas towards the five towns. Some 120,000 persons are estimated to be living in the former zone.

Five ICRC teams have been deployed to the area in order to closely monitor the situation, as well as to build up stocks and to organize the distribution of humanitarian assistance should the need arise. About 700 people have left the town of La Uribe towards rural areas. In San Vicente, the ICRC-CRC team provided food assistance for 172 internally displaced people who had arrived from rural areas." (ICRC, 1 March 2002)

"Hasta febrero 23 se reportaban 124 personas desplazadas en San Vicente del Caguán, al 25 se reportaron 150 y al 27 de febrero se reportan 154 personas. [...] Otros municipios receptores son Florencia, Neiva y Villavicencio". (CODHES 11 March 2002)

"Los bombardeos emprendidos por el ejército en la antigua zona de distensión del Caguán, provocaron inquietud en la población civil y podrían generar un éxodo masivo de campesinos. "La aviación militar está atacando todo lo que se mueva en los campos" dijo una mujer que llegó con sus tres hijos menores al casco urbano de San Vicente.

Muchos habitantes del casco urbano de San Vicente han intentado salir de la localidad con destino a las cercanas ciudades de florencia y Neiva, y hacia Bogotá." (CODHES 11 March 2002)

"La Red está prestando asistencia humanitaria a las 1390 personas que se han desplazado en 4 departamentos (Caquetá, Cundinamarca, Valle y Guaviare). En Cundinamarca a 150 personas en Utica, la Palma con 140 personas y el Peñón con 250 personas (el CICR continúa entregando ayuda humanitaria y se prepara intervención en sanamiento básico cofinanciada por la red.). En Dagua, departamento del Valle se tiene reporte de 285 personas desplazadas, 20 de ellas se alojaron en la casa cural, el resto en casa de familiares y amigos. En Guaviare hay 85 personas desplazadas, 77 en Boca de la Fuga, 5 en Mapiripán y 3 en la vereda Remolinos. Se han entregado alimentos, kits de cocina, vajilla, leche y bienestarina." (RSS, 25 February 2002)

Overview of the extent of displacement (2003)

- Displacement still affected 904 municipalities in 2003 up from 480 in 2000
- In 2002 Santa Marta in Department of Magdalena was the principal expulsor with 17,505 IDPs followed by Ibagué (Tolima), Valledupar (Cesar), Convención (Norte de Santander) and Agua de Dios (Cundinamarca)
- Main departments receptors of displaced people were: Antioquia, Bolívar, Meta, Caquetá, Putumayo, Huila, Tolima and Cundinamarca in 2002
- 586 municipalities were affected by forced displacement during 2001
- 64 municipalities were expulsing people at a rate of 188 people per day mainly in departments of Antioquia, Bolívar, Cauca, Valle del Cauca and Chocó during 2001
- During 2000, 480 municipalities were affected by forced displacement, where 158 municipalities expelled people, 158 municipalities received IDPs, and 164 municipalities experienced both

“La población fue expulsada de 904 municipios, de los cuales el 91% corresponde a zonas rurales y pequeños municipios, mientras que el 9% restante corresponde a personas expulsadas de capitales de departamentos.” (CODHES, 10 December 2003)

« Respecto a la distribución geográfica del desplazamiento forzado, en 2002, 890 municipios fueron afectados, es decir, 71 más que en 2001 y 410 más que en 2000. Estas cifras indican entonces que no sólo el número de desplazados aumenta sino que también es mayor el conjunto de poblaciones afectadas, doblando lo que se presentó en el año 2000.

[...]

Siguiendo con la distribución, Santa Marta (Magdalena) fue el principal municipio expulsor con 17.505 personas, alrededor de 61.406 hogares; le siguen Ibagué (Tolima) con 8.133; Valledupar (Cesar) con 5.994; Convención (Norte de Santander) con 5.412 y Agua de Dios (Cundinamarca) con 5.167 personas desplazadas.

Por otra parte, Bogotá sigue siendo el municipio que recibe la mayor cantidad de personas desplazadas (44.454), le siguen Santa Marta (17.157), Valledupar (10.613), Cali (9.445) y Convención (6.922). » (GOC, 23 July 2003)

« Los departamentos de Antioquia, Bolívar, Meta, Caquetá, Putumayo, Huila, Tolima y Cundinamarca, registraron los mayores centros de llegada de población desplazada en este trimestre, en procesos migratorios unifamiliares e individuales que se asentaron en ciudades capitales e intermedias cuyo crecimiento sigue siendo caótico.» (CODHES, 18 November 2002)

“8. Forced displacement was concentrated in 20 of the country’s micro-regions which expelled 69 per cent of the population in 2001.[2] The same micro-regions received 59 per cent of the persons displaced.[3]

[...]

[Footnote 2: Information provided by the Joint Technical Unit (JTU). According to SSN, seven municipalities expelled 25 per cent of the population displaced in 2001: Fundación, Magdalena (8.23 per cent), Buenos Aires, Cauca (3.71 per cent), Buritica, Antioquia (2.96 per cent), Peque, Antioquia (2.76 per cent), Buenaventura, Valle del Cauca (2.75 per cent), Barrancabermeja, Santander (2.18 per cent) and San Luís, Antioquia (2.08 per cent).]

[Footnote 3: According to SSN, 32 per cent of the population displaced during 2002 moved to seven municipalities: Bogotá, D.C. (11.29 per cent), Fundación, Magdalena (6.59 per cent), Medellín, Antioquia (3.78 per cent), Cesar, Valledupar (2.9 per cent), Buritica, Antioquia (2.8 per cent), Cartagena, Bolívar (2.67 per cent) and Peque, Antioquia (2.38 per cent).” (GTD, 29 November 2002, p5)

“Codhes reporta 586 municipios receptores de población en situación de desplazamiento en 2001 [...]

Los siete principales departamentos receptores de población desplazada según cantidad de personas son los siguientes: ANTIOQUIA 55,921 16.3%, CAUCA 31,392 9.1 %, BOLÍVAR 23,334 6.8%, NARIÑO 19,176 5.6%, CESAR 17,908 5.2%, MAGDALENA 16,196 4.7%, VALLE DEL CAUCA 16,829 4.9%. TOTAL DEPTOS 18,0756 52.6%, PORCENTAJE DEL ESTIMADO GLOBAL 341.925 100%. » (CODHES, 15 February 2002, Boletín 40)

“En términos territoriales, durante el año 2000, 322 municipios expulsaron población y 322 municipios fueron lugares de llegada. En total hubo 480 municipios afectados por el desplazamiento, de los cuales 158 son sólo de expulsión, 158 son sólo de llegada y 164 presentan la doble condición. Además, en 159 municipios se ha presentado más de un evento de desplazamiento al año.” (RSS 2001)

“In the Group’s view, the five departments that require top priority attention are: Antioquia, Chocó, Bolívar, Santander and Putumayo. Also of great concern is the situation of displaced persons in Sucre, Cesar, Norte de Santander, Valle, Cauca, Nariño and Caqueta.” (Theme Group on Displacement (TGD) 19 January 2001)

"The alert extends to departments such as Cauca (which has a dynamic of confrontation and violence which convert the region into an area of the expansion of the armed conflict), Meta (epicentre of disputes of hegemonies and control of strategic territories such as the demilitarised zone) and the areas bordering Chocó and Antioquia with the Coffee Belt (towards which armed actions seeking to take over territories and impose hegemonies are being directed)

The three departments which receive the most displaced are now sadly traditional receptor sites: Antioquia, Bolívar and Valle de Cauca." (CODHES September 2000)

Disaggregated data

40% of all registered IDP families are headed by a woman according to the government (2003)

- The proportion of IDP households headed by a woman has substantially increased from 37, 5% in 2000 and 44, 7% in 2002, with the highest percentage in Antioquia
- Women and children account for 73% of the displaced population
- UNICEF and CODHES estimate that 1,750,000 children have been displaced since 1985
- In Soacha slum, 53% of the IDPs are under 14 years old and 12% are aged between 15 and 19 years old
- 48% of the displaced people are 18 years old or less
- As a result of the war one out of three families are headed by women, most of them widowed
- In the hard life of Bogotá slums 40% of the women head of household had fled with their children following the violent death of their husbands
- Women represent between 49 and 58 per cent of the total displaced population, and up to 80 percent of the displaced found in urban areas
- Displaced children are often stigmatized in school and their integration into the host communities is often difficult
- 86% of all IDP households include one or more children

"According to existing research for 2000, approximately 46 percent of displaced people come from homes consisting of a mother, father and children. Nearly 25 percent of displaced households in Colombia do not have the husband present, of which almost 70 percent have a female as head. There are also cases in which the household consists of relatives outside of the nuclear family, which make up 7.33 percent of all households, homes with relatives but no husband (13.8 percent), single-person homes (2.43 percent), and other types of households (0.93 percent). [...]

[...]
The SUR registry includes 211,701 households displaced between 1995 and December 15, 2002. Of these, women headed 84,726 homes, representing 40 percent of all registered households. This shows that, while in Colombia as a whole 24 percent of households have female heads, this proportion doubles among families that have been displaced. It is important to reiterate that the proportion of displaced households with female heads has increased substantially. In 2000 a woman headed 37.5 percent of displaced households. In 2001, this percentage rose to 42.44 percent and by December 15, 2002, women headed 44.7 percent of displaced homes.

More female-headed families have been displaced in Antioquia than any other department with 15,956 such households since 1995, which represents 18.83 percent of all displaced homes with women as heads of

families. Bolívar comes in second place with 10,101 homes (11.92 percent), followed by Sucre with 5,510 (6.5 percent), Magdalena (5,258 households), César (4,839), Putumayo (4,735) and Caquetá (3,952).

The departments that received the highest numbers of displaced families headed by women between 1995 and December 15, 2002, are Antioquía (13,153 households), Sucre (8,151), Bolívar (6,852), Atlántico (5,117), Valle del Cauca (4,584) and Bogotá (4,303)." (Colombia Journal, 23 June 2003)

"According to a UNICEF and CODHES report, during the last 17 years (1958-2003), about 1,750,000 children and teenagers have been displaced in Colombia. The report points out that the State has not offered the necessary assistance to this population: only 4 in 10 children and teenagers have attended school and less than one third has received medical care. Additionally on the minors live in overcrowding.

On a national level, 36% of the heads of households are women, while among the displaced population this percentage reaches 50%. A study conducted in Soacha (Cundinamarca), found that 53% of the total displaced population is comprised by children under 14 years of age and that 12% is aged 15 to 19 years." (UNCTC, 30 September 2003)

"9. According to official sources, women and children account for 73 per cent of the displaced population, while 48 per cent are 18 year-old (or less) young persons. Women heads of household — widows or single women — vary from 25 per cent in rural areas to 49 per cent in urban areas." (GTD, 29 November 2002, p6)

"According to the People's Advocate (Defensoría del Pueblo) approximately 1.100.000 children have been displaced as a consequence of the armed conflict during the last five years. The Social Solidarity Network (RSS) estimates that 93.012 children below the age of 18 were displaced in 2001. These children made up 48.84% of the total displaced population." (La Defensoría del Pueblo, March 2002)

"It is estimated that one in three families are female-headed households; many female heads of household are widows from rural areas who flee to the cities and have to face the harsh urban reality. Individual displacement is often invisible as they do not register and slip into the cities in the hope that it will provide them and their families with some protection. A study made on the displaced population in Bogotá found that 40 per cent of the women who were heads of households were widows who had fled with their children after their husbands died violently while 18 per cent had been abandoned after arriving in the city. Women that are separated by their displacement -either individually or with their family - are far more vulnerable than those who flee in the midst of a large and relatively organized group (such as in certain regions of the Middle Magdalena and Uraba)." (UN HCHR 11 March 2002)

"Estimates concerning the proportion of displaced women in Colombia range somewhere between 49 and 58 per cent of the total displaced population. Displaced women and children together account for 74 per cent of displaced Colombians who need special assistance. The figure can reach 80 per cent when the displaced population found in large urban areas is included." (UN HCHR, 11 March 2002)

"Of the 60,623 displaced persons registered in the Information System on Population Displaced through Violence in Colombia (RUT) by the National Social Pastoral Secretariat, 29,683 are women -24,392 of them of mixed race, 4,666 Afro-Colombians and 635 indigenous; 51.59 per cent are children - 16,257 boys (52%) and 15,015 girls (48%). There are however, several problems with the figures: they are cumulative figures, hindering any possibility of estimating cases in which persons have been displaced more than once (displacement/return/displacement processes are frequent among displaced persons who arrive finally in large cities); there is no information available regarding those who return spontaneously or were relocated. And even if the information gathered is differentiated at the source, this information is not processed to show the different impact of displacement on men and women. Furthermore, women displaced alone or who are heads of households are under registered because they fear informing the authorities." (UN CHR 11 March 2002)

"[...]The Advisory Office for Human Rights and Displacement (CODHES) reported that between January and June, minors accounted for 54.34 per cent of the internally displaced population. The Office can attest that most of them have little chance to exercise their rights to health, food, education, housing, identity before the law and so forth. It has again observed how social cleansing by members of the security forces continues to affect minors." (UN HCHR 8 February 2001, chapter V, para. 78)

"En Colombia han sido desplazados por la fuerza entre 1985 y 1999 alrededor de 392.000 hogares que integran una población aproximada de 1.900.000 personas, de las cuales 1.100.000 corresponde a menores de edad. Por los menos 450.000 niños, niñas y adolescentes vivieron el desarraigo y la violencia entre 1985 y 1994 mientras que más de 650.000 enfrentan esta situación desde 1995. En 1998 del total estimado de población desplazada (308.000), 172.480 corresponde a menores de 18 años. Para 1999 el desplazamiento forzado afectó a 272.000 personas, de las cuales cerca de 176.800 fueron niños, niñas y jóvenes menores de edad.

[...]El 86% del total de hogares en situación de desplazamiento forzado incluye niños, niñas y adolescentes menores de 18 años." (CODHES 26 January 2000)

"Typically, a woman decides to flee her home after a husband, brother, father or son has been kidnapped or murdered. Traumatized and terrorized, she will leave as quickly as possible--often within hours--for a hastily chosen destination. Upon arrival in that destination, she will be lucky to count on the help of a friend or relative for immediate, temporary shelter, whether it is a corner of a shack in an outlying barrio or a covered corridor in a downtown building. Just as likely, she will find no support whatsoever and will have to scramble to find a foothold in the barrios or at the edges of smaller towns.

[...]

In scores of interviews with displaced women, the Commission heard the same themes repeated: women were forced to leave their homes under threat of violence and death; they lost husbands, brothers, fathers in massacres, assassinations, disappearances; they took their children and fled for the safest place they could find, most often cities, where they could hide among the large populations." (Women's Commission May 1999, pp. 4-5)

Indigenous people and Afro-Colombians are the groups most affected by displacement (2003)

- About 2.831 indigenous people and 40.512 Afro-Colombian people were displaced in 2003
- Approximately one-fourth of displaced persons are indigenous people or Afro-Colombians despite the fact that these groups constitute only 11 percent of the Colombian population
- Virtually all of the 84 indigenous Colombian groups have been displaced, 13,000 fled during 2001-2002 and 3,000 during the first half of 2003
- The expulsion rate of Afro-Colombian communities is 20% higher than the national rate
- Chocó department where Afro-Colombians make up 73% of the population recorded the highest expulsion and arrival rate in the whole Country 4.498/100.000 inhabitants and 3.678/100,000 inhabitants respectively
- 12,649 indigenous people were forced to flee their homes in 2002, which represents the 5% of the total displaced population
- Indigenous and Afro-Colombians represented disproportionately 23.5% of the displaced population in 2001 according to government sources
- Indigenous people and Afro-Colombians traditionally live on territories neglected by the state and ridden by paramilitary and guerrilla warfare
- Mass displacement of 4000 Afro-Colombians in 2001, four months after they were granted collective titles on their ancestral lands

“CODHES destaca en su informe la expulsión de por lo menos 29.980 personas de las zonas de fumigación aérea de cultivos de uso ilícito, 2.831 indígenas que huyeron de sus territorios y alrededor de 40.512 personas pertenecientes a comunidades afrocolombianas obligadas a salir forzosamente.” (CODHES, 10 December 2003)

“The latest report of the National Indigenous Organisation of Colombia (ONIC), released before the International Day of Indigenous Peoples (August 9), paints a grim picture of the situation of Colombia's indigenous communities. According to the figures, virtually all of the 84 indigenous groups present on Colombian territory have victims of forced displacement or are threatened by it. According to ONIC, nearly 13,000 indigenous persons fled their original homelands in the years 2001 and 2002. During the first half of 2003, over 50 indigenous persons have been murdered and as many as 3,000 have had to leave their homes in fear for their lives.” (UNHCR, 8 August 2003)

“El 2002 representó para la población afrocolombiana el año más trágico en cuanto a desplazamiento, violencia, desintegración de comunidades, y pérdida de territorio y cultura. Al menos el 33% del total de la población expulsada en Colombia, es decir, 83.650 personas, corresponden a este grupo étnico, sobre el cual se han ensañado los actores armados.

La tasa de expulsión de las comunidades afrodescendientes es un 20% mayor que la del resto del país: mientras el nivel nacional registra 586 personas expulsadas por cada cien mil habitantes, la de comunidades afrocolombianas alcanza 736 por cada cien mil.

En este orden de ideas, en 2002 el Chocó —con el 73.4% de su población compuesta por comunidades afrocolombianas—, es el primer departamento expulsor (4.498/100.000 habitantes) y receptor de población (3.678/100.000 habitantes). El Atrato, con una tasa de expulsión superior a la departamental (6.648/ 100.000 habitantes), es la segunda región del país con mayor tasa de expulsión, luego del Catatumbo (14.007/100.000 habitantes).

[...]

“Durante el 2002 aproximadamente 12.649 indígenas tuvieron que abandonar sus territorios ancestrales por presión de los grupos armados. Esta cifra representa el 1.75% del total de la población indígena del país, y corresponde al 5% del total de desplazados en Colombia. La situación más crítica la vivieron los pueblos Embera, en los departamentos del Chocó y Córdoba; los pueblos Kamtzá, Huitoto, Siona, Inga, Embera, Awá y Pasto, en los departamentos de Caquetá y Putumayo; y los pueblos Kankuamos, Wiwa, Kogui, Arhuacos y Yukpas de la Sierra Nevada de Santa Marta y Serranía de Perijá.” (CODHES, 28 April 2003)

“95. Ethnic groups continue to suffer violations of civil and political rights, especially the right to life, racial discrimination, intolerance and social exclusion. Their economic, social and cultural rights are affected by the poverty and exclusion amid which they live. This situation is further aggravated by the armed conflict, which threatens the very survival of some of these groups.

96. Of particular concern is the situation of the Afro-Colombian community, which is considered to be one of the poorest in the country. According to the Office of the Ombudsman, 98 per cent of the Afro-Colombian population lack basic public services, while 80 per cent of their housing is marginal and overcrowded. In the department of Chocó, where 90 per cent of the population is Afro-Colombian, the basic needs of 82 per cent are not being met.

97. Violations of the civil and political rights of indigenous and Afro-Colombian communities are aggravated, moreover, by problems stemming from efforts by the illegal armed groups to maintain control over their territories. They are often subjected to economic blockades, controls on food and medical supplies, and restrictions on the free movement of persons, all of which merely worsens the precarious conditions in which they live. [...] The presence of armed groups in the territories of these communities

also affects their right to independence, threatens the ability of their authorities to govern and erodes their cultural identity.

98. Against this background of violence, the indigenous and Afro-Colombian communities - and especially their leaders - continue to suffer extrajudicial executions, massacres, death threats, enforced disappearances, and enforced displacements and recruitments, threatening their very existence as ethnic groups and their cultural survival. Violations attributed to AUC include the murder of the Embera Chami leader, María Fabiola Largo Cano, in the municipality of Riosucio (Caldas) on 9 April, the massacre of four indigenous persons in Gualandany, municipality of Corinto (Cauca) in March, and the disappearance of three indigenous persons from the village of Cofán (Putumayo) in August. FARC-EP were blamed for the threats made against the Asociación de Cabildos Indígenas del Norte del Cauca (Association of Indigenous Chiefs of Northern Cauca - ACIN), in the municipality of Corinto (Cauca) in March, and FARC-EP and ELN jointly for death threats against the indigenous communities of Sierra Nevada de Santa Marta in June and August. The Office in Colombia received reports blaming the security forces for direct involvement, as in the case of the paramilitary massacre of 12 Wiwa indigenous persons in El Limón and neighbouring areas (Guajira) on 31 August [...]. As regards Afro-Colombians, it is worth mentioning the fate of the inhabitants of the El Tigre area, in Tumaco (Nariño), where between 6 and 10 bodies, presumed to have been executed by self-defence groups, were found daily." (UNCHR, 24 February 2003, para 95-98)

"There are approximately 80 distinct ethnic groups among the country's more than 800,000 indigenous inhabitants. These groups are concentrated in the Andes mountains, Pacific Coast lowlands, the Guajira peninsula, and Amazonas department. According to the National Organization of Colombia's Indigenous (ONIC), 93 percent of indigenous people live in rural areas; 25 percent are on reservations, and approximately 115,000 indigenous people are without land.

According to UNHCR, approximately one-third of displaced persons are indigenous people or blacks; these groups represent only 11 percent of the population." (U.S. DOS February 2001)

"Indigenous communities and families are particularly hard-hit by the violence afflicting Colombia. More than 500 indigenous leaders were assassinated in the last 25 years for political reasons." (IACHR 1999, chapter X, paras. 36-37)

"Maurice Glele – Ahanhanzo, Special Rapporteur of the United Nations on contemporary forms of racism, racial discrimination, xenophobia and related intolerance, in his 1997 report entitled "Implementation of the Programme of Action for the Third Decade to Combat Racism and Racial Discrimination" [E/CN.4/1997/71/Add. 1, 13 January 1997] estimates that of a national population, persons of African or mixed African descent total six million individuals and constitute about 16 percent of the whole Colombian population. Afro-Colombians, a term employed more and more frequently by black or partly black Colombians themselves, live primarily along the Pacific and Atlantic coasts and form majorities or sizeable minorities in a number of large and medium sized cities, including Cartagena, Buenaventura, Cali, Turbo, Barranquilla, Medellín and Quibdó." (IACHR 1999, chapter 11, paras. 17)

"The Afro-Colombian and indigenous communities were among the groups most affected, representing 23.5 per cent of those displaced during the first half of 2001, according to the Network [...]. This percentage is disproportionate in relation to their percentage of the overall population and inconsistent with the special protection required under the Guiding Principles on Internal Displacement and the Constitution itself. Both groups live in regions that the State has traditionally neglected, which provides fertile ground for groups operating on the fringes of the law. The natural resources and economic potential of some of these areas may also explain the interest on the part of groups that would benefit from such neglect.

[...]

During the period covered by this report, the situation of ethnic groups has continued to grow progressively and systematically worse. There has been a manifest increase in violations of the human rights of indigenous and Afro-Colombian peoples, especially in terms of extrajudicial or illegal executions, enforced

disappearances, death threats and displacement. Other groups particularly affected by different forms of discrimination and disregard of their specific rights are native islanders [...] and gypsies.

[...]

The problem of displacement particularly affected the Afro-Colombian and indigenous communities. Attention should be drawn to the massive displacement of 4,000 Afro-Colombians from the municipality of Pie de Pato (Chocó) on 4 June [2001] following threats by paramilitary groups. It is striking that these incidents occurred less than a month after these communities had been granted collective title to their ancestral lands by the Government in accordance with Act No. 70 of 1993. The Afro-Colombians of Alto Naya (Valle del Cauca and Cauca) were also particularly badly affected by displacement. Displacement is also a problem for the Embera Katio community (Córdoba), whose situation is already critical, as described above. In many of these cases the influence of vested economic interests in the region cannot be discounted. For example, the "peace community" of Nueva Esperanza, in the municipality of Carmen del Darién, was burned to the ground by a group of paramilitaries on 2 June, shortly after the community had been granted collective title to its ancestral land. " (UN HCHR, 28 February 2002, paras. 228, 297, 303, 371)

"The indigenous people of this country make up less than two per cent of the population, but they account for seven per cent of the displaced people. Another significant group within the displaced population are the Afro-Colombians" (BBC Monitoring International Reports, 24 March 2002)

" The members of illegal armed groups were responsible for the bulk of the violent incidents affecting ethnic groups. However the Office has also had complaints relating to events in which the indigenous population was subjected to arbitrary killings, detentions, unreasonable restrictions on freedom of movement, illegal seizures of property and disproportionate use of force by the security forces.

The ethnic communities' effective enjoyment of their rights has been hindered by several factors. Many state authorities are unaware of indigenous legislation, there are constant conflicts over land tenure between the inhabitants of indigenous areas and other social strata (landowners and small farmers), and the various armed factions are moved to violent action by their strategies for territorial control.

[...]

During the year 2000 there were many complaints that inhabitants of indigenous and Afro-Colombian areas were being forcibly displaced. [...] As a result of the massacres by paramilitaries in Buenaventura, the number of internally displaced in May rose to 7000. Both paramilitary and guerrilla groups were blamed for these huge exoduses. According to official sources, indigenous people and Afro-Colombians accounted for 36 per cent of all those displaced over the period." (UN HCHR 8 February 2001, chapter VI, paras 182-188).

Victims of displacement: social activists (2002)

- Violence and threats have forcibly displaced labor union members, political activists such as members of the Union Patriótica, members of human rights organizations, teachers and journalists
- Protection programs set up by the Colombian government have proved insufficient to counter the continuing campaign of intimidation, harassment and attacks against human rights defenders
- 2,900 teachers were forcibly displaced and 82 teachers and school employees were killed during 2002 twice as much than during 2001
- 80% of trade unionists assassinated in the world each year are Colombians.
- The worst-affected unions have been those that represent educational, health, municipal and departmental workers
- From 1995 to 1997, in the Department of Antioquia alone, 686 teachers were forced to abandon their work posts to be relocated elsewhere

"1985 also marked the emergence of another type of violence, commonly spoken of as the 'dirty war' This denotes the selective extermination of left-wing political activists, such as members of the [Patriotic Union, political party created by former members of the FARC guerilla movement], trade unionists, members of popular and human rights organizations, teachers, etc. According to a significant number of allegations and testimonies, the 'dirty war' has not yet subsided."

[...]

Changes in the administration of justice in the last years are said to permit arbitrary arrests and unfair trials by secret judges and witnesses. These individual human rights violations have also caused the displacement of the persecuted and their families. The victims are mostly leaders of political and social movements, human rights activists, journalists and public officials, especially of the judicial and education services. The Representative was told of various methods of harassment, including telephone tapping, monitoring of one's home, direct threats to one's family, anonymous letters, 'singling out' in lists of 'subversives', etc. Even in cases where the Government has promised to protect them, the Representative was told that some of these people had been assassinated or that they had continued to be harassed. Witnesses who have denounced human rights violations have also been assassinated." (UN CHR 3 October 1994, paras. 25,65)

"Among the violations of the right to life are death threats made by phone or by mail with the aim of intimidating the recipients into leaving the country or moving to another area, or of halting judicial or administrative proceedings intended to clarify human rights violations or war crimes. During the first 10 months of 2001, the Ombudsman's Office received 474 reports of death threats. The victims of these death threats have included human rights defenders, trade union leaders, leaders of ethnic communities, reporters, officials and people who, as public servants, witnesses or victims, have been involved in criminal or disciplinary proceedings." (UN HCHR 28 February 2002, paras. 88-89)

Human Rights defenders and IDP community-leaders:

"Protection programs set up by the Colombian government proved insufficient to counter the continuing campaign of intimidation, harassment and attacks against human rights defenders[...] Defenders in Barrancabermeja, Santander department, and in Medellín, Antioquia, were particularly at risk." (AI 2001)

"The Special Representative [on Human Rights Defenders] acknowledged that the Government of Colombia had taken measures to address the problem, such as the Special Protection Programme for Witnesses and Threatened Persons under the Ministry of the Interior. However, she remained concerned about the slow pace of judicial investigations into crimes against human rights defenders and about the limited administrative, security and financial resources to protect those human rights defenders who found themselves at risk." (Report of the Special Representative on Human Rights Defenders, 2002)

"102. The situation of human rights defenders continues to be critical and worsened in late 2002. The worsening armed conflict has particularly affected community leaders, tradeunionists, human rights defenders, members of social organizations and public officials responsible for the promotion and protection of human rights. Members of these groups have been subjected to murder, threats, attacks, harassment, forced disappearances and hostage-taking. Paramilitary groups have been blamed for most of these abuses. Guerrilla groups, on the other hand, are held chiefly responsible for attacks on municipal ombudsmen and other local authorities. In several cases, the threats against and the vulnerability of human rights defenders were blamed on public officials.

103. A matter of special concern is the situation faced by some members of human rights organizations such as the Fundación Comité de Solidaridad con los Presos Políticos (Solidarity with Political Prisoners Committee Foundation, FCSPP) and the José Alvear Restrepo Association of Lawyers, who in some cases have had to abandon their offices owing to repeated Threats. [...] The town of Barrancabermeja continued to be the scene of serious attacks and threats against human rights defenders, especially members of the Organización Femenina Popular (Women's Popular Organization - OFP) and the Corporación Regional para la Defensa de los Derechos Humanos (Regional Corporation for the Defence of Human Rights, CREDHOS). Such cases include the death of Diofanol Sierra Vargas, an active member of OFP, in April,

and the disappearance of Manuel Francisco Navarro Culma, the leader of the displaced community of Ciénaga de Opón in February, attributed to paramilitaries. Also to be noted was the disappearance, on 12 August, of Guillermo Torres Valdivieso, the president of the community action group of the Café Madrid de Bucaramanga neighbourhood and an independent community leader.” (UNCHR, 24 February 2003, para 102-103)

“Seventeen human rights defenders were murdered or forcibly disappeared between January and December, 2002.” (Asamblea Permanente de la Sociedad Civil por la Paz, etc... 31 December 2002)

Civil servants:

“Last year [2002] around 290,000 children – equivalent to 3.6 percent of the public education system's primary school students – had to leave school temporarily or permanently due to the forced displacement of 2,900 teachers, he added.

Zapata underlined that in 2002, 82 teachers and other public school employees were killed, twice the number of deaths registered in the education system in 2001. In addition, more than 100 schools were destroyed in attacks by armed groups.” (Inter Press Service, 31 March 2003)

«Centenares de funcionarios públicos fueron forzados a renunciar o a cambiar de lugar de residencia y trabajo como consecuencia de presiones armadas, los maestros, la misión médica, los estudiantes universitarios, los líderes sindicales, sacerdotes y monjas de la iglesia católica y pastores evangélicos, también ingresaron al flujo constante de población civil desplazada de los territorios de la guerra hacia los centros urbanos.» (CODHES 18 November 2002)

"Threats have forced many teachers to request transfers to other schools. From 1995 to 1997, in the Department of Antioquia alone, 686 teachers were forced to abandon their work posts to be relocated elsewhere. As a result, according to information available to the Commission, there is a lack of teaching personnel in some especially violent areas due to the displacement of teachers who were working in those areas." (IACHR 1999, chapter IX, para. 26)

Journalists:

“Journalists investigating and publishing reports about human rights and political violence were also targeted. Eight journalists were killed, mainly by paramilitary forces, and many more received death threats or were kidnapped. Increasing numbers of judicial officials investigating human rights abuses were threatened, attacked and kidnapped by army-backed paramilitary forced and guerrilla organizations.” (AI 2001)

Unionized workers:

"The Office has observed that violence has been projected not only against the leaders of the most representative trade unions but also against the grass-roots union movement in different parts of the country. This has weakened the movement, particularly in the provinces, and eroded communications and basic social networks.

[...]

Displacement of unionized workers occasioned by threats have also increased dramatically this year [2000]. [...] The Problem is compounded by the failure of both the national and the departmental authorities to pay attention: they are not quick to issue the permits for threatened individuals to transfer to branches in other towns or regions.

The worst-affected unions have been those that represent educational, health, municipal and departmental workers, in particular the National Association of Hospital Workers (Asociación Nacional de Trabajadores Hospitalarios, ANTHOC), the Colombian Education Workers' Federation (Federación Colombiana de Educadores, FECODE) and the Union of Municipal and Departmental Workers (Sindicato de Trabajadores de Empresas Municipales y Departamentales, SINTRAEMSDS). Among the regions most affected by the growing violence against unionists was the Department of Valle del Cauca, where attacks were aimed

mainly at SINTRAELECOL workers in the power industry and SINTRAEMCALI public utility workers. It is the Department of Antioquia, however, where violence against workers remains most prevalent. Another city with a high rate of violence is Barrancabermeja [sic!](Santander), which also had the largest number of displaced workers, especially amongst unionists working for the Empresa Colombiana de Petróleos (ECOPETROL) and Gases de Barrancabermeja . It is pertinent to note that the Departments of Valle, Antioquia and Santander are amongst those most seriously affected by paramilitary operations.” (UN HCHR 8 February 2001, chapter VI, paras. 175-178)."

“According to data provided by the National Trade Union School (a Colombian NGO), a high percentage of victims of serious violations held senior posts within the trade union movement. Also according to the same source, 80% of trade unionists assassinated in the world each year are Colombians.” (The Observatory for the Protection of Human Rights Defenders, January 2002, Part I, p.29)

“3000 trade union leaders were assassinated between 1987 and 2001, among whom over 150 in 2001 alone. Not only do trade union leaders risk assassination, they are also the victims of forced displacement, threats to their lives and their physical and moral integrity, arbitrary detention, imprisonment and other forms of harassment. Counsellors and lawyers of the Colombian trade union movement also receive frequent threats. [...]

Where those guilty of assassinating trade union leaders have been identified, 90% have been carried out by paramilitary groups operating with complete impunity and often with the connivance of the State security forces. The remaining 10% were carried out by guerrilla movements, public forces and other miscellaneous bodies.” (The Observatory, 2002)

“184 trade unionist were killed or forcibly disappeared between January and November, 2002 (177 killings, 7 forced disappearances): 144 between January and July (a monthly average of 20.5), and 40 between August and November (a monthly average of 10).” (Asamblea Permanente de la Sociedad Civil por la Paz, etc... 31 December 2002)

PATTERNS OF DISPLACEMENT

General

Vast majority of IDPs flee individually rather than in mass exodus (2004)

- While events of mass displacement increased in 2001 compared with 2000, the proportion of people displaced in mass significantly decreased compared to individual displacement
- The Department registering the highest rate of mass displacement is North of Santander in the Catatumbo region in 2003
- The fact that only few mass displacements (over 50 persons) were recorded during 2002 may be attributed to the rise of selective killings and efforts to 'invisibilize' the problem of displacement
- Government Network estimates 90% of IDPs in 2001 fled in mass exoduses while CODHES puts that figure at 22%
- The high estimates of mass displacement by the government agency shows an inadequate coverage of individual displacements
- 18, 1% of the displaced fled in 98 mass exoduses to 67 different municipalities in 2001 according to CODHES
- During 2000 22 percent of the people displaced fled in 39 exoduses, while during 2001, 18 percent of the people displaced fled in 98 exoduses, while the remaining majority fled individually or by family
- Most displaced have a rural background and flee in small groups (family) or individually but a significant number of the displaced have fled in larger groups

According to government figures, 1,370,027 people fled individually and 35,824 fled in mass (groups of over 50 people) during 2003. (GOC, 15 December 2003)

« Entre julio y septiembre [2002] se registraron algunos desplazamientos masivos (más de 50 personas en un sólo evento de desplazamiento) aunque en menor proporción que en periodos anteriores. Esto se explicaría en parte por la aplicación de una estrategia que se centra en homicidios selectivos de personas protegidas por el derecho internacional humanitario a cambio de las masacres, con la intención de invisibilizar el desplazamiento y las violaciones a los derechos humanos. » (CODHES, 18 November 2002)

« La frontera está caracterizada por una compleja posibilidad de respuesta a las necesidades humanitarias, por las condiciones geográficas, contenciones legales de respuesta en Venezuela, dificultades para los agentes humanitarios en el acceso a zonas de confinamiento. Arauca, Cesar, La Guajira, Norte de Santander, departamentos de esta frontera, se encuentran en el grupo de mayores tasa de expulsión [...] generándose un intenso desplazamiento invisibilizado al otro lado de la frontera.

[...]

Durante los últimos tres años, el conflicto armado se ha ido focalizando y endureciendo en la región del Catatumbo, a tal punto que la mayoría de los desplazamientos masivos que se han dado en el departamento han provenido de esta región, en especial de las zonas rurales hacia las urbanas. El principal foco urbano del conflicto ha sido Cúcuta. Las milicias urbanas de FARC y ELN hacen presencia en los barrios periféricos de la ciudad y de igual manera hacen presencia grupos de autodefensas de los bloques Córdoba, Urabá y Cesar que controlan los municipios aledaños a Cúcuta. » (CODHES, 2 January 2004)

"The number of displaced people rose by 48 percent between 2000 and 2001. Massive displacements also increased, with 403 instances reported in 2001 as opposed to 254 in 2000. The proportion of people displaced in mass expulsions decreased, however, with 93 percent of the population displaced during 2000 fleeing under massive displacements, and only 64 percent expelled under such conditions in 2001. This shows a drastic increase in individual persecutions and selective assassinations as the catalyst for personal or familial displacement.

During 2002, 311,392 people were registered as displaced, coming from 67,759 homes. Since 1994, 966,056 people have registered as displaced, and 193,042 of these were displaced during mass expulsions. The first mass expulsions occurred in 1997, affecting 41,071 homes that year. [...]" (Colombia Journal, 23 June 2003)

"). [In 2001] The Network estimates that 90 per cent of these people were displaced as the result of mass displacements, while CODHES puts that figure at around 22 per cent. This may suggest that although the Network improved its coverage, it still had difficulties in adequately detecting cases of individual displacement." (UN HCHR, 28 February 2002, para. 226)

"According to the RSS-SEFC estimates, there were 1,351 events of mass displacement in the year 2000, which displaced 128,843 individuals, forming 26,819 households. 35% of these displacements (467) correspond to the first six months, and 65% (884) to the second six months, an increase of 89%. The global figure of CODHES, quoted in the report (308,000 individuals in 11 months) is 58% higher than the SEFC estimate, and no account is taken of the December figures for the Report." (UN HCHR 16 March 2001)

«El 18.1% del total nacional estimado por CODHES, cifra equivalente a 62.043 personas, es producto de la llegada de 98 éxodos masivos a 67 municipios del país; 46 de ellos con un solo éxodo durante el periodo, para un total de 33.517 personas, y 21 municipios con 2 o más éxodos durante el año, cuyo estimativo global es de 28.835 personas. Los seis (6) principales departamentos (Antioquia, Cauca, Valle del Cauca, Bolívar, Chocó y Magdalena) receptores de éxodos de población desplazada representan el 90.3 % del total estimado de éxodos de población 16.3% del estimativo global de personas desplazadas correspondiente a un total de 55.862 seres humanos.

64 Municipios presentaron expulsión de población en forma de éxodo masivo con un estimativo global de 69.959 personas durante el periodo, cifras que corresponden a 7 personas por hora, 188 personas expulsadas por día, y 940 personas expulsadas semanalmente. Los departamentos más afectados por este fenómeno fueron Antioquia, Bolívar, Cauca, Valle del Cauca y Chocó, con una cifra global de 54.074 personas expulsadas. » (CODHES, 15 February 2002, Boletín 40)

"Las personas en situación de desplazamiento fueron recepcionadas por 218 municipios, más Bogotá, lo que compromete a 226 departamentos de todo el país. 19.323 personas - lo que equivale al 22% del total estimado para el primer trimestre del presente año - se desplazaron en 39 éxodos masivos, que fueron recepcionados en 24 municipios del país." (CODHES 2001, 'Rostros Anonimos')

"As regards the type of displacement that took place in 2000, the largest movements were by groups (of more than 50 persons) as opposed to individuals; that trend became more pronounced in the second half of the year. Group displacement account for between 60 per cent (source ICRC) and 86 percent (source RSS) of the total number of displaced population." (TGD 19 January 2001)

"El 18.1% del total nacional estimado por CODHES, cifra equivalente a 62.043 personas, es producto de la llegada de 98 éxodos masivos a 67 municipios del país; 46 de ellos con un solo éxodo durante el periodo, para un total de 33.517 personas, y 21 municipios con 2 o más éxodos durante el año, cuyo estimativo global es de 28.835 personas" (CODHES, 15 February 2002, Bulletin 40)

"The phenomenon of individual, familiar or massive displacement of population in Colombia, originated in the internal armed conflict suffered by the country, is one of the factors that put an increasing number of people in situation of vulnerability. [...]

Forced displacement deteriorates life conditions of displaced people that were precarious in their original place already. Families are compelled to leave their habitual places of residency and production, this implies a rupture of familiar and community ties, and exposes affected population to a loss of their goods that were left behind. Displaced people lack food, basic services and adequate lodging, and are in great risk of contracting diseases. These situations are aggravated frequently because of the lack of solidarity and even the rejection of people and authorities from where they arrived to." (RSS 2001)

"As María Girlesa Villegas, public advocate for the department of Antioquia, told Human Rights Watch, "The movement of masses of people is only the last step in a long process. It starts with one or two families, then a group of people. Again and again, these communities see atrocities. And when they can stand it no longer, that is when they leave.'" (HRW October 1998, chapter VII)

"Until 1995, forced displacement was characterized by individuals or families fleeing from their place of origin and arriving in nearby villages or municipal capitals. In 1996, Colombia experienced its first mass displacements [...]." (WFP 8 September 1999, para. 3)

Intra-urban displacement on the rise (2003)

- For the first time a court ruling recognized that people displaced within urban areas or within the same municipality are entitled to IDP status
- All the inhabitants of the area "El Esfuerzo", 100 families from commune 13 and 100 persons from commune 1 were displaced in Medellín
- Intra-urban displaced persons almost systematically occult their condition and do not register partly out of deep distrust of the Colombian judiciary system
- Main causes for fleeing are fear and threats, save their lives and armed-groups conflict
- Children are the worst affected by the situation as they drop out of school and often are forced to join armed groups
- Popular militias, autodefence groups and are the main perpetrators of displacement
- Commune 13 has 70% rate of unemployment and Medellín is the most violent Colombian city with 3.427 violent deaths for 2002
- Intra-urban and rural-urban displacement on the rise lead to the urbanization of the consequences of the armed conflict
- Most affected by the phenomenon are the cities of Medellín, Cali, Barrancabermeja, Bogotá, Cartagena, Cúcuta and Bucaramanga

"Often the second or third displacement occurs within the receiving municipality or urban centre and is caused by (renewed) threats from an irregular armed group. In June 2002, 65 families were forced to leave their homes in the El Salado neighbourhood in Medellín owing to the fighting between FARC and ELN insurgents and the army. Since they did not flee beyond their "habitual place of residence", that is, Medellín, but into the city, RSS rejected their petition for IDP status. Following legal action on part of the displaced families, the Constitutional Court ruled in April 2003 that the 55 women and 165 children were entitled to government assistance under Law 387 of 1997. [...] This ruling is important since it acknowledges for the first time the increasing incidence of intra-urban or intra-municipal displacement as a result of the conflict." (ICG, 9 July 2003, p.4)

Displacement in Colombia's second capital Medellín:

«El desplazamiento forzado intra urbano en Medellín, ha tenido tres expresiones importantes:

- El ataque al barrio “El Esfuerzo”, ubicado en la comuna 6, al noroccidente de Medellín, por parte de grupos de las autodefensas, quienes quemaron las viviendas ubicadas en el sector, obligando el desplazamiento de sus habitantes hacia otros barrios de la ciudad de Medellín y hacia el municipio vecino de Bello.
- El desplazamiento masivo en determinados barrios de la comuna 13, producto de los enfrentamientos y amenazas, que obligaron a más de cien familias, a convivir por cierto tiempo en un colegio del sector.
- El desplazamiento de familias en la comuna 1; adicionalmente, un grupo de más de cien desplazados, se tomó las instalaciones de la Universidad de Antioquia en noviembre del 2002, para presionar algunas soluciones a su desesperada situación.

[...]

el fenómeno es creciente, lo que no implica que sea nuevo, porque a diferencia de los desplazados rurales, que buscan ayuda estatal y se reconocen en su condición de desplazados forzados e intentan acceder a los derechos que la violencia les ha arrebatado, el desplazado intra urbano, casi siempre oculta su condición de desplazado forzado, no le gusta aparecer nominalmente con esa figura, y simplemente, lo asume como un cambio de residencia más, en su transito por la ciudad, sin dimensionar muchas veces, las repercusiones negativas que ello acarrea en las esferas personal, familiar y laboral.

[...]

Se vuelve casi una constante, que la intimidación, como son las amenazas y el miedo, tienen un efecto casi directo en el desplazamiento intra urbano; siguen teniendo un peso importante estos dos factores en la ponderación global de los motivos que incitan a la gente a desplazarse, con el fin de conservar la vida. En un tercer lugar de causas o motivos que generan desplazamientos según estas encuestas, aparecen los enfrentamientos que se viene presentando cada vez con más frecuencia en la ciudad.

[...]

Los jóvenes y los niños, son los principales afectados por este tipo de situaciones, porque se ven obligados a cambiar de colegio o dejar sus estudios, o en el peor de los casos, son presionados a pertenecer de forma activa a los grupos armados (que optan por el reclutamiento a falta de combatientes voluntarios), lo que a su vez, se convierte en una de los mayores causas del desplazamiento, seguidas por la amenaza directa de convertir, bajo intimidación, a los miembros de las familias en informantes, para que estas puedan permanecer en las zonas (esto, desde una visión positiva de los derechos, ya que uno de los sujetos más invisibilizados por las afectaciones propias de los desplazamientos intra urbanos, es el sujeto masculino, precisamente por darse la preponderancia a los niños y las madres cabezas de hogar).

En la muestra realizada, los principales causantes del desplazamiento intra urbano, son las milicias populares, seguidas por las autodefensas y los combos o bandas de delincuencia común que operan y que chocan frecuentemente en diferentes sectores, como es el caso de la “banda de Frank” y las autodefensas en la zona Noroccidental, que han chocado frecuentemente en los dos últimos años.

En este marco, el único caso registrado y aceptado como desplazamiento intra urbano, ha sido el del asentamiento “El Esfuerzo” del barrio París, producto de una denuncia colectiva de los habitantes del sector. Ello les sirvió para recibir asistencia humanitaria con equipos de aseo, alimentación y ropa. Por su parte, en el caso de la comuna 13, son muy pocas las denuncias al respecto, y en el resto de los casos, no existen pronunciamientos formales, entre otros motivos, por la mala percepción que tiene la gente frente a nuestro aparato de justicia y también por miedo a las represalias que puedan venir por parte de los actores armados involucrados en el conflicto.

[...]

Sin embargo, “la otra ciudad” no ha querido comprender lo que venía sucediendo: Medellín, ha mantenido las tasas de desempleo más altas del país. Por ejemplo, en la comuna 13, alcanza el 70%, sobre una población de 130.000 habitantes. Por ello, la economía informal ha sido la única salida, la cual a su vez, durante las últimas administraciones municipales, ha tenido una fuerte represión, en especial en el centro de la ciudad.

[...]

Medellín, tiene la tasa de homicidios más alta del país: 3.445 muertes violentas en el 2001 y 12.880 en los últimos cuatro años. A noviembre 30 de 2002, se habían presentado 3.427 homicidios lo que significa un aumento del 8.1%, con relación al año anterior; de otro lado, en el campo social, se calcula, que "...en la calle, sin estudiar ni trabajar, hay más de 70.000 jóvenes, siendo una ciudad en graves problemas." (Actualidad Colombiana, 1 January 2003)

« En este periodo continuó la diáspora del campo a la ciudad que suma a los migrantes producto del empobrecimiento rural, las personas desarraigadas por la violencia. Creció el desplazamiento entre ciudades y al interior de las mismas, en una dinámica ascendente de urbanización de las consecuencias del conflicto armado, especialmente en ciudades como Medellín, Cali, Barrancabermeja, Bogotá, Cartagena, Cúcuta y Bucaramanga. De igual manera, aumentó el desplazamiento como consecuencia de las fumigaciones de cultivos de uso ilícito que también han afectado cultivos básicos para la subsistencia humana. A su vez, continua una acción sistemática de ataques a pueblos indígenas y afrocolombianos en zonas de Cauca, Sierra Nevada de Santa Marta, Serranía del Perijá y sectores de Antioquia, Tolima, Nariño, Putumayo, Córdoba y Chocó por parte de grupos paramilitares y guerrilleros.» (CODHES, 18 November 2002)

Intra-municipal patterns of displacement common of Afro-Colombian and indigenous people (2003)

- IDPs increasingly flee to more remote rural areas by fear of being attacked in rural areas where armed groups are increasingly present
- Displacement within their own territories deeper into the jungle or retreat in the highest mountainous zones to escape from armed actors
- Intra-ethnic displacement outside of their own territory but taking refuge in the same ethnic group
- Extraterritorial displacement to municipalities or big towns is the most problematic pattern due to high dislocation and low integration opportunities
- Drop by drop displacements with high dispersal usually caused by selective attacks
- Simple and disorganized exodus or mass community displacement
- Multiple and organized exodus when Afro-Colombians, colons and indigenous flee
- Despite tradition of resistance indigenous people did not fled to towns however in 1999 Indian Embera communities had seek refuge in Jurado town and villages along Truando River
- The majority of Katío native indians fled to Panama in 1999

"The recent intensification of the armed conflict in regions such as Catatumbo (Norte de Santander), Atrato (Chocó) and the eastern part of Antioquia has reinforced a hitherto less common pattern of forced displacement. Since the paramilitary forces have been expanding their control of the small and medium-sized towns, often located in strategic positions along rivers and roads, IDPs from rural areas have become reluctant to seek shelter in urban centres. They fear that the insurgents might indiscriminately attack the towns or the paramilitaries might persecute and harm them, branding them guerrilla collaborators. In consequence, they flee to remote jungle or mountain areas where they feel safer but are in fact highly vulnerable.

For example, according to ICG sources, a large number of families are trying to avoid the fighting between paramilitaries and FARC/ELN insurgents over strategic corridors and illicit crop plantations in the departments of Arauca and Norte de Santander. They have fled to remote rural areas where they are forced to survive without any government or international assistance. [...] Another large intra-rural displacement occurred in the municipality of San Francisco, Antioquia, whose residents fled to the mountains along the

Río Verde in an attempt to seek shelter from heavy fighting between six battalions of the VI Army Brigade and FARC units in March 2003. The civilians had no option other than the mountains because the army had taken up a battle position on the road to the urban centre of San Francisco.” (ICG, 9 July 2003, p.4)

“Movilizarse dentro de los propios territorios o desplazarse a territorios de comunidades vecinas han marcado, entre otras estrategias, experiencias históricas de resistencia indígena. La búsqueda de condiciones de protección, permanencia y sostenibilidad socioeconómica, sociopolítica, cultural y ecosistémica, han marcado los movimientos migratorios y los patrones de poblamiento indígena frente a las agresiones de actores violentos (agentes externos y hace tiempo atrás los ataques de otros pueblos). Como resultado de los procesos de investigación precitados podemos identificar las siguientes formas y modalidades de desplazamiento indígena:

a. Desplazamientos internos dentro de los propios territorios. La estrategia consiste en no abandonar los límites de los territorios indígenas (resguardos, territorios ancestrales, parcialidades). Los recorridos de los desplazamientos internos intentan alejarse o reducir los efectos del control ejercido por el o los actores armados. Internarse en la selva, retirarse a las zonas más altas del territorio o aquellas de más difícil acceso hace parte del repertorio de formas de movilidad de muchos de los pueblos indígenas.

b. Desplazamientos intraétnicos fuera del propio territorio. El desplazamiento como medida preventiva se realiza hacia el territorio ocupado por una comunidad del mismo pueblo indígena que facilita espacios y servicios comunitarios como "zonas de refugio" para las comunidades en situación de desplazamiento. En este proceso median acuerdos políticos, culturales y económicos con arreglo a la capacidad de absorción comunitaria y ecosistémica de la o las comunidades receptoras y según el nivel de integración (temporal o definitiva) de las personas, familias y comunidades acogidas. Esta estrategia se pone en marcha en respuesta al confinamiento y las agresiones de los actores armados (amenazas, masacres, asesinatos selectivos de líderes comunitarios locales y regionales, entre otras). El paso transfronterizo en búsqueda de refugio en comunidades indígenas en Panamá, Ecuador, Venezuela, Brasil o Perú también hacen parte de este tipo de desplazamientos.

c. Desplazamientos extraterritoriales. Una de las formas más problemáticas de desplazamiento forzado indígena es la salida de los territorios indígenas hacia cabeceras municipales, ciudades intermedias o grandes ciudades. Las tendencias predominantes en los lugares de asentamiento extraterritorial consisten en la conformación de núcleos de personas provenientes de sectores o pueblos comunes; o en el peor de los casos la dispersión de las familias en contextos radicalmente ajenos y con bajas posibilidades de integración económica, política y cultural. Frente a las dificultades de ajuste a los nuevos entornos se presentan casos de retornos en condiciones extremas de inseguridad, desprotección y sostenibilidad.

d. Desplazamiento disperso o gota a gota. Derivado de acciones violentas selectivas, particularmente en comunidades donde la cohesión social no es fuerte o el momento histórico de la comunidad es frágil por su alta conflictividad interna.

e. Éxodo Simple Desorganizado. Caracterizado por la salida masiva de población indígena frente a las agresiones sostenidas por parte de los actores armados que generan la fragmentación sociopolítica y cultural de las comunidades.

f. Éxodo Organizado Múltiple (indígenas, colonos y afrocolombianos). Como en el caso del Naya (Cauca) luego de la masacre perpetrada en la región del alto y bajo Naya, en el norte del Cauca y sur occidente del Valle del Cauca, entre el 10 y 16 de abril de 2001. En este caso la configuración sociodemográfica del territorio es pluriétnica y la cohesión social interna fuerte debido a las condiciones históricas de supervivencia socioeconómica y cultural.

g. La colonización y la violencia han forzado estrategias que podemos denominar metafóricamente como "desplazamientos horizontales", migraciones en búsqueda de ecosistemas similares a los habitados y

adaptados tradicionalmente que se establecen en zonas de contigüidad sociogeográfica o ecosistémica, en franjas altitudinales similares, o desplazamientos verticales hacia sectores altos o más bajos según el caso, en los cuales es preciso transformar los circuitos y redes de sostenibilidad alimentaria, de salud y aquellos fundamentales en la reproducción simbólica de la comunidad, intentando mantener contacto con las redes ancestrales y aquellas constituidas con sectores campesinos y afrocolombianos. En otros casos se presentan desplazamientos transversales hacia lugares distantes del ecosistema a través del contacto con redes conocidas. » (Harvey, 8 January 2003)

"Native Indian communities' displacement has not been noticed [during the second quarter of 1999] despite its magnitude, since they have search refuge in other rural communities. Given their habits and resistance to change, they have not moved to urban areas. The Indian Embera communities of Peñas Blancas and Wounana or Mariscal (Riosucio) are in a great majority displaced in the town of Jurado. The great majority of Katio native indians fled to Panama. The Emberas of Pichinche are scattered in several hamlets of the Truando river of Riosucio." (CODHES 17 September 1999, p. 5)

Displaced tend to move to nearby villages, then to a town, last to major urban centres (2003)

- 55% IDPs flee within their own department and 45% flee to another department
- 48% IDPs who flee to another department end up in the departmental capital
- Between 30% and 50% of IDPs settled in medium-sized or large towns in 2002
- The displaced flee often first to smaller administrative centres or to a nearby village where they have some family ties and then end up in bigger urban centres
- Most IDPs end up in the slums of Bogotá, Barranquilla, Medellín, Cali and Cartagena
- Search for resources and assistance makes the displaced move from town to town and finally takes them to the country's largest cities
- Prospects for successful resettlement limited by high prices of land

“Un total de 640 municipios reportaron llegada de población desplazada, de los cuales 31 capitales de departamento recibieron el 44% (77.232 personas), mientras que el 56% restante (98.038) se ubicó en ciudades intermedias y pequeños municipios. La población fue expulsada de 904 municipios, de los cuales el 91% corresponde a zonas rurales y pequeños municipios, mientras que el 9% restante corresponde a personas expulsadas de capitales de departamentos.” (CODHES, 10 December 2003)

“According to Hernando Moreno of the Social Solidarity Network, approximately 55 percent of the total displaced population stayed within its own department, while 24 percent fled to a department that was not geographically adjacent to their own. The remaining 21 percent left for a neighboring department. Of the total population displaced within their own department, 36 percent stayed within the same municipality and 51 percent left for the capital of the department. Those that remained within their municipality tended to have the largest families, with an average of 4.91 people. Of those who fled to a neighboring department, 48 percent went to the capital. The average family size of this group is 4.46 people. [...] All of this indicates that approximately half of displaced people in Colombia leave their department and a similar proportion go to departmental capitals, whether within or outside of their department of origin. The families that make up these statistics have an average size of 4.56 people.[...]” (Colombia Journal, 23 June 2003)

“Between 30 and 50 per cent of displaced persons settled in medium-sized or large towns. There has, so far, been little effort to gauge the impact of these displacements on the receiving communities.” (GTD, 29 November 2002, p5)

"When there have been direct threats, they may never return out of fear. These families then move from an administrative center in their municipality to another one in their province (*departamento*) and from there

to a big city. The itinerary depends on the manner in which the violence develops, on how direct the threats have been, on family networks and on the possibilities they have to access basic services or minimum conditions for survival. Depending on the stages in their journey – the fleeing, settling and/or returning – displacements last for years. An added difficulty to gather data on these populations is the fact that some want to keep their anonymity and go unnoticed as they believe this to be the only way to guarantee a certain degree of security.

According to a pioneer study on forced displacement, [...] carried out by the Episcopal Conference in 1995, only 20% of the displaced had moved only once, whereas 58% had done it twice and 23% three or more times.

The factors that determine their itinerary include the search of some security conditions to guarantee their survival and personal integrity, and the illusion to find a socio-economic environment in which they can survive. If security and shelter in the selected settlement become precarious, they continue on their journey. Support networks (relatives or former neighbors) also play an important role. Big cities are the last stage of their itinerary. There they will go in search of anonymity and basic survival conditions." (González Bustelo, December 2001, Chapter 5)

"El desplazamiento refleja un forzado movimiento poblacional principalmente de áreas rurales hacia zonas urbanas y semi-urbanas, causando un proceso de urbanización acelerado en el país. La mayoría del desplazamiento se caracteriza también por ser disperso y en pequeños grupos de familias cubriendo casi todo el territorio nacional." (WFP June 14 2001)

"Displacement basically originate in rural areas, where armed insurgents are very active and where the State is either absent or has a very weak presence. The displaced persons move primarily to the poor areas of the cities, aggravating the situation in shanty towns. In that regard, the situation in the city of Bogotá, in particular, is a source of serious concern; also of concern is the situation in Barranquilla, Medellín, Cali and Cartagena." (GTD, 19 January 2001)

"Displacement in Colombia often takes place in stages. IDPs sometimes skip a stage or remain in the first or second. Each of these stages presents different challenges for IDPs.

Stage 1 involves civilians fleeing from their place of origin to a nearby village or municipal centre, i.e. rural to rural displacement. The lack of resources, employment opportunities, assistance and absorptive capacity at the local or municipal level often obliges IDPs to leave.

Stage 2 comprises displacement from a village or municipal centre to a nearby town or small urban centre, frequently the capital of the department, i.e. rural to urban displacement. Meagre resources, coupled with a lack of assistance or job prospects, often cause IDPs to move and seek help elsewhere.

Stage 3 involves a further displacement from small urban centres or capitals of departments to the country's largest cities.

Stage 4 is the return to the place of origin or resettlement. Return to the place of origin is seldom achieved in Colombia because the reasons for IDPs' exodus, in particular security, have not been resolved. Resettlement to different areas has been carried out successfully in a few cases, but is limited because land prices are well beyond the reach of nearly all IDPs." (WFP 8 September 1999, para. 7)

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Armed actors do not respect Peace Communities nor the government protects them (2003)

- Some communities of displaced people have organized themselves into Peace Communities demanding respect for their neutrality in order to be able to remain in their territory without being involved in the armed conflict
- The Office of the Ombudsman calls the government to protect the IDPs who returned in their territory in 1999 in Cacarica (Chocó)
- Due to persistence of factors which forced them to flee in 1997 the communities formed peace communities in order not to be involved in the conflict and to refuse dialogue with any of the armed actors
- Paramilitaries invaded the indigenous reserve of the Cacarica River Basin accusing civilians of being drug traffickers and guerrillas
- The XVII Brigade of the army ignored early warnings of paramilitary incursions
- Many returned IDPs were again victims of human rights violations and some community leaders were killed
- The Ombudsman is concerned about the security of the peace communities who have been falsely accused by a general of the armed forces of harbouring FARC guerrilla
- In Úraba, 170 heavily armed AUC paramilitaries raided the Peace Community of Pueblo Nuevo and Puerto Lleras in the Jiguamiandó basin killing four people

Peace Communities in Chocó

« La Defensoría del Pueblo solicita al Gobierno Nacional garantizar la seguridad de las comunidades desplazadas de la cuenca del Cacarica, agrupadas en la organización comunitaria CAVIDA, quienes en 1999, luego de permanecer dos años en el coliseo de Turbo y en la hacienda El Cacique, en Bahía Cupica (Chocó) retornaron a su territorio, previo acuerdos entre el Gobierno nacional y la comunidad, y el acompañamiento de una Comisión Mixta de Verificación.

Debido a la persistencia en la región de los factores que originaron el desplazamiento en 1997 (Autodefensas Campesinas de Córdoba y Urabá y guerrilla de las Farc), las comunidades agrupadas en el proceso CAVIDA decidieron voluntariamente conformar dos asentamientos "Esperanza en Dios" y "Nueva Vida", en donde construyeron, a su alrededor, una cerca de alambre de púas para evitar el ingreso de los actores armados a sus zonas de habitación y cultivo, definidas como zonas humanitarias.

Dentro de los acuerdos contemplados por el Gobierno, las comunidades y la Comisión Mixta de Verificación estaba la construcción de viviendas, un proyecto productivo, el destaponamiento de los caños y la presencia permanente de la Defensoría del Pueblo como parte de un esquema integral de protección. La mayoría de estos proyectos han sido ejecutados con recursos del Presupuesto Nacional y supervisados por la Red de Solidaridad Social, el Ministerio de Transporte y el Banco Agrario, entre otros.

Asimismo, tales familias optaron por acoger un reglamento interno de convivencia en el que establecen permanecer al margen del conflicto armado, y no dialogar con ninguno de los actores en confrontación.

No obstante, las recientes declaraciones del comandante del Ejército, general Jorge Enrique Mora, según las cuales estos asentamientos son centros de concentración de las Farc, preocupan a la Defensoría del Pueblo por cuanto no corresponden a la realidad y, por el contrario, podrían poner en riesgo a las comunidades que allí habitan.

Las entidades gubernamentales que hacen parte de la Comisión Mixta (Programa Presidencial de Derechos Humanos, Ministerio del Interior, Red de Solidaridad Social, Defensoría del Pueblo, Procuraduría General de la Nación, representantes de entidades internacionales y ONG's, entre otras), han visitado en varias oportunidades tales asentamientos, conocen la situación de sus habitantes y pueden corroborar los compromisos adquiridos por las diferentes entidades del Gobierno y por la propia comunidad.» (GOC, 10 September 2003)

“Amnesty International is seriously concerned for the safety of the Afro-Colombian civilian communities of the Cacarica River Basin (Cuenca del Cacarica) in the department of Chocó and the indigenous communities living in the same area, following threats received after the reported arrival of 500 army-backed paramilitaries to the area.

On 11 March, around 500 army-backed paramilitaries who are reportedly based in La Balsa, south of the Cacarica River Basin, entered the La Raya indigenous reserve and abducted a member of the community. They reportedly took him to the near-by Bequerá Perancho indigenous reserve and accused the community of being guerrilla collaborators.

[...]

The paramilitaries reportedly accused the civilian population of being drug traffickers and guerrillas.

[...]

The Colombian authorities and security forces were reportedly informed of the latest paramilitary incursion on 12 March. Amnesty International is concerned that by action or omission the XVII Brigade is responsible for the actions of paramilitary groups which have threatened the Afro-Colombian and indigenous populations of the Cacarica River Basin.

[...]

In recent years many of the inhabitants of the communities in the Cacarica River Basin area have returned to their lands after they were forced to flee their homes in the wake of joint paramilitary- military operations in the region in early 1997. During their forced displacement, the communities of the Cacarica River Basin were frequently subjected to death threats and human rights violations committed by army-backed paramilitaries. These often took place after they were labeled guerrilla collaborators by the security forces and their paramilitary allies. During the process of return, several members of the communities have been killed and "disappeared", including community leader Freddy Gallegon [...]. The communities have also faced repeated threats made by paramilitary forces who have been able to enter the Cacarica River Basin despite the fact the area is heavily-militarized and despite repeated alerts to the Colombian security forces of the presence of paramilitary forces. Armed opposition groups have also been responsible for threats and killings against members of returned displaced communities in Chocó Department.” (AI, 14 March 2003)

"Desde hace 4 años y 8 meses iniciamos nuestro proceso de resistencia civil y de exigencia al Estado por su responsabilidades en las violaciones que contra nosotros se cometieron. [...] Con el Gobierno Nacional hemos firmado unos acuerdos que han sido cumplidos solo parcialmente, las amenazas continúan, los desplazadores siguen en nuestro territorio, entran presentándose como paramilitares diciendo que la tierra es de ellos, que nos dispersemos a las veredas, que sembremos palma y entran presentándose como militares diciendo que quieren vigilar y controlar, que nadie les puede impedir que entren, que no tienen territorios prohibidos. Los desplazadores se mueven por Urabá y por el río Atrato, están en la Balsa y no hay investigaciones ni detenciones y son los mismos que nos desplazaron, asesinaron y desaparecieron a nuestros hermanos. La impunidad esta metida en el alma de este estado, se respira por todo lado ese olor que hace que tantos daños que nos han hecho no se reparen." (Comunidades de Autodeterminación, Vida, Dignidad del Cacarica, 13 October 2001)

Peace Communities in Antioquia

"Some communities of displaced people have organized themselves into 'Peace Communities,' demanding respect as members of the civilian population and/or submitting lists of petitions for their return." (IACHR 1999, chapter VI, para. 60)

"The Peace Community of San José de Apartadó celebrated its fourth anniversary on March 23, 2001 in the company of international companions from Europe and the U.S., including two members of the Colombia Support Network. In recent weeks, the community has received increasing threats of military-paramilitary violence, including the threat of an impending massacre. On March 5, plainclothes men burned 15 houses in the Peace Community and ordered everyone to leave, saying 'San José had better be a ghost town by tomorrow'. On March 18, Army troops along the path from the trading post to La Unión told several peasants that if the peasants were still mad about the murder of six men last summer [in the joint paramilitary-military La Unión massacre], then it was too bad because the Army troops were on their way to do it again." (CSN April 2001)

"They also reported frequent paramilitary roadblocks, intimidation, theft, and the restriction of incoming food supplies." (U.S. DOS February 2001)

"Según comunicado del Centro de Investigación y Educación Popular (CINEP), entidad a la que PBI acompaña en Urabá, el 12 de septiembre un grupo de 170 hombres fuertemente armados, identificados como pertenecientes a las autodenominadas Autodefensas Unidas de Colombia (AUC), incursionaron en las comunidades de Paz de Pueblo Nuevo y Puerto Lleras en la cuenca del río Jiguamiandó. Durante las incursiones cuatro personas fueron sacadas a la fuerza de sus casas y posteriormente asesinadas violentamente. [...]Dicha agresión se da en el contexto de crecimiento de tensión, amenazas y señalamientos en la región." (PBI, October 2001, Focos de Interés No. 53)

"Over 60 members of the community of San José de Apartado have been killed by the security forces, their paramilitary auxiliaries or armed opposition groups since the community proclaimed itself a "peace community" in March 1997". (AI 10 July2000)

Return to war zones under paramilitary control without adequate protection (2003)

- Uribe plans to return 30,000 IDPs under threat of denying them humanitarian assistance
- Rural Convención is one of the 3 pilot areas where Uribe plans to return IDPs
- Humanitarian assistance to Cúcuta displaced from Catatumbo is inefficient, arbitrary and sometimes non-existent
- IDPs expressed wish to return due to sub-human conditions in Cúcuta and urbanization of warfare
- Rural Convención where IDPs come from is disputed by various illegal armed groups
- Dangers for returnees range from landmines to the fact that teachers are military targets
- Conditions which forced people to flee remain unchanged the area is controlled by armed actors who continue to sow terror, block access to medical and food supplies
- In return areas of La Trinidad there is hardly any information about the physical and socio-economic conditions and quasi absence of state authorities and the military
- In urban center of Cúcuta, Ocaña and Convención controlled by illegal armed actors, IDPs have no physical security and forced-conscriptions and disappearances are common
- Local ombudsmen offices and the justice system are paralyzed since paramilitary incursions

“Given that the Uribe government is planning to return 30,000 families in the following three years and the fact that IDPs themselves ‘favor’ a return, NGOs must critically investigate state-led return processes to ensure a better organized and sustainable return process and the continuous attention of returnees.

[...]

The government has identified the following regions for the implementation of pilot return projects:

- Return IDPs from Medellín to the Oriente Antioqueño
- Return IDPs from Bogotá and neighboring municipalities to La Palma (approx 900 people have already been returned, of which hundreds have been displaced again following the return process)
- Return people from Cucuta and urban centers of Ocaña and Convención to rural Convención.

Those locations identified by Uribe as potential returnee or resettlement zones are regions where paramilitary groups are prevalent. Some analysts have argued that the return process is part of the government’s overall strategy to legalize and re-integrate the paramilitary (which fits with other tactics that are said to do the same: zones of rehabilitation, peasant soldiers, red of informants).

The Deng Principles and the 378 law emphasize (article 16, 17, 18) on the voluntary and dignified nature of returning IDPs, which guarantee physical and socio-economic security. However, Uribe’s pilot projects pressurize people to return or resettle given the ‘take it or leave it’ proposal in which state institutions threaten to cut off assistance if people don’t disagree.” (PCS, 17 March 2003)

“La RSS estima en 23.000 el número de personas desplazadas en Norte de Santander a octubre 2002. El número de muertes violentas y selectivas, para la misma fecha, es de 1.170. La población desplazada interna en el departamento se encuentra en Convención, Ocaña, Cúcuta y Tibú. Ha habido retornos espontáneos hacia las zonas rurales y caseríos de Teorama (1,500 personas).

[...]

ACNUR- Falta de criterios de protección internacional para los retornos que se plantean en la región. Es necesario poner de manifiesto los criterios mínimos de voluntariedad (con elementos de información y teniendo otras opciones). Para ello es particularmente importante el papel de la comunidad en la gestión y planeación de los retornos.

OIM- No hay condiciones en la región para retornos en el momento. Es necesario por tanto soluciones intermedias hasta que se den las condiciones para los retornos como la reubicación temporal (OIM- PMA- PCS).” (PCS, 8 November 2002)

“According to the Red de Solidaridad Social (RSS), a government body responsible for tackling forced displacement, during 2002 approx 7,000 internally displaced people settled in Cucuta, bringing number of IDPs in Cucuta up to 22,000. An overwhelming majority came from the Catatumbo region. Government led humanitarian assistance has proved arbitrary and inefficient; indeed, aid has been limited to food, housing and kits. What is more, hundreds of people are still waiting to receive the three months humanitarian assistance to which the state has to comply with under the 387 law.

[...]

Many people who intend to return explained their decision by emphasizing on the negative aspects of life in Cucuta: lack of humanitarian aid, lack of job opportunities, urban violence, children unable to attend school, poor housing conditions are the most common reasons for wanting to return.

[...]

Whether or not to promote a return has become a highly controversial and contested issue. There is no black and white answer to this. Rather a number of issues must be looked at. Rural Convención is a region which continues to be disputed by armed actors. As outlined in the previous report, roads leading to the rural veredas of Convención have been blocked off since the paramilitary incursions at the end of 2001. The commission established that since July 2002 disputes between armed actors have calmed down considerably, however, warring groups are continuing to sow fear and hatred and blockade the entrance of food and medicine supplies, which in turn impedes the revival of local peasant economies.

[...]

The issue of uncleared land mines looms as an obstacle to return, which also undermines the recovery of the local peasant economy as well as the reconstruction of schools. To date five cases of landmine victims have been known. What is more, school teachers are considered military targets; those who remain in or have returned to the zone are constantly threatened by warring parties while others are reluctant to return given the obvious risks.

[...]

As war continues in the zone, and no-one is able to foresee future actions by warring parties (guerrillas are said to prepare a counterattack), promoting a return has proved controversial. Indeed, the circumstances that forced people to leave have not actually changed. Nevertheless, in the light of the precariousness of conditions in urban centers such as Cucuta, the tendency towards an urbanization of warfare, the absence of a political will to deal with displacement and the newly developed state approach to promote the return or resettlement of 30,000 families national and international NGOs and the UN system are faced with a tough decision: either assist a return or stay out of it. Whatever will be decided, the flood of returnees will not halt, notwithstanding whether they will receive assistance or not. Prospects are that violent conflict is going to perpetuate and escalate further in the months and years to come, making it virtually impossible to promote 'durable' solutions. Many fear that promoting a return to a zone where peace, physical infrastructure and political institutions remain absent will most likely generate new displacement in the near future." (PCS, 17 March 2003)

"While the situation of those blocked communities is extremely worrying, even more so is that large numbers of people preparing their return into the zone. In spite of the precarious humanitarian situation, the lack of verifiable information about the physical and socio-economic conditions and the absence of state authorities and the military, in recent month large numbers of people have returned to the rural zones of La Trinidad. [...]

What is more, given the strong presence of armed actors in the urban centers of Cucuta, Ocaña and Convencion, the physical security of IDPs is constantly being undermined. Threats, disappearances and forced recruitment and inter-urban displacement have become commonplace in urban centers, in particular the slums at their outskirts.

[...]

Both local government and the military pronounced that the ineffective judiciary system constitutes a stumbling block to overcoming or at least alleviating the crisis. Local ombudsman offices (personerías) are powerless in bringing human rights complaints to justice. Ever since the paramilitary incursions they have kept a low profile." (PCS, 11 February 2003)

Protection concerns affecting displaced children (2003)

- Infant mortality rate as high as 15% in the Pacific region where many IDPs are present
- 40% of displaced people are under 18 years of age according to UNCHR (2003)
- FARC announcement that all children above 12 would be recruited displaced 60 families in Tolima (August 2002)
- An estimated 7000 children are in the ranks of FARC-EP, ELN and paramilitary troops according to UNHCHR (2003)
- An estimated 7000 children are part of urban militias according to UNHCHR (2003)
- UNHCHR reported children being used as 'informants' by the army in Meta and Putumayo (2003)
- Paramilitaries, the FARC and ELN continue to recruit children under 15 years of age despite the government ban on recruiting children under 18 even with parental approval
- At least 1 out of 3 guerrilla recruits are under 18 years old
- Families from the demilitarized zone, Arauca, Valle del Cauca, and Antioquia departments fled their homes to protect their children from being recruited by guerrilla groups

- Paramilitaries recruit children from IDP camps and poor neighbourhoods
- According to UNICEF, amongst the children in the ranks of armed groups 14.28% are forcibly recruited
- The remaining children enrol 'voluntarily' for the following reasons: 33.3% for the sense of worth and respect weapons and uniforms provide; 33.3% because of poverty; 16.6% because of direct exposure to armed groups since an early age; and 8.3% on emotional grounds

"25. According to the Office of the Ombudsman, the infant mortality rate is 3.9 per cent, a figure which rises as high as 15 per cent in the Pacific region. In Colombia, 1,500,000 children between the ages of 5 and 17 work; [...] some 20 to 25 per cent of these perform high-risk jobs, a percentage which rises as high as 70 per cent in the farming sector, [...] where the working day extends over 12 to 15 hours.

26. Displaced children represent a particularly vulnerable group, bearing in mind that 40 per cent of all displaced persons are under 18 years of age.

[...]

43. Children continued to be some of the most vulnerable victims of the armed conflict, in particular on account of displacement, recruitment, anti-personnel mines and indiscriminate attacks by outlawed groups. For instance, 45 children died during the events in Bojayá (Chocó). Many have been killed by guerrilla and paramilitary groups. AUC were blamed for kidnapping and torturing three minors in Medellín, on 16 August, to obtain information about armed organizations in the neighbourhoods where they lived. Two of the children were killed and the third injured. The Office also received reports concerning several cases of minors who had fallen victim to indiscriminate attacks during operations by the security forces such as operation Mariscal, which took place in Medellín in May. According to the País Libre Foundation, 357 minors were taken hostage in the first 10 months of 2002, i.e. 13 per cent of all victims of this offence.

44. The various guerrilla and paramilitary groups continued to recruit minors under 18 years of age into their ranks. Occasionally the mere threat of recruitment led to the displacement of whole families. The Office of the High Commissioner was informed that on 3 August, ELN troops took 22 youngsters from the district of Altamira, La Vega (Cauca), with them to join their fighting units. In August, an announcement by FARC-EP that all youths over 12 years old would have to join up led to the displacement of 60 families in the municipality of Cunday (Tolima). Reports were also received of "compulsory military service" being imposed on minors by paramilitary groups. Increasing forced recruitment by illegal armed groups of minors who had taken refuge in the border areas of Panama, Ecuador and Venezuela was reported. [...]

45. Although there are no consolidated statistics on the exact numbers of children taking direct part in hostilities, nearly 7,000 minors are estimated to be fighting with FARC-EP, ELN and the paramilitaries. [...] Another 7,000 are believed to belong to urban militias linked to different parts of the armed conflict. The extension of the conflict to urban areas has led to increased recruitment of minors by illegal militias, as in Medellín.

46. The Office of the High Commissioner has received information about minors being used as informers by the Army in Meta and Putumayo, sometimes with the offer of reward. [...] The same was reported when the police arrested three members of the Asociación de mujeres de las dependencias (Las Dependencias Women's Association, AMI) in Medellín in November: child wearing a hood was said to have been used as an informer." (UNCHR, 24 February 2003, paras 25-6, 34-6 Annex)

"Children continued to be among the main victims of the armed conflict, despite the special protection provided them under humanitarian law. The Office received numerous complaints that the different guerrilla and paramilitary groups have continued to recruit children under 15 years of age. The paramilitary groups, FARC and ELN, have forcibly recruited minors for their ranks." (UN HCHR 28 February 2002, para. 168)

"In 1999 the Government announced that no one under the age of 18 could enter military service, even with the consent of a parent; previously, individuals over 16 years of age but below age 18 could volunteer to

join the military with parental permission but were barred from serving in combat. The Ministry of the Interior reported increased recruitment of minors by illegal armed groups during the year. The MOD reported that an increased number of minors deserted from illegal armed groups; 93 children under the age of 18 surrendered to state security forces during the year, compared with 72 in 2000 and 29 in 1999." (US DOS, March 4 2002, sect. 1.f)

"There was an increase in children abandoning the ranks of the guerrillas at great peril to their lives, since the punishment for "deserters" of any age is death by shooting. There are many children in the guerrilla ranks." (UN HCHR 8 February 2001, chapter V, paras. 109-110)

"In 1999 the FARC promised visiting Special Representative of the U.N. Secretary General on Children in Armed Conflict Olara Otunnu that it would stop forcing children into its ranks; however, it continued the practice, and during the year, the number of children recruited appeared to increase. Once recruited, child guerrillas are virtual prisoners of their commanders and subject to various forms of abuse. Sexual abuse of girls is a particular problem. Former child guerrillas have testified to rape, mandatory use of intrauterine devices, and forced abortions. Child soldiers, including girls, were seen in guerrilla ranks in the despeje, and reports from various sources indicate that the guerrillas recruited at least 120 minors, but possibly many more, in the despeje. According to press reports, at least one third of the guerrillas were under the age of 18. The Roman Catholic Church and teachers reported that the FARC lured or forced hundreds of children from the despeje zone into its ranks. According to press reports, families from the demilitarized zone, as well as from Arauca, Valle del Cauca, and Antioquia departments have fled their homes because guerrilla groups have tried to impress their children. In February the FARC handed over 62 child guerrillas, ranging from 12 to 16 years of age, to the Government. The children had been serving in the FARC for up to 3 years. According to press reports, in August 2000, members of the FARC killed a school rector in Meta department for criticizing the recruitment of his students." (US DOS, March 4 2002, sect. 1.f)

"With respect to recruitment of minors by paramilitary groups, a [1996] report by the Office of the Human Rights Ombudsman estimates that approximately 15% of the members of these groups are minors. The report further affirms that, in some areas, the percentage rises to as much as 50%. The Commission has also been informed that paramilitary groups go to low-income areas or camps of displaced persons, offering sums of money to attract children to their ranks. [...] According to information received by the Commission, in other cases, the paramilitary groups simply carry off the children by force." (IACHR 1999, chapter XIII, para, 62)

"At present it is estimated that there are 7.000 child soldiers in the ranks of illegal armed groups." (Ministry of National Defense, January 2002)

"Se estima que 6.000 niños y niñas están vinculados a los grupos armados, su mayoría entre los 15 y 17 años - aunque también hay menores de 15 años. El 14.28% de ellos los son por vinculación forzada. Los que se vinculan "voluntariamente" lo hacen por las siguientes razones:

- 33.3% por reconocimiento el reconocimiento y respeto que las armas y uniformes les pueden ofrecer.*
- 33.3% por pobreza. La guerrilla promete protección social y salario.*
- 16.6% por relación cotidiana. Por haber vivido desde su nacimiento en ambientes con presenciade grupos armados.*
- 8.3% por enamoramiento o decepción amorosa; miedo de los ataques; venganza." (UNICEF Colombia, 2001, 'Niños y niñas en las filas de los grupos armados')*

"Thanks to an agreement between UNICEF and the AUC signed on the 29th November 2002, the 40 children, aged between 14 and 17 years old, have been demobilised. According to UNICEF in Bogota, these children are in good health but are worried about their future.

UNICEF will provide them with some counselling. One of the main activitiy will be to send them back to school.

From March [2003] to date, about 800 children under 18 have officially left these groups (guerrillas and paramilitaries). The Government estimates that between 30 to 40% of guerilla members are children below 18 years, however UNICEF cannot confirm these figures.

According to UNICEF, some 7,000 children remain enrolled in illegal armed groups in the country. Some others are engaged in urban militia groups.” (UNICEF, 13 June 2003)

Protection concerns affecting displaced women (2003)

- Women and girls account 47% of displaced population
- There is no comprehensive policy on displaced women therefore their specific needs remain unaddressed
- HCHR reports women are victims of cruel punishments by paramilitary groups if they disobey their newly imposed ‘code of conduct’ (2003)
- Organizations defending the rights of displaced, peasant, Afro-Colombian, and indigenous women were victims of threats
- Under-aged women recruited in armed groups suffered disregard for their sexual and reproductive rights according to UNHCHR
- Displaced women suffer multiple discrimination along gender, class and identity as many are indigenous or Afro-Colombian
- Widowed and separated displaced women assume multiple roles of single mothers and breadwinners
- Rape used as war-strategy or stemming from chaotic living conditions and socio-economic disarray, causes dramatic rises in sexually transmitted diseases as well as psychological disorders
- One out of two displaced women in urban areas suffer from household violence

“22. Violence within the family has continued unabated. Women were the victims in 91 per cent of the 43,000 cases of marital violence and 61 per cent of the 14,000 cases of domestic ill treatment [...]. Despite legislative progress, an effort should definitely be made to improve the protection, assistance and rehabilitation of victims of human trafficking. [...]

23. Women’s rights have been particularly affected by the armed conflict. In conflict, women tend to be treated as objects and their state of unjust inferiority and subordination to men is further aggravated. Of particular concern is the vulnerability of displaced women and girls (who account for 47 per cent of all displaced persons), including those from rural areas, heads of household, indigenous women and Afro-Colombian women. Displaced women often encounter difficulties in their dealings with the authorities owing to their lack of personal documents. Because there is no comprehensive public policy on displaced women allowing a differentiated approach, it is difficult to attend to their specific needs for assistance and protection, especially against violence and sexual abuse. Also, little attention is paid to women’s mental and emotional needs during and after displacement.

[...]

47. Women have been subjected to various kinds of violence, especially sexual violence, [...] by illegal armed groups to spread terror or demonstrate their dominance and control over a territory. Women are also subject to cruel punishment if they do not follow the codes of conduct imposed by paramilitary groups in various areas of the country. [...] The Office of the High Commissioner has received accounts of girls being subjected to sexual abuse by members of guerrilla and paramilitary groups. The situation of women’s organizations has worsened this year owing to threats against women’s lives and personal integrity, selective killings, and displacements blamed on illegal armed groups. Some organizations have been threatened because they defended the rights of women, particularly those of peasant, Afro-Colombian,

indigenous and displaced women. This was true of the Organización Femenina Popular (OFP), the Asociación Nacional de Mujeres Campesinas, Indígenas y Negras de Colombia (National Association of Peasant, Indigenous and Black Women of Colombia, ANMUCIC) and the Liga de Mujeres Desplazadas de Bolívar (League of Displaced Women of Bolívar). [...]

48. Fighting women enrolled in illegal armed groups suffer disregard for their sexual and reproductive rights by their fighting companions. According to the Office of the Ombudsman, out of a group of 65 under-age girls investigated in 2001, all “wore intrauterine devices, some inserted against their will, with no information of any kind, merely because it was an order on which their continued enrolment in the group depended”. (UNCHR 24 February 2003, para 22-23, 47-48)

"Displacement has a greater impact on women, in both psychological and social, economic and cultural terms. Furthermore, they are discriminated against not only because they are displaced, but also because they are women, or indigenous or Afro-Colombian. Poverty has more serious effects on displaced women who are heads of household and resettled in marginal areas. The Office has also received information on the overcrowded living conditions for displaced persons and the frequent cases of sexual abuse of women, leading to an increase in sexually transmitted diseases. The health-care services are not comprehensive and do not include, for example, psychosocial care for women who have been sexually assaulted." (UN HCHR, 28 February 2002, para. 127)

"Research on the impact of political violence on Colombians tells how the rape and murder of women (especially pregnant ones) during the period of La Violencia [1948-1958] was used as a symbolic demonstration of hatred toward the opposing party. In the 1970s, urban women were more active in political and social movements and therefore became victims of selective murders in order to eliminate political opposition. In the late 1980s, violence toward rural women increased. Women became victims of the war between guerrilla and the military-paramilitary group and were killed in bombings and random confrontations and were detained and tortured to obtain information about their partners or sons. In 1997, women's groups documented the increase of rape and sexual abuse of women and girls in areas of former guerrilla presence as a strategy of intimidation by paramilitary groups. (Obregon and Staropoulou 1998, p. 418)

"The human rights Ombudsman's office reported an increase in violence against women during 1997, especially in war zones. It noted that most female victims in zones of conflict chose not to report the abuses they had suffered, in part due to a lack of confidence in the efficacy of governmental institutions to address their problems. The Ombudsman noted that female leaders of political and peasant organizations in the Uraba-Antioquia region were increasingly the targets of persecution, threats, torture, and executions. According to the Ombudsman's 1997 report, there was a substantial increase in sexual assault and murder of women that year, particularly in Meta, Arauca, Cesar, and Sucre departments." (U.S. DOS 26 February 1999, section 1g)

"The victims of internal displacement who have suffered most from loss of their identity, even more than men, are traditional peasant women, particularly those who have been widowed through violence. Notwithstanding their grief, these women have to safeguard the family's physical survival and build a new social identity in an unknown and hostile urban environment. Displaced men on the contrary, have greater geographic mobility and more social and political experience and are stronger in facing ruptures with their social and rural environment. Men feel the impact of displacement through unemployment, which deprives them of the role of economic providers. [...]

The Special Rapporteur recalls that, in accordance with the Deng Principles on Internal Displacement, article 10 of Law 387 of 1997 states the need to provide special assistance to women and children, particularly to widows, women heads of households and orphans.
[...]

The difficult living conditions for IDPs in squatter camps on the fringes of the cities and the fact that most of the men face unemployment have led to an increase in intra-familial violence in these communities. Women and children are the main victims of family violence. A survey published by PROFAMILIA in

August 2001 on the situation of displaced women indicates that one out every two women surveyed has suffered physical abuse from her spouse and 20 per cent of pregnant women were subjected to physical violence during their pregnancy.” (UN HCHR 11 March , 2002)

Sexual exploitation of girls:

"Although statistics on sexual exploitation of the displaced remain unavailable, evidence suggests that it is widespread. The few girls who are able to enter school are frequently removed by parents seeking to guard their daughters against sexual violence and early marriage. Guerrilla or paramilitary groups often perceive village girls as girlfriends of their adversaries, and so may rape and/or abduct the girls. Some girls choose to avoid this fate by joining a military group, thereby becoming less vulnerable." (Women's Commission May 1999, p. 11)

“The Office has received reports of sexual abuse of girls serving in the ranks of the guerrillas, generally by middle-ranking officers. ” (UN HCHR 8 February 2001, chapter V, para. 109)

“The Special Rapporteur also heard reports that women and young girls from the IDP communities are vulnerable to being trafficked into forced prostitution in tourist centres in Colombia and abroad.” (UN CHR 11 March 2002)

Displaced persons targets of political violence even after they have fled (2003)

- The very fact of fleeing rises suspicion around the alleged loyalty of the displaced to a particular armed group
- Paramilitary groups such as AUC regularly label displaced persons as “guerrilla sympathizers”
- As displaced people are often stereotyped as guerrilla fighters, including by the press, people are reluctant to rent rooms or provide help to the displaced by fear of retaliation
- Displaced in city outskirts are commonly victims of urban death squads
- Displaced people are often considered as "undesirables", and are targeted by urban gangs, and armed groups who accuse them to support the enemy

“[...] the threats to physical security which the displaced flee to escape often follow them into the communities in which they seek refuge. The very fact of having fled typically heightens suspicions of allegiance to a particular armed actor and intensifies the risk of being targeted. Stigmatized and fearing for their lives, many of the displaced seek safety in anonymity, attempting to blend into communities of the urban poor. Having abandoned their homes, property and livelihood for conditions of destitution and continued insecurity, they constitute an extremely vulnerable segment of society.” (UN CHR, 11 March 2002)

"In Colombia, by far the most complicated civil war in Americas, paramilitary forces—under the umbrella of the United Self-Defense Units of Colombia (AUC)—regularly label displaced persons ‘guerrilla sympathizers’. Often they denounce peasants in this way because they covet their land. They then uproot them to enhance the holdings of large landholders for whom they work or for their own criminal and related activities. Responsible for most of the displacement in Colombia, they also uproot peasants to rout guerrilla forces, namely the Revolutionary Armed Forces of Colombia (FARC) or the National Liberation Army (ELN). These insurgencies control large swaths of land in Colombia, benefit from drug trafficking, and engage in hostage taking, forced conscription and other criminal activities, from which peasants also flee.

Whether uprooted by AUC and government counterinsurgency drives or by the guerrilla groups, displaced persons remain politically suspect *after* they have abandoned their homes and communities. The very fact that they have fled areas of fighting provokes suspicion of them as people with an allegiance to a particular armed actor. And in their new places of ‘refuge’, many continue to fear for their lives and for that reason,

try to blend into communities of urban poor to reduce the risk of being targeted. Nonetheless, because they are stereotyped as guerrillas or as their relatives, 'people won't rent rooms to the displaced, and the press describes IDPs in ways which support this impression.'" (Cohen and Sanchez-Garzoli May 2001)

Displaced people victims of "social cleansing"

"The poor and the displaced are particularly affected by urban death squads rooming marginal barrios. Given that the Catatumbo has historically been an Eln occupied zone, displaced people settling in Cucuta are often stigmatized as guerrilla supporters. Consequently, many prefer not to get onto the RSS register which would in theory guarantee a three months humanitarian assistance, for fear of being targeted by one of the armed actors." (PCS, 17 March 2003)

"Death threats are the mechanism that the armed groups use most frequently to get rid of people considered "undesirable" because of their alleged collaboration with the "enemy" and to take over their property or to motivate them to displace." (UN HCHR 28 February 2002, para. 144)

"In the cities, gangs known as *brigadas populares* attracted the support of guerrillas. Other gangs also formed, particularly 'cleanup squads' comprised of young upper-class men seeking to rid cities of 'undesirables' and, eventually, displaced people. These gangs had support from drug traffickers and the young men who joined them were known as *sicarios*. 'Thus by the mid-1960s,' observes Tirado-Mejía, 'violence, which had hitherto been mostly rural, also became urban.'" (Women's Commission May 1999, pp. 3-4)

Serious violations of the physical integrity of leaders of displaced communities and human rights defenders (2002)

- The New Administration accused human rights defenders of collaborating with insurgents, these allegations further undermine their protection
- Protection of threatened defenders continued to be slow and inadequate and often irrelevant, and the violators of human rights seem often to enjoy impunity
- There is an alarming shrinkage of the humanitarian space in several regions, and no measures have been taken to overcome the discrimination and stigmatisation that the displaced have to face
- Human Rights Defenders often receive death threats, which are meant to cause displacement to other regions or make them leave the country
- The situation of human rights defenders continued to deteriorate in 2001, particularly in Magdalena Medio, in the city of Barrancabermeja.
- Several leaders of displaced populations and other communities were murdered in 2001 and the beginning of 2002
- Most selective killings targeted at human rights defenders, trade unionists and indigenous or displaced community leaders are perpetrated by paramilitary groups

"Uribe's strong verbal attack against human rights defenders in early September, some of whom he accused of collaboration with the insurgents, caused severe consternation in Colombia as well as abroad" (ICG, 13 November 2003, p.2)

"Government efforts to protect threatened defenders continued to be slow, inadequate, and often irrelevant. Even as government offices provided bullet-proof glass to threatened offices and distributed bullet-proof vests, defenders continued to be murdered by experienced killers who often benefited from impunity [...]." (HRW 2001)

“Some government offices attempted to protect threatened defenders, supplying bodyguards, bulletproof reinforcement for offices, and an emergency response network operated by handheld radios. In many instances, however, the government’s response was slow, nonexistent, or abusive.” (HRW, 15 March 2002)

"Durante el año 2000 también se multiplicaron los homicidios selectivos precedidos de amenazas contra defensores de derechos humanos, funcionarios judiciales, periodistas, sindicalistas, académicos, funcionarios municipales, líderes indígenas y campesinos, candidatos a cargos de elección popular – incluyendo a miembros de la Unión Patriótica[18]—y ex combatientes desmovilizados." (IACHR 2000, Chapter IV)

"The displaced are not receiving due protection and security guarantees from the State. In many area of inward flow, the Office has registered threats and attacks on members of the displaced population, particularly their leaders. In this sense, the shrinkage of the humanitarian spaces in several regions is extremely alarming. The Government still has not created an adequate programme to care for displaced people at risk, nor has it taken any measures to overcome the discrimination and stigmatisation that the displaced have to face. Mention must be made of Cacarica case in which three displaced individuals were killed in Turbo in March 2000 by people thought to be paramilitaries. In September 2000 a group of displaced people who had settled Tuluá (Valle) were threatened by paramilitaries who told them to go back home. The Government’s reaction was to set up a high-level commission that has not yet been able to arrive at a final answer for the individuals concerned, many of whom felt constrained to submit to the paramilitaries’ will." (CHR, 8 February 2001, chapter VI, para. 145)

"UNHCR is increasingly concerned about the deteriorating situation in Colombia and its impact on innocent civilians [...] We were particularly outraged by the murders in late December [2001] of two leaders of the Peace Communities of the Atrato River. The murdered leaders –Petrona Sánchez and Edwin Ortega– were both dedicated to serving their community, especially children and women, and to creating an environment in which people could live together." (UNHCR, 11 January 2002)

Several indigenous leaders were killed in 2001 and the beginning of 2002:

"Another worrying trend can be observed in the attacks against leaders of the displaced population. Examples are the homicide of the president of the Fundación Solidaridad y Justicia de las Víctimas y Desplazados por la Violencia, Darío Suárez Meneses, attributed to members of FARC, on 11 May in the city of Neiva (Huila), and the case of Eder Enciso Sandoval, one of the leaders of the displaced population in the township of La Reliquia, Villavicencio (Meta).

[...]

Several indigenous leaders were murdered in 2001. Attacks on these leaders particularly weaken the internal organization and undermine the leadership of their communities and jeopardize their very survival as communities. Furthermore, unwise decisions by regional authorities that question or cast doubt on the integrity of indigenous individuals or their communities do little to protect the latter or safeguard their fundamental rights.

[...]

The Embera Katio communities have been particularly affected. A typical example is the disappearance of Kimy Pernia Domico, leader of the indigenous council of Río Verde (Alto Sinú) on 2 June, for which paramilitary groups have been held responsible.

[...]

The Office continued to receive complaints from the indigenous communities living in the Sierra Nevada de Santa Marta and the Perijá mountains in the jurisdiction of the departments of César, Magdalena and La Guajira. The large number of “selective” killings (mainly attributed to the paramilitaries) in the course of the year in the region inhabited by the Kankuamo indigenous people is a cause for concern. Some irregularities committed by the military were also reported, such as the excessive use of force or ill-treatment of indigenous officials and leaders. The Office received information to the effect that on 9 May, in downtown San Juan de César (Guajira), four soldiers from the army detained a Wiwa leader at gunpoint and forced him to the ground. The communities living in the Sierra Nevada and the Perijá mountains have

also reported instances of pillaging of indigenous homes." (UN HCHR, 28 February 2002, paras. 279, 298, 299, 301)

"The High Commissioner has repeatedly expressed her concern at the insecurity that affects those participating in the investigation of human rights violations as a result of impunity.

[...]

This year mayors, indigenous leaders, health-care workers, shopkeepers, presidents of community action boards and, above all, agricultural labourers, fell victim to the guerrillas and paramilitaries. Among others, FARC killed the mayors of Juradó (Chocó) and Puerto Rico (Caquetá). The indigenous communities were the victims of both the guerrillas and the paramilitaries for opposing the armed groups' use of their territories.

[...]

Human rights defenders are at particular risk in central Magdalena, and especially in the city of Barrancabermeja. Of particular concern are the situations of the Organización Femenina Popular (Women's Popular Organization, OFP) and CREDHOS. The Office found that members of these groups are obliged to work in an atmosphere of insecurity, without safeguards for their rights, and at serious risk for their lives and physical integrity, owing notably to threats from paramilitary groups. AUC launched a campaign of violence and terror against the civilian population in the region, identifying the people and groups involved in defending human rights and humanitarian law as potential or actual guerrilla collaborators and declaring them "military targets". (UN HCHR, 28 February 2002, para. 42, 139, 275)

57,898 IDPs fled from regions plagued by minefields in 2002 (2003)

- 28 out of the 31 Colombian departments are affected by minefields so 256 municipalities
- Convención, Tibú and San Calixto in the departments of North of Santander and San Carlos and San Luis in department of Antioquia are municipalities affected by both the highest rate of displacement in 2002 and the presence of minefields
- According to government sources there are more than 70,000 antipersonnel
- According to calculations of ICRC, about 2,000 persons per month or 1 every 20 minutes, become victims of mine incidents, Arauca is the worst affected department
- Thousand of displaced persons are unable to return to their homes due to the presence of antipersonnel mines
- The government of Colombia has ratified the Ottawa Convention on the Elimination of Anti-Personnel Landmines, but demining costs have been estimated at US\$23

"Al menos 57.898 personas salieron forzadamente en 2002 de regiones en las que, además de las formas tradicionales de degradación de la guerra, fueron denunciadas la existencia de campos minados. Se calcula que 28 de los 31 departamentos están afectados por el uso de estas minas reportadas en por lo menos 256 de los 1.115 municipios del país. Antioquia, Bolívar, Santander, Arauca, Cesar, Putumayo, Norte de Santander y Cundinamarca, están señalados como los ocho departamentos que tienen mayor presencia de minas antipersonales [...].

Municipios como Convención, Teorema, Tibú y San Calixto (Norte de Santander), así como San Carlos y San Luis (Antioquia) presentan la doble condición de ser zonas minadas y tener una de las más altas tasas de desplazamiento en el 2002." (CODHES, 28 April 2003)

"La información reunida por el Observatorio de Minas Antipersonal permite concluir que estas minas afectan una vasta extensión del país. Del total de 1.097 municipios de Colombia, 140, localizados en 22 de los 31 departamentos, fueron escenario de accidentes e incidentes por estos artefactos durante los diez

primeros meses de 2001[...]. En otras palabras, se conoce que el 12,8% de los municipios de Colombia tiene plantadas minas antipersonal.

El departamento más perjudicado es sin duda Arauca, donde no sólo se ha presentado el mayor número de víctimas (ver más adelante), sino que cinco de sus siete municipios (71,4%) han presenciado accidentes e incidentes por minas antipersonal. En Antioquia fueron 34 los municipios afectados, concentrados en su mayoría en el oriente y el sur del departamento, en una franja geográfica que se prolonga hasta los departamentos de Santander y Norte de Santander, donde se han producido accidentes e incidentes en 13 y 11 municipios respectivamente." (Vicepresidency-DIH, December 2001, p.7)

"20,000 antipersonnel landmines have been planted by the military; the rest by the armed opposition groups, in particular the FARC and ELN. If we take into account that antipersonnel mines have been used in Colombia since the era known as "La Violencia" (1940s), and that there is evidence that indicates that the majority of the guerrilla groups have been using them ever since, the number of landmines in the country might be much higher." (Vicepresidency-DIH, December 2001, p.5)

"The guerrilla groups continued to use anti-personnel mines, endangering the civilian population, especially children, and disregarding the principle of distinction. ELN placed mines on the highway from Quibdó to Carmen de Atrato and in central Atrato. They cited their conflict with FARC in the region as justification." (UN HCHR, 28 February 2002, para. 182)

"Paramilitary groups on occasion used landmines and sometimes forced underage into their ranks. [...] Guerrillas used landmines both to defend static positions (such as base camps, cocaine laboratories, and sites at which kidnap victims were held) and as indiscriminate weapons of terror. According to the Vice President's office, the FARC and ELN have laid indiscriminately 50,000 mines in rural areas. Landmines planted by guerrillas or disguised as everyday items such as soccer balls or paint cans often resulted in the killing or maiming of civilian noncombatants; thousand of displaced persons were unable to return to their homes due to the presence of antipersonnel mines." (U.S. DOS February 2001)

"The Colombian Government had taken a number of positive steps in the area of the rule of law, the High Commissioner said. [...] The Government also had ratified the Ottawa Convention on the Elimination of Anti-Personnel Landmines [...]." (CHR 17 April 2001)

"Colombia necesitará al menos 20 años y más de 23 millones de dólares para remover las minas antipersonales sembradas en el país, en cumplimiento del Tratado de Otawa, que otorga a los países firmantes diez años como plazo límite para eliminar sus inventarios de estas armas y erradicar los campos minados en sus territorios.

[...]De acuerdo con el Tratado de Otawa, los estados firmantes deben destruir todas sus existencias de minas en un plazo de cuatro años, y en seis más, levantar todos los campos minados existentes en sus territorios. [...]Al ratificar el Tratado, en marzo del año pasado, Colombia se comprometió a eliminar estas armas de sus estrategias militares y a limpiar el país de minas.[...]Estas obligaciones no son fáciles de cumplir, no sólo por el costo que puedan tener, sino también porque el conflicto armado dificulta un trabajo efectivo frente al problema de las minas. "Mientras no existan acuerdos humanitarios sobre este tema, la guerrilla seguirá sembrando, almacenando y fabricando minas y no entregará información sobre su ubicación", concluye el estudio." (El Espectador, 24 March 2002)

Freedom of movement

Decree No. 2002 of 11 Sept 2002 undermines freedom of movement (2003)

- Freedom of movement restricted due to illegal checkpoints set up by armed groups
- Decree No.2002 declared unconstitutional by the Constitutional Court on 25 Nov 2002 seeks to limit freedom of movement and residence in ‘consolidation and rehabilitation zones’
- Military allowed to carry arrests and violate private life without warrant in ‘rehabilitation and consolidation zones’
- The Decree takes measures to demand ‘determinate persons’ to communicate all their displacements outside of the ‘zone’ which is in violation of the principle of necessity and proportionality
- The non-authorization of displacement in the zone of ‘consolidation and rehabilitation’ grants judicial powers to administrative authorities which is against the fundamental principles of the right to impartial judgment, including under the state of ‘exception’

“10. The most serious violations of the right to freedom of movement and residence were caused by unlawful impediments to free internal circulation and by enforced displacements. [...] This year, impediments to free circulation arose not only from illegal checkpoints set up by armed groups to control the movement of pedestrians and traffic in areas under their control, but also from the implementation of Decree No. 2002, under which people living in rehabilitation and consolidation zones were subjected to a series of measures incompatible with the international principles of legality, necessity and proportionality which must be observed even in states of emergency.

“16. Under the terms of Decree No. 2002, issued on 11 September, the Government took stern measures to restore public order. This decree redrew the rehabilitation and consolidation zones, established a procedure for defining their boundaries and laid down rules for their operational monitoring. It also made it possible to restrict freedom of movement and residence in those areas, to limit the movement and residence of foreigners, to make use of privately owned property and to oblige citizens to supply technical or professional services.

17. In a ruling issued on 25 November, the Constitutional Court declared several of the provisions in Decree No. 2002 unconstitutional, including those allowing the security forces - including the military - to carry out arrests, conduct searches and intercept mail and telephone calls with or without a warrant.” (UNCHR, 24 February 2003, paras16-17)

« 7. *Artículo 15: Información sobre desplazamientos en la zona*
Este artículo prevé la adopción de medidas para exigir “a personas determinadas” que comuniquen con una antelación de dos días todo desplazamiento fuera de la Zona de rehabilitación cuando se trate de su residencia habitual. La indicación de “personas determinadas” contrasta con la necesidad de normas precisas, claras e inequívocas y puede resultar en una violación del principio de no discriminación. Todas las excepciones al principio de libre circulación deben interpretarse en sentido estricto y su ejercicio y alcance quedarán limitados por los principios generales del derecho, como los de no discriminación, de proporcionalidad y de protección de derechos fundamentales.

Por otra parte, al igual que en el artículo 14, la falta de indicación de las situaciones en las cuales se podrá exigir la comunicación de todo desplazamiento no permite identificar la estricta necesidad de la medida, con evidente violación de los principios de necesidad y proporcionalidad.

8. *Artículo 16: Desplazamientos no autorizados*

El incumplimiento de la obligación prevista en el artículo 15 (información sobre desplazamientos en la Zona) es sancionado con la retención transitoria inmutable hasta por 24 horas. Es evidente que el presente artículo introduce un tipo penal, identificando una conducta punible (el incumplimiento de la obligación de informar sobre el desplazamiento) y la sanción a éste aplicable (identificada en la privación de libertad hasta las 24 horas).

Por el presente artículo se atribuye a la autoridad administrativa el poder de imponer motu proprio una sanción que entraña la privación de la libertad, en ausencia de un mandamiento escrito de la autoridad judicial competente, y en violación de las garantías judiciales y procesales que protegen la libertad personal y el debido proceso.

Cabe recordar que, a juicio del Comité de Derechos Humanos, las garantías relacionadas con la institución de la suspensión se basan en los principios de legalidad y del Estado de derecho inherentes al Pacto en su conjunto. Por esta razón “dichos principios y la disposición sobre recursos efectivos exigen que los principios fundamentales del derecho a un juicio imparcial se respeten durante un estado de excepción. Sólo un tribunal de derecho puede enjuiciar y condenar a una persona por un delito, y se debe respetar la presunción de inocencia”. » (OHCHR, 1 December 2002, para 7-8)

Besieged and embargoed communities trapped in war and hunger (2003)

- In the Lower Atrato displaced families are under food and economic blockade imposed by guerrillas and paramilitary groups fighting over control of the zone
- Some blockaded people manage to flee, leaving belongings and land behind, and most of those who stay are not reached by state assistance
- Boats carrying goods on the Cartagena-Turbo-Quibdó route have been unable to pass since 1996 due to escalation of conflict and peasants along the river have been unable to trade their products
- Over 21,720 people were besieged during 2002, some of whom in the Catatumbo suffered the highest malnutrition rates in the country of to 48% according to WFP (2002)
- Common military tactic of armed groups is to besiege communities, depriving them from freedom of movement, and right to flee or seek humanitarian assistance
- Armed groups and public security forces act like an occupying power and forcibly confine people and circulation of basic goods, fuel and medicines in order to avoid 'infiltrations' from the enemy
- Besieged communities are often indigenous or Afro-Colombians and most affected are the regions of North of Santander, in the Sierra Nevada of Santa Marta, Serranía of Prijá, Chocó and Cauca
- Human rights violations suffered by besieged communities are not registered and communities are out of reach of humanitarian assistance in areas where there is no state presence
- La Gabarra zone controlled by paramilitaries and guerrilla groups have been put under siege and prevented from fleeing by the latter who need the farmers to cultivate coca

“Sobre guerra y confinamiento el informe precisa que las zonas mas afectadas fueron la Sierra Nevada de Santa Marta, la región de los Montes de Maria, Arauca, Catatumbo, Bajo Atrato, Magdalena Medio, Oriente antioqueño, litoral pacifico de Nariño y territorios de la antigua zona de distensión en la que se realizaron los fallidos diálogos por la paz entre el anterior gobierno y las FARC.” (CODHES, 10 December 2003)

Besieged and embargoed Afro-Colombian and indigenous along the Atrato river (1996-2003)

“We speak to one of the displaced who tells us that the security forces – albeit present in Bellavista, the municipal capital just 10 minutes from Caimanero – have been unable to provide protection to rural areas like Caimanero. People would return if the security forces could protect the village and the state would rebuild the houses destroyed by war.

Apparently, the local guerrilla leader wasn't very happy about our arrival at La Loma de Bojaya, a larger village of some 900 inhabitants. The FARC has established a quasipermanent presence here and, according to some, they are the real masters of this village. Understandably, locals are reluctant to speak about their

situation here, but one tells us that no one in this village was allowed to vote in the mayoral elections in October. The FARC burnt the ballots to make their point clear. The day of our arrival, the local FARC leaders order the community to a meeting. Villagers are reluctant to attend, given that they may be perceived as guerilla supporters if they do, but may be punished by the guerrillas if they don't.

As we continue our journey into the Lower Atrato, the landscape changes from plain forests to vast cordilleras and swamps. At Curbaradó, we meet with the 14 displaced families who came here two months ago from nearby Jiguamiandó, which is one of the areas where the food and economic blockades imposed by both the paramilitary and guerrilla forces in their fight to control the zone are most severe. Local farmers have not been allowed to visit their farms or cross the river since the blockades began in March 2003, or to bring in food from the outside. Most of the 250 families who lived in the basin have since left because of lack of food and work and above all because of fear. They left behind their lands, livestock and houses. Those who came to Curbaradó have not yet received state-provided relief aid packages and live in extremely precarious conditions – poor and overcrowded housing and only occasional work opportunities. We are told, however, that despite these conditions and the trauma of displacement, the situation of these families has somewhat improved, mainly because of the relative peace they feel here.

[...]

Hampering commerce

Everyone we talk to speaks of the impact of blockades and sieges on the local communities along the river. While implications vary from area to area depending on the dynamics of localized war, the closure of this commercial Cartagena-Turbo-Quibdó water route as part of the escalation of the conflict has had an affect on everyone. The boats that used to carry people and goods along the river have been unable to pass since 1996. Consequently, farmers can no longer sell their agricultural produce and the prices of goods purchased from outside the Atrato region have soared. *'The Cartagena-Quibdó river route allowed the exchange of agricultural products for merchandise at a better price. The arrival of the conflict made it impossible for us, preventing free movement,'* one peasant tells us.

[...]

Blockades – a military strategy

The public security forces as well as the irregular armed actors have checkpoints along the Atrato River to control the movement of people and goods, and limit the transport of fuel and medicine. The church, the local indigenous and Afro-Colombian organizations and the mayor's office continuously criticize the local security forces for confiscating or restricting the transport, particularly of medicine, fuel and canned food, allegedly to prevent them from reaching the guerrillas. The local indigenous organization OREWA has denounced the rationing of basic provisions by security forces, which further exacerbates food insecurity in the region. The local population is also wary of the frequent interrogations and compulsory registering of their names at checkpoints, a particular habit of the security forces. *'At times the armed actors register us, noting down our names and taking our photos. This makes us uncomfortable, because we don't know what they are using this information for,'* says a local community leader.

Tackling food insecurities?

Despite the lack of security and blockades, people are increasingly resisting displacement as they see few chances of survival elsewhere, but in some cases, such as that of Jiguamiando, residents eventually have no choice but to leave their homes. *'People have been slowly displaced due to hunger and fear.'* Both the regional ombudsman and the ACIA representative emphasize that more needs to be done to assist blockaded communities with relief aid and protection mechanisms in order to prevent further displacements. Indeed, blockaded communities face similar conditions to those that are internally displaced (loss of income, absence of employment, trauma, impoverishment and uncertainties)." (PCS, 2 December 2003)

"En estas circunstancias, salir o permanecer se convirtió en una elección dramática entre la libertad para huir y el miedo a quedarse. Huyen quienes pueden salir en busca de refugio porque su territorio, o bien es objetivo de un actor armado, o es todavía escenario de disputa. En cambio, cuando una de las partes asume el control y ejerce modelos de sometimiento similares al de una fuerza de ocupación, se impide la libre movilidad de sus habitantes y se limita la acción humanitaria.

[...]

En cambio, quienes se quedaron o fueron obligados a permanecer, viven hoy el drama del sometimiento, del emplazamiento, del sitio en su territorio y el control a la población por parte del actor armado dominante, que usa esta estrategia para evitar la “infiltración del enemigo”, y posicionarse en la zona sin importarle la suerte de una población civil atrapada y sin salida.

Así ocurre en sectores y comunidades de Norte de Santander (en especial Alto Bobalí), en la Sierra Nevada de Santa Marta y Serranía de Perijá, Chocó (en los ríos Jiguamiandó y las comunidades de paz de Cacarica), y Cauca (región del alto Naya), entre otros. Esta situación, sostenida en algunos casos durante meses, incrementa las condiciones de crisis humanitaria a las que son sometidas personas, familias y comunidades, quienes deben enfrentar la adversidad del confinamiento, sin posibilidad de apoyos externos o una respuesta estatal pronta y efectiva.

Las lógicas de dicho confinamiento pasan por el bloqueo que realizan los actores armados a la circulación de personas, mensajes, alimentos, medicinas e insumos; es decir, por el confinamiento territorial.

En el caso de los pueblos indígenas, sus organizaciones estiman que en 2002 fueron sometidas a este tipo de confinamiento forzado más de 21.720 personas: 5500 Kankuamos en la Sierra Nevada de Santa Marta (25%); 4300 Nasas (Paeces) de la Cuenca Alta del río Naya (20%); 4000 Barís de la Serranía de los Motilones, en la Cuenca del Catatumbo (18%); 2760 Emberas del medio Atrato, en el departamento del Chocó (13%); 2500 Yukpas de la Serranía del Perijá (12%); 1.850 Emberas en Dabeiba, Antioquia (9%); y 800 Emberas de Carmen de Atrato, en la Subregión andina del Chocó (4%).” (CODHES, 28 April 2003)

“11. One tactic of the illegal groups is to “besiege” rural communities, preventing villagers from leaving, and blocking access to food, fuel, medicines and the basics for survival. Communities sometimes find themselves enclaved or isolated between two or more armed bands and cannot displace themselves, although their circumstances are objectively similar to those described in article 1 of Law No. 387/97.

[...]

26. Recently, new kinds of victimization have begun to emerge but have not been registered, as in the case of the “besieged communities” not being reached by food, medicine, fuel or basic supplies. It is rare for such communities to receive any humanitarian assistance, despite the obviously critical situation and the urgency of intervening. Likewise, there are other groups affected by the conflict to which attention is not being drawn and which are not being helped, such as the receiving communities.” (GTD, 29 November 2002, pp.6, 10, 18)

Catatumbo Region:

“Sobre el dominio de los grupos paramilitares en La Gabarra, se han evidenciado intentos de las FARC y el ELN. La población de la región intentó desplazarse, pero los paramilitares bloquearon la salida porque se quedaban sin mano de obra para recoger la droga.

[...]

PMA- Unas 12, 000 personas. Las consecuencias humanitarias del bloqueo son realmente graves: más del 48% de desnutrición global de la población (uno de los más altos del país). Muchas familias consumen únicamente plátano y yuca. Ya se comieron los animales. Hay contrabando de la canasta básica.” (PCS, 8 November 2002)

“During the period covered by this report, the Office was informed of violations of this right [of movement] both by the military and by the paramilitary groups. Although beyond the scope of this report, it is important to document the fact that in several important regions of the country, the movement of persons and goods alike has become unpredictable and risky, chiefly because of the frequency, intensity and duration of guerrilla operations along the nation’s highways. [...]

Military restrictions on freedom of movement affected the inhabitants of indigenous territories for example in the Sierra Nevada of Santa Marta, where it became especially difficult to obtain basic commodities. Another case involved the Peace Community at San José de Apartadó (Antioquia), where under orders

from the commander in charge of the area, soldiers insisted that all entering or leaving must identify themselves and show their papers, and only members of the community were allowed to enter. The community has moreover, been incessantly denounced by the authorities, who accuse its members of having links with the guerrillas.

Throughout 2000, the Office received reports of paramilitary roadblocks, particularly in Tibú (Norte de Santander), Valle del Guamuez (Putumayo), Quibdó (Chocó) in the Antioquia municipalities of San José de Apartadó, Urrao, Frontino y Uramita, and in Bahía Solano, Tumaradó (Chocó). In the latter case, returnees from Cacarica were affected. The roadblocks were often set up at sites within areas with a visibly strong military presence." (UN HCHR 8 February 2001, chapter V, paras. 51-54)

"The internally displaced who are grouped in settlements on temporarily occupied lands, find their possibilities for circulation very limited in practical terms. In the first place, because the authorities responsible are incapable of providing individual or collective protection to those who, for whatever reason, wish to venture off the settlement permanently or temporarily. In second place, because irregular groups impede the full exercise of this right by means of threats." (DIAL July 1999a, "Freedom of movement")

SUBSISTENCE NEEDS (HEALTH NUTRITION AND SHELTER)

Food

WFP study reports 80 percent IDPs have insufficient access to nutritional foods (2003)

- IDPs in Colombia suffer from inadequate food intake due to lack of income rather than access to food
- IDPs are in a worst state of indigence than the urban poor along whom they live
- Before displacement most people produced what they consumed, after displacement they are constrained to purchase 80% of their food from the market
- IDPs have a caloric intake of 43%, thus 57% below the norm and protein intake is also deficient leading to illnesses (chronic diarrhoea and respiratory problems) and incapacitating deficiencies
- One fourth of IDP children are at risk of malnutrition and 41% of IDP households fall under high nutritional vulnerability
- Displaced babies are breast-fed in average 2.3 months after which they are given cereals, pulses and fruits which increases the risk of illness

“Last June, WFP published an assessment study on food security vulnerability for the population displaced by violence in Colombia. The Humanitarian Situation Room deems it of utmost importance to contribute to the dissemination of this study. Therefore, we are presenting below the main findings of the study.

The survey covered 1,503 households of persons displaced by violence to municipal seats. To supplement the statistical data, a qualitative investigation was conducted through 18 focal groups consisting of 148 family heads and spouses and interviews with 22 community leaders. The displaced population was surveyed about type of shelter and living conditions, food security, food acquisition and coping mechanisms. The results indicate that this population suffers from a significant lack of adequate nutritional resources and is in serious food security risk. This is due mainly to their inability to generate sufficient income to meet their nutritional needs. When comparing the situation of the lowest income resident population of urban areas with the displaced population in the same locations, the displaced individuals were found to be in a worse state of indigence.

Food Consumption

Regarding food consumption, the study found that 80% of food is bought, 17% is subsidized, and 3% is obtained by self-production. Highest consumption foods are: rice, manioc, plantain, onion, potatoes, molasses and sugar. This represents a higher proportion of energetic foods and a low intake of micronutrients such as calcium, iron, and vitamin A. The nutritional status in the homes of displaced families is critical. Caloric intake is just 43% and protein intake is 84% of the RDA. These deficits have a serious impact on the health status of this population; among them, malnutrition (having serious growth effects on height and weight), higher predisposition to infections (especially acute respiratory infections) and acute diarrheic disease. These are the main causes of general morbidity in the children population.

Nutritional Status of Children of Displaced Families

As to the nutritional status of children, the survey found that one fourth of children of displaced families are at risk of malnutrition. Furthermore, children are being prematurely fed nutrients other than breast milk, increasing their risk of illness.

Structural and Temporary Deficiencies

Displaced households have an average of six-family members, 2.6 of whom are children between 0 and 12 years of age. Usually, displaced individuals are young, with an average age of 20 years of age per household. This means that 70% of the household members are economically dependent on other family members. Seventy eight percent of homes are headed by the head of the family and his/her spouse, 20% have a woman as the sole head of the family and 2% have a man as the single head.

Basic Sanitation, Schooling, Morbidity and Mortality

Basic sanitation conditions are critical, 63% live in inadequate housing, and 48% have inadequate utilities, while 61% live in crowding conditions. As far as schooling is concerned, 24% of family heads have no schooling, 60% attended some years of primary school (18% completed primary school) and 29% had some high school education (11% finished secondary school). Seventy five percent of children between 6 and 9 years of age attend some educational institution, as well as those between 10 and 25 years of age. Regarding morbidity and mortality, the survey found that the mortality rate is 6 times the national average. The survey did not find major problems in food availability. Usually households have places relatively near by where they can get food.

[...]

Nutritional Vulnerability

After analyzing all the factors that place individuals at risk of food insecurity or malnutrition, including those factors that affect their ability to counter those risks, the survey concluded that 41% of homes fall under the high vulnerability rating, 42% are rated average and 17% at low vulnerability. These findings not only confirm the seriousness of the nutritional crisis of the displaced population, but are also a warning of the need to focus humanitarian, and especially food assistance, on homes in critical conditions of vulnerability.” (UNCTC, 30 August 2003)

« Lactancia y alimentación complementaria en niños y niñas menores de dos años. Un componente muy importante de la seguridad alimentaria de los niños y niñas menores de 2 años es la lactancia y en especial, la lactancia exclusiva. Según los resultados de la encuesta, el 67.5% de los menores de 2 años están siendo amamantados, aunque no de manera exclusiva y el 4% nunca se alimentó con leche materna.

La duración de la lactancia, para la mayoría de los niños y niñas que lactan, es de aproximadamente 12 meses, sin embargo, al investigar sobre lactancia exclusiva, se encuentra que el tiempo lactancia exclusiva es mucho menor, con un promedio de 2.3 meses.

El abandono precoz de la lactancia y el hecho de no contar con lactancia exclusiva se confirma con los resultados del análisis de alimentación complementaria, en donde se encontró que los niños y niñas menores de 6 meses reciben, principalmente, alimentos con base en cereales, papa, yuca, algunas frutas y lenteja. Este hallazgo es preocupante dado que hasta los 3 meses de edad, un menor no ha adquirido la madurez fisiológica suficiente para digerir correctamente alimentos diferentes a la leche materna.

Las mamás argumentan haber abandonado la lactancia por enfermedad o debilidad, porque el menor rehusó, porque no tenía leche o por haber quedado embarazada. Una explicación del primer fenómeno está en que la introducción temprana de alimentos diferentes a la leche materna desestimula el deseo del niño de mamar. En promedio, las madres lactan a sus hijos de 3 a 4 veces en 24 horas, lo cual es menos de la mitad del promedio nacional, según la Encuesta de Demografía y Salud. » (WFP, 16 June 2003, p.5)

Health

Morbidity among IDPs is 6 times the national average (2003)

- 80% of IDP households reported illness 15 days before the study (2003)
- Only 22% of IDPs receive medical attention, according to PAHO
- About 38,879 Colombians were affected by HIV/AIDS in 2002 and IDPs are particularly vulnerable due to breakdown of family structures, inadequate and over-crowded living conditions, exploitation and lack of access to health services
- 73% of women do not know where to register and a high percentage are unaware of the benefits of receiving certification for their condition of displacement
- 80% of displaced households reported someone ill during the 3 last months , of which only 53% had seek medical assistance due to lack of money according to IOM
- 43% of children under 5 had vaccination cards
- 80% children had respiratory illnesses and 30% presented diarrhoea
- According to Agreement No.185/2000 of 23 December 2000, registered displaced persons have free and unlimited access to health care and medicines
- Structural and administrative flaws have resulted in hospitals not being reimbursed for their expenses on IDPs, as a result some institutions have preferred not to recognize the latter as such MSF Spain working in Soacha revealed that among the 11,000 IDPs in the slum, only 2.5% possessed a displaced card (June 2001)
- Displaced women reportedly unable to obtain health services for themselves or for their children, often as a result of lack of documentation and IDP cards as well as lack of health facilities in the barrios
- A survey carried in the Nelson Mandela slum indicated that 57% of children died of preventable diseases

"En términos de las condiciones de salud se encontró que el 80% de los hogares manifiestan haber tenido alguien enfermo en los 15 días anteriores a la encuesta. De éstos, en el 62% de los casos, el enfermo tuvo que guardar cama.

Al preguntar si alguna persona del hogar fue hospitalizada en el último año, en el 40% de los hogares respondieron afirmativamente. con los siguientes resultados: Los resultados demortalidad on alarmantes. La tasa de mortalidad es 6 veces superior al promedio nacional. En los 1.503 hogares de desplazados encuestados fallecieron, en el último año, un total de 220 personas.

Si se tiene en cuenta que en los 1.503 hogares se encontraron 9003 personas en total, la tasa de mortalidad es de 24.4 por cada mil habitantes, tasa muy superior a la observada para el totalnacional, donde las proyecciones para este mismo periodo dan una tasa de mortalidad de 4.3 por cada mil habitantes. » (WFP, 16 June 2003, p.9)

“Data presented by the National Institute of Health confirms that 9.85 out of every 100,000 Colombians were affected by HIV/AIDS in 2002; which translates to 38,879 persons living with the virus since 1983. The age group most affected are persons aged between 14 and 25.

Internally displaced persons are considered especially vulnerable to HIV/AIDS due to the breakdown of family structures and living conditions that take place during the process of displacement, including poverty, exploitation, discrimination, separation from families and social networks, and little or no access to health services.

Under the scheme, 23 trained facilitators will provide support to the local authorities and train health workers. The project will be implemented through the Department for Gender Studies at the National University and Profamilia, a local NGO specializing sexual and reproductive health.” (IOM, 29 July 2003)

“This lack of registration with the Social Solidarity Network is likely one factor that blocks IDPs’ access to local health services. The Pan American Health Organization (PAHO) estimates that only 22 percent of displaced households receive medical care. [...] According to the Profamilia 2001 study, 73 out of 100 women do not know where to receive authorization certifying their displaced status, and a high percentage of women are not familiar with the benefits of receiving such certification. [...] Even when the displaced qualify for services, their needs may be ignored due to the stigma attached to their displacement. In addition, hospitals and clinics may not be adequately equipped and financed to cope with the additional burden of an increasing displaced population.” (Marie Stopes International, etc..., 13 February 2003, pp.9-10)

“La atención en salud es una de las principales demandas de los desplazados. En la ante citada encuesta de OIM, cerca del 80 % de los hogares desplazados reportó alguien enfermo en los últimos tres meses, de los cuales sólo el 53 % busca asistencia profesional. La razón fundamental para no acudir a un profesional fue la falta de dinero. Entre los hogares entrevistados, el 38 % no tenía ningún tipo de afiliación, el 48 % estaba bajo el sistema subsidiado del gobierno SISBEN. El acceso a los servicios de salud también sigue siendo un problema constante. La mayoría tiene que pagar por la consulta medica y apenas el 23% aproximadamente tiene alguna filiación al Sistema de Seguridad Social. [...]

En términos generales, la respuesta en salud para desplazamientos masivos en la fase de emergencia fue relativamente eficiente en el año 2001. La OPS-OMS apoyó la movilización de recursos, la evaluación de necesidades de salud y la preparación de planes de emergencia cuando solicitado por las autoridades territoriales.

Sin embargo, la respuesta a las necesidades en salud para los desplazados individuales sigue siendo débil. Es una población que esta expuesta a muchos riesgos ambientales ya que se asientan en las áreas más pobres, más lejanas de los servicios públicos, de distribución de agua y saneamiento, y con mayores riesgos de desastres naturales. Los indicadores de salud pública de esta población son ciertamente preocupantes, a modo de ejemplo: apenas 43% de los niños-as menores de 5 años disponen de carnets de vacunación, el 80% de estos niños-as presentan síntomas de enfermedades respiratorias y 30% de ellos presentan diarreas. [...]

Además de la crisis en que la que se encuentra el sistema de salud de Colombia, la demora en la publicación conjunta entre la RSS y el Ministerio de Salud de la reglamentación de los servicios prestados a este grupo supuso una dificultad adicional en la prestación del servicio de salud a los desplazados. Algunos de los cuellos de botella en la atención en salud de la población desplazada se encuentran en las demoras y desconocimiento de los mecanismos de facturación de las entidades de salud. Además, aduciendo dificultades para poner en marcha el sistema de pago de estos servicios, hay entidades que se niegan a atender a los desplazados. También se han registrado quejas sobre la calidad de la atención y el hecho de que los desplazados no reciben medicamentos, que están normalmente fuera de su capacidad adquisitiva.

Otro problema detectado ha sido la extrema vulnerabilidad de los puestos de salud en los procesos de retorno, siendo objeto frecuente de ataques por parte de los grupos armados ilegales. Una posible alternativa sería la formación de promotores de salud en las áreas rurales. Por otro lado, los hospitales rurales, normalmente de nivel 1 o 2, no pueden cubrir aquellos casos que revisten mayor gravedad y no contemplan el traslado de los pacientes a otros centros.” (GTD, 23 November 2002, p.35-6)

“Cerca del 80% de los hogares reportó a alguien enfermo en los últimos tres meses; la frecuencia más alta se presentó en Bucaramanga, (91%), que es también la ciudad de menor cobertura de servicios públicos de acueducto y en donde el mayor porcentaje de hogares no tiene acceso a una unidad sanitaria [...].

Un 53% de los hogares con personas enfermas buscó atención profesional por lo menos para uno de los casos, el 26% no buscó asistencia y el 21% restante acudió a farmacias, curanderos o miembros de la familia [...].

[...]

La mayoría de los que no buscaron asistencia profesional (61%) indicó como razón para ello restricciones de dinero; 32% adujo que el caso era leve y 7% otras razones que incluyen lejanía del centro de atención, calidad del servicio, demora en las citas, no creencia en los médicos o temor a ellos [...]. Si se comparan las razones presentadas por la PDI encuestada con las establecidas para la población total en la Encuesta de Calidad de Vida de 1997 [...], se observa que la razón de “caso leve” tiene la misma participación que para la PDI; pero que “no tener dinero” representa un 41% de los casos, 20% menos que en la PDI. Otras razones representan un 28% del total, una proporción cuatro veces mayor que la mencionada por la PDI.

[...]

Más de la mitad de los hogares entrevistados se encontraba afiliada a un plan médico de seguro, a través del sistema subsidiado de gobierno SISBEN (48%) o con planes de salud públicos o privados (14%), los hogares que no estaban afiliados a ningún plan médico representaban el 38% restante [...].

[...]

Uno de los resultados más alarmantes de la encuesta de la OIM es el alto número de hogares que mencionó pérdida de peso en los niños del hogar. Un 41% de los hogares con niños menores de 12 años reportó pérdida de peso en los últimos seis meses” (IOM, 6 June 2002, pp.9-14)

"The Agreement No.185/2000 of 23 December 2000 established that payments rendered for health care services would be directly drawn from the Solidarity and Warranty Fund (FOSYGA), specifically from its sub-account for disaster events. [...]

Therefore, in theory, and as long as they have been granted displaced status, these people have free, unlimited access to health care services in any IPS, whether public or private, including access to medicines. As the law has not established when displaced people stop having unlimited access to the system, this assistance is indefinite; however, this depends on factors such as being included in the Register and on how fast information flows as well as the possibilities available in health care structures at arrival areas.

[....]

Meanwhile, FOSYGA was allocated 15 billion pesos for displaced people's health care, out of which only 4,000 pesos were spent. [...] In 2001, the allocated budget was cut to 7 billion pesos, most likely as a result of the infra-utilization of resources.

The situation of those without a displaced identity card is notably worse for several reasons (including the fact that they may not be displaced by violence in the terms established by the law). Many of them are “vinculados” (i.e. part of the Social Security Program that do not have the ability to pay even for subsidized services) however, even in the best case scenarios (if they were affiliated to an EPS (*Entidad Prestora de Salud* – Health care Center) or an ARS (*Administradora de Régimen Subsidiado* – Subsidized Health Care Plan) in their places of origin), they cannot assert their rights because the transfer of all of the necessary papers and the new affiliation procedures are complex and can take a long time. Consequently, they remain deprived of health care assistance." (González Bustelo, December 2001, ch. 10 sect.2)

"Thirty-six thousand people live in the 24 communities [in Soacha, Altos de Cazuca] included in the survey and were selected because they were within the area covered by the MSF Spain projects. According to the survey, 27.6% of the target population were said to be displaced (11,000 people) while only 2.5% of them possessed a displaced card." (González Bustelo, December 2001, ch. 10 sect.1)

"Recently the National Health Institute carried out a survey to determine the epidemiological profile of Nelson Mandela, in Cartagena, a shantytown settlement with an large number of arrivals. [...] Environmental health is awful and people have hardly any access to public services, they are exposed to disease-carrier vectors and environmental poisonous substances and live in places where the geological risk is high. All group ages show a high prevalence to illness: only 7% of the children and 33% of the adult population had been healthy during the two weeks prior to the survey. 57% of children mortality rates between August and November 2000 could have been prevented. 60% of the population included in the survey presented different stages of clinical depression. The study shows that, amongst the displaced

population, emotional disorders and somatic complaints are high." (González Bustelo, December 2001, ch. 10 sect. 3)

For a full review of IDPs' rights to health see the report from the Mesa de Trabajo de Bogotá sobre Desplazamiento Interno 'Las personas desplazadas tienen derecho al disfrute del mas alto nivel posible de salud fisica y mental' (September 2003) see bibliography below.

Women's specific health requirements remain un-addressed (2003)

- IDPs most commonly reported reproductive health problems are gender-based violence, adolescent pregnancies, inadequate childbirth services, lack of money for medicines and essential care
- IDPs are stigmatized and discriminated when seeking health care and IDP women with pregnancy complications are turned away from hospitals
- IDPs lack access to reproductive health care owing to the abdication from the Colombian government to its responsibility to provide reproductive health services
- Condoms are not free and widely available to IDPs
- Gender-based violence perpetrated by armed actors remains unaddressed and includes rape, murder, sexual servitude, forced contraception and abortions
- IDP communities left with no access to health care a high risk for STD transmission including HIV
- Displaced and adolescent girls are the least aware of HIV/AIDS despite being the most vulnerable group
- 47% of pregnant women did not receive antenatal care and 30% did not use family planning methods
- 30% ID adolescent girls are pregnant or mothers, twice the national rate due to inexistent family planning services for IDPs
- 27% IDP women had either miscarriages or stillbirths and of these 37% received no treatment
- 50% of IDP women had been victims of physical attacks and 24% had been raped

"The assessment team findings indicate significant reproductive health needs among the IDP population with an alarming and unconscionable dearth of services available to them. The reproductive health problems most commonly expressed to the team were gender-based violence, adolescent pregnancies, inadequate childbirth services, particularly for complications of pregnancy and childbirth, and a lack of money for medicines and essential care.

[...]

The assessment team also frequently heard that when IDPs sought health care, they were stigmatized for being IDPs, felt humiliated and degraded and were required to pay or go without medicines and services." (Marie Stopes International, etc..., 13 February 2003, pp.37)

"The assessment team found that IDPs suffer a critical lack of access to reproductive health care owing to a number of factors. Colombians' access to health care overall is faltering between national policy at the central level and services to the population at decentralized levels, leaving many Colombians, particularly IDPs, to fall through the cracks without health care. While the main role of United Nations (UN) agencies is to support local and national capacity to respond to the humanitarian crisis, the Colombian government has abdicated its responsibility to provide reproductive health services and the result is a tragic dearth of services for IDPs.

Those who are displaced in large groups, who represent less than half of all IDPs, are most likely to receive the extremely limited emergency assistance provided. This assistance, however, does not include reproductive health care. The local Planned Parenthood affiliate, Profamilia (*Asociación Pro-Bienestar 2 de la Familia Colombiana*), provides most of the reproductive health services in Colombia and is just beginning to significantly increase its outreach to IDPs. However, Profamilia charges a small user fee for services, limiting IDPs' access to medicines and care. Few international organizations are supporting direct services to IDPs, despite the scale of this humanitarian emergency. Finally, lack of funds for services, medicines and transport, as well as discrimination by service providers, also prevents IDPs' access to reproductive health care.

The minimum initial services package (MISP) of reproductive health services, now considered a basic standard of care in emergency situations, is not available to IDPs in Colombia. Free services, including emergency contraception, are not available to manage and support survivors of violence. Condoms and clean delivery kits are not free and widely available to IDPs. IDP women suffering from complications of pregnancy and delivery are turned away from hospitals and life-saving emergency obstetric care.

The team learned that IDPs, particularly women, girls and adolescents, experience horrendous reproductive health problems in Colombia. Gender-based violence (GBV), including rape followed by murder, sexual servitude, forced contraception and abortions, is perpetrated by armed actors, is extensive and is largely unaddressed. In addition to GBV inflicted by armed actors, the situation is desperate for some families; the team heard of some instances of girls and boys being sexually exploited by their parents or turning to prostitution for family survival needs. The assessment team learned from IDP women that domestic violence is a major problem, exacerbated by the difficult living situation for IDPs. (Marie Stopes International, etc..., 13 February 2003, pp.1-2)

"There is very little information available about the specific health situation of IDPs. Profamilia therefore conducted a study in 2001 that for the first time tried to quantify the reproductive health status of marginalized women in Colombia. In the Profamilia study, marginalized women are defined as "the IDP and host populations." [...]

Family Planning

Although national registries appear to indicate a general desire of Colombians to limit family size, the 2001 Profamilia survey revealed that women displaced by armed conflict and who live in marginalized areas plan less and have more pregnancies and larger families, making their subsistence more difficult. [...] Marginalized women had an average of 5.3 living children as compared to a national average of 3.4 and a rural average of 4.8. Nearly half (47 percent) of the women who were pregnant at the time of the Profamilia study did not receive any antenatal care.⁵³ The survey also shows that two out of every five women interviewed who were pregnant did not want their pregnancy. Approximately 30 percent of displaced and marginalized women aged 15–40 who are in a union do not use any family planning method. [...] Among women interviewed by Profamilia, the average number of live births per woman was 2.7 and the average number of live births the women thought would be ideal was 2.4. [...] The MOH reports that all family planning is free and it is not an issue of access, but of demand. However, the assessment team found that public health centers did not have family planning supplies. Profamilia introduced emergency contraception in Colombia in 2001 with significant resistance from the Catholic Church.

UNFPA reports that in the demilitarized zone the Revolutionary Armed Forces of Colombia (FARC) force women to use contraception and abortion. There have been subsequent problems with pelvic inflammatory disease. [...]

Safe Motherhood

As with other areas of reproductive health, safe motherhood services are limited in the country in general, and even less accessible for those who are displaced. Services are overstretched. UNFPA reports that the situation for IDPs at hospitals is precarious; deliveries and miscarriages take place at hospital doors. IDPs' inability to pay for services gives rise to discrimination by service providers. Hospitals refer emergency

obstetric cases to other hospitals when IDPs cannot pay, delaying life-saving care for women. According to UNFPA, one medical director left his position of direct service provision because of the ethical dilemmas that he faced in not providing assistance to those in need. [...]

Displaced women often face discrimination when attempting to access services, or they lack the necessary medical insurance or coverage to obtain treatment. For example, IDPs receive less antenatal care during pregnancy than do Colombian women overall. Even when comparing women displaced by armed conflict to the host population or other migrants, 56 percent received no antenatal care as compared to an average of 47 percent among the marginalized group. Twenty-seven percent of displaced women who were surveyed experienced either a miscarriage or a stillbirth. Of these, 37 percent received no treatment or medical care. [...]

STIs/HIV/AIDS

STIs, including HIV/AIDS, are the reproductive health issues of greatest concern according to the UNFPA representative with whom the assessment team spoke. [...] Little is known about the problem because there are no statistics for IDPs. UNFPA has noted a high occurrence of male-to-female and MTCT of syphilis, with subsequent congenital syphilis. They have found it difficult to treat men from indigenous communities and have resorted to supporting the hospitalization of indigenous women to prevent them from becoming re-infected and to prevent MTCT.

The majority of marginalized women (97 percent) interviewed by Profamilia in 2001 reported knowledge of AIDS.⁶⁰ However, while one in every three females feels that she could contract HIV, half of the women did not know where to get tested for the virus. Among those with the lowest knowledge of AIDS are women displaced by armed conflict and adolescents aged 13–14. Although STIs are as common among the displaced as other conditions such as malnutrition, respiratory illnesses, diarrhea and parasitic diseases, the Profamilia study found that 28 percent of women are unable to identify any symptom of an STI. [...]

Gender-based Violence (GBV)

The majority of displaced women in Colombia face an extraordinary amount of violence due to armed conflict or other physical, emotional or sexual abuse from their partners/spouses, strangers, friends, exhusbands, fathers-in-law or step-fathers. Half the female respondents to the 2001 Profamilia survey reported physical attacks, 50 percent of which were perpetrated by their partners.⁶³ One in every five displaced women reported having been a victim of sexual violence and 24 percent reported having been raped. [...]

Paramilitaries have also gone to the families of girls in Puerto Asis requesting their daughters to go with them for a weekend as a “community service.” The consequence of refusal can be murder. Some girls are kidnapped for cooking and cleaning and are systematically raped by paramilitaries. [...]

Adolescent Reproductive Health

The situation of displaced adolescents is critical. They have the highest pregnancy rates in the country and confront serious problems in their sexual and reproductive lives. Displaced adolescent females also have crucial family planning needs, as 30 percent of these adolescent girls are already mothers or pregnant with their first child. Of those women aged 13–19 who were pregnant, over half would have liked to have postponed pregnancy and 20 percent did not want to get pregnant.” (Marie Stopes International, etc..., 13 February 2003, pp.18-21)

“En términos de salud sexual y reproductiva no hay oferta estatal al alcance de las mujeres. Esta situación es particularmente grave, dado el alto índice de enfermedades de transmisión sexual y el elevado número de embarazo adolescente, como señalado anteriormente.” (GTD, 23 November 2002, p.35-6)

“Entre octubre del año 2000 y mayo de 2001 Profamilia realizó una Encuesta Nacional en Salud Sexual y Reproductiva de las Mujeres Desplazadas. En ésta se visitaron 1894 hogares en donde se identificaron 2279 mujeres entre los 13 y los 49 años de edad. Mediante la encuesta se pudo establecer que el 60% de

las mujeres carecen de cubrimiento en salud, por lo que su panorama es bastante preocupante. Se embarazan a carta edad, tienen hijos no deseados, desconocen las enfermedades de transmisión sexual y no planifican de manera adecuada. Por otro lado, el 57% de las mujeres que son maltratadas sufren secuelas, el 13 han sido fracturadas y el 2% han abortado. Además una de cada cinco mujeres han sido abusadas sexualmente." (CODHES, September 2001, Panorama Nacional)

For the full report on sexual and reproductive health of displaced women, see: Profamilia Colombia [\[External Link\]](#)

Lack of attention to IDPs' psycho-social health (2003)

- IDP children suffer from emotional trauma, as 63% of them have at least one family member murdered
- IDP children are also victims of child labour, prostitution and criminal activities
- In addition to the loss of identities references points, the displaced suffer from fear, mistrust, depression, and somatic disorders
- The feeling of powerlessness among IDPs is exacerbated by the widespread impunity prevalent in Colombia, following traumatic experiences and gross violations of human rights

"According to Save the Children UK, over a million children, 800,000 of whom are under the age of 14, have fled their homes. [...] Apart from the deterioration in their quality of life, IDP children in Colombia often suffer from emotional trauma. An estimated 63 percent of displaced children have at least one family member who has been murdered or has been a victim of an attempt on his/her life. [...] Moreover, the number of IDP children going to school is minimal due to high costs, the lack of available space in local schools and stigmatization. Child labor among Colombian IDPs is common, as are prostitution and criminal activities among displaced adolescents.[...]" (Marie Stopes International, etc... 13 February 2003, p.8)

"Aside from needing shelter and food in the short and middle term, the situations endured can have serious psychological repercussions. People suffer from fear, mistrust, several stages of clinical depression, and somatic disorders, together with the feeling of having lost their cultural identity, their sense of belonging to a community and all of their personal possessions: from being individuals with full rights, they become just a part amongst the "bulk" of the displaced.

[...]

A fundamental element in these people's psychological conditions is determined by impunity, which is as psychologically harmful as the violent event. [...] Many feelings of guilt, self-criticism and dependency are the result of not having been able to prevent displacement and of the impunity of the guilty. As Teresa Uribe states, "those who cause displacements live very well. Nobody interrogates them, nobody investigates them". [...] This fact strengthens helplessness." (González Bustelo, December 2001, ch. 10 sect. 3)

Water and sanitation

10% of IDPs have no access to sanitation systems (2002)

- Only one fourth of IDP households were connected to the public system of sewage, compared with a 70% national rate, according to IOM
- 72% of IDPs have access to a public aqueduct for their water needs

- The IDPs with worst water and sanitation systems those in the Departments of Santander, Valle, and North of Santander
- Less than half of the IDPs had access to waste disposal systems

“De acuerdo con los resultados encontrados, se pudo establecer que en el aspecto de vivienda, un cuarto de los hogares entrevistados contaba con inodoro conectado al sistema público de alcantarillado, otro 24% estaba conectado a una pozo séptico. Un 11% del grupo tenía letrinas y 14% un inodoro no conectado, [...]. Según estadísticas oficiales respecto al país, el 70% de los hogares cuenta con un inodoro conectado al sistema público de alcantarillado, 12% utiliza fosa séptica, 8% utiliza inodoro no conectado o letrina, lo que significa que únicamente un 10% no tiene ningún tipo de unidad sanitaria. [...] Es claro, entonces, que la PDI presentaba condiciones de alcantarillado bastante deficientes.

[...]

Al preguntarles de dónde proviene el agua que utilizaban para beber, un 72% reportó tener acceso a un acueducto público o comunitario y el 28% restante agua de una pila pública, un pozo, un receptor de agua de lluvia, un río u otras fuentes [...]. Entre los hogares colombianos entrevistados en la encuesta del DANE sobre calidad de vida en 1997, el 85% de todos los colombianos tenía acceso a un acueducto público o comunitario [...]. Así, en conjunto la PDI de los seis departamentos estaba en una posición similar al del resto de la población en cuanto a agua.

No obstante, [...], la PDI que habitaba en los departamentos de Santander, Valle y Norte de Santander enfrentaba las peores condiciones absolutas y así mismo en relación con la población total departamental. Aunque en Caquetá se tenía un nivel bueno comparativamente (similar a Nariño y Putumayo) de acceso al acueducto, presentaba un pésimo porcentaje de conexión a alcantarillado, solo un 4% de los hogares. Es importante llamar la atención sobre el problema de acceso al alcantarillado de la PDI que habita en las ciudades de Florencia – Caquetá y de Tumaco – Nariño, 2% en ambos sitios. Sin embargo, este problema parece ser general para todos los habitantes de estas dos ciudades.

[...]

De acuerdo con la Encuesta de Hogares de la OIM, el 48% tenía servicio de recolección de basura [...]. El Índice de Necesidades Básicas Insatisfechas (INBI) muestra que un 43% de las familias colombianas reside en viviendas inadecuadas, 79% enfrenta servicios inadecuados y 61% hacinamiento crítico. Las gráficas 4, 5 y 6 resumen los porcentajes de población (PDI y grupo control) que enfrentan NBI en cuanto a servicios inapropiados, vivienda inadecuada y hacinamiento crítico, respectivamente ” (IOM, 6 June 2002, p18-21)

Shelter and non-food items

63,5 percent IDPs live in inadequate houses compared to 7,1 percent among the urban poor (2003)

- 49% of IDPs have inadequate services while the proportion is 6 percent among the urban poor
- Before displacement, 54% of IDPs in Bogotá owned a house after displacement, in Bogotá the percentage dropped to 0,8%
- 68% of IDPs in Bogotá rent shelter while 91% owned or rented accommodation before being displaced (2002)
- Displaced sheltered in shantytowns compete with local populations over scarce resources, are deprived from basic rights and services and discriminated on the basis of alleged connection with guerrillas
- Local authorities impose discriminatory housing measures to deter IDPs from seeking refuge in their municipalities

- Displaced in urban areas settle in marginal neighbourhoods (or barrios), often on private properties from which they face the risk of being evicted
- The shelters are built of wood, cardboard, mud and sticks by the displaced or made available to the newcomers by the community
- Barrios lack access to basic services (electricity, water, sanitation, transportation) and are exposed to landslides due to heavy rain

“El 7.1% de la población más pobre urbana tiene una vivienda inadecuada, mientras que los desplazados con vivienda inadecuada son el 63.5% . El 6.0% de la población del mencionado quintil tiene servicios inadecuados, mientras que los desplazados con servicios inadecuados son el 49%. » (WFP, 16 June 2003, pp.6-7)

« Los resultados muestran que las condiciones sanitarias son deficientes. El 78% de las viviendas de los desplazados cuenta con inodoros conectados en alcantarillado, el 8.9% con inodoro conectado a pozo séptico y el 5.3% no tiene servicio sanitario. El servicio sanitario es de uso exclusivo en el 77% de los hogares desplazados. » (WFP, 16 June 2003, p.8)

« Antes de su desplazamiento, un poco más de la mitad (54%) de esta población era propietaria de la vivienda que habitaba con su familia. El 13,5% residía con familiares mientras que cerca del 12% contaba con vivienda bajo la modalidad de arriendo y casi en la misma proporción vivía como aparceros. Actualmente, en Bogotá la gran mayoría vive en arriendo o en posadas y sólo un 0,8% dice ser propietaria del lugar que habita. » (UNHCR, 1 July 2003, p.30)

“The reality of the displaced is also characterized by poor housing conditions. Indeed, while 91% owed or rented houses in rural areas, today, 68% of these families rent one small room or if lucky a house.” (PCS, 31 December 2002)

"Displaced people arriving at shantytowns in big cities share their space with communities already settled (although from a historical perspective they are referred to as displaced from other times) and, like them, are deprived of all rights. This is the case in Ciudad Bolívar (Bogotá), Altos de Cazuca (Soacha), Nelson Mandela (Cartagena) or in some municipalities of Medellín: all known in Colombia as “subnormal” districts, areas flooded with new arrivals that continue to grow without urban plans or authority support. In this context, the displaced become part of a larger group of migrants, increasing the numbers of poor people in the country.

As they arrive, the displaced encounter many situations that stigmatize them as they have to compete for access to welfare services with the population already there and are sometimes seen (even by civil servants) as belonging to one of the parties in the conflict and a potential source of problems. As a civil servant said in Soacha referring to the displaced, “guerrillas, ex-guerrillas or informants, who knows...” (González Bustelo, December 2001, Chapter 5)

"In addition, in certain regions where housing shortages mean that displaced persons live in temporary squats, as is the case in La Reliquia (Villavicencio), the local authorities do not respect basic rights such as education for displaced children, despite their international and constitutional obligations. In other cases, discriminatory conditions are introduced, such as a five-year residency requirement, with the express intention of excluding displaced persons from social programmes so that the municipality will not become too attractive, as has happened in Fusagasugá (Cundinamarca)." (UN HCHR 28 February 2002, para. 239)

“The exodus of displaced people toward cities is ongoing. In the urban areas, so-called “invasion slums” - where the displaced settle- they are again confronted with violence and lack basic services such as health care, clean drinking water and sanitation facilities.” (MSF, 4 February 2002)

"One single *barrio* of the Atlantic coast city of Cartagena (Bolívar), called Nelson Mandela, is home to up to 27,000 displaced people." (PCS, 31 December 1998, p.101)

"There are two levels of need. First, immediate temporary shelter should be available to the newly displaced as they make their transition into their new city or town. Second, there is equally great need for long-term shelter for the burgeoning populations of displaced that crowd urban areas and maintain only a tenuous existence in their marginal barrios. The displaced frequently 'invade' unoccupied private property, so their hold on their shelter is doubly tenuous. Not only do these people lack basic services--electricity, water, sanitation, transportation--but they are subject to being evicted from these lands at any time.

In Medellín, the Commission visited a neighborhood of about 2,000 people who live high in the hills that rise high above the city, in precariously perched rickety wood and cardboard structures. The *barrio* is stripped clean of vegetation and when it rains the hillside becomes a dangerous corridor of slick mud. Women interviewed in this neighborhood related their despair at having nothing with which to shield themselves and their children from the rain, wind and cold. In this neighborhood, there is an informal pattern of passing along available shelter to newcomers arriving from elsewhere in Antioquia and other regions.

In small villages such as San Pablo in the South of Bolívar, women use wood planks, mud and sticks to build shelter. They, too, live on the outskirts of the town, next to streams of waste water, where access to water, sanitation and electricity is difficult or impossible. The Commission visited families in bare ranchos in outlying areas of town, where the dirt floors frequently turn to mud because of their proximity to the Magdalena River." (Women's Commission May 1999, p. 6)

"In February [1998], a number of families displaced from several parts of the country and several years ago, now settled in Medellín, occupied [an] untitled piece of land in the rural area near Bello, within the metropolitan area of Medellín. On April 8, displaced persons disappeared and were then killed, only a few hours before the peasant farmer in the area was driven from their homes in El Pinar, by the Police and by order of the office of the Mayor. In December, this community was affected by landslides, caused by heavy rain.

The eviction of families settled on urban or suburban land was repeated in one way or another in several cities around the country, and the displaced population had even less protection in its integration with the cities, due to the lack of solutions for their return home, or their relocation on farmland." (GAD March 1999, p. 23)

ACCESS TO EDUCATION

General

IDP children often rejected from schools (2003)

- 24% of heads of displaced households have no scolarisation (2003)
- During 2002 about 216,350 children left school due to forced displacement, according to the government
- During 2002 assistance for the education of IDPs covered only 8.8 per cent of the total needs and about 29 per cent of the needs of IDPs in Bogotá
- Commonly, insufficient resources are allocated to local schools to cover the needs of the displaced for example the capital of Tolima received resources for only 265 IDPs while 1,163 solicited assistance
- No books nor uniforms are provided through government assistance, only small kits with pencils and paper
- About 95% of displaced children are rejected from secondary schools due to lack of exoneration of fees, payment of books and uniforms
- 20% of IDP children do not attend school at all according to the Ministry of Education (2001)
- Even when enrolment is free for IDPs, 54% of the IDP children out of school due to high cost, 23% due to the necessity to have a remunerated activity and 9% because they take care for their siblings
- Although IDP children are entitled to free school enrolment for one year, no budget is allocated for them and nothing is planned for education afterwards
- 54% of IDPs cited lack of financial means for not sending their children to school

« Al evaluar la escolaridad del jefe se encuentra que el 24% no tiene educación, un 60% hizo algún nivel de primaria (18% la completó) y un 29% hizo algún nivel de secundaria (11% la acabó). En cuanto a los menores, el 75% de los niños y niñas entre 6 y 9 años asiste a un establecimiento escolar, así como el 46% de los que tienen entre 10 y 25 años. » (WFP, 16 June 2003, p.8)

“The absence of education for those displaced is equally worrying. It is estimated that in Soacha only 20% of those displaced have access to primary education and 5% can access secondary education [13]. Schools are overcrowded and in concentrated areas of displacement, schools lack the capacity to take on new kids. Given the situation, levels of illiteracy are extremely high.

[Footnote 13: According to the Colombian ombudsman, there are 10,000 children without access to primary education in Altos de Cazuca and Ciudadela Sucre, 70% of them are displaced children.]” (PCS, 31 December 2002)

“Durante el 2002, según la Red de Solidaridad Social, aproximadamente 216.350 niñas y niños abandonaron los centros educativos de varias regiones del país por causa del desplazamiento forzado[...]. En los municipios receptores, durante el mismo año, la asistencia escolar de la población de desplazada era del 8.8%, con solo 10.762 matriculados de un total de 122.295 niñas y niños desplazados contabilizados en el sistema de registro único [...]. En la ciudad de Bogotá, mayor receptora de personas desplazadas, la inasistencia escolar de niñas y niños desplazados se elevaba al 71% [...].

[...]

En otras ocasiones, las autoridades locales han negado a las niñas y los niños desplazados el acceso a un cupo escolar porque no podían presentar los documentos requeridos por el establecimiento educativo, tales como, por ejemplo, el registro que demuestre la condición de desplazado.

[...]

A título de ejemplo, un estudio realizado por la Defensoría regional del Tolima evidencia la insuficiencia para cubrir las necesidades de educación de las niñas y los niños desplazados. Para el 2002, la Secretaría de Educación de Ibagué, capital del departamento del Tolima, tenía asignados 265 cupos cuando se reportó la remisión de 1.163 solicitudes a los establecimientos educativos para los grados que van de preescolar hasta undécimo.

[...]

Las ayudas proporcionadas por el Estado no son suficientes. “En cuanto a los útiles y textos escolares, la Red de Solidaridad Social les proporciona un paquete “kit” escolar que consiste solamente en cuadernos algunos lápices y colores. No se les proporcionan textos escolares ni útiles específicos que generalmente son pedidos por los profesores” Ibid, pág. 15.. Si bien, en muchos casos, se permite asistir a las clases sin el uniforme escolar, la presión de los profesores, que no toma en cuenta su situación, o la discriminación que se genera por vestir diferente a los demás estudiantes, les obliga a conseguirlo o a desistir del acceso a la educación.”

[....]

En cuanto a la educación secundaria, los centros educativos locales no acatan la obligación de exoneración del pago de implementos y pensiones y porte de uniforme, por lo que la exclusión de la población infantil desplazada a este nivel alcanza el 95% [...].» (CCJ, 1 October 2003)

“Según datos del Ministerio de Educación, [...] se calcula que 20 de cada 100 niños no asisten a ninguna institución escolar básica y que unos 500.000 estudiantes de secundaria se han retirado de las instituciones en los dos últimos años. Las autoridades educativas estiman que unos 150.000 niños/as y jóvenes se desplazaron a ciudades grandes y medianas, lo que generó una demanda adicional de cupos y atención especializada por parte de los centros educativos. La asistencia a la escuela por parte de la población desplazada según la encuesta OIM es del 74 % para niños/as entre 7 a 11 años de edad. Mientras que para los jóvenes entre 12 y 17 años la tasa de asistencia a la escuela es de sólo 48%. CODHES indica que el 77 % de los niños/as que abandonan la escuela no vuelven a reintegrarse. Más de la mitad de las familias adujeron como razón para que sus hijos/as no fueran a la escuela el costo de la educación (54%), seguida de la necesidad de que estos niños/as encuentren un trabajo remunerado (23%), o tomen a su cargo el cuidado de sus hermanos/as (9%) y falta de interés (6%).

Desatendiendo lo dispuesto en la normativa vigente (Decreto 2562 de 27 de noviembre de 2001), no todas las escuelas aceptan la obligación de acoger gratuitamente a los desplazados. Se han detectado en Barrancabermeja algunos casos, en los que las escuelas han rechazado abiertamente la presencia de niño/as desplazados. En estas situaciones la intervención de la Defensoría y las autoridades competentes, en respuesta a las denuncias de asociaciones de desplazados, lograron que se hiciera respetar mínimamente el derecho a la educación. Aún si la matrícula es gratuita, se ha podido comprobar en ciertos casos que los gastos escolares resultan demasiado altos para el nivel de renta de las familias desplazadas. Además se han registrado casos de padres de familia “forzados” a trabajar en las escuelas para pagar lo que el colegio exige para enseñar a sus hijos. Dos problema particulares de los procesos de retorno, son la falta de personal docente adecuado y de cobertura escolar.

En cuanto al derecho a la educación para la población desplazada, la respuesta estatal se ha reforzado durante el último año en la zona de Urabá. Se ha observado un mayor compromiso por parte de ciertos Secretarios de Educación de los municipios de la zona para resolver la problemática de la educación de niños/as desplazados. Sin embargo, muchas veces la autoridad de los Secretarios de Educación es débil frente a los directores de los colegios que se han negado a aceptar niños/as desplazados. Se ha podido comprobar que ha habido incumplimiento de la ley con relación a la exención de gastos a los desplazados, sea relacionado con las matriculas, demanda de compra de uniformes, o pago de silletería. En las poblaciones más aisladas geográficamente, como las Comunidades de Paz del Atrato, es insuficiente el

nombramiento de maestros por parte de los municipios. Por su parte, los municipios argumentan que los recursos destinados por la Secretaría de Educación departamental son insuficientes para incluir la población desplazada y la población local vulnerable.” (GTD, 23 November 2002, p.37-8)

“Even though the displaced population is for a period of one year allowed priority access to the education system and is completely exempt from paying enrolment and boarding expenses, no specific budgetary provision is made to cater for their needs. The departments in many cases do not have the necessary resources to deal effectively with the situation, and in addition many displaced families do not manage to find their footing well enough to shoulder education costs once the year is up.” (UNCHR, 24 February 2003, para.26 Annex II)

“Los resultados de la encuesta OIM muestran un índice de asistencia a la escuela del 74% para niños entre 7 y 11 años de la PDI, índice similar al de los vecinos pobres, 78%. El Cuadro 11 muestra una tasa nacional de 92.2% para el conjunto de los habitantes del país. Por departamentos, se observa que la situación más deficitaria, respecto de las coberturas locales, se presenta en las PDI's que habitan en los departamentos de Santander, Norte de Santander y Valle.

[...]

Más de la mitad de las familias de la PDI dio como razón para que sus niños no asistieran a la escuela el alto costo privado de la educación (54%), seguida de la necesidad de que estos niños se empleen en un Trabajo remunerado (23%) o tomen responsabilidades de cuidado infantil (9%) y falta de interés (6%). Únicamente el 3% indicó no tener acceso a la educación debido a espacios o cupos limitados [...].” (IOM, 6 June 2002, p14; 16)

"Although there are no exhaustive studies, it is widely known that many children are not schooled. In 1999, in Bogotá alone, 60,000 children were not provided placement in government schools because all of the places were filled, demonstrating the institutional incapacity of the system. Twenty-four thousand of these children that were not granted placement in any school were displaced. Many of these children must work to help support their families. The situation is worsened by the deteriorating conditions of public services in general. In Altos de Cazusa, the majority of the schools in the area did not have any teachers during the first months of the 2001 academic year, which began in May.

Sometimes pupils have to pay for uniforms and materials, something that many families cannot afford. Even if displaced cardholders have the right to be exempted from inscription and boarding fees, this still depends on the number of places available and the school. On the other hand, those who are admitted often have to face stigmatization and rejection, thus contributing to school absenteeism or dropouts.” (González Bustelo, December 2001, ch.10 sect. 4).

"In rural areas 30 per cent of children drop out of school. The departments of Huila, Guajira and Valle del Cauca are the worst affected, with the lowest rates of primary school enrolment. Displaced children are particularly affected in terms of access to education." (UN HCHR, 28 February 2002, para. 118)

"Aunque de 1990 a 1999 el número de niños y niñas matriculados en la escuela aumentó de 4'160.419 a 5'162.260, hoy cerca de 1,6 millones de niños y niñas no asisten a la escuela. Sólo el 75% de los matriculados termina la primaria. De ellos, sólo el 49% lo logra en los 5 años correspondientes, y sólo un 30% logra terminar el ciclo completo de educación básica (9 años). La asistencia disminuye donde la calidad de las escuelas es baja no hay estrategias adecuadas para atraer a los niños más pobres marginalizados. Otra condición que obstaculiza la asistencia de los niños es el desplazamiento forzado.” (UNICEF Colombia, 2001, p. 6)

"Non-governmental sources say that 85% of displaced children do not receive a primary education and only 20% have access to medical care. The [1997] study by the Archdiocese of Cali claims that 'functional illiteracy is a trait common to most members of households displaced by violence' and are due to the important school dropout rate during displacement. The Commission also believes that the lack of real

access to free mandatory primary education contributes to a situation in which displaced children are not accepted and integrated into the towns where they have relocated." (IACHR 1999, chapter VI, para. 30)

"Although the 1991 Colombian constitution calls for nine years of compulsory education for all Colombian children, nearly all of the displaced children and their parents interviewed for this report stated that their children are not in school. [...] The most common reasons given for this, by displaced Colombians as well as government and agency officials responsible for the displaced, are bureaucratic or monetary restrictions. [...]

Even if a displaced child is permitted to enrol in a local school, lack of money to support schooling frequently presents an insurmountable roadblock. Although school is supposed to be free to all Colombians, it is common for schools to require payment for books, uniforms and other fees from the parents of students. Within displaced families, especially those headed by women, this money is scarce.

The result of these financial roadblocks and bureaucratic manoeuvres is an education system that is at best discouraging to displaced families and at worst sharply discriminatory. It is rare to find displaced children attending school, and common to find school-aged children working at home or in the street. One expert on Colombia's displaced noted that 'Displaced parents see no return for the effort of trying to get their children into school, and they need the cheap labor their children can provide.'" (Women's Commission May 1999, p.10)

"In rural areas 30 per cent of children drop out of school. The departments of Huila, Guajira and Valle del Cauca are the worst affected, with the lowest rates of primary school enrolment. Displaced children are particularly affected in terms of access to education." (UN HCHR, 28 February 2002, para. 118)

Teachers are among the workers most often affected by violence-related displacement (2003)

- 290,000 children were forced to leave school due to the forced displacement of 2,900 teachers
- 82 teachers and school employees were killed in 2002 twice as much as during 2001
- Over 100 schools were destroyed in attacks by armed groups
- Threats, murders and displacement overwhelmingly targeted at teachers is another worrying factor hampering the delivery of education

"Last year [2002] around 290,000 children – equivalent to 3.6 percent of the public education system's primary school students – had to leave school temporarily or permanently due to the forced displacement of 2,900 teachers, he added.

Zapata underlined that in 2002, 82 teachers and other public school employees were killed, twice the number of deaths registered in the education system in 2001. In addition, more than 100 schools were destroyed in attacks by armed groups." (Inter Press Service, 31 March 2003)

"The right to education is also infringed in that violence has given rise to threats against, and murders and displacements of, teachers. The Office continues to be concerned about the situation of members of the Colombian Education Workers' Federation (FECODE)". (UN HCHR, 28 February 2002, para. 119)

"Teachers are among the workers most often affected by killings, threats and violence-related displacement. They have also had to cope with lengthy delays in the payment of their salaries and budget cuts due to the implementation of fiscal adjustment policies. (UN HCHR 8 February 2001, Chapter V)

“Many workers, particularly teachers, had been displaced because of the lack of security and adequate guarantees of protecting of their lives. The authorities were not willing to provide such security to teachers.” (UN HCHR 17 April 2001)

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

92 percent of IDPs do not meet basic needs compared with 30 percent among the urban poor (2003)

- 92 percent of IDPs are poor for not having sufficient income to meet their basic needs and 80 percent are in situation of extreme poverty
- IDPs need at least one year to reach minimum economic stability after being uprooted
- 95,5% of IDPs in Bogotá were employed in agriculture in their areas of origin which makes reintegration in urban settings difficult
- 64,4% of IDP households in Bogotá are unemployed
- Prior to displacement 75% IDPs worked in agrarian activities while now 59% work in services and 61% as vendors
- IDP income insufficient to meet basic market needs
- 53% of IDP households survive with the help from kin, neighbours and NGOs and 47% resort to selling assets and cutting expenses
- 1/3 of IDPs have difficulties in getting formal employment due to high stigma their condition carries
- 48% of displaced women-headed households were unemployed and 31% of men-headed households, according to IOM 2001
- Most displaced can only rely on informal employment and 'scavenging' to survive with unemployment rates of 69.8% for displaced men
- 18% of displaced men and 57% of the women have neither job nor any source of income

“Household Survival Strategies and Assistance Received

Displacement is the first survival strategy. Ninety-four percent of households have resorted to displacement only once. They left their places of origin as a result of direct threats to their lives, while 40% resorted to this solution for fear. Prior to displacement, 75% of the populations worked in agrarian activities. Now 59% work mainly in services, and 61% in a store or as street vendors. However, their income is not sufficient to meet basic market basket needs. Fifty-three percent of homes state that their main survival strategy is assistance from neighbors, relatives, friends, the government, or some NGOs; and 47% resort to strategies that affect the household, such as selling assets or cutting expenses. Fifty percent of homes receive help during the first three months of displacement; however, help decreases as the displacement time increases.” (UNCTC, 30 August 2003)

“It is estimated that IDPs need an average of one year to reach minimal economic stability after resettling. [...] During this period, displaced families or individuals usually suffer severe hardship, including malnutrition, sickness and lack of basic housing, sanitation and access to health services. This is particularly the case with IDPs who do not receive government assistance because they were unable to, or consciously did not, register with RSS.” (ICG, 9 July 2003, p.5)

« El 95,5% de la población desempeñaba labores agropecuarias o similares en su lugar de origen, lo que sumado al bajo grado de escolaridad hace muy difícil insertarse en el mercado laboral de la ciudad. El 64,4% de los jefes de hogar están desempleados. » (UNHCR, 1 July 2003, p.30)

« La situación de pobreza de la población desplazada es significativamente peor que la del quintil más pobre urbano, al medir pobreza por Necesidades Básicas Insatisfechas – NBI [...].

Mientras que el 30.45% del quintil más pobre urbano presenta necesidades básicas insatisfechas (NBI) , en la población desplazada esta proporción es del 92%. Por otra parte, el 80% de los desplazados están en situación de indigencia, mientras que en el quintil más pobre urbano esta proporción es del 39%.

[...]

Al utilizar el indicador de Línea de Pobreza 7 y Línea de Indigencia [...] , se encontró que 92 de cada 100 personas desplazadas son pobres por insuficiencia de ingresos para obtener una canasta básica, y que 80 de cada 100 están en situación extrema de pobreza, es decir en indigencia. » (WFP, 16 June 2003, pp.6-7)

“Most displaced are social outcasts, excluded from formal life and employment. Currently, 653,800 Bogotanos have no employment in the city and, even more shocking, half of them are under the age of 29 [...]. Although the sharp rise in unemployment of the past few years is affecting the displaced as well as others, employment opportunities for those displaced are particularly low given the levels of stigmatization and the subsequent reluctance of companies to take them on. Indeed, approx one third of IDPs are finding it difficult to access formal employment. [...] One problem is that more than 80% are peasants who had previously worked their land or else were employed in the agricultural sector. Only 3% are able to continue to work in the agricultural sector following displacement¹². The lack of experience and knowledge in addition to levels of stigmatization to a large extent explains the difficulties of IDPs to access employment in the city, and this in turn is promoting social apartheid.” (PCS, 31 December 2002)

“De acuerdo con la Encuesta de Hogares de la OIM, 31% de los hombres jefes de hogar y 48% de las mujeres no trabajaba en forma remunerada [...]. Estas cifras eran más altas que las de los vecinos pobres, que presentaban 25% para hombres y 22% para mujeres, es decir, más distanciadas en el caso de las mujeres de la PDI. Entre los seis departamentos del estudio, los porcentajes más altos de jefes de hogar sin empleo se encontraron en Putumayo (60%), Valle del Cauca (50%) y Santander (41%)”. (IOM, 6 June 2002, p23)

"Displaced people arriving in urban areas have to face a number of problems due to their conditions as well as other problems that affect the recipient communities, even though sometimes the few social services offered in the shantytowns are more than what they had available to them in their places of origin. Farmers, when uprooted, cannot carry to urban areas the cultural elements that granted them the identity their land and community provided them with. As the “tools” that helped them to earn a living cannot be used any longer, they face income-generation problems. Their only alternative is informal economy and “scavenging”, although even these options have been affected by the economic crisis within the country." (González Bustelo, December 2001, ch.10 sect.3)

"The unemployment rate within the male population [of the slum in Soacha] is 54% for resident males and 69.8% for displaced males. On the other hand, amongst these displaced people, 84.8% of the families were farmers before the displacement.

Monthly family income	Residents	Displaced
< 100,000 pesos	8.6%	14.7%
Between 100,000 and 199,000	13.5%	22.4%
Between 200,000 and 279,000*	15.2%	19.2%
Monthly average in pesos	317,752	233,269

*the current basic salary = 279,000 pesos" (González Bustelo, December 2001, ch. 10 sect.1)

"The lack of organization and solidarity within the community in these settlements also affects the socio-economic recovery of this population. Building social networks is difficult due to the ongoing arrivals in places where neighbors do not know one another and most probably distrust is in the air.

Most of these people arrive in these communities hoping to find accommodation, even if on a temporary basis, until they can go back home or at least to the countryside or to a better location in the area. Only as time goes by do they become aware that this will most probably be their permanent residence. "You believe you will go back, but with time you realize that it is not possible any more".[...] As they believe that this situation is temporary, they do not participate in community activities of any kind." (González Bustelo, December 2001, ch.10 sect.3)

"Average income is calculated based on salaried work and the earnings obtained from agricultural production and animal husbandry. The income of both males and females dropped substantially following displacement. On the average, displaced men earn 32% of the income earned prior to their displacement, and women 27%. It must be noted that pre-displacement income is just one component of the domestic economy, as it was additional to its own food production and consumption. The majority of the displaced are peasants who were dedicated to agriculture and animal husbandry on a small scale. Although production for some was at the subsistence level only, most obtained income from commercialising their surplus. If production destined for self-consumption were quantified, figures would reveal a much more stark and real reduction.

The income made by women was in general less than that of men, both before and after displacement. These figures also reflect national and global statistics on the income of men and women. There is an alarming drop in the socio-economic status of families following displacement: they keep only 12% of their animal husbandry assets, receive only about 30% of the incomes they had before displacement and accumulate a debt of about \$80,000 Colombian pesos (\$40 USD). Agriculture was the main productive activity of the displaced before displacement. However, the principal economic activity of women prior to displacement (90%) was animal husbandry, followed by agricultural production in their gardens.

After displacement, most men (56%) generate their income as day labourers and from informal trade. After displacement, most displaced women (42%) produce their income from some form of domestic labour, although only sporadically. Eighteen percent of displaced men and 57% of the women have neither job nor any source of income. It must be noted that a large majority of the displaced that manage to obtain some form of income are underemployed, working only a few days a month. Daily expenditures are much higher than daily income. Indebtedness is clearly an important strategy in coping with displacement. Most IDPs have debts contracted in shops/grocery stores or with relatives and acquaintances. In most cases credit is used to buy food. Others owe tuition at the schools where their children are enrolled. Those with no debts indicated that the main reasons for this were lack of jobs and having no capacity to repay, as well as lack of credit opportunities due to the stigma associated with IDPs. Thus IDPs who are not in debt are not necessarily in a better situation --rather, they may not have access to credit and may therefore be in a situation of high vulnerability." (WFP June 14 2001)

Displaced women face particular difficulties finding employment (2003)

- 86 percent of displaced households headed by women are below the poverty line compared with 79% of households headed by a couple
- Female-headed household are better at meeting basic needs despite lower economic power
- 50 percent of female heads of displaced households earned no wages, 23 percent earned less than the minimum wage, and 22 percent earned a salary equal to the minimum wage according to a study in 1995

- Women turn to menial jobs or street vending, sometimes ending up begging or prostituting themselves
- Pressure for cash upon settlement in urban areas is enormous: food, rent, purchase of materials to build shelters, school-related costs
- Hostility of employers towards the displaced and competition on the labour market make the search for job extremely difficult
- Lack of child care or any safe place for small children presents an obstacle for many women as they try to hold on to jobs

“Los menores ingresos relativos de los hogares de jefatura femenina se ven reflejados al encontrar que el 86% de ellos están por debajo de la Línea de Indigencia, frente a un 79% de los hogares con jefatura compuesta por la pareja. Sin embargo, es interesante encontrar que los hogares con jefatura única femenina no son los que se encuentran en peores condiciones por NBI: infraestructura de vivienda, hacinamiento y asistencia escolar. Este hallazgo podría explicarse por el interés de la mujer en mantener una vivienda en mejores condiciones y enviar a los niños y niñas a la escuela, aunque sus ingresos totales son menores. » (WFP, 16 June 2003, pp.6-7)

“The only estimate of incomes earned by women who head displaced households is found in a CODHES study, which shows that in 1995 half of these women earned no wages, 23 percent earned less than the minimum wage, and 22 percent earned a salary equal to the minimum wage.” (Colombian Journal, 23 June 2003)

"In scores of interviews with displaced women, the Commission heard the same themes repeated: women were forced to leave their homes under threat of violence and death; they lost husbands, brothers, fathers in massacres, assassinations, disappearances; they took their children and fled for the safest place they could find, most often cities, where they could hide among the large populations. Left with no home, no income and continued threats against themselves and their families, they turn to menial jobs or street vending, sometimes ending up begging or prostituting themselves in order to provide food for their children." (Women's Commission May 1999, p. 5)

"The priority concern for displaced women is income generation. Dozens of women described the extreme difficulty of finding work and the meager, unpredictable means by which they survive. One woman organizer noted that because most of the displaced are from rural areas and entering urban settings, the pressure for immediate cash is enormous: new arrivals must buy food, pay rent and purchase materials to build shelters, send their children to school and pay for transportation.

The search for a job is complicated by the stigma associated with being displaced. Prospective employers demand to know an applicant's place of origin and ask 'What did you do that caused you to become displaced?' or 'Who caused you to flee?' Many assume that the displaced are troublemakers and will bring trouble with them to their jobs. Many women try to find work as domestic helpers, cleaning homes or doing laundry. These jobs are usually temporary or sporadic, and they are difficult to obtain. Furthermore, these jobs frequently require that a woman 'live in,' returning to her home for only one day a week. Many women stated that employers consider them too old to employ if they are in their late 20's or early 30's.

Another common way for displaced women to earn money is to become vendors selling food, trinkets, clothing or housewares. But many women find this way of life difficult and extremely competitive. Hours are long and earnings are meager at best. 'They don't want us out there,' said one woman in Medellín, describing other, more established vendors and city officials. 'And now, because of the holidays, they are trying to clean up the streets and won't give us permission to sell.'

Women also are frustrated that they have no means to start small businesses or use the skills that they bring with them to their new locations. They despair of ever acquiring sufficient capital--to buy a sewing

machine or establish a small market inventory--that they believe would allow them to earn a better income for themselves and their families. These commonly shared frustrations highlight the need for micro-enterprise programs that target women. The efficacy of micro-enterprise and revolving loan fund programs for women has been amply demonstrated in various countries over the past 20 years. In Colombia, women are ready to participate in such programs and frustrated that they do not exist.

As a complement to micro-enterprise loans, there is a need for training programs that would allow women to develop their business skills. Government training programs do exist, if a sufficiently large and cohesive group is able to present itself for such a program. However, these programs are not followed up with small loans or any type of small business mentoring. Women interviewed by the Commission viewed these programs as 'just out of reach' for them because of the requirement that a group of 25 women organize itself in order to qualify.

Women need technical assistance to develop business ideas and analyze projects to determine markets, pricing and other critical information that will ensure a profit. [...]Finally, lack of child care or any safe place for small children presents an obstacle for many women as they try to hold onto jobs in a competitive environment. The program of guarderías run by Bienestar (Social Welfare Ministry) has been a boon to poor mothers in the past. However, the restructuring of this programs by the new government may reduce the number of centers and/or increase fees in order to meet a budget deficit. Women told the Commission they would not be able to pay increased fees for the program." (Women's Commission May 1999, pp. 8-9)

Public participation

Low participation of the displaced in public affairs (2003)

- Displaced people's voting rights were restricted in 2002 due to lack of documentation
- Out of fear and disappointment displaced people are less likely to express their political ideas, vote, participate, or form associations for political or social causes
- Thousands of internally displaced were not able to vote in 2002
- CODHES collected testimonies of uprooted people being threatened to death if they did not vote for given candidates
- In the midst of war and generalized human rights violations, democratic and safe elections are difficult to guarantee

"114. The free enjoyment of political rights, associated with freedom of opinion and expression, was restricted during the elections held in 2002. Members of indigenous communities, displaced persons and other undocumented persons were among the main groups whose voting rights were restricted." (UNCHR, 24 February 2003, paras 114)

"More often than not, displaced persons feel compelled to flee in absolute silence, therefore avoid contacting authorities and aid organisations, because a displaced person is considered to have a 'problematic' past. This is exacerbated by the fact that the most 'visible' displaced are those who have some links with a political or social organization. Those who had a prominent role in local society or politics before being displaced actually have to hide their achievements for fear of renewed persecution when they arrive in the cities.

Moreover, their political or social organizations frequently will not support them in the process of displacement. A consequence of their suffering and isolation is a loss of trust and confidence in their country's social, legal, and political institutions and apathy about participating in politics. This problem

should be seen as a collective rather than an individual one because it affects the essence of democratic government. Out of fear and disappointment displaced people are less likely to once again express their political ideas, vote, participate, or form associations for political or social causes." (Obregón and Stavropoulou 1998, p. 423)

"El derecho a elegir y a ser elegido estará alterado en 400 municipios del país, de donde 54.074 personas huyeron el año pasado por miedo de morir en medio de la disputa territorial de guerrilleros y paramilitares. [...] Los desarraigados tampoco se esfuerzan por ejercer el derecho al voto, porque su prioridad es proteger la vida. [...] En el trabajo de campo para su informe anual sobre la movilización de población, y el cual presentó ayer en compañía de la Oficina del Alto Comisionado de la ONU para los Refugiados (ACNUR), Codhes recogió testimonios de desarraigados que están siendo forzados a votar por determinados candidatos al Congreso y a la Presidencia. [...]" (El Tiempo Bogotá, 13 February 2002)

"This country is determined to hold elections March 10 even as politicians are held hostage and an internal war -- with increasing U.S. involvement -- escalates. Whether free and unchallengeable elections can take place in such an atmosphere remains a vexing question.[...] On the eve of the polls, President Andres Pastrana is faced with new threats from guerrillas and paramilitary groups, and with a growing population of internally displaced persons. [...] Last month, the country's leading human rights groups denounced the campaigns and warned that Pastrana's government might indeed hold elections, but could not guarantee that voters felt free to cast their ballots. The rights groups said elections could be undermined in as many as 400 municipalities." (Pacific News Service, 4 March 2002)

Demonstrations by displaced people to raise awareness on their plight (2003)

- In November 2003 300 Colombians accompanied by international diplomats and NGOs sailed the Atrato River to draw attention to the humanitarian crisis suffered there since 1996 which forced over 25,000 indigenous and Afro-Colombian to flee
- In 1998 and 1999 displaced persons occupied the offices of the Human Rights Ombudsman, UNHCR and the office of the ICRC
- Uprooted Colombians demand post-emergency assistance
- Representatives of 60 displaced persons' organizations have formed a national coordinating body in 2000
- People taking part in public protest suffered cruel treatment

"This Sunday some 300 Colombians, accompanied by international diplomats and aid officials, plan to board a flotilla of some 20 boats and motor 500 kilometers along the Atrato River from Quibdó to Turbo in a week-long bid to draw attention to the humanitarian crisis in this war-affected region of western Colombia.

The event, organised by the Catholic Church with local indigenous people's organisations, is sponsored by UNHCR, which operates two field offices in the area together with a consortium of international relief organisations known as Project Counseling Services.

The Atrato, one of Colombia's main waterways, has suffered since 1996 from an almost complete blockade caused by parties to the country's civil war. More than 180,000 people live along the river, mainly indigenous and Afro-Colombian communities that are suffering from a shortage of essential items like medicines, salt, cooking oil, and fuel. Illnesses like malaria are reportedly gaining ground in the region due to the lack of proper treatment as a result of the long blockade.

Violence in the region has killed more than 800 people between 1996 and 2002, forcing more than 25,000 to flee their homes. The region hit the spotlight briefly in May 2002 when 117 people were killed in Bojaya when a bomb hit a church where local residents had taken shelter during fighting between armed groups.

During the week-long event kicking-off on Sunday, the flotilla of vessels will transport basic relief items to ease the suffering of the local population living along the Atrato's banks. Cultural and religious ceremonies are planned during the stops." (UNHCR, 14 November 2003)

"Displaced persons have become increasingly frustrated with the government's insufficient attention to their needs. In 1998 and 1999, displaced persons temporarily occupied the offices of the Defensoria del Pueblo (Human Rights Ombudman) and UNHCR. A group of about 60 displaced persons occupied the office of the ICRC in Bogotá in December 1999 and remained there throughout 2000. The government refused to yield to their demands for post-emergency assistance to other displaced persons (even though by law it is supposed to), it could not provide it to the displaced occupying the ICRC office.

Displaced Colombians have deliberately remained silent and invisible for many years for fear of becoming targets for new attacks. More recently, however, uprooted Colombians have begun to assert their demands. Representatives of 60 displaced persons' organizations formed a national coordinating body in early 2000 to advocate for better government services for the country's massive displaced population" (USCR June 2001)

"Violations of the right to personal integrity through cruel, inhuman or degrading treatment were also registered during the year. People taking part in public protests, as was the case on Monteria (Córdoba) on 6 March when squatters were being evicted from property they had been occupying, or in detention in police stations or jails, suffer such treatment." (UN HCHR 8 February 2001, chapter V, para. 41)

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Overview of Colombian IDP registration system (2003)

- There are three main systems of registration: the Red de Solidaridad Social (RSS) to register new IDPs, the information system on displaced population due to the violence of the Conferencia Episcopal Colombiana (RUT), and the System of Registration of Services Provided by (ICRC)
- UNHCR through the Joint Technical Unit has helped improve the registration system of the RSS and over recent years government and NGO statistics are increasingly similar
- All registration systems are cumulative and there is no structured de-registration system
- RSS coordinates since 1999 the (Sistema Nacional de Atención Integral a la Población Desplazada – SNAIPD)
- RSS supported the creation of National Information Network for IDPs which includes the System of Verified Sources (SEFC), and the National Registration of Displaced Population with the Sole Registration System (SUR)
- RUT includes IDPs registered and not registered with RSS who are assisted by the church, it produces RUT Informa magazine in order to better understand the causes of displacement, location, consequences and possibilities of interventions
- ICRC registers the people they assist
- CODHES figures are compiled through its system of information on forced displacement and human rights in Colombia (SISDES), which collects information from authorities, churches, NGOs and IDP organizations
- Since September 2001 exists a system of estimation from contrasted sources which include RSS-UTC (Network of Social Solidarity- Technical Joint Unit), CODHES, and RUT Project (Project of Human Mobility of the Episcopal Conference)

“A person is considered displaced in Colombia if they have been forced to migrate within the national territory, abandoning their residency or economic activities, because their life, physical well-being, security, or personal freedom has been reduced or directly threatened. This can occur as a result of the internal armed conflict, internal disturbances or tensions, generalized violence, large-scale human rights violations, infractions of international human rights, or other circumstances emulating from the aforementioned situations that could disrupt public order. [...] In order for a person to be considered displaced, they must declare themselves as such before the System for Registration of the Displaced Population (SUR).” (Colombia Journal, 23 June 2003)

“24. UNHCR, through the JTU, has given high priority to improving the registration system of the RSS. Over recent years the statistics of the RSS have become more in line with those of other sources: [...]

25. It is estimated that 49 per cent of the IDPs are female and 43 per cent are younger than 18 years of age. The registration of IDPs has improved significantly over the last three years, although registration remains problematic and IDP statistics are generally unreliable. The registration process is considered slow and cumbersome and a large number of IDPs are never registered. Other IDPs do not want to be registered as they fear stigmatization, many IDPs lack confidence in the government assistance programmes. It has also

been said that many urban poor, who were not necessarily displaced by the conflict, register as IDPs to have access to relief. There is no structured system of de-registration.

[...]

27. UNHCR has implemented many training and dissemination activities to promote the rights of IDPs. Copies of IDP legislation are widely distributed. It has also tried to ensure IDPs have access to institutions and basic services, but enforcement of government policies is weak. In the health sector, for example, 85 per cent of the whole IDP population is highly vulnerable with no access to the government services [...]. The role of the RSS to coordinate activities between government authorities responsible for IDP issues remains a problem. UNHCR's focus on the institutional framework and capacity building requires patience and long-term involvement. Frequently UNHCR staff and its partners are doing work which should be done by the government. Despite the fact that the RSS created 11 *Unidades de Atención y Orientación* (UAO), there is a growing need to properly inform the displaced population of their rights." (UNHCR, 3 May 2003, pp.7-8)

"There are three systems of registration: *The Red de Solidaridad Social (RSS) registration of new IDPs*. Since March 1999, the RSS has co-ordinated the national system for attention to IDPs (Sistema Nacional de Atención Integral a la Población Desplazada – SNAIPD) which includes all public, private and community entities involved in servicing displaced populations. RSS has supported the creation of the National Information Network for IDPs using: a) the estimation of IDPs by a System of Verified Sources (SEFC); and b) the National Registration of Displaced Population with the Sole Registration System (SUR), which uses four basic tools or formats – the sole declaration format, the format to assess declarations, the format for characterisation of displaced households, and the format to follow up the services provided to IDPs.

Information system on displaced population due to the violence of the Conferencia Episcopal Colombiana (RUT). This systems captures information for the displaced populations via the teams and volunteers of the Pastoral Social (catholic church), religious communities, institutional programs and NGOs working with the catholic church. Since 1997, the RUT information system for the displaced population has been using a national survey to collect data and to characterise the displacement and dynamics involved. In this process the system includes IDPs registered and not registered with the RSS who obtain services from the Catholic Church. The survey includes a wide range of information related to the IDPs before (land ownership, education), during (services received, school attendance), and after (return expectations, health status) displacement, as well as individual characteristics of the persons. Information is collected either at the time services are offered (supply scheme), or at the time of service delivery (demand scheme). For both the RSS and RUT systems, there is inadequate access to certain geographical zones due to the armed conflict and the lack of operating networks for data collection in the territorial units. This prevents the systems from having a nation-wide presence." (Baarøy, 23 February 2003, pp.9-10)

"*El Sistema de información sobre la población desplazada por la violencia (RUT), desarrolla una estrategia de divulgación del fenómeno del desplazamiento interno en Colombia a través de boletines periódicos sobre dicho fenómeno.*

Además está soportado por un Centro de Documentación bibliográfica sobre migraciones con énfasis en el desplazamiento interno.

[...]

El sistema permite contar con información veraz, fiable y oportuna como principal insumo en la toma de decisiones de intervención Pastoral referida a la problemática del desplazamiento forzado.

La instalación en las jurisdicciones eclesiásticas del software del sistema, aunada a la capacitación a los responsables de operar el sistema en las Diócesis, posibilita ampliar la Red de Información y en consecuencia profundizar en el conocimiento del fenómeno (causas, factores, presentaciones locales y regionales, efectos y posibilidades de intervención).

La Sección de Movilidad Humana del Secretariado Nacional de Pastoral Social, además del montaje del sistema, la capacitación y la asesoría, se encarga de centralizar y procesar la información de las distintas jurisdicciones con el propósito de realizar el consolidado nacional y producir el boletín RUT INFORMA.

Dicho boletín se distribuye a las jurisdicciones eclesiásticas, entidades internacionales, estatales y gubernamentales, organizaciones civiles y a la opinión pública en general, estos boletines, próximamente estarán disponibles a través de esta página.

Además de estas tareas se realizan gestiones de coordinación con entidades y organizaciones con el fin de concertar acciones relacionadas con el tema del desplazamiento que consoliden trabajos interinstitucionales conjuntos que repercutan en el mejoramiento del nivel de vida de la población desplazada.” (Secretariado Nacional de Pastoral Social 2001)

“The System of Registration of Services Provided by the International Committee of the Red Cross (ICRC). ICRC reserves its right to keep information confidential and for internal use only. The reports produced by ICRC include information related to the population assisted such as: number of persons and families assisted classified by gender, population under 18 years of age, female-headed households, province and municipality of origin and arrival, and type of services provided. There is no estimation of the total number of IDPs in the country by ICRC.

[...]

Quantitative estimation

Estimates of total IDP numbers are generally formulated from multiple sources. In Colombia, Red de Solidaridad Social uses a system of verified sources to estimate the magnitude of forced displacement caused by the armed conflict. The information is prepared by the RSS territorial units via consultation with the organisations belonging to SNAIPD and by direct consultation with the displaced population. Direct consultations with IDPs are obtained through the network of NGOs providing humanitarian assistance, the territorial units, and during RSS fieldwork. The RSS units in each province compile the information from the various sources.

The CODHES system of information on forced displacement and human rights in Colombia (SISDES) processes information on the displaced population via three main strategies: monitoring of secondary sources, collection of information from displaced households, and research. CODHES looks, in a systematic and permanent way, at newspapers and magazines at the national, regional and local level for information on displacement events, human rights violations, infractions to international humanitarian rights, and other types of violence related to this problem. Given the likelihood for erroneous estimations, CODHES verifies the information via local authorities, church authorities, NGOs, organisations for displaced populations, and when possible, the communities experiencing the displacement.” (Baarøy, 23 February 2003, pp.9-10)

“ Los avances de la respuesta estatal al desplazamiento en el 2001 han sido notables en lo que se refiere al sistema de estimación por fuentes contrastadas y su vinculación a otros sistemas de información no gubernamentales [52]. Sin duda, la RSS con el apoyo de la UTC ha consolidado su papel como referente en la información periódica sobre el desplazamiento. Así mismo, el Sistema de Registro Único de Población Desplazada ha incrementado su cobertura y eficacia.

[Footnote 52: Desde septiembre de 2001 funcional un grupo de trabajo sobre estimación y caracterización de la población desplazada por la violencia integrado por RSS-UTC, CODHES y el Proyecto RUT]” (GTD, 23 November 2002, p.28)

Despite some improvements in 2001, the registration system for displaced persons is still not satisfactory (2003)

- Both government agencies and NGOs agree that under-registration of IDPs reaches up to 35%
- Government sources confirmed that 40% of the IDPs who depose a declaration to obtain official IDP status are rejected
- People displaced by fumigations are not recognized as such and about 35 thousand people have been uprooted by fumigations since 1999

- IDPs without id documents have been asked by authorities to return to their original home to obtain them, thus exposing them to high risks
- 73% of women do not know where to register and a high percentage are unaware of the benefits of receiving certification for their condition of displacement
- Since September 2001 exists a system of estimation from contrasted sources which include RSS-UTC (Network of Social Solidarity- Technical Joint Unit), CODHES, and RUT Project (Project of Human Mobility of the Episcopal Conference)
- The Unique Registry (Registro Unico of RSS) remains constitutive of the condition of displaced instead of being declarative according to art.1 of sentence T-327/2001
- About 300 Ombudsmen were trained to register IDPs during 2001
- Law 2569 (2000) limits the right to IDPs to declare their status to one year, however many do not register due to threats by armed groups or misinformation
- According to the HCHR, IDPs continue to see the registration system as an obstacle rather than a means to access government assistance
- Sometimes the confidentiality of the information provided by the IDPs is not upheld
- Children newly-born during displacement are rarely registered, jeopardizing their rights to be recognized before the law and access to humanitarian assistance

« La última gran discusión se refiere al subregistro. La Red afirma que la cifra asciende a 35%, muy similar a la opinión de CODHES, mientras que INDH asegura que el fenómeno no supera el 10 %. » (Actualidad Colombiana, 26 May 2003)

« La Unidad Territorial de la Red de Solidaridad Social -UTB RSS- informó acerca del proceso de declaración e inclusión en el Sistema Unico de Registro en Bogotá a julio de 2002 estaban 8.933 hogares incluidos en el Sistema Unico de Registro –SUR-, con un fenómeno de no inclusión que alcanza aproximadamente el 40% de las declaraciones recibidas y valoradas. » (Mesa, 30 June 2003, p.15)

“Hasta el momento las poblaciones más afectadas no han recibido el reconocimiento y la atención necesaria de parte del Estado porque hay una decisión política de no reconocer el estatus de desplazado a las personas que huyen de las zonas de fumigación en el marco del conflicto armado interno.

[...]

Se estima que el número de familias que tuvieron que desplazarse por efectos de las fumigaciones, desde 1999 a la fecha es de 35 mil.” (CODHES, 29 October 2003, pp.2,3,26)

“According to RSS, government assistance lasts for 90 days (occasionally up to six months), is available to individuals and families displaced only in the past three years, and depends on a bureaucratic registration process. IDPs told the team that many choose not to register for fear of reprisals from armed groups and mistrust of the government. UN representatives said that many IDPs lack knowledge of their rights. Others told the team that to register for government assistance, IDPs without documentation have been asked to return to their original village or town to obtain new documents, a practice that places IDPs’ lives at serious risk.

Less than one in four (22 percent) IDPs are registered and receive government assistance, according to Colombian NGOs. [...] Three successive UN missions have recommended that the government modify registration procedures for IDPs, but on the whole, the Colombian government’s response to IDPs has suffered from chronic under-financing.

This lack of registration with the Social Solidarity Network is likely one factor that blocks IDPs’ access to local health services. The Pan American Health Organization (PAHO) estimates that only 22 percent of displaced households receive medical care. [...] According to the Profamilia 2001 study, 73 out of 100 women do not know where to receive authorization certifying their displaced status, and a high percentage

of women are not familiar with the benefits of receiving such certification. [...]Even when the displaced qualify for services, their needs may be ignored due to the stigma attached to their displacement. In addition, hospitals and clinics may not be adequately equipped and financed to cope with the additional burden of an increasing displaced population.” (Marie Stopes International, etc..., 13 February 2003, pp.9-10)

"Registration of the displaced population has increased on scope. Nonetheless, under-registration continues to make it impossible to estimate the extent of displacement in Colombia. The lack of flexibility and the highly bureaucratic procedures make people view registration more as an obstacle to obtaining benefits than as the way to gain access to them. This means that the State is still unaware of the true extent of displacement, which in turn affects the efficacy of its responses and priorities." (UN HCHR 8 February 2001, chapter VI, para. 144)

« Los avances de la respuesta estatal al desplazamiento en el 2001 han sido notables en lo que se refiere al sistema de estimación por fuentes contrastadas y su vinculación a otros sistemas de información no gubernamentales [52]. Sin duda, la RSS con el apoyo de la UTC ha consolidado su papel como referente en la información periódica sobre el desplazamiento. Así mismo, el Sistema de Registro Único de Población Desplazada ha incrementado su cobertura y eficacia.

[Footnote 52: Desde septiembre de 2001 funcional un grupo de trabajo sobre estimación y caracterización de la población desplazada por la violencia integrado por RSS-UTC, CODHES y el Proyecto RUT]" (GTD, 23 November 2002, p.28)

“Registro Único de Población Desplazada

Los datos consolidados entre septiembre de 1995 y diciembre de 2001 arrojan una cifra nacional de 102.533 hogares registrados. En el año 2001 se registraron 43.063 hogares. La inscripción en el Registro permite a la población desplazada acceder a los beneficios de la Ley 387 y a su Decreto Reglamentario 2569. Sin embargo, la inscripción en el Registro continúa siendo constitutiva de la condición de desplazado, en lugar de ser declarativa como lo establece el enunciado del artículo 1 de la Ley y lo reafirma la Corte Constitucional en su sentencia T-327/01.

En los últimos seis meses del 2001, las Personerías han mejorado su labor en la toma y tramitación de las declaraciones, lo que ha permitido agilizar el procedimiento de Registro [53]. A pesar de los avances, continúa existiendo el subregistro[54], que está originado no sólo por ignorancia del sistema o miedo a declarar por parte de los desplazados, sino también por la estricta aplicación, inclusive con efecto retroactivo, de la cláusula de extemporaneidad prevista en el decreto 2569 de 2000 de reglamentación de la Ley 387. En ocasiones la RSS no tiene en cuenta las circunstancias por las cuales las personas no prestaron su declaración a tiempo. Este es un tema que se encuentra en discusión entre la RSS y la Defensoría del Pueblo.

[Footnote 53: Conjuntamente con la RSS, la Defensoría del Pueblo, y la Procuraduría General de la Nación; ACNUR y OACNUDH hicieron en el 2001 un trabajo de capacitación de cerca de 300 personeros y otros funcionarios sobre el Registro.]

[Footnote 54: Un caso extremo de subregistro es el que presenta el municipio de Unguía. En una actividad de diagnóstico organizada por ACNUR y la UTC, con la participación de la Iglesia, autoridades municipales y los desplazados se estimó el número de desplazados en el municipio entre 3.200 y 3.700, la mayoría desplazada en entre 1996 y 1998. Sin embargo, al 31 de Diciembre 2001 la RSS de Urabá solamente tenía unas 397 personas de este municipio registradas.]

Otro de los problemas detectados es que todavía existe un gran número de declaraciones no incluidas en el Registro, sin comunicarle al declarante cuál ha sido la decisión. Según el Decreto 2569, se debería interpretar la falta de respuesta a una declaración por parte de la RSS como una decisión positiva para el declarante.” (GTD, 23 November 2002,p.29-30)

"The system for registering the displaced population is not yet being used as a mechanism to facilitate access to State programmes, and indeed many continue to perceive it as an obstacle to access.[...] It has, however, made progress in standardizing the process of taking and evaluating statements, and in the analysis of the displaced population.[...] Meanwhile, Constitutional Court ruling T327/01 of 2001[...] has had a positive effect: 38 per cent of the cases assessed in Bogotá in 2000 were registered, whereas during the first eight months of 2001 the registration rate was 74 per cent. There continue to be problems: for example, the lack of information to beneficiaries, despite the efforts of the Network; [...] the lack of guarantees of confidentiality; waiting periods of up to two months in order to make a statement; and the fact that statements made by women non-heads of household are frequently not given due consideration. [...]

Another obstacle preventing access to State assistance by registration arises from restrictive interpretations of the rules, as exemplified by the introduction of deadlines,[...] a concept inconsistent with the Guiding Principles on Internal Displacement, which make no mention of such time limits. Also, statements referring to crop spraying are not usually registered but no evaluation is carried out to determine whether any other elements of such cases might permit classification as a displaced person in accordance with the Guiding Principles.

[...] Concerning the registration of the displaced population, despite advances in case law in this area, it must be said that the restrictive interpretation of the principle of time limits leaves a high proportion of the displaced unprotected and with no prospect of a solution. The High Commissioner is also concerned about the gap between the three months of emergency humanitarian aid provided and the longer time period that the displaced need to become self-sufficient, as in the case of women heads of household in urban areas." (UN HCHR, 28 February 2002, paras. 234, 235, 366)

"Hay que mejorar la información sobre el fenómeno del desplazamiento y sobre los desplazados. A pesar de los esfuerzos en marcha, no existe un sistema de información confiable sobre el desplazamiento, ni un diagnóstico exhaustivo sobre las necesidades de los desplazados, sobre todo a nivel departamental y municipal. Este diagnóstico debería desarrollar líneas particulares de trabajo orientadas a aquellos grupos más afectados (población afrocolombiana, indígena, mujeres cabezas de familia y niños y niñas). Del mismo modo, se requiere mayor precisión en la ubicación de los diferentes grupos de desplazados a efectos de maximizar el impacto de los recursos disponibles." (TGD 19 January 2001)

"[The Inter-American Commission on Human Rights] has received reports according to which large numbers of infants born during displacement or in accommodation centers have not been registered with the competent authorities and, therefore, have no documentation of any kind. It should be mentioned that the right to recognition as a person before the law is a universally recognized principle of international law. In this respect, the Guiding Principles also stress the need to carry out an effective documentation process for all displaced persons, including children." (IACHR 1999, chapter VI, para. 35)

"Additionally, family abandonment and lack of paternal acknowledgement is a common problem for child registration and for the displaced child's right to a name." (UN CHR, 11 March 2002)

Registration in the city of Bogotá main receptor of IDPs (2003)

- The government formal registry excludes large number of IDPs who are often wrongly considered as economic migrants
- Many IDPs do not register out of fear of being the targets of attacks increasingly so with the informant network promoted by the Uribe government
- NGOs claim that between 35-40% of IDPs who attempt to register are rejected
- 7000 families are thought to live in Soacha, and only about 2000 IDPs have been formally accepted in the registry

- Only about 1000 have been assisted by the state

“Discrepancies between government and NGO figures are down to a number of reasons. To start with, the government formal registry, a gatekeeper that decides who receives state-let humanitarian aid and who doesn’t, excludes a large number of IDPs. Indeed, many of the displaced don’t fit into the definition of an internally displaced person, defined under the 387 law of 19974. Numerous people, though affected by violent conflict, are viewed as economic migrants. Others are rejected because their statements are contradictory or incoherent or they lacked sufficient evidence, which proves that they were forcibly displaced⁵. Indeed, RSS argue that many of those attempting to register are the historically poor who seek to access government assistance through the register. Others ‘chose’ not to register for fears of being persecuted by armed actors, exposed by the increasing number of informants promoted by the Uribe government or stigmatized by the host population. No one is sure how many people are not registered, a spokes person at Mencolde, a local NGOs working with the displaced in Bogota claims that approx 40% of those attempting to register are rejected. Other sources establish that out of every 1,000 people only 650 are included in the formal register.

Bogotá’s socio-demographic changes

According to an opinion poll, Bogotanos feel that one of the major problems the city faces is displacement. Indeed, although displacement to a great extent merely affects poverty belts at the margins of city life, the phenomenon has become increasingly noticeable. Street vendors, beggars and homeless are commonplace on Bogotá’s streets. The city is facing stark levels of poverty as well as ecological degradation, overcrowding and an increase in violent conflict and organized crime as a direct result of the increasingly deteriorating humanitarian crisis.

[...]

Here, most people move into marginal areas such as the sprawling Cazuca neighborhood where it is said that 7,000 displaced families⁸ are spread over numerous hillsides with their simple shanties of scrap lumber and recycled metal. In Soacha an overwhelming majority of the population are IDPs (Codhes)[...]. Of those only 2,000 have been able to formally register and only half of those have received state-let humanitarian assistance¹⁰. The continuous influx of IDPs into Bogota and insufficient attention means that the city’s misery belt is expanding fast while levels of poverty are on the increase. RSS recognizes that people are living under extremely poor conditions while government services remain weak, absent or inconsistent.” (PCS, 31 December 2002)

Documentation needs

Lack of identity documents deprives the displaced from emergency assistance (2002)

- Only 33.01% IDPs possess identification papers and only 13.09 are registered in the Civil Registry
- For displaced women household-heads, access to the Registry is more difficult due to their multiple tasks as child carers and bread-winners
- Lack of identity documents forces some IDPs to return to unsafe areas to obtain documents on which the entitlement to emergency assistance depends
- Without basic documents displaced persons are unable to vote, work, drive, move, as well as send their children to public schools
- By end of 1999, 18% women had personal documentation compared with 60% men
- To acquire an identity card, it is necessary to obtain two preliminary cards: one which every citizen is supposed to carry and one for the displaced which lists information such as place of origin, name, date of birth, specific scars and skin color

- The displaced prefer not to apply for any documents in order to avoid discriminations, harassments, attacks, as well as inefficient and lengthy bureaucratic procedures
- Displaced women separated from their husbands are often requested to register again but lack of documentation would be an obstacle

“Según los datos del RUT sólo el 33.01 % de los desplazados tiene cédula de ciudadanía, y el 13.09 % está inscrito en el Registro Civil. Durante el año 2001 se ha puesto de manifiesto la dificultad de las comunidades en áreas de alto riesgo de conflicto para acceder al registro civil y la cedulaación. Esta dificultad ha exigido la puesta en marcha de experiencias piloto por parte de la Registraduría con el apoyo de ACNUR [...]. Además, la actividad registral habitual parece ser insuficiente para proteger los derechos de la población desplazada y exige campañas extraordinarias.

La falta de registro y cedulaación está limitando el acceso de la población desplazada al mecanismo del SISBEN [Systema de Selección de Beneficiarios para Programas Sociales] y a proyectos en marcha (e.g., Programa de Familia en Acción en el Sur de Bolívar). Por otro lado, las mujeres en zonas rurales tienen más dificultades para acceder al Registro, ya que se quedan al cuidado de la casa, la cosecha y los niños.” (GTD, 23 November 2002, p.31)

“In Colombia, lack of documentation has become an acute problem for hundreds of thousands of people. To receive emergency help from the government, ‘certification’ is necessary but to be certified, the displaced must present personal identity documents. Since many do not have these documents, they are put in the position of having to return to unsafe home areas to obtain them. Many as a result do not apply. Others do not apply for fear of being targeted or having to provide witnesses whom they fear could put their friends or families in jeopardy. Very few municipalities in Colombia have made efforts to resolve the problem with the result that only a minority of the displaced receives emergency assistance.” (Cohen and Sanchez-Garzoli 2001)

“Without the basic documents they need—the *cedula de ciudadanía* (citizenship card), the *registro civil* (civil registration card), and the *certificacion de desplazado* (certification of displacement card)- displaced persons in Colombia have no proof of land or property ownership, are unable to vote, drive, work in the formal sector, move from region to region, leave the country, or in many cases send their children to public schools. Many are also turned away from health clinics and hospitals.

Internally displaced women face special problems. In Colombia, by the end of 1999, only 18 percent had some kind of personal documentation, compared with 60 percent of the men. A combination of social and cultural traditions, illiteracy and lack of resources all have dictated against women’s obtaining personal documentation. Yet the need for it is critical since many displaced women are now heads of household.” (Cohen and Sanchez-Garzoli 2001)

“All Colombian citizens count on their possession of an identity card or the ‘Cédula de Ciudadanía’ (Citizenship Card). The cédula allows a Colombian citizen to vote, drive, work and qualify to leave the country, among other things. To acquire this card, it is necessary to obtain two preliminary cards. These are the Registro Civil (Civil Registration), which every citizen is supposed to carry with them and, for the displaced, the Certificación de Desplazados (Certification of Displacement). Finally, there is the Cédula de Ciudadanía, which lists information such as a person’s place of origin, name, date of birth, height, specific scars and skin colour. It also documents where the person received a card.

Not all rural families possess identification cards. They may apply for a card only in order to register their children for school. Often, displaced persons may have possessed an identity card in their place of origin but left it behind in the rush to flee. Once displaced, they frequently hesitate to apply for any identity card because this would call attention to their displacement. As one NGO official working Bogotá commented, ‘Many IDPs avoid sending their children to school, as it may expose the family as IDPs and make life harder’. (Women’s Commission May 1999, p.7)

“According to many women who spoke with the Special Rapporteur, registration with the state as IDPs would normally be done by men and the stories of persecution and reasons for flight would therefore often not reflect the female experience. The male experience thus serves as characteristic for the entire displaced population. Women also reported that if their husband left them they would have to register again. They mentioned that that would be difficult as they did not have personal documentation and thus no access to any security net or protection that might normally be provided by the State.” (UN CHR, 11 March 2002)

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Socio-cultural and economic consequences of displacement for indigenous communities (2003)

- Forced displacement leads to the erosion of cultural control of indigenous territories and territorial fragmentation
- Forced displacement undermines indigenous autonomy, governance and jurisdiction
- Armed blockades have led to isolation with serious repercussion on health and nutritional status of indigenous people
- Agriculture and ancestral systems of production are being disrupted and tend to disappear
- Family units and community cohesion are undermined and disintegrate due to dislocation
- Ethno-educative processes and transmission of indigenous know-how to younger generations are disrupted

« Los efectos del desplazamiento forzado en los pueblos indígenas son múltiples, intentaremos en apretada síntesis recoger los más significativos:

1. Erosión de los sistemas de control cultural sobre los territorios y procesos sociales, económicos y políticos fundamentales para la permanencia e integridad cultural de los pueblos indígenas.

2. Fragmentación territorial, simbólica y sociopolítica de las organizaciones regionales, especialmente en los ámbitos locales. El ataque a las formas e instancias organizativas indígenas coincide con los escenarios de control, copresencia y disputa entre los diversos actores armados.

3. Debilitamiento de la autonomía, gobernabilidad y jurisdicción indígenas a través de la injerencia, presión o ataques a los procesos, autoridades e instancias de gobierno, mecanismos de resolución de conflictos y formas de administración de justicia indígenas por parte de los actores armados. Estas situaciones han provocado mayor desconfianza social -y en algunos casos- desconfianza en la estructura organizativa de la comunidad y de los mecanismos internos de resolución de conflictos.

4. Los sitios (confinamientos) y bloqueos armados han generado mayor aislamiento y situaciones de crisis humanitaria representada en el control o bloqueo de medios de transporte, alimentos, medicinas, insumos agrícolas, al igual que el control o la obstrucción de la ayuda humanitaria, o de la actividad de funcionarios públicos relacionados con la prestación de servicios de salud, educación, titulación de tierras, entre otros.

5. Los circuitos de autoabastecimiento, de producción para el intercambio y de consumo en mercados externos, son intensamente controlados y atacados por los diversos actores armados. En consecuencia se debilitan o tienden a desaparecer sistemas productivos ancestrales adaptados a relaciones de contacto intercultural y a ecosistemas frágiles y de alta complejidad.

6. En este orden de ideas, se afecta gravemente la seguridad alimentaria de dichos pueblos y se presentan devastadoras pérdidas económicas, sociales y culturales debido al abandono forzado de parcelas y

chagras lo que ha obligado a recurrir en casos extremos a la mendicidad o en casos aislados a que algunos integrantes de las comunidades se alistaran en las filas de los actores armados.

7. Restricción o intentos de control al acceso y administración de los programas y servicios de salud que los distintos pueblos indígenas han logrado desarrollar a partir de la aplicación de las políticas de descentralización.

8. Desintegración de las unidades familiares, parentelas y comunidades a partir de la dispersión territorial, la pérdida de vínculos con ecosistemas, redes de intercambio y redes de gobernabilidad, con motivo de los procesos de desarraigo y despojo.

9. La disgregación de las familias y comunidades dificultan las posibilidades de consolidar procesos de permanencia e integridad cultural de las comunidades y de los pueblos indígenas en general. La deslocalización (pérdida de lugar, de contextos) rompe con desarrollos sociales, políticos, económicos y culturales producto de luchas históricas por el territorio, el reconocimiento y la redistribución. Las pérdidas son entonces múltiples y pueden conducir a la fragmentación territorial y la desestructuración familiar, comunitaria y en extenso de la permanencia e integridad cultural de los pueblos indígenas, al punto de constituir en casos extremos un verdadero etnocidio (eliminación física o cultural de una minoría étnica).

10. Desestructuración de las redes sociales primarias, es decir de las redes personales, familiares y comunitarias. En estos casos quienes deben afrontar los mayores impactos son la niñez, las mujeres y los adultos mayores.

11. Empantanamiento de los procesos de constitución y/o consolidación jurídica de los resguardos y la jurisdicción indígena.

12. Ruptura, parálisis o desaparición de los procesos etnoeducativos así como de los procesos de recuperación cultural de cara al conflicto armado y las presiones modernizantes.

13. Ausencia progresiva de los funcionarios locales y regionales de gobierno que se debaten entre la falta de garantías, la ausencia de recursos efectivos y la falta de voluntad política, generando la progresiva pérdida de legitimidad del Estado y la desprotección y desatención de las comunidades.

14. Rupturas y profundas transformaciones de los calendarios tradicionales en los que se enmarcan las actividades culturales, económicas y políticas, que favorecen la interacción local e interregional. Han desaparecido o están seriamente coartados procesos culturales enmarcados en los valores propios de cada grupo étnico como fiestas, encuentros regionales, rituales colectivos e interfamiliares, recolección y siembra de cosechas, festivales folclóricos, eventos familiares, que constituyen espacios fundamentales de socialización y consolidación sociopolítica y cultural.

15. Incremento progresivo del miedo y el terror, especialmente entre la población más joven.

16. Deterioro del estado de salud de amplios sectores de la población indígena especialmente niñas y niños, mujeres y adultos mayores.

17. En algunos casos el descenso en la autoestima individual de las personas, así como de la autoestima colectiva de las comunidades.

18. Construcción o renovación de formas de resistencia cultural, de nuevos acuerdos y alianzas estratégicas con otros sectores sociales para afrontar los desafíos de la guerra, los embates de modelos de intervención económica, social, política y ambiental, y las exigencias de los procesos de modernización e inclusión de regiones y poblaciones en las lógicas de la globalización. » (Harvey 8 January 2003)

The Colombian social fabric is being destroyed by the experience of displacement (1998-2002)

- Displacement to an urban environment deprives rural families of their traditional social support networks and exposes them to impoverishment, crime and violence
- The disintegration of the displaced family obliges women to assume new functions to support their family and the community

“Displacement has the effect of eroding traditional family structures, particularly when male members of the family have been killed, have disappeared or have been compelled to seek safety or work elsewhere.” (UN HCHR, 11 May 2002)

"Emotional trauma among the displaced is common. Family units, communities and community projects are invariably destroyed. The displaced lose their natural and cultural context, a serious social problem in a country in which 30 areas of cultural identity have been identified. Movement from a rural area that shares values of security, reciprocity, trust, collaboration, and solidarity to an urban one where individualism, consumerism, class discrimination, and crime exist affects the vital identity and stability of the individual and his or her community. Families lose their support networks and are subjected to crime and violence, while their often meagre resources vanish." (Obregón and Stavropoulou 1998, p. 422)

"The Commission considers that the psycho-social consequences of displacement, which pass without attention, have accelerated the destruction of the social fabric and have contributed to the impoverishment of the population, the disintegration of the family, malnutrition, sickness, alcoholism, drug addiction, prostitution, school absenteeism and common crime." (IACHR 1999, chapter VI, para. 25)

"In displaced families, authoritarian behaviour and ill treatment are standard in relations between couples, where there exist. Tensions within and outside the family and the conditions in which they live produce situations that foster domestic abuse (physical, verbal and sexual) and other forms of violence, in which women are the main victims.

In the countryside, the roles of each family member were clearly defined (though not necessary equitable) and the family respected them. But in urban neighbourhoods, family relationships undergo major changes as a result of overcrowding, new friendships, the easy availability of alcohol, gambling and entertainment, etc. All this causes problems among neighbours and leads to the break-up of couples and formation of new liaisons." (PCS May 1999, pp. 36-37)

The trauma and subsequent dislocation of displaced families place them in circumstances of unmanageable pressure. Frequently, the burden of extreme poverty and the loss of traditional roles for family members causes families to split apart. Many women resort to begging and prostitution in order to bring in an income. The need to work also forces women to leave children alone for long periods of time. Children, unable to attend school and often forced onto the streets to earn money, may end up as street children. The tragedy of initial displacement is thus compounded by the subsequent negative pressures on all family members. (Women's Commission May 1999, p. 8)

Women generally assume an active leadership role, taking upon themselves the responsibility of finding solutions, seeking help from humanitarian organizations, attending training sessions, explaining to others what has happened and coping with urban life. (PCS May 1999, pp. 36-37)

PROPERTY ISSUES

General

Property and land rights recurrently violated before, during and after displacement (1998-2002)

- Most of the displaced are agriculturalists and therefore suffer greatly from loss of entitlement to land
- Women and children separated from their male relatives and with particular problems of documentation and registration are consequently greatly disadvantaged to obtain land titles even where collective property rights exist
- Indiscriminate attacks on civilian property by the guerrilla have destroyed many homes in 2001
- Reports show that 70% of the displaced have lost their lands, which are often occupied or bought cheaply by drug traffickers
- Lack of documentation and registration difficulties are important factor contributing to property loss and obstructing entitlement to land distribution

“Most of those who suffer displacement, particularly indigenous and Afro-Colombians, are agriculture oriented and depend on land for their self-support and organization. With regard to the protection of territories belonging to ethnic groups for example, Paz del Atrato communities in Uraba and Cacarica (Choco) already have collective property rights. But in both cases, women's rights to these lands have not been appropriately guaranteed. In the event of separation or abandonment, women and children will be left in an extremely precarious situations regarding land.

Women, especially women from rural areas cannot access personal documents or registration very easily. These women consequently face greater difficulties in obtaining land titles, loans, a home and health and education services. This problem is worse for indigenous women and those of African descent because of cultural barriers that deepen inequalities.” (UN CHR, 11 March 2002)

“Indiscriminate guerrilla attacks have caused significant damage to civilian property, destroying many homes, as in the cases of Saldaña (Tolima) and Granada (Antioquia), where dozens of buildings were destroyed. The town of Alpujarra (Tolima) was attacked six times in 18 months. Other examples include the cases of Colombia (Huila) on 12 July, Arboleda (Caldas) on 29 July, San Alfonso (Huila) on 12 December, Vigía del Fuerte (Antioquia) on 25 March, Bagadó on 20 October and Carmen del Atrato (Chocó) on 5 and 6 May.” (UN HCHR 8 February 2001, chapter V, para. 118)

Studies indicate that 70 percent of IDPs lose their land on which they had always lived and worked before displacement. (WFP 8 September 1999, para. 31)

“When peasants flee from violence, they generally lose most if not all of their property. In several regions, abandoned land is occupied or bought very cheaply by drug traffickers in an effort to increase territorial control and political power; they frequently use agro-industry and cattle ranching for money-laundering purposes. The displaced have little or no access to legal services and do not know how to protect their properties. In the cities they become squatters or must pay rent while constantly under the threat of eviction.” (Obregón and Stavropoulou 1998, p. 422)

"The [Inter-American Commission on Human Rights] notes that the fact that many displaced persons lack documentation is a source of great obstacles, for adults as well as children. Undocumented persons face difficulties in getting registered and obtaining documentation of citizenship. This situation provokes, among other things, a loss of property, due to the inability to provide documentary evidence, and the inability to obtain protection for human rights. For example, most of the aid programs available to displaced persons require applicants to provide certification of their status as displaced persons. This certification is very difficult to obtain, except in a few municipalities which have made a special effort to resolve the situation of the undocumented persons. The land distribution problem is also aggravated by the documentation difficulties of the displaced population." (IACHR 1999, chapter VI, para. 41)

See also *"The issue of land: an intimate connection with the phenomenon of displacement"* [\[Internal link\]](#)

Impunity risks to undermine IDPs' right to reparation and restitution of property (2003)

- In Colombia, 0,4% of landowners owned 61,2% of cultivable land in 2000
- IDPs have been displaced by paramilitaries in Urabá, Antioquia and Chocó in the 1990s to enable agro-industrial expansion
- About 70% of IDPs had ties to rural areas in 1997
- Displacements and war among other factors caused a stop in agricultural production on over 1,700,000 hectares
- Negotiations between government and paramilitaries should address questions of IDP land restitution and compensation and a special reparation fund should be set up
- Some IDPs cannot return to their farms but only to the capital of their municipality because of the presence of the armed actors who forced them to flee
- Despite various laws and Guiding Principle no.29, IDPs have not been reassigned land nor received any indemnisation
- The GOC says it will design and implement a 'special procedure' aimed at recuperating IDP property lost during displacement
- When resettlement is the only alternative, lost property could count as a first payment towards a new plot of land
- International workshop encourages GOC to improve procedures and strengthen legal framework to safeguard IDP property rights (1999)
- In accordance with Guiding Principle 29, GOC should design and implement programmes aimed at recovering IDP property and possessions
- Resettling IDPs should be exempt from paying the 30 per cent charged other Colombian land-reform beneficiaries

““A miniscule 0.4 per cent of landowners (10,000) owned 61.2 per cent of the arable land in 2000, while 57.3 per cent of landowners were small peasants who owned 1.7 per cent. [...] Typical is Middle Magdalena Valley, where the paramilitary organiser and emerald miner Víctor Carranza is believed to own close to 250,000 hectares of the best land. [...] Landholding is the “best paramilitary instrument for laundering and saving money”, according to land issue experts. [...] In turn, the most efficient way to build a concentration of wealth is to force people to leave their land. [...] By 1997, approximately 70 per cent of Colombia’s internally displaced persons (IDPs) had rural links, and 42 per cent were proprietors, tenants or settlers. Of the former, 94 per cent admitted that they had abandoned their land, while 6 per cent had sold it. [...]

“Between 1995 and 1999, 1,738,858 hectares belonging to small and middle-sized proprietors, settlers, peasants, Afro-Colombians and indigenous peoples were abandoned. The number coincides with reports

that in the 1990s production almost stopped on 1,700,000 hectares for diverse reasons, many related to violence and displacement.” [...] For example, in 1996 the eastward expansion of large-scale cattle ranching from the Urabá region in Antioquia province to the northern parts of the department of Chocó displaced 15,000 to 17,000 farmers. Similar displacements occurred with the introduction of African palm plantations in Chocó. In both cases, paramilitary groups drove out the small farmers in order to permit agro-industrial expansion. [...]

Thus, any negotiation between the government and the AUC needs to address the question of how to deal with the land of the displaced population. An additional problem is how the authorities will differentiate between drug-traffickers’ land and the properties owned by the AUC leadership. Issues such as the return of IDP families to their former lands and compensation to the victims of paramilitary crimes are key concerns that cannot be avoided in any peace process with the paramilitary groups.

[...]

It might do this through the creation of a special reparation fund for victims of illegal armed groups and the distribution of illegally acquired land, including of drug traffickers, among farmers forcibly displaced by paramilitary groups.” (ICG, 16 September 2003, pp.11,12, 29)

“En otros casos, los retornos promovidos por las autoridades no han sido genuinos en el sentido de que las personas desplazadas no han podido retornar a sus fincas sino al casco urbano del municipio de origen. En estos casos, el Estado no ha garantizado la recuperación de la tierra que permanece bajo el control de los actores armados que las desplazaron y, a pesar de la legislación existente (ley 160 de 1994, ley 387 de 1997 y Principio Rector 29), no se han adoptado medidas para la reasignación o indemnización de sus tierras y bienes abandonados. Preocupa que esta situación se agrave por la reforma presentada a la ley 160 [...], la cual limitaría las posibilidades de acceso a la tierra de las personas desplazadas. Este proyecto de ley se basa en la regulación del mercado y niegan la autonomía campesina en los procesos de desarrollo rural y su derecho a la seguridad y soberanía alimentaria. Esta reforma desconoce la recomendación del Representante de Naciones Unidas para las personas desplazadas sobre la necesidad de apoyar su autosuficiencia [...] y las recomendaciones del Comité de derechos económicos sociales y culturales para llevar a cabo una genuina reforma agraria [...].” (Mencolde, 20 August 2003, pp.4,5)

“Como incentivos para el retorno voluntario, la Red de Solidaridad Social coordinará con el Ministerio de Agricultura, el INCORA y el Ministerio del Interior la definición, diseño e implementación de un procedimiento especial para la identificación de los derechos y títulos de propiedad de la población que retorna, con el fin de devolverle la tierra que temporalmente perdieron como consecuencia directa del desplazamiento. Igualmente, se establecerán mecanismos para clarificar la propiedad de las mejoras y establecer esquemas de compensación de bienes inmuebles abandonados como parte de pago de nuevos predios. La Red de Solidaridad Social promoverá la prestación de asesoría jurídica a los desplazados en materia de tierras.” (Departamento Nacional de Planeación, GOC, 10 November 1999, Sect. IV.A3a)

“The workshop recognized the difficulties involved in the application of Guiding Principle 29.1, which spells out the right of displaced persons to recover abandoned property and possessions. First, the majority of IDPs in Colombia do not have legal title to the land they left behind. Second, the actors causing displacement, or persons sympathetic to them, often destroy or take possession of property and belongings left behind. Furthermore, IDP participants described the fear caused by the violent acts leading to displacement, which effectively prevented displaced persons from returning to their homes. Given this situation, the workshop encouraged the Government of Colombia to design and implement programmes aimed at recovering IDP property and possessions, in accordance with Principle 29.

When recovery of property and possessions is not possible, authorities should facilitate alternative solutions leading to compensation or just reparation. In Colombia, such compensation has not been offered to IDPs. Instead, agrarian reform Law 160 has been applied to IDPs, just as to any other peasant in need of land, making them pay 30 per cent of the total cost of the new plot of land. Workshop participants did not find this system reasonable, given that most IDPs, as a result of violations of human rights or humanitarian law, have lost their belongings and means of making a living. Concern was also expressed that IDPs would have

to assume a debt burden so large as to prevent a durable solution to their situation. It was, therefore, suggested that displaced persons should be exempt from paying the 30 per cent charged other land-reform beneficiaries." (UN CHR, 16 November 1999, paras. 64-65)

Institutions

Restructuration of INCORA the Institute for Agrarian Reform in charge of distribution of land and resettlement (2003)

- The Colombian Institute of Agrarian Reform has been restructured and fused with other institutions in charge of agrarian reform
- Recent reforms will make access to reparation and land titling even more elusive for returning IDPs
- INCORA contributes to the resettlement process by facilitating the purchase of land to the displaced and providing basic assistance to the resettling families
- This resettlement process has been so far employed for very few communities and with limited success
- Some resettlement programmes have benefited from the technical assistance of the Office for Rural Women of the Ministry of Agriculture

"Además, la reestructuración del Instituto Colombiano para la Reforma Agraria (INCORA), que incluye la fusión de varias entidades encargadas de la reforma agraria y de apoyar al campesinado, podría dificultar aún más el acceso a soluciones duraderas para la población que quiere retornar al campo con la titulación de sus propiedades como en el caso del Naya (Cauca)[...]." (Mencoldes, 20 August 2003, pp.4,5)

"For most displaced families, their future is filled with anxiety and uncertainty. While most would like to return home, they will not if they have no promise of security. There have been some attempts to resettle families to other areas, but most have not met with much success, usually because of lack of government commitment and resources.

To resettle on new land, the government works through the Institute for Agrarian Reform (INCORA) to locate appropriate farm land, make arrangements for the displaced to purchase the land, and provide basic assistance for the families to move and establish new homes and farms. Unfortunately, this resettlement process has been employed for very few communities and with limited success. In one case, a group of 12 displaced families, mostly headed by farm women, organized them into a small association and requested a farm from the government. (They had initially fled to the city of Monteria, but found they could not get work and had no means to support their families or send their children to school.) In 1998, the government agency INCORA gave the women a *finca*, *La Duda El Tomate*, and they moved to the countryside. The Office for Rural Women of the Ministry of Agriculture provided technical assistance in getting the project organized.

But by the end of 1998, the women were struggling to succeed on their new land. Those families with men have been able to construct their own wood houses, but female heads of households with smaller children and no extended families are still living in communal shelters. The Women's Commission talked to the women who explained they had to till their land, care for their children and build their houses at the same time. They received three months worth of food as humanitarian assistance, but are now struggling to find food. Sometimes they receive food from their neighbors and sometimes they look for odd jobs or they return to Monteria to beg for food in the streets. Some said they were considering moving back to Monteria because they are so desperate.

The women also described many health problems, saying their children suffered from malnutrition and rashes. The women said they were having difficulty obtaining credit for income-generation projects, and although they had requested training, they never received it. (This training is important, because they are required to develop project plans which are then submitted to the agrarian bank for financing.)

In a more successful resettlement, INCORA has supported 58 displaced families, 14 of them headed by women, who escaped violence in their villages in the province of Cordoba. INCORA provided land for these families in the village of Valencia, and also offered technical assistance and supplies to build houses, which are made of brick and wood. In addition, the Office for Rural Women provided technical assistance and pushed for gender sensitive programming, so that the female headed-households would not be left to beg and borrow. The women earn income through micro-enterprise projects, including sowing rice and corn, and raising livestock, and selling these on the market. The biggest concern for these families now is education for their children, as there is no school in the area." (Women's Commission May 1999, p. 9)

PATTERNS OF RETURN AND RESETTLEMENT

General

11,143 displaced families returned since August 2002 (Dec 2003)

- Only 11.30% of the displaced people wish to return, 46.22% wish to stay in areas where they fled to and 18.96% wish to resettle somewhere else according to Pastoral Social (2003)
- The government aims at returning 150,000 IDPs (30,000 displaced families) between 2002-2006
- 12,000 IDPs returned to Valle del Cauca between August 2002 and August 2003
- The government signed an 'Acta de Compromisos' which promises investment in education, roads, food security, relief aid and health care
- UNHCR reports return movements increasingly sporadic
- ICRC reports most IDPs return within the first 6 weeks of displacement and long-term displaced are less likely to return
- The government assisted the voluntary return of 1,700 IDPs in department of Caldas
- 1.571 IDPs returned to Rio Munguidó after having been displaced for 5 months in Quibdó in Chocó department (Feb 2003)
- During 2001 return indicator fell to 11% compared to 37% in 2000 and according to RUT only 13% expressed wish to return

As of 23 December 2003, the RSS had already assisted the return of 11,143 displaced families or about 55,715 IDPs since the New President took office in August 2002. To see table click here [External Link]

« En los últimos años se ha evidenciado una disminución drástica del número de personas desplazadas que retornan a su lugar de origen, pasando de ser el 37% del total de la población desplazada en 1997 a tan solo el 2% en el primer semestre de 2002 [...]. Una encuesta reciente también demuestra que la mayoría de las personas desplazadas están favorables a permanecer (el 46,22%) o reubicarse (18,96%), cuando solo el 11,30% quiere retornar» (Mencoldes, 20 August 2003)

« La meta de este Gobierno como mínimo es retornar a 150.000 personas unas 30.000 familias a sus sitios de origen, con el componente de organización comunitaria y con condiciones de seguridad alimentaria para dar un paso importante en esta materia. » (RSS, 12 September 2003)

“Para el periodo 2002-2006, el Gobierno Nacional tiene como meta el retorno a sus lugares de origen de 30.000 familias de las cuales, gracias a la acción coordinada de la Red de Solidaridad Social, la Fuerza Pública y otras entidades del Estado, ya han retornado 7.401. » (GOC, 14 August 2003)

“El director de la Red de Solidaridad, Luis Alfonso Hoyos, informó que desde agosto de 2002 hasta la fecha, 12 mil desplazados vallecaucanos han retornado a sus lugares de origen. [...] "Con este número de personas retornadas, el departamento del Valle del Cauca ocupa la segunda posición en retornos luego del Chocó" » (GOC, 13 September 2003)

“Since Dec 2002 the state has been advocating a rapid return of IDPs into rural Convención with no guarantees whatsoever. It proposed to provide returnees with food and medicine kits, but no longer-term humanitarian and development strategies were proposed. In particular, the RSS, the government institution

responsible for tackling the humanitarian situation, came under fire for not promoting an adequate humanitarian and protection plan that would reflect the real necessities of returnees. Although the state has signed an 'Acta de Compromisos' (which promises investment in education, roads, food security, relief aid and health care) following pressures, it remains to be seen whether local state institutions will live up to those promises. Policy makers emphasized that the implementation of state-led programs will depend on whether the levels of insecurity will allow the state to enter the region." (PCS, 30 May 2003)

"Return movements are becoming more and more sporadic [...]. The return movement of 1 September 2002 from Quibdó to Bojayá was an exception. Generally, it was felt that the conditions for return have not yet been met in most expulsion areas. ICRC has reported that many IDPs return within the first six weeks after displacement. The longer-term IDPs and the ones that have passed the emergency phase are less likely to return to their place of origin." (UNHCR, 3 May 2003, p.11)

Department of Caldas

"El pasado fin de semana retornaron voluntariamente a sus hogares alrededor de 1.700 personas, unas 460 familias, luego de permanecer por 10 días en la cabecera municipal y recibir acompañamiento por parte de la Red de Solidaridad Social, la Alcaldía Municipal, el ICBF, la Unidad Móvil de la Dirección Territorial de Salud de Caldas, la Gobernación de Caldas y Organismos Internacionales.» (RSS, 15 August 2003)

« Ya son 19.489 los colombianos y colombianas que han retornado desde el 7 de agosto del año pasado fecha en que se posesionó el presidente Alvaro Uribe Vélez. Felices por saber que retornan a la cuenca del río Munguindó a realizar las labores que por largos años han fortalecido su tejido social se mostraron 1.571 chocoanos desplazados que permanecieron durante cinco meses en Quibdó.

[...]

Según explicó Luis Ángel Moreno, Coordinador de la Red en el Chocó, cada hogar que voluntariamente tomó la decisión de retornar, recibe un kit de seguridad alimentaria compuesto por herramientas, semillas, concentrado y pollos de engorde o gallinas ponedoras así. un machete, un azadón, una pala, una lima, un palín, un barretón, 12 kilos de semilla de maíz, 40 gramos de semilla de tomate, 30 de pepino y 100 de cilantro, 8 kilos de semilla de arroz y 17 gallinas ponedoras o pollos de engorde.

Contratados por la Red de Solidaridad, 20 botes grandes, más de 40 pequeños y unos 1.300 galones de gasolinas se necesitaron para transportar a los 431 hogares de las comunidades de Bella Luz, Calahorra, Winandó, Guarandó, Alta Gracia, Jitradó, Mojaudó, Puerto Aluma y La Comunidad.

Este nuevo regreso a sus hogares de 1.571 personas, se suma a los 24 eventos de retorno de población desplazada que se han registrado desde el pasado 7 de agosto, fecha en que asumió como nuevo presidente de los colombianos Alvaro Uribe Vélez. Hoy la cifra de hogares retornados luego de permanecer en condición de desplazamiento alcanza los 3.788 hogares, 19.489 personas. » (GOC, 28 February 2003)

"En el 2001 el índice de retorno fue de 11%, lo que supone una disminución del 70 % respecto al 2000 cuando la tasa de retorno fue de 37%. Un total de 23.211 personas retornaron o se reubicaron en el 2001 (21.172 retornaron y 2039 se reubicaron). Estos datos indican que el retorno es cada vez menos una solución posible para los desplazados, que sólo manifiestan en un 13 % su deseo de retornar, según la encuesta del RUT, ó en un 11 % según la encuesta de OIM.

[...] Sin embargo, la práctica más habitual continua siendo el retorno individual y espontáneo sin garantías de parte de las instituciones. Ejemplos de esta práctica han sido detectados en Santa Rosa y en San Pablo. Por lo general, la reubicación no es una alternativa de solución para la población desplazada de la Región." (GTD, 23 November 2002p. 34-5)

"La intención de las poblaciones desplazadas de regresar a sus lugares de origen aumentó en cinco puntos porcentuales, pues la medición mostró un 24% con un precedente de 19% en el año 99; las expectativas de permanecer presentan un incremento de siete puntos porcentuales, es la más alta con un registro del 60% del total. La alternativa de migrar a otro lugar disminuyó en 10 puntos porcentuales pues solamente el

16% manifestó el querer hacerlo mientras que en 1999 este porcentaje fue de 26%." (CODHES, January 2001)

To read the presentation of Brookings at Seminar/Workshop on Return, Resettlement and Reintegration of IDPs in Colombia 3 December 2003 see bibliography below.

To read CODHES' comments on the Brookings presentation of the 3 December 2003 see bibliography below.

IDPs return to unsafe areas often due to lack of assistance and protection in areas of refuge (2003)

- 125 families who returned to Catatumbo in May 2003 intend to flee to urban areas again due to lack of basic conditions met by local authorities such as drinking water
- Most IDPs in Cúcuta have expressed desire to return to rural areas emphasizing lack of humanitarian assistance, jobs, too much violence, no access to schools and poor housing conditions
- Rural Convención has suffered food and medicine supplies blockades since paramilitary incursions in 2001
- Return to rural Convención is also hampered by uncleared landmines and lack of school teacher who are considered 'military targets'
- Despite all these impediments over 400 people returned to rural Convención without assistance and with the causes of flight remaining unchanged (2003)
- The security of the returned will not be guaranteed as there is no state nor military presence in the region
- Many returns prompted by high presence of armed actors in urban centres undermining physical security of IDPs
- The voluntary nature of return is questioned as it is most often motivated by inhuman conditions of living rather than by guarantees of safety and dignity in places of return

"NORTE DE SANTANDER

Catatumbo: 125 families expressed their intention of abandoning once more their villages after their return in May. These are peasant families of the rural areas of Convención and Teorama who, for lack of basic conditions, are considering again taking refuge in the urban areas of these municipalities.

According to CODHES, the return of this community on 21 May, did not meet the minimal guarantees demanded by the guiding principles of displacement. After three months, several of the commitments subscribed by the Office of the Governor of Norte de Santander are still unmet. The greatest concern is that a hose required for drinking water to be made available to the homes has not yet been bought. Difficulties for transportation to the urban area of Convención, the main market center of the area, for lack of adequate security." (UNCTC, 30 August 2003)

"Given the precariousness of humanitarian assistance, the criminalization of IDPs, the crudeness of urban violence and the lack of economic opportunities (which is closely connected to the stigmatization of IDPs) large numbers of people are voicing a clear desire to return to their rural centers. However, most displaced people living in Cucuta go virtually unnoticed; indeed, little is known about their situation and how long they tend to remain in Cucuta before returning to their villages. This has to do with the lack of organizational structures that would permit displaced communities to pressurize the state to respond to their needs.

The plight of internally displaced people living in Cucuta has been highlighted by the situation of 72 families from the rural area of Convención, who have been staying at the Centro de Migraciones, a church-let home that provides shelter for migrants, for the past 14 months. Given their uncertain situation people at the Migration Center have long expressed a clear desire to return home. There are various reasons for wanting to return. Comments about return are frequently linked to the precarious situation in Cucuta, while others are linked to economic reasons (owing land). Thoughts about return generally reflected a direct comparison of life in the urban shanties of Cucuta with that of rural life at home (attachment to rural life, being better off, possibility of work). Many people who intend to return explained their decision by emphasizing on the negative aspects of live in Cucuta: lack of humanitarian aid, lack of job opportunities, urban violence, children unable to attend school, poor housing conditions are the most common reasons for wanting to return.

Indecisions about returning are based upon uncertainties regarding the conditions back home. IDPs are generally willing to return if the government committed itself to ensure conditions for a collective and organized return, if they were accompanied by foreign organizations who would ensure their safety and protection and if the state would commit to the provision of socio-economic security back home (micro projects, reconstruction of infrastructure, provision of schooling and health care facilities).” (PCS, 17 March 2003)

“Returning IDPs: stumbling stones, dilemmas, difficulties

Whether or not to promote a return has become a highly controversial and contested issue. There is no black and white answer to this. Rather a number of issues must be looked at. Rural Convención is a region which continues to be disputed by armed actors. As outlined in the previous report, roads leading to the rural veredas of Convención have been blocked off since the paramilitary incursions at the end of 2001. The commission established that since July 2002 disputes between armed actors have calmed down considerably, however, warring groups are continuing to sow fear and hatred and blockade the entrance of food and medicine supplies, which in turn impedes the revival of local peasant economies. Indeed, many peasants are questioning the utility of reactivating agricultural production projects given the continuation of blockades, extortion and rent-seeking activities by warring groups.

The issue of uncleared land mines looms as an obstacle to return, which also undermines the recovery of the local peasant economy as well as the reconstruction of schools. To date five cases of landmine victims have been known. What is more, school teachers are considered military targets; those who remain in or have returned to the zone are constantly threatened by warring parties while others are reluctant to return given the obvious risks.

In spite of the continuing precarious conditions, the inability and disinterest of the state to provide protection and welfare in rural Convención, the continuing predominance of paramilitary and guerrilla groups as well as the reality of and fears about the likelihood for further human rights violations, more than 400 people are said to have already returned independently and without receiving any assistance by state institutions. Given this, assistance is not only required for the 200 or so people in Cucuta and other urban centers, who have expressed a clear desire to return. There is a need for humanitarian and development assistance for the entire population in rural Convención.

As war continues in the zone, and no-one is able to foresee future actions by warring parties (guerrillas are said to prepare a counterattack), promoting a return has proved controversial. Indeed, the circumstances that forced people to leave have not actually changed. Nevertheless, in the light of the precariousness of conditions in urban centers such as Cucuta, the tendency towards an urbanization of warfare, the absence of a political will to deal with displacement and the newly developed state approach to promote the return or resettlement of 30,000 families national and international NGOs and the UN system are faced with a tough decision: either assist a return or stay out of it.” (PCS, 17 March 2003)

“Numerous factors play into the decisions of individuals, families and groups of people to return home without formal assistance of government officials or humanitarian agencies. For once, state-let

humanitarian aid in the urban centers of Cucuta, Ocaña and Convención has always been precarious. Large numbers of IDPs do not even make it onto the government register which ensures assistance. Employment opportunities are extremely rare, while many displaced are stigmatized as guerilla supporters. What is more, given the strong presence of armed actors in the urban centers of Cucuta, Ocaña and Convención, the physical security of IDPs is constantly being undermined. Threats, disappearances and forced recruitment and inter-urban displacement have become commonplace in urban centers, in particular the slums at their outskirts.” (PCS, 11 February 2003)

“With regard to returns, the Office has noted that in several cases it is questionable whether the return was in fact voluntary. One formally “voluntary” return in Alto Baudó, Chocó, for example, occurred with no minimum guarantees of security and dignity.[...] It was mainly desperation at the subhuman living conditions in Quibdó, and the lack of prospects, that impelled many to return, rather than a sober, informed assessment of the security conditions. There is thus a serious risk that the tragedy of displacement will be repeated as a result of the fragility of the process in the key area of effective security.

[...]

In any case, considering the fact that the majority of displaced persons, especially those in the cities who are of rural origin, are unwilling or unable to return, there are still serious deficiencies in social policy to deal with the problem, including job-creation initiatives.” (UN HCHR 28 February 2002, paras. 241, 242)

Most IDPs return without proper guarantees of security voluntariness and dignity (1999-2003)

- The state organized the return of 500 people to North of Santander without guarantees of security, protection and dignity in May 2003
- Houses destroyed by the 2001 confrontations were not rebuilt and many returnees will be homeless
- Armed groups blockades will hamper the economic recovery in the area
- IDPs nevertheless are willing to return and hundreds have already done so without assistance
- UNHCHR is concerned about returned indigenous communities who returned to unsafe areas along the Atrato River, Slaqui, Truandó, Quiparadó, Domingodó, Curvaradó and Jiguaminandó rivers
- Many people continue to return individually on the basis of fragile agreements with illegal armed groups and without appropriate state protection

North of Santander

“Otra preocupación se origina en el hecho de que las autoridades locales y nacionales han promovido retornos a los cascos urbanos de municipios que son de conocido control paramilitar. En zonas como el Oriente Antioqueño y los Montes de María, la permanencia de miembros de grupos paramilitares responsables de numerosas violaciones de los derechos humanos e infracciones al derecho humanitario, permitidas por la omisión y aquiescencia de la fuerza pública, genera condiciones de inseguridad para la población civil [...]” (Mencoldes, 20 August 2003, p.4)

“After more than a year since the forced displacement of over 12,000 people and lengthy discussions among the displaced population, NGOs and governmental bodies, last week the state organized the return of more than 500 people back home to rural Convención, particularly Miraflores, Cartagenita, Honduras and La Trinidad [...]. However, in spite of intense lobbying work by NGOs, particularly the Project Counselling Service (PCS), the government has not taken the necessary steps to guarantee a return with dignity and provide security and protection to returnees once they arrive home. Discussions regarding the return have been polemic at best given that the return takes place under unstable conditions of an ongoing low intensity conflict, continued uncertainties, disorder and attacks on civilians. Returnees as well as state

institutions, NGOs and the international community face a wide range of challenges given the current situation in rural Convención.

[...]

Physical problems include the presence of land mines and the destruction of housing. The region is heavily contaminated with landmines, which continue to kill and maim people, restrict access to agricultural land, schools, markets and so on, impeding mobility, security and economic activities. Though the army had some landmines cleared in the urban centers of Miraflores (see map) following advocacy work by NGOs and government institutions, active landmines remain on fields, impeding the recovery of the local peasant economy. Housing conditions have not yet been verified; however, many fear that some returnees may be homeless following their return. Many houses were partially or completely destroyed during and following the armed confrontations of December 2001.

People are returning to a zone where tight guerrilla- and paramilitary imposed food and economic blockades remain in place. With a landscape of vast mountains, the few poor roads and pathways conveniently lend themselves to blockades imposed by irregular armed actors, who also extort local farmers and merchants, prohibit or partially restrict the entry of goods, particularly food and medicine, and impose taxes on commodities. The economic and food blockades are imposed to prevent the enemy from accessing provisions and strategically impose hardship on the civilian population. Communal leaders are frequently targeted, kept under close surveillance and their movements are restricted. Any form of movement in guerrilla and paramilitary-controlled areas becomes hazardous and expensive. These ongoing blockades are hampering socioeconomic development and impeding security and stability in the zone.

[...]

NGOs and the UN system are justifiably sceptical and worried about the return process into a war zone. Although the position of returnees proves at best precarious, however, the main argument for a return has been the clear desire by IDPs to go home. Hundreds of people already returned to their villages spontaneously and individually and without government support.

NGOs and the UN have raised serious questions regarding the promotion of a dignified, voluntary and secure return home.

Regarding a dignified return:

Although the state has promised to invest in education, health care and productive projects, which were presented in an '*Acta de Compromisos*', such vows don't live up to the real needs of the approximately 10,000 people currently said to inhabit the zone, who have historically been neglected by the state. There are also worries about the credibility of such a state pledge given that state institutions are notoriously bad in living up to promises, particularly when it comes to investing money in return process.

Regarding the voluntary nature of return:

Serious questions must be raised about the voluntary nature of people's decision-making process. There are factors 'pushing' from urban centres of Cucuta, Convención and Ocaña, where most people fled to, and 'pulling' towards rural Convención. In order to understand why IDPs sought to return, it is important to examine both the factors related to people's living conditions in urban centres and those pertaining to the improvement of conditions once they go home. Indeed, the stigmatization of IDPs in urban centres, arbitrary delivery of relief aid, overcrowded and poor living conditions in marginal shanties, lack of employment opportunities and thus, total dependency on aid handouts, as well as pressures exerted by authorities for IDPs to return home, constitute decisive elements in people's decision-making process. So do the prospects of selfsufficiency and a life under dignified conditions back home, a desire for communal and family ties and potential economic opportunities in the wake of merely minor incidents of armed confrontations acknowledged in rural Convención.

Regarding ensuring security and protection:

In light of the persistence of landmines and illegal checkpoints close to the zones controlled by Public Forces, the state has failed to forward a protection strategy which would ensure an adequate accompaniment of returnees, prevent attacks against returnees, dissuade armed actors from involving

civilians in armed conflict and involve local public officials in accompanying and protecting the returnee population.

Regarding its sustainability:

The main challenge lays in making return a sustainable solution by supporting sustained reintegration of returnees in their areas of settlement. But many wonder whether the government has the political will to invest in much-needed health, education, communication and roads sectors. Socio-economic development may also be hampered by the continued presence of irregular armed actors, road blockades and potential renewed confrontations, which may provoke new displacement.

Regarding the perpetuation of conflict:

Returns are likely to lead to a cycle of disaster and migration given that people are returned to war zone areas of chronic poverty and food insecurity. There are also concerns that the return process may exacerbate localized conflict and tensions given that the returnee population and aid may play into the hands of one or the other irregular armed actor.” (PCS, 30 May 2003)

Choco

“99. These ethnic groups are especially hard hit by displacement owing to the close relationship between their culture and the land they live on. Particular concern is felt for the situation of displaced persons who have returned to their places of origin without proper guarantees of security, in view of persistent threats from illegal armed groups, especially in the peace communities living on the banks of the Atrato River and along the Salaquí, Truandó, Quiparádó, Domingodó, Curvaradó and Jiguamiandó rivers, which increase the risk of further Displacements.” (UNCHR, 24 February 2003, para 99)

« En el departamento del Chocó, las comunidades indígenas de los resguardos de Opogadó y Dubadó, municipio de Bojayá, han venido denunciando, desde el 24 de septiembre de 2003, la presencia de unos 600 paramilitares en sus territorios y lugares de vida. Preocupa la ausencia de acciones efectivas por parte del Estado para evitar que se vuelvan a repetir daños irreparables contra la población civil como pasó el 2 mayo de 2002 en este mismo municipio [...].

[...]

Las personas desplazadas de la región del Ariari exigieron al Estado una atención integral y efectiva durante el tiempo que se prolongue su situación y en su proceso de retorno en condiciones de dignidad y de seguridad. Sin embargo, no recibieron una respuesta adecuada por parte de las autoridades y su proceso de retorno ha sido afectado por el asesinato de algunos de sus líderes.

[...]

El retorno de 828 familias (aproximadamente 2923 personas) a sus veredas del municipio de Viotá (Cundinamarca) el 7 de abril de 2003 Red de Solidaridad Social, oficio AGAD 1335 del 11 de abril de 2003., se realizó menos de 8 días después de haber ocurrido el desplazamiento forzado. Este desplazamiento masivo fue generado por los asesinatos, desapariciones forzadas, intimidaciones y amenazas de muerte de grupos paramilitares, perpetrados con la omisión y aquiescencia del Ejército nacional que no actuó ante las alertas sobre la presencia de estos grupos [...].” (CCJ, 8 October 2003)

To access the report of the Bogotá Working Group on IDPs return (30 June 2003) see bibliography below

Resettlement

Integration and resettlement of IDPs: a neglected option (2003)

- Local residents are often as poor as IDPs, therefore cannot help the displaced to reintegrate without significant support
- Integration of IDPs in urban areas is overlooked by government policy as an ‘overwhelming problem’ affecting 40% of IDPs
- To respond to the needs of urban IDPs constituting poverty belts of big towns would require funds to implement development projects in the urban periferies
- Return of people displaced may appear cost cost-effective in the short term to the government
- Socio-economic re-establishment of returned and resettled IDPs hampered by insufficient resources allocated to RSS (2002)
- 11,000 displaced households were allocated housing assistance upon return in 2002 according to RSS
- Some macro-productive projects for the Peace Communities were planned with no consultation with the affected populations
- Out of the 495,000 million pesos allocated to the Development Plan for Departments of Turbo, Apartadó, Chigorodó and Carepa, only 1.6% (7,200 million) are planned for the displaced populations
- Possibilities of return shrunk from 37% in 2000 to 2% in 2002, owing to the fact that 68% of the IDPs flee from 20 zones where conflict is most intense, according to the Presidency
- RSS registered 14,865 returns during the first half of 2001, thus 47,338 less than in 2000, however there are no state policies designed to restore safety in areas of return and budgets for assisting families to resettle are insufficient
- Where there is no effective state policy on return, resettlement is another alternative which however risks to serve the interest of the armed groups causing displacement

“A lo anterior se suma que las personas desplazadas pocas veces cuentan con alternativas al retorno, como lo es el reasentamiento en otro lugar o la integración en el lugar de recepción. La ausencia de una voluntad política de ofrecer alternativas al retorno desconoce la normatividad nacional y las recomendaciones en materia especialmente de reasentamiento agrario y de reintegración.” (Mencoldes, 20 August 2003, p.8)

“Integration of IDPs in host communities has been difficult as well. Receiving populations, like IDPs, often face hardship and are not able to share their already scarce resources. The arrival of large groups of IDPs can lead to tensions. Intervention with the idea of facilitating integration will have to take the needs of the host communities into account.

[...]

38. Integration of IDPs in urban areas is even more complex. As many as 40 per cent of all IDPs end up in larger cities, where they “integrate” or “disappear” amongst the urban poor. The government and international community are hardly addressing the issue of urban displacement arguing that it is a huge, overwhelming problem, which requires substantial additional resources. Another argument for not getting involved is the difficulty of distinguishing between the urban poor (*pobres históricos*) and the IDPs. UNHCR is involved in an education programme in Soacha, a poor neighbourhood of Bogotá.” (UNHCR, 3 May 2003, p.11-12)

“In spite of the fact that Bogota is the main receiver of IDPs, Codhes highlights that there are no clear government strategies designed to respond to the problem[...]. What is more, government approaches put emphasis on humanitarian aid only, without developing coherent mid and long-term strategies. Indeed, government services are often considered an act of charity rather than a holistic well planned strategy, which responds to the social dynamics that result from IDP influxes and seeks to find long-term solutions to their problems. Many would agree that the government lacks the political will to better respond to the crisis.

[...]

Currently, RSS is operating in a vacuum while Uribe is defining his response to displacement. It is foreseen that Uribe will emphasize on a politics of return or resettlement of IDPs. Given the levels of overcrowding, the increased visibility of displacement in the city and the subsequent pressure of Bogotanos on government institutions urging them to do something about the problem as well as the amount of money that would be required to adequately deal with the humanitarian crisis and augmentation of levels of poverty in the city, and closely linked the need to extend development projects to the urban periphery (costly investment in electricity and water) constitute considerations behind the development of a politics of return. It is indeed far less costly to attend people in rural areas.” (PCS, 31 December 2002)

“En la Región de Urabá, a pesar de las gestiones de la RSS para promover la estabilización socioeconómica de la población desplazada, reubicada o retornada, los procesos no han producido resultados concretos hasta la fecha. [...] Insituciones como la UMATA y el SENA han presentado una mayor disponibilidad para apoyo técnico a proyectos durante el último año. Sin embargo, se ha detectado la escasa participación de la población desplazada en el diseño y gestión de los proyectos. Además estos proyectos se dan, en muchas ocasiones, al margen de los Comités Municipales. En particular, la aprobación de un número de macro proyectos productivos que iniciarían su ejecución en el 2002 para las Comunidades de Paz se hizo inicialmente sin consulta con las comunidades afectadas incumpliendo lo dispuesto en la Ley 70 de comunidades negras. Ante la protesta de las comunidades, la RSS (con apoyo financiero de la Pastoral Social, el PNUD y el ACNUR) organizó un encuentro de comunidades con las autoridades municipales. El encuentro sirvió para diseñar proyectos productivos que tuvieran en cuenta las formas de vida tradicionales de las comunidades del río Atrato.

Finalmente, el Plan de Desarrollo del Eje Bananero (Turbo, Apartadó, Chigorodó y Carepa) contiene recursos destinados la PDV. Del total de 495,000 millones de pesos durante 3 años, se ha destinado 1.6% (7,200 millones) para el beneficio de la población desplazada. Sin embargo, la gran mayoría de estos recursos está dirigido a la construcción de dos albergues, uno en Carepa y el otro en Apartadó, lo cual no contribuye a la solución del problema de desplazamiento en la zona.” (GTD, 23 November 2002,p.35-6)

« En términos regionales se identifican 20 zonas críticas desde donde huye el 68% de la población desplazada. Dichas zonas coinciden con las áreas de mayor intensidad del conflicto armado con lo cual las oportunidades de retorno se han reducido al pasar de un 37% en 2000, a 11% en 2001 y a solamente 2% en el primer semestre de 2002. Esta situación ha generado una creciente demanda sobre los recursos disponibles para la reubicación en nuevos asentamientos, generalmente en las grandes ciudades, donde los costos de atención y de reinserción social son mayores. » (Presidencia, 1 October 2002, p.61, 129)

"It is difficult to find durable solutions in a context of conflict and stigmatization. The Network registered 14,865 returnees during the first half of 2001, which represented a decrease from the 47,338 recorded in 2000. The Network also reported one family resettled for every 10 returning, owing to the greater complexity of the process. In this respect, if there is no State policy to actively seek to restore security in the areas of return, the only alternative is basically resettlement, with the risk that this would unintentionally favour the economic or strategic interests of those responsible for displacement. During the first half of 2001, the Network approved 110 production projects for the resettlement of 11,354 families, with a budget of nearly 20 billion pesos, joint financing and international contributions accounting for nearly half the amount. This represents nearly 1.7 million pesos per family, which generally is not enough to achieve sustainable socio-economic stability." (UN HCHR 28 February 2002, paras. 240)

"Some displaced persons have opted for resettlement as provided in Act No. 387. A displaced person wishing to buy land has to pay only 30 per cent of the land's value. The procedure is slow, however, and relatively few displaced persons have been able to take advantage of it. In some cases, resettlement has brought new security problems due either to the fact that the land allocated has been in areas of influence of the parties to the armed conflict or to internal problems within the settlements themselves. Those who have decided to return to their communities have also been victims of further violations, thus demonstrating that the protection afforded by the authorities has been insufficient and ineffectual." (UN CHR 16 March 1999, para. 100)

Policy

Voluntariness and safety overlooked in GOC IDP return policy (2002-2006)

- Uribe plans to return 30,000 displaced families who will have either to agree or to be deprived from humanitarian assistance
- IDPs who returned to Bellavista and Las Palmas were never allocated the reconstruction funds promised by the government
- Uribe return policies undermine the Guiding Principles and arts. 16-17-18 of Law 378
- IDPs from Medellín will be returned to East of Antioquia department, those from Bogotá, to La Palma and those from Cúcuta to rural Convención
- 900 IDPs were returned to La Palma in November 2002 and hundreds of them were displaced again shortly after
- GOC talks about return to areas of origin where conflict is most intense
- The Presidency mentions that 68% of all IDPs flee from 20 zones undergoing the most intense conflicts in the country, however it does not address issues of protection for those who return to territories controlled by illegal armed groups
- GOC proposes a pilot return plan for 30.000 farmer households who fled their land, who will be provided with subsistence subsidies, land titles, income-generating projects and capacity building
- GOC in collaboration with the Red Cross and the RSS will create incentives for return of IDPs in areas of origin, supported by a ‘security strategy’ and projects in support of subsistence of livelihood

“Uribe has promised to return 30,000 families through a series of ‘pilot’ return projects. Indeed, funds assigned to the RSS are to be spent predominately on emergency assistance and return and resettlement processes. The idea is that returnee aid will be required during the initial stages of the return process, while subsequently; municipal and regional government entities will take responsibility for the returnee population, issuing development funds to ensure their integration/re-integration. The gap between returnee aid and development assistance has already become clear during return processes in Bellavista (Choco) and Las Palmas (Cundinamarca), where the state did not comply with its promises to send funds for reconstruction (PCS will soon forward studies on the return processes in those and other places).

The government has identified the following regions for the implementation of pilot return projects:

- Return IDPs from Medellín to the Oriente Antioqueño
- Return IDPs from Bogotá and neighboring municipalities to La Palma (approx 900 people have already been returned, of which hundreds have been displaced again following the return process)
- Return people from Cucuta and urban centers of Ocaña and Convención to rural Convención.

Those locations identified by Uribe as potential returnee or resettlement zones are regions where paramilitary groups are prevalent. Some analysts have argued that the return process is part of the government’s overall strategy to legalize and re-integrate the paramilitary (which fits with other tactics that are said to do the same: zones of rehabilitation, peasant soldiers, red of informants).

The Deng Principles and the 378 law emphasize (article 16, 17, 18) on the voluntary and dignified nature of returning IDPs, which guarantee physical and socio-economic security. However, Uribe’s pilot projects pressurize people to return or resettle given the ‘take it or leave it’ proposal in which state institutions threaten to cut off assistance if people don’t disagree.

There is a need to further look at return processes in order to pressurize state institutions to initiate sustainable return processes. The Catatumbo return process will be followed closely by INGOs, it is significant in the way that it will determine future government initiatives. Pressing state institutions to develop more coordinated and integral strategies in promoting a return may prevent a second displacement of returnees.” (PCS, 17 March 2003)

« En términos regionales se identifican 20 zonas críticas desde donde huye el 68% de la población desplazada. Dichas zonas coinciden con las áreas de mayor intensidad del conflicto armado con lo cual las oportunidades de retorno se han reducido al pasar de un 37% en 2000, a 11% en 2001 y a solamente 2% en el primer semestre de 2002. Esta situación ha generado una creciente demanda sobre los recursos disponibles para la reubicación en nuevos asentamientos, generalmente en las grandes ciudades, donde los costos de atención y de reinserción social son mayores.

[...]

iii. Restablecimiento

[...]

Para lograr lo anterior, el Gobierno Nacional comenzará con la implementación de un programa piloto para el retorno de 30.000 familias campesinas, que hayan tenido que abandonar sus tierras. Dicho programa se soportará en: a) un esquema de subsidios de vivienda; b) la promoción de procesos de titulación de tierras; c) el apoyo a proyectos productivos y la generación de ingresos; y d) la promoción de esquemas de capacitación productiva.

Los subsidios de vivienda comprenden cuatro modalidades habitacionales: arrendamiento [...], adquisición de vivienda nueva, construcción en sitio propio, y reconstrucción de vivienda. Para la aplicación de los subsidios y la asignación de los recursos, se aplicará una fórmula de calificación que tendrá en cuenta las condiciones de tenencia del hogar en el momento del desplazamiento, el nivel de vulnerabilidad, el tipo de jefatura y el tiempo de desplazamiento, entre los principales aspectos.

Como incentivo adicional para el etorno voluntario, se pondrá en marcha un procedimiento especial para legalizar los derechos y títulos de propiedad de la población que retorna, con el fin de devolverles las tierras que perdieron como consecuencia del desplazamiento. Dichos procesos de titulación estarán articulados con planes integrales de reubicación y retorno, en los cuales se contemplarán los demás elementos del restablecimiento.

Con el fin de generar alternativas económicas que garanticen un restablecimiento efectivo, se impulsarán proyectos productivos rentables y asociativos, para lo cual se promoverán esquemas de microcrédito y apoyo a la gestión microempresarial.

[...]

Como un soporte para las actividades económicas de restablecimiento, se complementará el desarrollo de proyectos productivos con capacitación agropecuaria, agroindustrial y administrativa, según sea el caso. Con esto se buscará la viabilidad de dichas alternativas, así como mayores y mejores posibilidades de empleabilidad de la población desplazada y para lo cual se pondrán en marcha programas especiales de capacitación en oficios y actividades que permitan aumentar la competitividad.

[...]

El Gobierno pondrá en marcha proyectos y estrategias para atender a la población desplazada por la violencia. Inicialmente se promoverá un trabajo conjunto con la Cruz Roja, el sector privado y la Red de Solidaridad para incentivar el regreso de la población desplazada a sus lugares de origen. Con este propósito se diseñarán proyectos orientados a la financiación de vivienda, crédito productivo para el campo, y una estrategia de seguridad. De manera complementaria, el Gobierno trabajará en la implementación de proyectos de oferta educativa en las áreas urbanas en coordinación con organismos de cooperación internacional.» (Presidencia, 1 October 2002, p.61, 129)

NGOs tough choices: assist controversial return or leave IDPs on their own (2003)

- Return to areas where conditions which forced people to flee have not changed but war continues is controversial
- Although IDPs express wishes to return, decisions are influenced by sub-human conditions in 'refuge' areas
- PCS highlights urgent need to promote state presence, have protection mechanisms and humanitarian corridors
- IDPs need to be given possibility to take informed decisions
- CODHES underlines that there are no guarantees for sustainable return, security and protection and voluntariness is manipulated, therefore new displacements are likely
- Prevention of displacement, humanitarian assistance, reparation and justice remain unaddressed in GOC return policy
- It is unclear whether the GOC will resettle IDPs or return them in their areas of origin, who will be returned and according to what criterions

"As war continues in the zone, and no-one is able to foresee future actions by warring parties (guerrillas are said to prepare a counterattack), promoting a return has proved controversial. Indeed, the circumstances that forced people to leave have not actually changed. Nevertheless, in the light of the precariousness of conditions in urban centers such as Cúcuta, the tendency towards an urbanization of warfare, the absence of a political will to deal with displacement and the newly developed state approach to promote the return or resettlement of 30,000 families national and international NGOs and the UN system are faced with a tough decision: either assist a return or stay out of it. Whatever will be decided, the flood of returnees will not halt, notwithstanding whether they will receive assistance or not. Prospects are that violent conflict is going to perpetuate and escalate further in the months and years to come, making it virtually impossible to promote 'durable' solutions. Many fear that promoting a return to a zone where peace, physical infrastructure and political institutions remain absent will most likely generate new displacement in the near future.

Given that IDPs are already returning independently and the precariousness of peasant and indigenous communities who have been suffering from blockades for more than a year now, there is an urgency to promote a state presence able to introduce protection mechanisms and humanitarian corridors in conjunction with NGOs and the UN system. However, building state institutions should not be confused with Uribe's promotion of security measures. There is a fine line between ensuring security and promoting protection mechanisms. Given the strong presence of warring parties in the region, there is an obvious need for better military and police forces to reinforce state control over means of violence. NGOs stress that this must go hand in hand with the building of state institutions through the introduction of development programs (emphasis on housing, education, health care), which address the needs of returnees and the local population. There is also a need to find strategies and support the advance of humanitarian accords which would guarantee citizens' neutrality in accordance with international humanitarian law (IHL).

The verification commission constitutes the first move into the right direction. While the voluntary nature of a return is highly questionable given current conditions in urban centers outlined above, it is important to give people the possibility to make an informed decision on whether or not to return. This means outlining clearly what the risks are. Further, it is important to set clear benchmarks on conditions for a return, in order to exceed government actions. Joint planning and implementation between the state, NGOs and the UN systems are paramount in order to promote coherent and timely response.

Given that the Uribe government is planning to return 30,000 families in the following three years and the fact that IDPs themselves 'favor' a return, NGOs must critically investigate state-led return processes to ensure a better organized and sustainable return process and the continuous attention of returnees." (PCS, 17 March 2003)

« El esquema de retornos como eje fundamental de la política -en medio de uno de los momentos de mayor agudización y degradación de la guerra- ofrece serios interrogantes respecto de su viabilidad y pertinencia. ¿Cuáles son las condiciones de voluntariedad -que implica que se escoge el retorno como la mejor opción entre otras, y no como la única elección frente al hambre, el hacinamiento o las inhumanas condiciones en los lugares de asentamiento? ¿Cuáles las condiciones de seguridad y protección, que incluyen inversión social? ¿Cuáles las posibilidades de sostenibilidad que garanticen soluciones duraderas y el derecho a no repetición del desplazamiento forzado? ¿Dónde quedan las políticas de prevención, atención humanitaria, restablecimiento, los derechos a la verdad, la justicia y la reparación en la propuesta gubernamental? ¿Cuáles son los criterios de selección de los beneficiarios de los procesos de retorno? ¿Cómo se van a garantizar los derechos de los poseedores y propietarios de buena fe que ocupan los predios y territorios objeto de los retornos? ¿Qué garantías de protección se van a establecer en zonas de disputa en el marco del conflicto armado o bajo dominio de actores armados irregulares? ¿Son retornos -regreso a los lugares de expulsión- o son reubicaciones, lo cual implicaría una propuesta muy distinta a la actual ?. (CODHES, 18 November 2002)

HUMANITARIAN ACCESS

General

Delivery of food and medicines blocked (2003)

- In April 2003, the FARC stole and burned two Red Cross trucks carrying food, medicines and blankets to internally displaced in North of Santander
- Insecurity increasingly hampers WFP operations in the department of Sucre (2002)
- The actors involved in the conflict use hunger and economic embargoes as a war tactic
- Communities in Dabeiba suffered from a food blockade imposed by paramilitaries for five months during 2001
- For two months the guerrillas prohibited the transport of all goods within Putumayo, including food and medicines (2001)
- Reports of blockades on food, medicine and supplies imposed by guerrillas, paramilitary groups and the public armed forces (1999)
- Frequent highjackings on the roads increase transportation costs for commodities

“The situation is exacerbated by the irregular armed actors’ new strategy of requisitioning relief aid.

On 16 April 2003, the FARC stole and burned two Red Cross trucks carrying food, medicines and blankets to internally displaced in Tibú, closed to rural Convención. The abuse of relief is worrying, may jeopardize relief aid in the near future and highlights the complexity and potential danger of implementing relief programs during complex political emergencies.” (PCS, 30 May 2003)

“Insecurity [in Sucre Department] is increasingly hampering WFP operations and is likely to result in new displacements of WFP beneficiaries who had returned to their home villages.” (WFP, March, 2002)

“Si el bloqueo económico de los paramilitares continua, en Dabeiba tendrá que anunciarse una EMERGENCIA ALIMENTARIA, ya van varios niños muertos de física hambre, realmente las guerras de hoy no son solo guerras militares sino también guerras de mercado [...]. En nuestro pueblo hemos padecido ambos tipos de muertes, los más de 600 campesinos y campesinas asesinados por los paramilitares entre el 97 y el 99 en Dabeiba, y ahora con el bloqueo económico ya han empezado las muertes por hambre.” (Comunidad de Vida y Trabajo, La Balsita, Septiembre de 2001)

“The actors involved in the conflict do not respect the goods which are indispensable to the survival of the civil population and use hunger as a war tactic. This is what happened in the municipalities of El Bagre and Mutatá where the dispersed exodus of 400 peasant farmers and 198 indigenous people was incurred to within the town limits of El Bagre and the natives of these areas fled to the municipality of Murindó. The FARC intimidated the populaces of El Diamante, Santa Cruz, San Julián and El Chicó “giving them 24 hours to get out of their houses” thus causing a mass displacement of 430 peasant farmers towards the town San Rafael. Similarly, the increase of hostilities on the part of this group caused the displacement of 800 more peasant farmers.” (CODHES 7 September 2000)

“On occasion, the different armed groups resorted to blocking deliveries of foodstuff to different zones. The case that caused the most serious repercussions was the ‘armed strike’ decreed by FARC in the Department of Putumayo. For a period of two months the guerrillas prohibited the transport of all goods

within the department, including food and medicines. This resulted in serious shortages and a food emergency. The civilian population was the principal victim of this act by the FARC" (CHR 8 February 2001, chapter V, para. 119)

The Commission does not have sufficient information to conclude that the armed dissident groups [i.e. guerrilla groups] have acted in a manner which contravenes the prohibition against starvation of civilians set forth in Article 14 of Protocol II. The actions of the armed dissident groups in blocking civilian access to food and medicine are nonetheless of an extremely serious nature. They violate the spirit of Protocol II which seeks to prevent the parties from using access to food as a means of controlling civilians and involving them in the conflict." (IACHR 1999, chapter VI, paras. 147-148)

"The illegal patrols carried out by the paramilitary groups in order to 'suffocate' the population (by accusing them of guerrillas' collaborators), is a practice against international humanitarian law. It blocks the supply of food, medicines and other goods. It generates serious food security problems, put the lives of truckers in danger and increases goods' prices. Inhabitants from hamlets such as La Casona, La Sierra and Ojito Seco [Montes de María Region] protested before the authorities demanding protection." (CODHES 17 September 1999)

"Imported products for direct distribution are not recommended, due to high costs of local transport, the distances of the regions to be assisted from the ports of entry (some project sites are at three days' drive from the ports), and the high insecurity conditions of the country's roads. Major factors in favour of local commodity exchange are the remote areas where the beneficiaries are located. Road blocks, violent groups in nearby areas and difficult mountain roads all result in exceptionally high internal transport costs from the ports (close to US\$100 per ton). Furthermore, because of frequent highjacking and pilferage on the roads, it is very difficult to secure insurance for the commodities; if secured, it can go as high as US\$1,100 per ton. The country office will continue to monitor transport and insurance costs for imported foods. If these costs decline significantly the country office will switch to imported commodities when and if the total costs of obtaining those commodities are lower than those incurred as a result of local purchase." (WFP 8 September 1999, para. 52)

NATIONAL AND INTERNATIONAL RESPONSES

Legal framework and Government policy

Law No. 387/1997 provides measures to prevent displacement, protect and assist the displaced (July 1997)

- Law 387 provides a comprehensive coverage of the protection and assistance needs of the displaced during the various stages of displacement
- The Samper administration responded to forced displacement by promulgating Law 387, which deals specifically with assistance, protection, prevention issues and stipulates the specific responsibilities of various government agencies
- Law 387 outlines the government's policy on emergency aid, and its definition of displacement is similar to the one found in the Guiding Principles on Internal Displacement

"16. In 1995, the Colombian Government, by creating the System of Comprehensive Assistance to the Population Displaced by Violence [...], first recognized forced displacement as a public policy issue. As a way of dealing with the situation, Congress enacted Law No. 387 of 18 July 1997, establishing the System, setting out the concrete steps to be taken, and the specific responsibilities of the entities involved." (GTD, 29 November 2002, p8)

"Law 387 from 18 July 1997 provides a relatively comprehensive coverage of the protection and assistance needs of the displaced during the different phases of displacement (emergency phase, long term displacement, return and resettlement). It also gives some general guidelines on how to address prevention of displacement. In addition, the Law creates and lines out the structure of the National System of Comprehensive Assistance to IDPs. It also establishes the Municipal Displacement Committees as responsible coordinating entities on the local level. The responsibility of specific government agencies and state institutions are explicitly mentioned. A special fund for IDP assistance is also set up. The Law's definition of an IDP differs somewhat from the Guiding Principles by excluding victims of natural disasters as well as persons displaced by development projects." (Global IDP Project, May 2001, p. 16)

"The Samper administration responded to forced displacement by adopting a plan for the displaced in 1995, creating the post of presidential counselor for the displaced (Consejería Presidencial para Desplazados) in April 1997, adopting a revised national plan on displacement the following May, and promulgating Law 387 in July, which deals specifically with assistance, protection, and prevention issues. ." (HRW October 1998, chapter VII)

Law No. 387 of 18 July 1997 covers "the adoption of measures to 'provide attention, protection and socioeconomic consolidation and stabilization to internally displaced people' and to 'prevent forced displacement'. This law takes the position that violence is the main cause of displacement and lists a set of important guiding principles: the right to receive international aid, the right to enjoy internationally recognized civil rights, the right not to be discriminated against because one is displaced, the right to be reunited with family members, the right to find durable solutions to displacement, the right to return to the place of origin, the right not to be displaced, and the obligation of the state to promote the conditions that will facilitate coexistence, equality, and social justice among Colombians.

Law 387 must be recognized as an important governmental effort to create an integrated policy on the issue of displacement. Unfortunately, like many other well-intentioned laws in Colombia, its effectiveness

depends on the actual resources and the political will of many for it to be carried out and implemented. Interestingly, article 35 of the law sets forth the right of NGOs, state entities, and victims to use the newly regulated 'compliance action' to request the effective judicial implementation of what is promised by law." (Obregón and Stavropoulou 1998, p. 429)

"Colombian law also contains provisions on the internally displaced. Law No. 387, of July 18, 1997, adopted to address the issue of forced internal displacement, defines in its first article the concept of displacement, using a definition similar to that found in the Guiding Principles." (IACHR 1999, chapter VI, para. 11)

"Article 1 of Law 387 establishes that:

A displaced person is anyone who has been obliged to migrate within the national territory, abandoning his place of residence or his customary occupation, because his life, physical integrity, and personal security or freedom has been jeopardized or is threatened owing to the existence of any of the following situations: internal armed conflict, internal disturbances and tensions, widespread violence, massive violations of human rights, breach of international humanitarian law, or other circumstances originating from prior situations that might or do drastically disturb the public order." (IACHR 1999, chapter VI, endnote 3)

"Law 387 has been the target of criticism from Colombian NGOs and human rights organizations working with displaced people. According to the Colombian Commission of Jurists (CCJ), the law provides neither an integral proposal for attention to displaced people nor a framework for the prevention of displacement. The CCJ considers that it is not enough to speak of preventing displacement, and that reference must be made to 'preventing the causes of displacement'. The draft articles of Law 387 included guaranteeing displaced people's rights to their property but these have been discarded, and there is no clarity over penalties for those responsible for forced displacement." (Project Counselling Service 1998, p. 102)

For further details on the military situation of IDPs, addressed in Article 26. of Law 387, please refer to Resolution 1879 of 18 December 2001 in the list of sources below.

For the full text of [Law 387/1997](#) see the list of sources below.

For a detailed review of Law 387, see "[The Deng Principles and Forced Displacement in Colombia](#)" (DIAL, July 1999)[[External link](#)].

Presidential Decree 173/1998: The National Plan for Comprehensive Assistance to those Displaced by Violence (January 1998)

- Followin up on law 387 Decree 173 defines what action is to be taken and by which institution
- But the plan does not include guidance on how to go about this nor does it assure sufficient resources to meet its objectives

"In accordance with Law 387, Presidential Decree No.173 from 26 January 1998 creates the National Plan on Comprehensive Assistance to IDPs. It lines out what should be done and by which institution in regards to prevention, protection, assistance and durable solutions. The plan is lengthy and comprehensive but it fails to specify how the proposed measures should be implemented. It further develops some aspects already addressed by Law 387: the National Information Network on Assistance to Displaced, the Observatory on Internal Displacement and the financing of the support to IDPs." (Global IDP Project, May 2001, p.16)

"Decree 173 of 1998 created the Plan for Integrated Attention to the Displaced Population in which the objective and general concepts of a national strategy are defined in a generic way. The plan lays out what needs to be done and to some degree designates the entities in charge of certain aspects of the problem. But it does not include guidance on how to go about this nor does it assure sufficient resources to meet its

objectives. One might think that these specifications would be found in the corresponding chapter of the development plan, or that they would be included in a specific plan of action. To date this has not taken place. It is true that regulation is a necessary measure, but the available legal instruments could be used to define an operating plan with clearly defined and measurable goals and objectives. In fact, the transition from the Samper administration to the Pastrana administration has constituted another problem for attention to the displaced population because it has been very difficult to arrive at any clarity on the policies and thereby develop interlocation." (GAD July 1999, Plans of Action)

For the full text of the [Decree 173/1998](#) see the list of sources below.

Governmental IDP policy (CONPES) seeks to prevent displacement through "Early Warning" mechanisms (1999-2002)

- In line with the implementation of the Guiding Principles, the Colombian Ministry of Defence will establish a special operative mechanism to respond to "Early Warnings" in at-risk-municipalities
- GOC will promote the establishment of an "elite humanitarian police unit" exclusively dedicated to the protection of IDPs
- Municipal and departmental IDP committees will promote the prevention of displacement
- GOC will strengthen the justice system, particularly the "municipal ombudsmen" (personerías municipales)
- National and international agencies will be encouraged to visit high risk areas to diminish local tension and potential threats of displacement
- GOC will develop a strategy to disseminate and increase the respect for human rights, international humanitarian law and the UN Guiding Principles on Internal Displacement
- Ombudsman's Office will coordinate "Early Warning" system (1999)
- The "Early Warning" system will receive information from individuals and national and international organizations
- A special committee made up of State institutions (including police and armed forces), NGOs and international agencies will decide on appropriate response and inform those authorities responsible to act

CONPES 3057

"17. In April 1999, SSN [Social Solidarity Network] was given the responsibility of coordinating the System, [...] and this was officially confirmed by the Council for Economic and Social Policy (CONPES) in document 3057.[...] To help strengthen SSN institutional capacity, the Joint Technical Unit (JTU) was set up to advise it on policy formulation and provide liaison with UNS and with national and international organizations. In November 1999, SSN presented its Strategic Plan for the Management of Forced Displacement as a Result of the Armed Conflict." (GTD 29 November 2002, p8)

"The current IDP policy document, CONPES 3057 from 10 November 1999, updates the two previous CONPES from 1995 and 1997. It provides an analysis of the current (1999) IDP situation and the existing mechanisms to attend to IDPs, including a graphic presentation of the institutional arrangements in place. Next, it goes on to present the activities foreseen in the field of prevention, protection, humanitarian assistance and return/resettlement. In the introduction to the document, the government explicitly states its commitment to "promote and respect the implementation of the Guiding Principles". (Global IDP Project, May 2001, pp. 16-17)

"Para disminuir la incidencia del desplazamiento a través de la provisión de seguridad en los municipios de mayor riesgo, el Ministerio de Defensa establecerá un mecanismo operativo para la fuerza pública con base en la información de alertas tempranas. Así mismo, definirá las responsabilidades de la fuerza pública, en la misma línea de la Directiva Permanente No. 008 de 1993, la cual se adecuará a lo dispuesto en el presente documento. En el corto plazo, el Ministerio definirá mecanismos de acción para la protección de la población e impartirá instrucciones a las distintas jurisdicciones que se encuentran en zona de riesgo, de acuerdo con la información que periódicamente le sea suministrada por la Defensoría del Pueblo y el Ministerio del Interior. Adicionalmente, la Red de Solidaridad Social, el Ministerio de Defensa y el Ministerio del Interior, promoverán la conformación de un grupo élite humanitario a cargo de la Policía Nacional, con la función exclusiva de brindar protección y seguridad a la población desplazada.

En los municipios receptores, la Red de Solidaridad Social apoyará a las autoridades para promover y fortalecer la gestión de los comités unicipales, distritales y departamentales de atención a la población desplazada, que cumplen una función preventiva. Apoyados por la Red e Solidaridad Social, estos comités establecerán acuerdos con la Cruz oja Colombiana y el Comité Internacional de la Cruz Roja -CICR, para adelantar jornadas de capacitación a los miembros de la fuerza pública en prevención de situaciones de desplazamiento, derechos de los esplazados, protección y normas del Derecho Internacional Humanitario. Igualmente en las ciudades receptoras, se apoyará la conformación de unidades de atención y orientación para la población esplazada.

Complementariamente, la Red de Solidaridad Social coordinará on el Ministerio de Justicia y la Defensoría del Pueblo la focalización de los programas de fortalecimiento del sistema judicial; acercamiento de la justicia al ciudadano; y fortalecimiento de las personerías municipales, con el fin de mejorar la confianza en las instituciones del Estado y de dotar de mecanismos de protección a la población. Así mismo, junto con el Ministerio del Interior y la Defensoría del Pueblo, pondrá en marcha mecanismos de comunicación de las instancias locales y la población con el sistema de alertas tempranas. Con base en este sistema, el ministerio movilizará a las autoridades y a la fuerza pública, y coordinará la presencia en zonas de riesgo de delegaciones de organismos nacionales o internacionales que contribuyan a disminuir las tensiones potenciadoras de desplazamientos.

Promoción de la paz cotidiana y la seguridad

Esta estrategia consiste en el fortalecimiento y promoción de organizaciones regionales y locales para prevenir los factores de riesgo sociados con la violencia cotidiana. Estos factores inciden en la decisión de las comunidades de desplazarse, y aparecen en los lugares donde la población afectada se ve obligada a asentarse. Particularmente, se trata de mecanismos de prevención a través de la pedagogía, la participación ciudadana, los mecanismos alternativos de justicia y las comunicaciones. Para su implementación, la Red de Solidaridad Social coordinará con los municipios y departamentos las siguientes acciones:

- a) puesta en marcha de observatorios locales, articulados al sistema de Alertas Tempranas;*
- b) programas demostrativos basados en medios de comunicación popular;*
- c) fomento de las redes comunitarias de mediación y justicia, capacitando a organizaciones comunitarias;*
- y*
- d) programas de promoción de modelos de control social en las comunidades.*
- d. Comunicaciones para la prevención*

La Red de Solidaridad Social coordinará con la Defensoría del Pueblo y la Vicepresidencia de la República, la ejecución de una estrategia de comunicaciones para la difusión y respeto a los Derechos Humanos, el

Derecho Internacional Humanitario y los Principios Rectores del Desplazamiento Interno, que involucre activamente a las entidades regionales y locales. Esta estrategia estará encaminada a:

- a) alertar y hacer conscientes a las comunidades sobre los efectos*

del desplazamiento forzado, y sobre las alternativas de organización comunitaria para prevenirlo y enfrentarlo, así como ara reaccionar en forma organizada;

b) difundir experiencias exitosas de sensibilización y control social;

y c) articular la acción de denuncia de las comunidades al sistema de alertas tempranas para la prevención."(Departamento Nacional de Planeacion, GOC, 10 November 1999, Sect. IV.A1)

"El proceso de simplificar y reorganizar el marco institucional del Sistema Nacional de Atención a la Población desplazada se inició concentrando la coordinación de la ejecución en la Red de Solidaridad Social, tal como se definió en el decreto 489 de 1999. Adicionalmente, este Plan de Acción establece un esquema flexible de ejecución a nivel regional y local que involucra a las entidades territoriales en acciones de su responsabilidad y permite la participación del sector privado, agencias internacionales, ONGs y la Iglesia en la ejecución de acciones." (GOC, 10 November 1999, Sect. IV.B1)

"Se establecerá un Sistema de Alertas Tempranas, coordinado por la Defensoría del Pueblo, que se alimentará de fuentes verificables, de manera que cualquier persona, natural o jurídica, nacional o internacional pueda dar información sobre hechos potenciales de desplazamientos. La Defensoría del Pueblo garantizará la confidencialidad de quien reporte las alertas, y, con base en el análisis de un comité conformado por delegados de entidades estatales, ONGs y agencias internacionales, convocados por ésta, y la fuerza pública cuando sea del caso, definirá las acciones a seguir e informará a las entidades responsables de actuar." (Departamento Nacional de Planeacion, GOC, 10 November 1999, Sect. IV.B2c)

Law 589 formally criminalized the forced displacement of persons (July 2000)

- Forced disappearance of persons, genocide and forced displacement are through act 589 formally criminalized, within Colombia's legal framework
- These crimes are no longer confined to State agents; but now extend to private citizens acting on the orders of or with the acquiescence of State agents

"Act 589 was enacted on July 6, 2000, following a difficult legislative process that lasted twelve years. It formally criminalizes, within Colombia's legal system, the forced disappearance of persons, genocide and forced displacement. Act 589 introduces important innovations in the way these egregious behaviours are addressed. Criminal responsibility for authorship of these crimes is no longer confined to State agents; it now extends to private citizens acting on the orders of or with the acquiescence of State agents.

The law introduces an innovative element not present in international law: armed dissident groups or other private persons as the perpetrators of disappearances. The law also prohibits amnesty or pardon for any person convicted of these crimes.

On a practical level, this law makes provision for establishment of a register of persons captured and detained, an emergency search mechanism designed to ensure compliance with the obligation to make efforts to establish the whereabouts of a disappeared person, and a national register of disappeared persons, as well as the creation of special working groups. Law 589 also classifies internal forced displacement as a crime against persons." (IACHR 2000, chapter, IV, paras. 5-6)

Various Constitutional Court Decrees

- Court Decision SU-1150 (August 2000) orders the President of Colombia to provide shelter to a displaced community in Medellín
- It suggests the Principles should be the basis for any subsequent legislation on displacement

- Court Decision T-327 (March 2001) offers criticisms government's distinction between the 'condition of being displaced', pending upon the possession of an IDP certificate and de facto situation of displacement
- On presumption of 'good faith' the court argues that any displaced should be considered de facto IDP
- The court also criticises government criterions on 'cessation of displacement' on the basis of which it removes and IDP from its registry
- Colombian Constitution contains provisions pertaining to displacement (1999)

"This decision, from August 2000, is elaborated and handed down in response to three different IDP situations reportedly not attended to by the authorities. In one of the three cases, the Court orders the President of Colombia to assure the provision of shelter to a displaced community in Medellín and to include them in existing IDP support programmes. More importantly, as a result of its exhaustive analysis of the IDP situation the Court calls on the President to further develop and regulate ("reglamentar") existing legislation in order to better define the government agencies' responsibilities in relation to IDPs.

The court sentence reviews the Special Representative, Mr. Francis Deng's two reports on Colombia as well as the UN Guiding Principles. It suggests that the Principles be the "parameter for any new legislation on displacement as well as for the interpretation of the existing IDP legislation, and the assistance to displaced persons." (Global IDP Project, May 2001, p.17)

"Decision T-327 from 26 March 2001" is a 40-page analytical document deciding in favor of a displaced person refused entry into the government's Central IDP Registry. Through out its analytical deliberations leading up to the decision, the Court emits important and critical opinions on the government's distinction between the "condition of being displaced" vs. "a *de facto* situation of being displaced". The former is a requirement for access to government support, but requires the displaced's formal "certification" as an IDP. The Court, holding up the concept of "presumption of good faith", argues that displacement is a *de facto* situation, which does not have to be "certified" by the authorities. It further emits a critical view of the government's concept of "cessation of displacement" and the exclusion from the IDP registry.

In this decision, the Constitutional Court frequently uses the UN Guiding Principles as a yardstick, when commenting on national norms. It even places the Principles above national legislation, referring to them as "supranational legislation". It also stresses the need for training in the Guiding Principles, particularly for recipients of IDP declarations, e.g. Municipal Human Rights Ombudspersons." (Global IDP Project, May 2001, p.17)

"The Colombian Constitution [...] contains rights of particular importance for the displaced. For instance, Article 42 of the Constitution provides that the State 'and society shall ensure the integral protection of the family.' Article 24 of the Constitution also recognizes that every Colombian 'has the right to move freely in the national territory'." (IACHR 1999, chapter VI, para. 13)

For the full text of Constitutional Court Decision T 327 see the list of sources below.

For the full text of the Constitutional Court Decision SU-1150 see the list of sources below.

Presidential Decree No 2569 regulating and complementing Law 387 (December 2000)

- Decree 2569 outlines the responsibilities of the Social Solidarity Network (RSS), the government agency coordinating the National System of Comprehensive Assistance to IDPs
- Issues covered include government responsibility at local and national levels in regard to prevention, assistance, registration and durable solutions

- The decree also addresses some controversial issues such as the criteria for considering a person no longer displaced

"Presidential Decree No.2569 from 12 December 2000 specifies in more detail some crucial aspects of Law 387. It determines the responsibilities of the Social Solidarity Network, the government agency coordinating the National System of Comprehensive Assistance to IDPs. It further develops the responsibilities of the Municipal Displacement Committees in regards to prevention and assistance. The government's obligations and procedures in regards to emergency assistance and durable solutions are also lined out in more detail, as well as the procedures for official registration of the displaced. Additionally, controversial issues such as the cessation of the "condition" of being isplaced and the involuntary exclusion from the central IDP registry are addressed (see Constitutional Court Sentence T-327 below). (Global IDP Project, May 2001, p. 16)

"Por primera vez en Colombia se reglamenta la Ley 387 de 1997, por la cual se adoptan medidas para la prevención y atención del desplazamiento forzado, a través del Decreto 2569, elaborado por la Red de Solidaridad Social y expedido por el Presidente de la República el día 12 de diciembre del 2000.

El Decreto facilita el cumplimiento de la Ley 387 y resalta el papel de la Red de Solidaridad Social como coordinadora del Sistema Integral de Atención a la Población Desplazada. Entre otros, dicta algunos procedimientos y términos dentro de los cuales se debe realizar el registro de la población desplazada por la violencia.

Además, tiene un capítulo especial dedicado a las funciones de los Comités Distritales, Departamentales y Municipales de Atención al Desplazamiento Forzoso, lo cual precisa y especifica su funcionamiento en beneficio de la población desplazada en el marco del Sistema Integral de Atención a la Población Desplazada.

Con la expedición de este Decreto se está dando cumplimiento a algunas de la recomendaciones de la Corte Constitucional Colombiana, en procura del mejoramiento de la atención al desplazamiento interno por el conflicto armado en Colombia." (RSS 2001)

For full text of the Presidential Decree 2569 see list of sources below [[External Link](#)]

Presidential Directive No. 06 mandates the RSS to issue humanitarian orders to all relevant ministries (November 2001)

- Presidential Directive No.6 confirms the Constitutional Court's opinion that the Guiding Principles on Internal Displacement are above national legislation and on the same level as the Colombian Constitution
- Directive No.6 mandated the Social Solidarity Network (RSS) to issue humanitarian orders to all appropriate ministries, government officials, authorities and state agencies who must take action pertaining to displacement within ten days
- The Colombian Armed Forces and police are ordered to protect and respect the displaced population
- The media are to disseminate information concerning the displacement situation and the protection of the displaced, subject to facilitate response
- The Director of the RSS issued the first humanitarian order, in concordance with the presidential directive 06 of November 2001, in order to respond to the unfolding crisis in Catatumbo, in the department of Norte de Santander (February 2002)

"Directiva Presidencial No. 06

[...]

ORDENA

1. AL MINISTERIO DEL INTERIOR.

Liderar el desarrollo e impulso de políticas para la prevención del desplazamiento forzado, de manera que se unifiquen y articulen las estrategias y acciones de prevención ejecutadas por las entidades miembros del Sistema Nacional de Atención Integral a la Población Desplazada.

2. AL MINISTRO DE RELACIONES EXTERIORES Y A LOS AGENTES DIPLOMÁTICOS Y CONSULARES

Velar por los derechos de las personas que en razón del conflicto se ven forzadas a traspasar las fronteras nacionales y a buscar refugio en los países vecinos.

3. A LOS MINISTERIOS DE SALUD, EDUCACION, AGRICULTURA Y DESARROLLO:

Al Ministerio de Salud, implementar mecanismos expeditos para que en cumplimiento del Acuerdo 185 del 23 de diciembre del 2.000 del Consejo Nacional de Seguridad Social, se preste una pronta y adecuada atención en salud a la población desplazada.

Al Ministerio de Educación, implementar y desarrollar junto con las Secretarías de Educación departamentales, municipales y distritales, programas educativos especiales para las víctimas del desplazamiento forzado por la violencia.

Al Ministerio de Agricultura, implementar y desarrollar a través del INCORA, el registro de bienes abandonados por los desplazados por la violencia y programas especiales para la atención, consolidación y estabilización socioeconómica de la población desplazada.

Al Ministerio de Desarrollo, liderar el desarrollo de programas y proyectos tendientes a la consolidación y estabilización de la población desplazada.

4. AL DIRECTOR DEL PROGRAMA PRESIDENCIAL DE DERECHOS HUMANOS Y DERECHO INTERNACIONAL HUMANITARIO

Coordinar las decisiones del Consejo Nacional de Atención Integral a la Población Desplazada por la Violencia con la Comisión Intersectorial de Derechos Humanos, en lo que respecta al tema de atención integral al desplazamiento forzado.

5. A LA RED DE SOLIDARIDAD SOCIAL:

Promover la creación de Comités Municipales, Distritales y Departamentales para la Atención Integral de la Población Desplazada por la Violencia, y asistir a las sesiones de los mismos, con el fin de coordinar la ejecución de las acciones y/o prestar apoyo técnico en cualquiera de las áreas de intervención de dichos Comités.

6. A TODOS LOS SERVIDORES PÚBLICOS Y ENTIDADES QUE GESTIONEN ASUNTOS RELACIONADOS CON DERECHOS HUMANOS Y DESPLAZAMIENTO FORZADO POR LA VIOLENCIA:

Dar cumplimiento a las órdenes de carácter humanitario. Se entiende por órdenes de carácter humanitario, aquellas directrices y orientaciones emitidas por el Presidente de la República, a través del Ministro del Interior y del Director del Programa Presidencial para los Derechos Humanos, en materia de prevención, protección y atención a víctimas de violaciones de tales derechos, y, en materia de desplazamiento forzado por la violencia, por intermedio del Director General de la Red de Solidaridad Social, que tengan como objetivo, en casos concretos y apremiantes, emprender acciones específicas para la atención de víctimas potenciales o actuales de violación de los derechos humanos o de desplazamiento forzado por la violencia, con el fin de prevenir o atender provisionalmente su situación .

6.1 Observar el siguiente procedimiento para el cumplimiento de las órdenes de carácter humanitario:

a) El funcionario o entidad destinatario de una orden de carácter humanitario deberá acometer de manera inmediata las gestiones ordenadas o seguir las directrices contenidas en ella.

b) Todos los días y horas son hábiles para emitir y cumplir las órdenes de carácter humanitario dictadas de conformidad con esta Directiva, y las entidades o funcionarios que a su vez sean requeridos por el

destinatario, están en la obligación, de conformidad con el artículo 113 de la Constitución Política, de prestar toda la colaboración que permita el cumplimiento cabal de la orden.

c) Las gestiones tendientes a cumplir con una orden de carácter humanitario deberán agotarse dentro de los (10) días siguientes al recibo de la misma, a menos que la orden establezca un tiempo preciso para su cumplimiento.

d) Una vez iniciadas las gestiones tendientes al cumplimiento de la orden, el funcionario o entidad destinatario informará de manera inmediata y pormenorizada sobre ellas al funcionario emisor.

e) Dentro del término señalado en el numeral c), el funcionario destinatario de una orden de carácter humanitario deberá presentar un informe final al emisor sobre las gestiones realizadas para el cumplimiento de la orden, y en caso de que no se hayan podido cumplir, deberá justificar de manera suficiente las razones por las cuales ello no fue posible, sugiriendo una solución alternativa del caso.

6.2 Brindar apoyo a las organizaciones de desplazados y a las organizaciones no gubernamentales para desarrollar sus acciones humanitarias a favor de los desplazados internos.

6.3 Respetar, de conformidad con lo dispuesto en el artículo 15 del Decreto 2569 de 2000, el carácter confidencial de la información sobre la identidad de las personas desplazadas y su lugar de asentamiento, en virtud al derecho a la intimidad de las personas y al respeto a la condición misma de desplazado.

7. A LAS ENTIDADES DE LOS NIVELES NACIONAL, DEPARTAMENTAL, DISTRITAL Y MUNICIPAL QUE CONFORMAN EL SISTEMA DE ATENCIÓN INTEGRAL A LA POBLACIÓN DESPLAZADA:

Coordinar sus acciones de manera tal que en seguimiento a los principios de eficacia, economía y celeridad, se atiendan con prontitud las necesidades de la población desplazada.

Atender las directrices que imparta la Red de Solidaridad Social como entidad coordinadora del Sistema Nacional de Atención Integral a la Población Desplazada, para que pueda efectuarse la coordinación interinstitucional.

Conformar los Comités para la Atención Integral a la Población Desplazada por la Violencia y velar por su adecuado funcionamiento, convocatoria oportuna, integración y asistencia. Corresponde a dichos Comités el desarrollo del plan de contingencia municipal.

Desplegar las diligencias y gestiones necesarias para que la atención en salud y educación que son de su propia competencia, tenga en cuenta a la población desplazada por la violencia." (Government of Colombia, 28 November 2001)

"For the first in Colombia, humanitarian orders have been issued to prevent and manage the forced displacement of people. [...] This mechanism empowers the director of the Social Solidarity Network to order officials or agencies to take immediate action on forced displacements stemming from the armed conflict. According to the Social Solidarity Network, orders of a humanitarian nature are issued in specific urgent cases requiring immediate attention in order to guarantee the rights of those displaced. The official or agency that receives such orders will have to take immediate steps to attend to those orders or follow the instructions outlined in them, within 10 calendar days at the latest. The first humanitarian order issues yesterday, Wednesday [13 February], was targeted at the current humanitarian crisis in the region of Catatumbo, Norte de Santander. [...] This order, directed to the governor of Norte de Santander, stipulates that action must be taken in order to guarantee the health and education of the displaced population. The second order seeks to resolve the serious displacement problems in Santa Marta, Magdalena Department. [...] The new measures adopted by the government to address the forced displacement problem also encompass the freezing of transactions involving abandoned land." (BBC, 15 February 2002)

"De acuerdo con las directrices y orientaciones dictadas por el Presidente de la República, el Ministro del Interior y el Director del Programa Presidencial para los Derechos Humanos podrán conminar a las entidades gubernamentales al cumplimiento efectivo de sus obligaciones en cuanto a prevención, protección y atención a víctimas de violaciones de derechos humanos. Igualmente se faculta al Director de la Red de Solidaridad Social para ordenar la acción inmediata de funcionarios o entidades en materia de desplazamientos forzados por el conflicto armado.

En consecuencia y haciendo uso de la potestad para dictar ordenes humanitarias a favor de la población desplazada, el Director de la Red de Solidaridad Social, Fernando Medellín Lozano, expide la primera de

ellas en cumplimiento del numeral 6 de la directiva presidencial 06 de noviembre 28 del 2001, para atender la crisis humanitaria que se actualmente presenta en la región del Catatumbo y la provincia de Ocaña en el departamento del Norte de Santander. Dicha orden humanitaria propende por la población civil de los municipios de El Tarra, Teorama, Convención, El Carmen, San Calixto y Ocaña, que como consecuencia de la confrontación armada entre grupos al margen de la ley se ha visto obligada a desplazarse hacia los cascos urbanos de los municipios de Convención, Ocaña y El Tarra en circunstancias de alto riesgo y vulnerabilidad.

[...] Así también en el Distrito Turístico, Cultural e Histórico de Santa Martha, región del departamento del Magdalena, se ha venido presentando una crisis humanitaria, que sitúa a la población civil ubicada en la zona rural del y las inmediaciones de la Sierra Nevada, en un altísimo riesgo y gran vulnerabilidad, como consecuencia de la confrontación armada entre grupos al margen de la Ley, que ha generado un desplazamiento masivo de población civil de las zonas rurales hacia la cabecera de los corregimientos de Guachaca, Puerto Nuevo y El Calabazo del Distrito Turístico, Cultural e Histórico de Santa Martha y en menor medida a la ciudad de Santa Marta.

[...] Las actividades encaminadas al cumplimiento de la orden anterior, deberán ser cumplidas en el término de 10 días, contados a partir de la fecha de recibo de la misma, y se informará sobre los resultados del cumplimiento de esta orden de en el mismo término, mediante un informe escrito dirigido al Director de la Red de Solidaridad Social." (RSS, 13 February 2002)

For full text of the Humanitarian Order see list of sources below.

For full text of the Directiva Presidencial No.6 see list of sources below.

National response

Overview of national mechanisms of attention to IDPs (2003)

- The National System for Integrated Information on the Population Displaced by Violence (SNAIPD), managed by the RSS, is charged to plan humanitarian assistance for IDPs registered in the SUR
- The Government has achieved undeniable progresses in developing policy for IDPs
- A major weakness of state response is that IDPs are dependent on public funding availability and the priorities of the Ministry of Finance
- RSS (Social Solidarity Network, government body in charge of IDP assistance) estimates that 2.6 billion Colombian pesos will be needed for IDP relocation
- Early Warning System coordinated by the Ombudsman Office was not yet effective as of November 2002
- Concerning the National Information Network run by RSS, developed two IDP registration systems: 1) the Single Register of Displaced Persons and 2) the System of Cross-Referenced Estimates (SCRE)
- The RSS works though implementing NGOs and assistance is distributed during 3 months
- Only 15.35% of those registered who fled individually (the vast majority) received assistance between 1998-2002, according to CODHES
- The National System of Comprehensive Assistance to the Displaced Population has not been decentralized according to the law, therefore assistance is slow and inefficient
- A National Operative Committee on Prevention established to coordinate preventive interventions and formulate prevention policies

"In addition to specific protection mechanisms for IDPs, other national mechanisms are fundamental for the protection of victims' rights, including:

-Judiciary: – the judicial branch was reorganized under the 1991 Constitution and has a crucial function in the protection of human rights, especially via legal recourses that have had an important incidence in the resolution of rights disputes.

-National Procurator General's Office – The Procurator is the head of the Public Ministry, an independent branch of the State in charge of monitoring the abidance by the law of public officials, and protecting public interest and human rights. In addition to generic functions, the Procurator General has the power to sanction public officials.

-National Ombudsman Office – (*Defensoría del Pueblo*) The Ombudsman is also part of the Public Ministry. This entity is in charge of ensuring the promotion and exercise of human rights and of international humanitarian law.

-Municipal public officials – (*Personerías Municipales*). As representatives of the Public Ministry at the local level, these officials are obliged to report any events which may cause displacement. Although a key actor in the Public Ministry's action at the local level, resource constraints, private/political interests and intimidation by the parties to the conflict have limited this entity's effectiveness." (UNHCR 1999, para. 20)

"The National System for Integrated Information on the Population Displaced by Violence (SNAIPD) is a conjunction of public, private, and community organizations that conduct plans, programs, projects, and specific actions concerned with integrated assistance for the displaced population. The SNAIPD, created under Law 387 of 1997, is managed by the Social Solidarity Network and is the body that oversees assistance for the displaced population or those at risk of displacement. This assistance includes preventative measures and accompaniment, humanitarian assistance, and resettlement programs that allow the affected population to rebuild their lives under dignified conditions.

[...]

The first consequences of forced displacement are a lack of access to basic necessities, as well as vulnerability and insecurity, especially for women and children. These situations need to be addressed immediately to determine SNAIPD's methods of emergency humanitarian support. SNAIPD gives immediate and temporary assistance to fill basic needs for food, health, psychological help, shelter, furnishing, emergency transportation, and public sanitation. This help is given in addition to SNAIPD projects of emergency help, assistance and support for the violently displaced population. Initial aid is supposed to be immediate and delivered as soon as a person reports having been displaced.

This aid is given out from the moment the act of displacement is reported to the SUR. Once the person has registered with the SUR, he or she has the right to receive emergency humanitarian aid for three months. This can be extended for another three months if the person meets criteria of vulnerability, solidarity, proportion, and equality. The Social Solidarity Network has established the following mechanisms for emergency humanitarian intervention when massive displacement occurs: the creation and initiation of assistance and orientation units in cities with medium and large sectors of the displaced population; non-governmental organizations which oversee relief efforts through delegated administrations; and, direct assistance in situations of massive displacement.

In addition to emergency humanitarian assistance, the displaced population should also benefit from other reestablishment programs. These programs make up the process that begins with humanitarian assistance and comes to an end only when the displaced people have available alternatives to rebuild their lives in a progressive and sustainable manner. Reestablishment programs and projects aim to offer the displaced population opportunities and alternatives for rebuilding their lives. These include resettlement in new homes, return to old homes, social and economic adjustment in new communities, and the enhancement of personal well-being to pre-displacement levels." (Colombia Journal, 23 June 2003)

"18. In the context of the humanitarian crisis, undeniable progress has been made in developing a policy on displacement and in improving assistance mechanisms, but the State's capacity to respond to the demand

for assistance from the population displaced by violence (IDP) depends on the availability of public funds. Decree No. 2569 of 2000 states that assistance to IDP, in terms of both emergency humanitarian assistance and resettlement, is subject to availability of budgetary funds. At the same time, the disbursement of funds is governed by the Annual Programme Budget (APB) controlled by the Ministry of Finance, and depends on the actual availability of treasury funds and on the Government's macroeconomic policy determinations. SSN estimates that in the coming years 2.6 billion Colombian pesos will have to be invested in IDP relocation, not counting the cost of ensuring their safety, acquisition of land and funding loans.

19. The policy is to prevent forced displacement by means of an Early Warning System (EWS) coordinated by the Ombudsman's Office and a National Information Network run by SSN, and to provide emergency services to displaced persons in cooperation with NGOs. [...]

20. Law No. 387 of 1997 and CONPES document 3057 of 1999 called on the Government to design and put in place a National Information Network to be administered by SSN, which was to consist of: (a) a system for measuring the magnitude of displacements and determining the kind of persons displaced by violence, (b) a registry system, (c) an early warning system and (d) a monitoring system. In addition, a system of external audits by private auditing firms was to be set up, with the results to be submitted to the National Council.

21. The Early Warning System, despite its importance, has not been successfully integrated into the work of the various institutions involved in the humanitarian response, and has not been effective yet.

22. The main progress regarding the National Information Network has been the design and launching of the Single Register of Displaced Persons (SRDP) and the System of Cross-Referenced Estimates (SCRE). The Single Register is the legal mechanism whereby displaced persons can have access to the benefits set aside for them. It is one of the sources of the figures for displaced persons seeking government assistance. One of its limitations is that the system does not register the entire displaced population. Some displaced persons do not enrol, either because they are mistrustful or because they wish to pass unnoticed for reasons of safety, or because they do not need assistance from the State.

23. There have been very important steps forward in the design and delivery of emergency assistance, the creation of an institutional response capability, the timeliness of the response, and the volume of funds invested in it. Emergency assistance focuses on meeting the needs relating to food, personal hygiene, supplies management, cooking utensils, medical and psychological care, emergency transportation and temporary housing. on-governmental organizations contracted by SSN operate the assistance programmes. The period of assistance is three months, renewable for further three months. Although there continue to be problems associated with displacement that last longer than three months, and although many families are affected by eligibility restrictions, it can be said that the emergency assistance system is working.

24. Particularly effective has been the response to mass displacements (10 or more households, 50 or more persons). In such cases, services are provided, either directly by SSN, or by ICRC in compliance with a memorandum of understanding, and coverage has been practically 100 per cent.

25. The same is not true of individual displacements ("drop by drop"), where assistance is generally provided directly by the SSN regional offices or by NGOs with which arrangements have been made to delegate the administration of assistance. For the 124,256 individually displaced households registered between 1998 and February 2002, the assistance coverage is barely 33.18 per cent; and in case the base figure of 374,483 displaced households reported by the Advisory Office for Human Rights and Displacement (CODHES) for the same period is used, the coverage becomes only 15.35 per cent. It is, however, important to take into account that the delegated administration structure of the emergency humanitarian assistance started in October, 2000. The petty cash of the Territorial Units started also in 2000. Therefore, even though the percentage of attended registered families was low in 1998 and 1999, the coverage during the emergency phase increased substantially in 2001 (approximately 60 per cent). During the emergency phase, families receive attention, not only by the SSN, but by other entities, particularly in health, education and social welfare.

26. Recently, new kinds of victimization have begun to emerge but have not been registered, as in the case of the “besieged communities” not being reached by food, medicine, fuel or basic supplies. It is rare for such communities to receive any humanitarian assistance, despite the obviously critical situation and the urgency of intervening. Likewise, there are other groups affected by the conflict to which attention is not being drawn and which are not being helped, such as the receiving communities.

27. There are also new developments like displacements between districts and displacements within a city, and these groups too are not being registered and have only very recently begun to receive emergency assistance.

28. Although SSN has made headway in formulating the policy outlines of a differentiated approach to displaced population groups when providing emergency humanitarian assistance, the policy has not been entirely implemented. A case in point is the lack of specific programmes and projects targeting especially vulnerable population groups. Progress is being made in the 36 municipalities where the SSN has an operating NGO. In these municipalities, emergency humanitarian assistance is provided according to specific population and territorial criteria. There are small differences regarding food kits and, in the case of habitat, differences are established according to type of climate. If there are pregnant women or two-year-old (or less) children in the family, a special kit is given.” (GTD, 29 November 2002, pp9-11)

“Prevention of displacement should be understood as the combination of actions aimed at impeding or alleviating the impact of the armed conflict on displaced or at-risk populations. A National Operative Committee on Prevention has been established in order to coordinate intervention as part of the strategy of prevention. The Vice President of the Republic, the Office of the High Commissioner for Peace, the People's Council, and the Social Solidarity Network all work together as part of the Committee.

The Committee is responsible for formulating prevention policies, participating in the Inter-Sectoral Commission on Human Rights and International Humanitarian Rights to reform current policies and promote a National Assistance Plan, formulating national prevention plans, giving advice in the formation of leadership and management roles for departments within the Territorial Committees on Assistance for the Displaced Population, finding institutional mechanisms, and promoting methodologies for preventative policies under local management.” (Colombia Journal, 23 June 2003)

Measures undermining existing legal protection for IDPs (2002-2003)

- The National Housing Institute of Social Interest and Urban Reform (INURBE) has been supplanted by the newly created National Fund for Housing without re-establishing the legal mandate to attend IDPs
- The new Administration took measures limiting the work of the Constitutional Court on the right of IDPs to appeal when authorities do not fulfil their responsibilities under law 387
- The new Administration took measures to close municipal Ombudsmen offices in municipalities of less than 100,000 inhabitants
- The elimination or reform of entities in charge of attending IDP needs are further undermining their access to humanitarian assistance
- The 47 municipalities where Ombudsmen offices should be shut down are also main receptors of displaced people
- Ombudsmen offices offered mechanisms to protect IDPs' human rights as well as control and follow up of public policy for IDPs

- Measures under 'democratic security' policy include Networks of paid Informants and peasant soldiers drawing an increasing number of civilians in the conflict and undermine core principles of international humanitarian law of immunity and distinction for the civilian population
- GOC requested reforms to grant the military judicial powers, allowing arrest without warrant, telephone wire-tapping, and limitations of freedom of movement
- Decree 2002 established 'zones of rehabilitation and consolidation' where the civil authorities fall under military command
- Although the GOC extended its agreement with the OHCHR, it ignored its recommendations and promised that his policy of 'democratic security' will remain unchanged
- The 47 municipalities where Ombudsmen offices should be shut down are also main receptors of displaced people
- Ombudsmen offices offered mechanisms to protect IDPs' human rights as well as control and follow up of public policy for IDPs

"Lo anterior se ve agravado por las reformas en curso impulsadas por el Gobierno:

- La liquidación y fusión de entidades estatales, sin el correspondiente arreglo institucional, como son los casos del Instituto Colombiano para la Reforma Agraria (Incora) y el Instituto Nacional de la Reforma Urbana (Inurbe) entre otros, conduce al desmantelamiento del sistema de atención al desplazamiento forzado y dificulta el desarrollo de políticas sectoriales como las de tierras y vivienda, políticas estratégicas para obtener soluciones duraderas;

- Asimismo preocupa los retrocesos en las políticas de salud generados por actos administrativos que dificultan aún más el acceso, la calidad y la oportunidad de la atención médica básica; » (CODHES ; 10 June 2003)

"La eliminación o reforma de entidades del Sistema Nacional de Atención Integral a la Población Desplazada por la Violencia (SNAIPD) tiende a desmantelar el marco institucional de atención a la población desplazada. El Gobierno no ha propuesto soluciones alternativas, como sería el diseño de un Plan Nacional para la Atención Integral a la Población Desplazada por la Violencia, como lo ordena la ley 387 (artículos 9 y 10). La propuesta del Gobierno de eliminar las personerías municipales en las ciudades de más de 100.000 habitantes [...] pone en peligro las posibilidades de acceso a la justicia y de atención de las personas desplazadas que acuden a esta institución para registrarse y denunciar las violaciones de las cuales han sido víctimas. La reducción o congelación del presupuesto de las entidades públicas afecta directamente el funcionamiento de la Defensoría del Pueblo y de la Red de Solidaridad Social en sus papeles respectivos de vigilar las condiciones para el retorno y coordinar la atención a las personas desplazadas.

El proceso de fusión o eliminación de entidades del SNAIPD no se acompaña de medidas para garantizar una atención especial a la población desplazada. Así, el decreto que crea el Fondo Nacional de Vivienda "Fondavivienda" en reemplazo del Instituto Nacional de Vivienda de Interés Social y Reforma Urbana (INURBE) [...], no establece claramente la obligación que tenía el Inurbe, según el artículo 19 de la ley 387, de desarrollar programas especiales de vivienda para atender las necesidades de la población desplazada. Estas reformas agudizan el problema ya creado por la ausencia de programas especiales y la falta de coordinación de los mismos por ejemplo en materia de vivienda y proyectos productivos, lo cual genera más demora en la entrega, dificulta la coherencia de la ayuda e impide la obtención de soluciones duraderas para la población que retorna." (Mencoldes, 20 August 2003, p.7)

"a. Civilian population in conflict

The government has implemented a **network of paid informers**, that violates due process, because the information is used without adequately evaluating it. This government has also implemented a **program of peasant soldiers**, which could lead to members of paramilitary groups joining military forces. All of these circumstances generate an increasing involvement of the civilian population in hostilities, thereby violating the principle of distinction and increasing the risks to the population.

The Colombian Congress is studying a bill allowing the civilian population to carry **weapons of war**.

b. State of emergency

The government declared a “**state of internal commotion**” in August, 2002, establishing arbitrary restrictions: **generalized arrests, raids, telephone wire-tapping, and undue limitations on the right of movement**. The government has officially said that guerrillas are blending into the civilian population; for this reason, measures are mainly directed towards this population and not towards combatants. The Attorney General’s Office has approved these measures, ignoring fundamental rights.

Decree 2002 of 2002 established “**rehabilitation and consolidation zones**,” in which civil authorities fall under the command of the military commander. They take a census of the population and register civilians in order to make it easy to find the opposition. The civilian population in these areas is required to inform the authorities of their movements and whether they have telecommunications devices in their possession; otherwise, they will be detained without judicial order.

The government extended the “**state of internal commotion**” in November, 2002, and obtained the Senate’s authorization to extend it a further 90 days after February, 2003. It also requested that Congress **approves as permanent some of the emergency measures**, thereby contravening their provisional nature.

c. Dismantling the social and democratic State with the rule of law

The government has announced and proposed measures such as:

- Restrictions to the “writ of protection of constitutional rights” [right of protection of constitutional rights, right of injunction or ‘Acción de Tutela’].
- Weakening of the Constitutional Court.
- Elimination of some local ombudsmen’s offices and weakening of the General Ombudsmen Office.
- Law of national security: more restrictions on guarantees and a greater involvement of the civilian population in the conflict.
- Dismantling of programs to take care of the displaced, and their return without guarantees.

A labor and pension reform, which affects labor stability and social security, was passed in 2002.

d. New factors of impunity

Congress passed a constitutional reform which grants **exorbitant powers to the General Prosecutor** so that he can decide which cases should be investigated and how prosecutors should proceed.

Against international recommendations, the government requested that this reform include the **granting of judiciary police powers to the military**, but without success. It will insist on this proposal in 2003.

The Colombian government did not accept the jurisdiction of the **International Criminal Court for war crimes** for a period of 7 years, and it will apply an **immunity agreement** with the United States, which protects United States citizens in this Court.

e. Human rights defenders, NGOs

The government has adopted a hostile attitude towards human rights NGOs. It has announced a campaign abroad against the information provided by human rights NGOs. **Some defenders have been detained**, and the headquarters of some NGOs, social organizations, and international cooperation programs have been raided. Obstacles have been set to international humanitarian aid and to obtaining visas for the members of foreign cooperation organizations, some of whom have been expelled from Colombia. The State program to protect the defenders of human rights is almost paralyzed.

f. General Amnesty

In December, 2002, at the government's urging, Congress eliminated the political nature of armed groups as a requirement for negotiations. The law that was passed foresees **general amnesty without respecting the victims' rights to truth, justice, and redress**. It also opens the door to negotiations with the paramilitary groups who are responsible for most of the violations of human rights and attacks against the civilian population.

g. The "Andean Regional Initiative"

The "Andean Regional Initiative" (which includes "Plan Colombia") promoted by the United States and accepted by Colombia, has been extended from fighting against drugs to fighting against counterinsurgency. **Aerial spraying and the forced eradication of illicit crops** involve human rights violations, cause forced displacements, and affect the environment.

h. Lack of a policy on human rights and humanitarian law

The government has reduced its policy on human rights and humanitarian law to a security policy. It disregards its obligation to implement a serious policy based on international recommendations in order to take care of vulnerable sectors of the population, eliminate impunity, dismantle paramilitarism, promote respect for humanitarian law, guarantee economic, social and cultural rights, and fight against poverty.

i. Non-cooperation with the United Nations

Although the government extended the agreement with the **OUHCHR**, it ignores its recommendations. When this office **expressed its concerns** regarding the measures taken under the state of internal commotion and their repercussions on human rights, President Uribe said that his security policy "will not be changed." "Here (in Colombia) there is a lot of criticism when we do things to overcome violence and there is a lot of silence when violence abounds all throughout Colombia without facing it." [...]

In contrast, the government fulfills all the requirements of the World Bank and the International Monetary Fund, even to the detriment of the rights of the population." (Asamblea Permanente de la Sociedad Civil por la Paz, etc..., 31 December 2002)

"La propuesta de eliminación de las personerías en los municipios de más de 100.000 habitantes -entre otras del mismo tenor regresivo-, abre profundos interrogantes sobre la posibilidad real de acceso de la población en situación de desplazamiento, a la puerta de entrada más próxima en el ámbito municipal a la institucionalidad encargada de la defensa, promoción y realización de los derechos humanos. Precisamente estos 47 municipios, son a su vez los principales receptores de población en situación de desplazamiento. ¿Cómo y con cuál institucionalidad se va a suplir, e incluso cualificar, las funciones que las personerías desempeñan en la defensa de los derechos humanos a través del control y seguimiento a las políticas públicas?" (CODHES, 18 November 2002)

The National Development Plan (2002-2006) vaguely addresses the issue of displacement

- GOC recognizes that displacement is one of the most serious violations of human rights which contributes to the expansion of poverty in the country
- 31% of displaced households are in a state of extreme poverty and 54% are indigent
- The GOC plans to prevent displacement through the 'restitution and consolidation of democratic authority'
- GOC plans to respond to displacement along 4 main lines: 1) prevention and protection, 2) emergency assistance, 3) create the conditions conducive to return, 4) strengthening of the national system of attention to IDPs

- The Government's Development Plan 1998-2002, Cambio para Construir la Paz Colombia aims to support the prevention of displacement and identify actions related to: the identification of IDPs; the issue of land titles; the establishment of temporary zones for IDPs; and strategies for return

«El desplazamiento forzado, por su magnitud y características, constituye el principal problema humanitario que experimenta Colombia como consecuencia del conflicto armado interno. Este fenómeno no sólo representa una de las más graves violaciones a los derechos humanos, civiles y políticos sino que contribuye a incrementar las condiciones de pobreza y vulnerabilidad de la población al destruir las bases de la organización social y producir un deterioro del capital humano. Esto último se da, en particular, como resultado de la caída de los ingresos de los grupos afectados y del efecto que tiene el desarraigo en su capacidad de agenciar su propio proyecto de vida. Los hogares desplazados son altamente vulnerables. Se estima que de cada 100 hogares desplazados 31 se encuentran en situación de pobreza extrema y 54 están en el umbral de la indigencia.

[...]

Una solución de fondo al desplazamiento forzado requiere de la obtención de condiciones de convivencia pacífica mediante el ejercicio legítimo de la autoridad, el cumplimiento de las funciones estatales de seguridad, defensa y justicia, que implican una solución definitiva al conflicto armado interno. Por ello, la mejor forma de prevenir el desplazamiento forzado es la restitución y consolidación de la autoridad democrática en todo el territorio nacional. Bajo este enfoque se propone avanzar en la generación de condiciones para prevenir y atender el problema, en cumplimiento de los preceptos del Derecho Internacional Humanitario, la observancia de los derechos humanos y los principios rectores de las Naciones Unidas para los desplazamientos internos. En particular se adelantarán acciones en cuatro componentes básicos: a) prevención y protección; b) atención de la emergencia; c) generación de condiciones para el restablecimiento; y d) fortalecimiento del sistema nacional de atención integral.

i. Prevención y protección

[...]

En consecuencia, aparte de las acciones de seguridad que adelantará la Fuerza Pública, especialmente, en el marco de las zonas de rehabilitación, la estrategia propende porque las organizaciones responsables puedan prever y planear las acciones y procedimientos para prestar la asistencia humanitaria de emergencia en los sitios de afectación de la población.

En materia de prevención se adelantarán dos tipos de acciones. De una parte, para proteger las personas y comunidades en riesgo, incluyendo especialmente las comunidades sitiadas o en resistencia, se fortalecerá el actual sistema de alertas tempranas de manera que permita la valoración oportuna de condiciones objetivas de riesgo y por tanto la anticipación de eventos de desplazamiento. De otra, se brindará asistencia humanitaria a las víctimas del conflicto por fallecimiento de familiares, incapacidad permanente, heridas y pérdida de bienes. Así mismo, se proporcionará asistencia educativa a menores de edad mediante subsidio al pago de pensiones y matrículas en las instituciones públicas, y se prestará atención psicosocial para el restablecimiento emocional de las víctimas. Por último, la prevención también incluye el apoyo a la reconstrucción de la infraestructura social y de viviendas a través de esquemas de subsidio o financiación para la reposición o la reparación de bienes.

[...]

ii. Atención humanitaria de emergencia

[...]

Así, se prevé la prestación temporal de asistencia en nutrición, refugio y salud. También la provisión de asentamientos temporales que cuenten con servicios básicos bajo estándares mínimos de calidad. Por último, se contempla la elaboración de diagnósticos sobre el estado de salud de la población, así como la atención y el control de las enfermedades contagiosas, el cuidado médico apropiado y la educación en salud e higiene.

[...]

iv. Fortalecimiento del Sistema nacional de atención integral a la población desplazada

Para reforzar los mecanismos de intervención interinstitucional, así como la complementariedad y concurrencia entre los diferentes sectores y programas de la política social y humanitaria del Estado se activará de manera regular el Consejo Nacional de Atención a la Población Desplazada. Se consolidarán también los consejos regionales y locales de atención al desplazamiento, con la participación activa de las poblaciones afectadas.

De otra parte, se fortalecerán las herramientas de apoyo del sistema como la Red Nacional de Información, particularmente el Sistema único de registro y el Sistema de estimación de la magnitud del desplazamiento, así como el de alertas tempranas y el de seguimiento, y los mecanismos de evaluación de la política de prevención y atención al desplazamiento forzado.

[...]

La Red de Solidaridad Social continuará con la coordinación de la estructura institucional para asegurar la articulación nacional y regional, y movilizar los apoyos técnicos, logísticos, y financieros de orden nacional e internacional. En desarrollo de estas actividades, la Red de Solidaridad Social fomentará la vinculación activa y eficaz de las comunidades desplazadas y promoverá la evaluación y seguimiento de la política de atención a los desplazados. » (Presidencia, 1 October 2002, p.p 61-65, 59, 129)

“The Government’s Development Plan 1998-2002, *Cambio para Construir la Paz* (Change for Peace-building) is central to the Government's recovery policy. *Plan Colombia* is based on the respect of human rights, participatory democracy, and decentralization of public services. It asserts that negotiations are the only way to stymie violence and establishes the Peace Investment Fund (FIP), principally to invest in the socio-economic development of the regions most affected by violence and to channel funds to consolidate peace efforts. Concerning displacement, *Plan Colombia* aims to support its prevention and identify actions related to: the identification of IDPs; the issue of land titles; the establishment of temporary zones for IDPs; and strategies for return.” (WFP 8 September 1999, para. 9)

"The issue of displacement is considered in the following terms: 'We consider that the problem of forced displacement has assumed growing and complex proportions which require special attention on the part of the State and society, and it has been considered essential to give it particular treatment within the peace policy, as part of Plan Colombia.' [See: Office of the President, Office of the High Commissioner for Peace, National Planning Department, Plan Colombia, Puerto Wilchez, December 1998, p. 8]" (GAD March 1999, p. 25)

Ombudsmen response to IDPs in various departments (2003)

- Local Ombudsmen’ Office gathered information and filed complaints from IDPs
- They monitored the human rights situation of the IDPs
- They followed up the implementation of public policies directed at IDPs
- Ombudsmen were asked by local authorities to issue early warnings for communities at risk of displacement in Antioquia
- Ombudsmen asked to protect returned IDP communities in the Cacarica basin who have been falsely accused by a general of the armed forces to harbour FARC guerrilla
- The Mayor’s Office of Convención warned that ‘Operation Holocaust’ risk to displace communities some of whom had returned in May 2003

“Colombian-Venezuelan

Within the framework of the project “Monitoring of respect for human rights of the displaced and shelter-seeking Colombian population in the frontier areas of Venezuela, Ecuador and Panama”, the adviser of the Ombudsman’s Office of Catatumbo conducted the following activities:

- Meeting with the Municipal Committee for care of the displaced population in Cúcuta. This committee is preparing a contingency plan in case that massive displacements occur due to fumigation of coca crops in Catatumbo.

- Individual attention and filing of 62 complaints in the tenement blocks of Juan Atalaya de Cúcuta, where most of the displaced families from Catatumbo have settled down.

- Meeting with members of the Municipal Committee for Assistance to the Displaced Population of Ocaña, who are worried about the combats in the El Aserrio area, San Juancito and San Pablo. Also, about the fumigation in the rural areas of the municipalities of Convención, El Tarra and Teorema.

[...]

North of Santander

Actions

Within the framework of the project “Monitoring of respect for human rights of the displaced and shelter-seeking Colombian population in the frontier areas of Venezuela, Ecuador and Panama” the adviser of the Ombudsman’s Office of Catatumbo conducted the following activities:

- Meeting in Ocaña with the Local Ombudsman’s Office and monitoring of the Human Rights situation of the displaced population. There is a concern for the displacements that might be created by the deployment of the military operation “Holocaust” in the municipalities of Teorama, Convención, El Carmen and El Tarra. Some of the peasants proceeding from the area pointed out that most of the roads are mined.

- Meeting with the Local Ombudsman’s Office, gathering information and monitoring of the Human Rights situation of the displaced population, follow-up on the public policies for care of the displaced population.

[...]

Antioquia

Peque: According to media sources, the local authorities asked the Ombudsman’s Office to issue an early warning for this municipality and those of Uramita, Ituango y Frontino. The request was made due to the possibility of massive displacement caused by illegal armed groups harassing the population. (El Mundo 19-09-2003).

[...]

Chocó

Cuenca Río Cacarica: The Ombudsman’s Office asked the National Government to guarantee the safety of the communities of the Cacarica basin, grouped under the community organisation CAVIDA. In 1999, after two years of displacement and by previous agreement with the National Government, these communities returned to their areas monitored by a Verification Joint Commission.” (UNCTC, 1 September 2003)

“Asimismo, tales familias optaron por acoger un reglamento interno de convivencia en el que establecen permanecer al margen del conflicto armado, y no dialogar con ninguno de los actores en confrontación. No obstante, las recientes declaraciones del comandante del Ejército, general Jorge Enrique Mora, según las cuales estos asentamientos son centros de concentración de las Farc, preocupan a la Defensoría del Pueblo por cuanto no corresponden a la realidad y, por el contrario, podrían poner en riesgo a las comunidades que allí habitan.

Las entidades gubernamentales que hacen parte de la Comisión Mixta (Programa Presidencial de Derechos Humanos, Ministerio del Interior, Red de Solidaridad Social, Defensoría del Pueblo, Procuraduría General de la Nación, representantes de entidades internacionales y ONG's, entre otras), han visitado en varias oportunidades tales asentamientos, conocen la situación de sus habitantes y pueden corroborar los compromisos adquiridos por las diferentes entidades del Gobierno y por la propia comunidad. » (GOC, 10 September 2003)

“North of Santander

Convención: The Mayor’s Office of Convención warned about a displacement risk in the rural area of Convención and Teorema due to the increase in military operations resulting from the “Holocaust”

Operation. Among the affected communities are families that had returned to the area in May. The Mayor's Office declared that the municipality would not have response capacity in case of a new massive displacement, and will face sanitary and humanitarian crises of big proportions." (UNCTC, 1 September 2003)

RSS response to IDPs in various departments (2003)

- The RSS has given over 8,100 million pesos for displaced, vulnerable and poor people during 2003 for food and non-food items
- 78,9% of all funds went to the cities and departments most affected by violence like Bogotá, Bolívar, Caldas, Antioquia and Norte de Santander
- RSS intends strengthening food security for 3 million farmers in order to prevent displacement
- RSS plans to invest in 2004 to 2008 US\$160,000 in agricultural recovery targeting 1,000 displaced peasants of Antioquia
- RSS attributes donations to organisations registered by RSS after examining whether they fulfil eligibility criterion as they appear on RSS website
- RSS gave 139,878,000 pesos to 650 displaced students of commune 7 in Barrancabermeja
- RSS distributed 600 scholarships to displaced in Cali who are registered by RSS, and possess an identification document
- RSS supports the health day initiative of the voluntary medical workers in Armenia where IDPs will be provided some medical attention

« Donaciones por \$8.144.882.713.00 ha entregado la Red de Solidaridad Social con destino a la población más pobre, vulnerable, desplazada y víctimas de la violencia a lo largo y ancho del país en lo que va corrido de 2003.

Los \$8.144.882.713.00 están representados en diferentes tipos de elementos entre otros alimentos, ropa, electrodomésticos, elementos de aseo, elementos de hogar, elementos de socorro, elementos deportivos, elementos médicos, equipos de comunicaciones, equipos médicos, equipos y materiales de confección, herramientas y materiales de trabajo, insumos agrícolas, juguetes, maquinaria y equipo, material escolar y educativo, materiales de construcción, materiales reciclables, materias primas, medios de transporte, muebles y enseres.

[...]

Una de las estrategias para atender el fenómeno del desplazamiento va dirigida a tener en cuenta a aquellas regiones del país en donde hay una mayor concentración de población desplazada y en aquellas ciudades y departamentos más afectados por la violencia, como Bogotá, Bolívar, Caldas, Antioquia y Norte de Santander. En estas regiones se ha entregado el 78,9% del total de donaciones y sólo en el departamento de Norte de Santander la cifra supera los \$1400 millones en los meses de septiembre y octubre, cumpliendo así, en parte, con los compromisos adquiridos por el Gobierno Nacional en los Consejos Comunales.

DEPARTAMENTO	VALOR	PORCENTAJE
BOGOTA	\$1.587.814.340	19,49
NORTE DE SANTANDER	\$1.448.968.980	17,79
BOLIVAR	\$636.716.653	7,82
CALDAS	\$559.029.348	6,86
ANTIOQUIA	\$539.091.549	6,62
VALLE DEL CAUCA	\$457.725.758	5,62
NARIÑO	\$442.216.026	5,43

GUAJIRA	\$433.250.110	5,32
ATLANTICO	\$326.075.859	4,00

En la mayoría de los casos, el procedimiento para la entrega de donaciones se hace mediante la asignación de las mercancías por parte de la Red a las fundaciones inscritas en la base de datos, a las cuales se les ha hecho un estudio previo de condiciones legales para que se conviertan en beneficiarias; los otros casos se presentan cuando la Red entrega directamente las donaciones a las comunidades, como ocurrió el fin de semana pasado en la localidad boyacense de Chita, afectada por un atentado terrorista, en donde la comunidad recibió donaciones por más de \$180 millones.

[...]

Con el propósito de mantener los procesos de transparencia en la adjudicación de donaciones, la Red de Solidaridad Social tiene a disposición en su página electrónica todos los procesos y procedimientos que debe seguir quien quiera ser beneficiario; en ese sentido también se encuentran publicadas las actas y resoluciones de asignación. » (RSS, 23 October 2003)

" En el programa de Atención a desplazados, "más que el retorno lo importante es el trabajo en la prevención, por esto la Red de Solidaridad está trabajando en de un programa de seguridad alimentaria que pretende llegar a 3 millones de campesinos y que gracias a la cofinanciación de varias entidades tanto nacionales como internacionales y a la capacidad organizativa de la comunidad busca menguar el problema de la pobreza que genera también problemas de desplazamiento", indicó el funcionario."(RSS, 12 September 2003)

Antioquia

"The Red de Solidaridad Social, (Colombian Government agency coordinating assistance to internally displaced people) plans to invest some US\$ 160,000 in 1,000 displaced families from East Antioquia. The main purpose of this project is to support agricultural recovery and provide training for these families in environmental and business management in the next four years." (WFP 16 December 2003)

Magdalena Medio

"El próximo 31 de octubre de 2003, los estudiantes de la Ciudadela Educativa del Magdalena Medio, ubicada en la comuna 7 de Barrancabermeja, recibirán formalmente una donación de la Red de Solidaridad Social por valor de 139 millones 878 mil pesos, con destino a la población desplazada y vulnerable.

Alrededor de 650 estudiantes, de la Ciudadela educativa, que aglutina 6 escuelas de la Comuna 7 y centraliza la secundaria de todos los jóvenes de la comuna, son los beneficiarios directos de esta donación, están entre los 5 y los 18 años de edad, recibirán entre otros elementos, pantalones, tenis y juguetes. La Red de Solidaridad Social, con su programa de Donaciones, sigue comprometida en llegar a las comunidades vulnerables y menos favorecidas, por medio de la entrega de elementos que contribuyen a mejorar su calidad de vida."(RSS, 29 October 2003)

Cali

"- 600 niños y jóvenes en condición de desplazamiento tienen la oportunidad de continuar con sus estudios en básica primaria y básica secundaria.

- 240 personas pueden beneficiarse gracias a un proyecto del programa Alianzas Estratégicas de la Red de Solidaridad Social para capacitación en confecciones.

La Red de Solidaridad Social convoca a niños y jóvenes en condición de desplazamiento para la asignación de 600 becas para estudios de básica primaria y básica secundaria en la ciudad de Cali. Los beneficiados deberán estar entre los 7 y 18 años y estar incluidos dentro del Sistema Único de Registro de la Red de Solidaridad Social.

[...]

Por otra parte el programa Alianzas Estratégicas de la Red de Solidaridad Social en convenio con CHF Internacional, Visión Mundial Internacional, la Secretaría de Educación Municipal, la Fundación MAC y la Corporación Minuto de Dios, esta desarrollando en esta misma ciudad un proyecto denominado "Telares de Vida" que busca capacitar población en condición de desplazamiento en el área de las confecciones. Las personas interesadas en participar pasarán por un proceso de selección que incluirá los componentes psicosocial y técnico.

Los aspirantes deben estar incluidos dentro del Sistema Único de Registro de la Red de Solidaridad Social, llevar al menos seis meses viviendo en la ciudad de Cali, no haber recibido ayuda para proyectos productivos y tener entre 18 y 40 años. En este momento están abiertas las inscripciones y los interesados en participar en el proyecto pueden dirigirse a la Unidad de Atención y Orientación Integral a Población Desplazada de Cali (UAO), ubicada en la Avenida Estación No 5N- 33.

Para las dos convocatorias es importante presentar el documento de identidad al momento de inscribirse."(RSS, 19 September 2003)

Armenia

"Con la consigna "Colombianos: El desplazado también es tu hermano", La Red de Solidaridad Social apoya la jornada de atención en salud para la población desplazada de Armenia, iniciativa impulsada por las voluntarias Hospitalarias Damas Rosadas y los grupos de la Asociación Quindiana de Voluntarios "Asquivol", programada para el sábado 13 de septiembre entre las 8:00 a.m. y las 5:00 p.m.

Con la vinculación de diferentes entidades y profesionales de la salud, se espera que mujeres, niños y adultos mayores desplazados, asistan a esta jornada donde tendrán acceso a servicios como consulta médica en pediatría, ginecología, enfermedades de la piel, medicina general, valoración visual para niños, odontología para niños, vacunación para niños y mujeres en edad fértil o embarazadas y medicina interna."(RSS ; 12 September 2003)

Decree 2131 of July 2003 limits IDPs' right to medical attention

- The state through law 387 of 1997, established that IDPs should have access to health services to the maximum of the funds available
- Decree 2131 of July 2003 hinders the right of IDPs to have access to health services
- While this decree decentralises the responsibility to deliver health care to IDPs to the receiving territorial entities, funds have not been allocated to allow adequate delivery of health services
- Decree 2131 limits the range of medical treatments available to IDPs notably infertility treatments, cures of rest and dental prosthesis
- The Decree limits access to health care to those IDPs who have a health insurance but who do not have the financial means to pay for it

"El Estado esta obligado a adoptar medidas para el ejercicio del derecho a la salud, hasta el máximo de los recursos de que disponga.

[...]

Ese mismo año [1997], la ley 387 estableció que el Sistema general de seguridad social en salud tenía que implementar mecanismos expeditos para que la población afectada por el desplazamiento forzado accediera a los servicios de asistencia médica integral (sección 8).

[...]

I. El decreto 2131 no resuelve y al contrario mantiene obstáculos que se han presentado para la realización del derecho a la salud de la población desplazada

La adopción del decreto 2131 corresponde a la voluntad de las autoridades de ahorrar recursos y corregir las irregularidades que se presentaron en el pago de los servicios prestados. Para tal propósito, dicho decreto mantiene procedimientos administrativos dispendiosos para el acceso a la salud de la población desplazada y refuerza la descentralización de la responsabilidad estatal en la materia, la cual genera en la práctica los siguientes problemas.

Dificultades en el acceso a los servicios de salud

El artículo 2 del decreto 2131 impone como requisito para recibir los servicios de salud, la inscripción al Sistema único de registro de la población desplazada (SUR), y contempla la utilización de una base de datos para agilizar el proceso de verificación de los datos de los afiliados y de las personas desplazadas. Desafortunadamente, tal base de datos no está funcionando en la actualidad y la demora en los trámites de verificación dificultan el acceso a los servicios de salud.

[...]

Limitación en la disponibilidad de la atención en salud

Según el artículo 4 del decreto 2131, la prestación de los servicios de salud se garantizará en la entidad territorial receptora. Esta medida enfatiza más la descentralización de las funciones de atención a la población desplazada hacia las autoridades locales, sin garantizar la transferencia de los recursos necesarios, cuando muchos municipios asumen altos déficit presupuestales.

[...]

La transferencia de la carga a las entidades territoriales receptoras, sin partidas presupuestales correspondientes, contradice el artículo 356 de la Constitución política que exige que “no se podrán descentralizar competencias sin la previa asignación de recursos fiscales para atenderlas”. Además, con relación a la atención de la población desplazada, la Corte constitucional ha reiterado que la Nación debe asumir los costos finales, teniendo en cuenta que “las entidades territoriales cuentan con pocos recursos, los cuales pueden ser fácilmente excedidos por la ola migratoria que genera la violencia en el país” [...].

[...]

Limitaciones en la cobertura de servicios

El artículo 3 del decreto 2131 prevé limitaciones relativas a los tratamientos a los cuales tienen derecho las personas desplazadas. Se excluyen por ejemplo los tratamientos de infertilidad, los tratamientos o curas de reposo o de sueño, y las prótesis dentales.

[...]

Limitación en la accesibilidad al servicio de salud, violación del principio de no discriminación (tratamiento favorable) a la población desplazada.

El artículo 4 del decreto 2131 establece la prestación de servicios de salud según las categorías de “población desplazada no asegurada sin capacidad de pago” o “población desplazada asegurada en salud”. En el primer caso, la persona desplazada estaría atendida en la red prestadora de servicios definida por la entidad territorial de recepción. En caso de ser asegurada, la persona desplazada seguirá siendo sujeta a los términos del régimen de salud al cual pertenecía antes de ocurrir el desplazamiento forzado.

En la práctica, se ha evidenciado que la mayoría de las personas desplazadas pierden todos sus recursos y sus pertenencias durante el desplazamiento forzado y no disponen de medios para asumir sus necesidades básicas. En las categorías definidas por el decreto 2131, no está claro lo que pasaría en el caso de que una persona asegurada no tenga capacidad para el pago de la cuota requerida por su régimen de salud. Tampoco existe claridad sobre los criterios que aplicarían los funcionarios encargados de evaluar la “capacidad de pago” de una persona desplazada no asegurada.” (CCJ, 17 October 2003)

Gaps

Law 387 is a positive step but has serious limitations notably in preventing displacement (2003)

- Prevention of displacement is the weakest component of government policy and no penalty is planned for those causing displacement
- Early Warning System established in the Office of the Ombudsman has limited presence due to lack of funds
- The GTD underlines the huge gap between the development of a normative framework of policy for IDPs and its implementation
- Dissuasive impact of UNHCR and OHCHR has been limited due to the lack of follow up of recommendations on the part of state authorities

"Law 387 is Colombia's first attempt to reflect in domestic legislation the protections for displaced people contained in Protocol II, a positive step. However, Law 387 focuses on general requirements for humanitarian aid once the displaced are already fleeing and contain no specific measures designed to prevent or penalize the act of forcing the civilian population to flee. Law 387 outlines the government's policy on emergency aid, but fails to address issues of justice or the causes of the displacement.

Advocates for the displaced and human rights groups point out that government measures have so far fallen prey to lack of funding, insufficient coordination between government agencies, and poor information. In all, the government has failed to live up to its responsibility to protect the forcibly displaced, as laid out in Protocol II. According to the Displaced Support Group, during 1996 and the first half of 1997, government relief benefited mere 38,182 displaced persons nationwide.

[...]

Additionally, Law 387 provides for the delivery of aid, but also imposes a time limit of three months for families to receive aid, which in exceptional circumstances may be extended for another three months. As humanitarian groups have repeatedly pointed out, displaced people are in need of aid for a much longer period, even if they are among the few who manage to relocate to new land. In an interview with Human Rights Watch, one humanitarian aid worker estimated that the minimum time necessary to re-establish a displaced farm family is two years, since that takes into account the work of clearing, planting, and harvesting that makes a family self-sufficient." (HRW October 1998, chapter VII)

“Prevention and protection

117. The Government has recognized that preventive action is one of its weak points, insofar as scattered responsibilities, uncoordinated information systems and inadequate decentralization of human rights policy have left gaps in preventive mechanisms and been unable to influence the course of the armed conflict. [...] As a result, comprehensive and effective mechanisms have yet to be adopted. Even though the early warning system is barely operational and has an extremely limited impact, its territorial coverage has been extended for the preparation of risk reports and the establishment of a mechanism devised by the Office of the Vice-President and the Ministries of Defense and the Interior for the definition of alerts.

118. [...] However, no progress has yet been made in response to recommendations to back up these programmes with effective preventive policies so as to diminish the risk to the populations concerned, especially those arising from actions and statements made by public officials that endanger human rights defenders and civil leaders.” (UNCHR, 24 February 2003)

“According to Act No. 387 of 1997, assistance for displaced persons depends on the availability of funds in State bodies’ budgets. There is a gap between the resources allocated and recipients’ needs.

91. The prevention of displacements continues to be the weakest component of the displacement policy. The Government’s ability to ensure the security of communities at risk is clearly inadequate in view of the geographical expansion of the phenomenon. On occasion, in response to a displacement crisis, the concern

for military security and the defence of infrastructure has taken precedence over the protection of the civilian population.

92. The Office of the Ombudsman has increased its assistance and protection in some areas of the country, as in the case of the communities at risk on the Pacific coast, and has made progress with the organization of the Early Warning System. Nevertheless, budgetary limitations prevent it from maintaining an effective presence in all areas at risk, or from following up upon the authorities' response to all incoming reports of imminent danger." (UNCHR, 24 February 2003, paras90-92)

"En este marco, el impacto disuasivo de las comisiones humanitarias en las que participan en ocasiones ACNUR y OACNUDH como observadores, no deja de ser también limitado. Aunque pueden haber tenido en ciertos casos un efecto disuasivo sobre los actores armados y de impulso a las autoridades locales, registran, en general, un impacto limitado debido, entre otros factores, al escaso seguimiento posterior de las autoridades estatales. » (GTD, 23 November 2002p. 33)

Protection of IDPs is among the weakest points of national response (2003)

- NGOs concerned that perpetrators of displacement enjoy impunity thus undermining IDPs' right to justice, truth and reparation
- Little progress was made in implementing the CONPES policy for the protection of the displaced, including aspects relating to the conditions for return and resettlement
- Human rights observers criticize government measures for IDPs as the paramount development of an early-warning system had still no been enacted (February 2002)
- The government has not taken measures to define clearly the responsibilities of the Army and the Police in the preventing of forced displacement
- With a 97% impunity rate, violations of human rights can be committed 'at minimal costs' in Colombia
- Support and tolerance to paramilitary actions is not considered a crime under Colombian military code as a result, members of self-defence groups are rarely prosecuted
- The armed forces also enjoy impunity as the Attorney's Office is not permitted to investigate members of security forces

"Como en el resto de violaciones a los derechos humanos, la impunidad es casi total. A pesar de la tipificación del desplazamiento forzado como delito en el 2001, no existe ningún proceso judicial que haya posibilitado la satisfacción del derecho a la verdad, a la justicia y a la sanción de los responsables. Comunidades reubicadas o retornadas a sus tierras que han instaurado, acciones judiciales, exigido el esclarecimiento de los hechos y la sanción de los responsables de las violaciones de derechos humanos que generaron el desplazamiento forzado, se han encontrado con la absolución de los responsables, su ascenso a cargos políticos o militares, a la pérdida de expedientes y de sus declaraciones, a la inversión de la carga de la prueba donde a las víctimas se les exige la entrega de otro tipo de pruebas, más allá de sus testimonios y cuando estas se aportan son invalidadas. » (CODHES, 10 June 2003)

"Forced displacement continued to increase and to extend into new zones of the country. The High Commissioner acknowledges the efforts and progress made in terms of structural and political ideas, but cannot yet see that they have been translated into comprehensive, concrete measures that deal adequately with the problem. Similarly, she regrets that little progress was made in implementing the CONPES policy for the protection of the displaced, including aspects relating to the conditions for return and resettlement. In addition, no progress was made regarding prevention policy and no early warning system was established or is in operation. The creation of the Internal Displacement Observatory is still pending. The High Commissioner also regrets the absence of governmental leadership regarding protection of internally

displaced persons and returnees, a matter that has generally been left in the hands of people themselves or of the illegal armed factions. She also notes with concern the vulnerability of leaders of internally displaced populations, who are still being threatened, harassed and killed, as well as the lack of specific policy for their protection and the absence of studies of security conditions in places of resettlement or return. The High Commissioner welcomes the Constitutional Court judgement on the matter and hopes that it will be enforced within the stipulated time limit." (CHR 8 February 2001, chapter IX, para. 258)

"With regard to returns, the Office has noted that in several cases it is questionable whether the return was in fact voluntary. One formally "voluntary" return in Alto Baudó, Chocó, for example, occurred with no minimum guarantees of security and dignity. [...] It was mainly desperation at the subhuman living conditions in Quibdó, and the lack of prospects, that impelled many to return, rather than a sober, informed assessment of the security conditions. There is thus a serious risk that the tragedy of displacement will be repeated as a result of the fragility of the process in the key area of effective security." (UN HCHR, 28 February 2002, para 241)

No clearly definitions of the responsibilities of the Army and the Police in the preventing displacement

"The lack of government measures to define clearly the responsibilities of the Army and the Police in the preventing displacement and in instructing their commanding officers on the support which should be given to government agencies responsible for the problem, have made the application of the paragraph of Article 14 of Law 387/97 inapplicable, in relation to prevention." [The paragraph of Article 14 of Law 387/97 says that the Human Rights Unit of the Ministry of the Interior is responsible for 'concerting with municipal and departmental authorities in calling security meetings when there are good reasons for assuming that there may be a forced displacement.'] (GAD March 1998, p. 26)

"A study by the International Committee of the Red Cross [*Identificación de la Oferta para la Atención a la Población Desplazada por la Violencia Política en Colombia*, Marcela Sazar Posada, Esperanza Hernandez Delgado, Ana María Montoya Durana, Satafe de Bogotá, Julio 1998] revealed in July 1998 that central government agencies (the Human Rights Unit of the Ministry of the Interior, the Presidential Advisory Office for the Displaced, the Social Solidarity Network, the Office of the High Commissioner for Peace, and the Presidential Advisory Office for Human Rights) have not reported any preventive activity in the first six months of 1998 other than that of "cooling off", education and dissemination." (GAD March 1999, p. 27)

Early-warning

"The system's weakest component is displacement prevention, as is shown by the way the problem has grown and spread. There is no discernible State policy or comprehensive strategy for translating the regulations into concrete programmes. At times, the State seems to act more as an observer than as a genuine protector of the civilian population. There is little commitment to prioritizing the matter. This is evident from the limited resource allocation and spending; the lack of clear instructions to the security forces to prioritize protection of the population; the general failure to punish those responsible for omissions; the widespread impunity of those responsible for displacements; [...] and the fact that the local committees are not playing their part in preventing displacement. [...] For example, no genuine early warning system (SAT) with national coverage has yet been created. [...] In addition, other mechanisms provided for in the legislation have not been implemented, including the observatory, alternative conflict-resolution mechanisms - such as justices of the peace - and effective mechanisms to protect properties left behind by displaced persons, such as a campaign to grant collective title." (UN HCHR 28 February 2002, para. 230)

"The work directed at extending cellular telephone capabilities and implementing an early warning information system has been ineffective, despite the inclusion of these possibilities in the CONPES documents and the constant requests for such innovations by the public and private sectors in the affected regions. This lack of progress has contributed to the failure to prevent forced migratory movements." (IACHR 1999, chapter VI, para. 89)

Persistent impunity

"Colombia is one of the countries where violating human rights is less "costly". The government itself admits the inefficiency of the legal system and a degree of quasi-total impunity of 97%.

The country's former people's protection officer, while holding that position, stated in some of his briefing papers regarding government officials and the security forces: "Due to the existing widespread impunity that has protected human rights violators in this country, when receiving and dealing with reports on extra-judicial executions, forced disappearances, torture and other excesses, the People's Protection Officer wonders how many amongst those responsible for these heartless crimes will be dismissed, how many will be disqualified for official work, how many will go to prison, how many will be promoted or sent to courses abroad, how many will be unjustly acquitted pleading self-defense. No one can deny that recent history has widely proved that in Colombia, murderers, torturers and those responsible for forced disappearances not only escape from any sanction, but are frequently favored with promotions, transfers, academic scholarships, and other incentives, to people's anger and amazement. In Colombia no one even takes the trouble to conceal impunity".

[...]

Regarding these facts, it should be noted that Colombia has ratified the four Geneva Conventions and their Additional Protocols and are therefore all in force in the country. With the 1991 constitutional reform, IHL was included into the constitutional framework, thus placing these regulations into the "constitutionality package". The same goes for the Human Rights Universal Declaration. This means that the State is accountable for Human Rights violations especially regarding forced displacement. Forced population movements are considered to be war crimes by International Humanitarian Law and by the International Criminal Court Statute approved in Rome in July 1998.[...] However, in Colombia, until 2000, forced displacement and forced disappearances were not considered to be crimes.

A report issued by the Ministry of Defense, seeking to inform about the progress in the fight against paramilitary groups, admits that "results can hardly be proportional as, while guerrilla groups attack and fight against the Government Armed Forces, self-defense groups avoid the Forces and as a rule try not to fight against them, thus generating fewer opportunities to capture them or to cause casualties amongst their ranks".[...] The UN Human Rights High Commissioner, in her third report about Colombia, points out that "the Office has witnessed statements made by senior Army officials that claim that the paramilitary do not go against constitutional order and therefore there is no reason for the Army to fight them".[...]

Military forces' disciplinary measures do not include as a crime the support or tolerance of paramilitary groups. The new National Defense and Security Law, ratified by the President in August 2000, will hinder the control over human rights violations perpetrated by the armed forces, as it legally empowers and authorizes them to arrest people and keep them in military lock up for up to 7 days, interrogate them without warrant, control certain areas ("operation theatre") and take measures beyond mayors' and governors' control. They are also allowed to carry out the autopsies of people allegedly killed in combat and the Attorney's Office is not permitted to investigate members of security forces. Lastly, it is established that "when necessary, private security services will assist in matters of National Defense and Security". Arrest warrants dictated by the office of the public prosecutor against members of self-defense groups are rarely put into practice".

"the impunity still enjoyed by the paramilitaries and the public officials with ties to them reveals the limitations of the State's response." (UN HCHR 28 February 2002, para 319)

"Progress continued in a limited number of judicial investigations, but impunity for human rights abuses remained the norm." (AI, Annual Report 2001)

"The administration of justice continues to suffer from serious weaknesses and deficiencies that help bolster the high rates of impunity for major human rights violations and breaches of international humanitarian law." (UN HCHR, 28 February 2002, para. 243)

"There is no discernible State policy or comprehensive strategy for translating the regulations into concrete programmes. At times, the State seems to act more as an observer than as a genuine protector of the civilian population. There is little commitment to prioritizing the matter. This is evident from the limited resource allocation and spending; the lack of clear instructions to the security forces to prioritize protection of the population; the general failure to punish those responsible for omissions; the widespread impunity of those responsible for displacements; and the fact that the local committees are not playing their part in preventing displacement." (UN HCHR, 28 February 2002, para. 230)

"The new Security Law will make it easier for security force agents and their paramilitary allies to escape prosecution for human rights violations. [...] The new legislations grants the security forces judicial police powers in certain circumstances, and restricts the ability of the Procurator General's Office (Procuraduría General de la Nación) to undertake disciplinary investigations against security force personnel for human rights violations committed during security force operations. [...] Article 59 of the new security law assigns judicial police powers to the armed forces when for "well-founded reasons", the Attorney General's Office (Fiscalía General de la Nación) is not in a position to provide permanent accompaniment to military operations. "Provision of judicial police functions to military units facilitate the covering up of human rights violations committed by the security forces or their paramilitary allies", Amnesty International said. [...] Article 60 of the law stipulated that disciplinary investigations for alleged human rights violations by security force personnel must be completed within two months of the initiation of the investigation, leaving little time to gather evidence and so hindering the chances of such investigations being conclusive. "The law threatens to undermine the small advances made by recent judicial reforms and to permit the continued systematic and widespread violation of human rights", the organization added." (AI, August 2001)

IDPs are left without assistance after receiving 3 months emergency assistance (2003)

- Government made US\$70 million available for IDP programmes and 67,5 million in 2002
- Most funds go to emergency activities and even there only 43% of registered IDPs receive relief items
- Law 387 leaves IDPs without assistance following the 3 months emergency phase even so, government coverage for emergency amounts to only 33%
- Post-emergency response is weak and uncoordinated with the emergency assistance
- Organizations have appealed to the Wright of injunction in order to facilitate assistance to IDPs by legal means where state mechanisms have failed
- The government has yet to define a group and gender specific differentiated approach to assisting IDPs notably in reproductive health and children psycho-social needs
- IDPs are often not involved in the planning of assistance and search of solutions
- RSS cooperates with ICRC for emergency response to mass displacements, however attention to those displaced individually is not systematic and quasi nil where RSS is not present
- The Office of the UNHCHR calls for a revision of Decree 2569 (2000) stipulating that IDPs are only entitled to government assistance for three months

"The Government of Colombia is making resources available for IDP programmes and exempts IDPs from paying fees for education, health and other basic services. Between 1995–2000 some US\$ 70 million were made available, in 2001 US\$ 66 million and in 2002 US\$ 67.5 million (planning figure). The funds made available are not always spent due to slow implementation and budget deficits. Most of the funds are used for emergency assistance, but only 43 per cent of the total number of registered IDPs received relief items. The government response is felt to be too centrally organized, and does not reach remote areas. Little progress is being made with re-integration and socio-economic stabilization programmes for the displaced

population. Neither is there an adequate response to displacement into urban areas.” (UNHCR, 3 May 2003, p.8)

“Precisamente una de las principales conclusiones en materia de resultados, señala que en lo fundamental la política del gobierno se mantuvo concentrada en la atención humanitaria de emergencia aunque en este componente la cobertura sigue siendo muy baja, pues sólo llega al 33.18%. En los demás componentes la situación es más grave en un contexto en que la brecha entre la oferta y la demanda tiende a crecer aceleradamente.” (CODHES, 28 April 2003)

« Entre los aspectos más débiles de la respuesta institucional se encuentran los programas de post-emergencia que no se articulan, normalmente, con la respuesta de la emergencia. Como resultado, los desplazados enfrentan situaciones de extrema vulnerabilidad en los meses posteriores al período de tres meses de emergencia establecido por la Ley 387. La frustración de los desplazados ante lo que consideran respuestas insuficientes por parte del Estado, se ha manifestado en medidas de fuerza, como la toma de la Defensoría de Bogotá en el mes de septiembre de 2001. Otra vía explorada por diversas asociaciones y grupos de desplazados ha sido la interposición de tutelas para conseguir por la vía judicial lo que les ha resultado casi imposible por la vía de acceso regular a los mecanismos del Estado.

[...]

Uno de los temas de preocupación recurrentes de las asociaciones de desplazados y del Sistema de las Naciones Unidas, es la insuficiente definición de la emergencia, sólo por 3 meses. Como ya indicado en el apartado sobre seguridad alimentaria, la emergencia normalmente supera los 3 meses que señala la Ley 387, ya que entre los 4 y 24 meses posteriores al desplazamiento, las familias siguen enfrentando situaciones de vulnerabilidad. En cuanto a la adecuación de la asistencia a las necesidades especiales de los diferentes grupos poblacionales, existen vacíos en la atención a necesidades específicas de población vulnerable, como son mujeres y niños. Se observa por ejemplo, que la atención en salud reproductiva no está incluida en los planes de asistencia humanitaria y no se identifican necesidades específicas de las mujeres, a través de entrevistas reservadas y orientadas a este grupo. En cuanto a los niños, no se identifican necesidades con respecto a atención psicosocial. Por otro lado, la asistencia en educación tampoco está considerada como una prioridad en la asistencia humanitaria de emergencia.” (GTD, 23 November 2002, pp.29, 34)

“La RSS y el CICR siguen prestando asistencia humanitaria a partir de su acuerdo de cooperación para los desplazamientos masivos. En ocasiones, la Diócesis local complementa esta asistencia. Sin embargo, los desplazamientos individuales no disponen de un sistema de atención tan sistematizado. En términos generales, la RSS atiende a los desplazados individuales en centros urbanos por medio de una ONG operadora o, si existe, por medio de la UAO. El problema se presenta si no hay presencia de la RSS en un centro urbano determinado con presencia de desplazados, así como en el caso de desplazamientos individuales en el área rural.” (GTD, 23 November 2002 p.33)

"Humanitarian assistance is provided by the government, in cooperation with ICRC, to displaced persons during the first 90 days of their displacement (under Decree 2569, of December 2000), certain categories of persons may apply for an extension for a further three-month period, but the assistance is said to be far from satisfactory and in need of review.

Emergency assistance reaches only a minority of the newly displaced. After 90 days, the displaced must fend for themselves. In recent years, the Government has enacted a law and issued several decrees that outline its responsibilities to the displaced. However, its record on implementing them has remained poor. Regional and local authorities rarely do anything to help the displaced, in part because they have few resources with which to help.” (UN CHR 11 March 2002)

“The Government and the humanitarian and development community need to attach greater attention to addressing the medium and longer-term needs of the displaced populations. The cessation of emergency assistance should occur only when the displaced have been provided with adequate means to recreate a sustainable livelihood.” (UN Press Release, 31 August 2001)

"Non-governmental participants, including representatives from the international community, repeatedly addressed the limited possibility of IDPs to enjoy their basic rights. The content and the administration of the existing governmental IDP support activities were sharply criticized. Most participants felt that these activities were initiated without sufficient knowledge of the IDPs' most urgent needs, their cultural context or their capacity to contribute actively to the solution of their own situation. Many governmental support activities were said to be limited to handouts, lacking consistency and without contemplating durable solutions. Support to individual IDPs was seen as bureaucratic, insufficient and arbitrary." (CHR 16 November 1999, paras. 41-42)

Follow up on the recommendations of the Representative on IDP (1999-2002)

- Decree 2569 undermines IDP benefits by establishing inappropriate cessation clause and a time limit for registering and access humanitarian assistance
- GOC did not follow recommendation 111 on improved coordination to IDP response and under funding remains a main limitation
- State policy has not gone beyond emergency phase contrary to recommendation 122
- No measures were taken to prevent displacement and protect IDPs or people at risk of displacement as stated in recommendations 117-118
- No political will to take responsibility for justice, processes of truth and reparation for IDPs according to recommendation 124 and others
- Attention to specific vulnerable groups (i.e. women, children, indigenous and Afro-Colombians) has not been implemented according to recommendation 123
- Contrary to all recommendations measures have been taken to undermine the rule of law and protection of IDPs: elimination of local human righter offices, reform the writ of injunction and weakening of Constitutional Court
- Policy of 'democratic security' blurs distinction between combatants and civilians
- Decree 2002 grants judicial functions to members of the armed forces likely to reinforce impunity where to date no sanctions have been imposed on the perpetrators of the crime of forced displacement
- IDPs who lack identification documents are liable to 24 hours detention in the 'zones of rehabilitation and consolidation under decree 2002
- Access and delivery of humanitarian assistance may be jeopardized by decree 2002 which restricts freedom of movement

"The most important problems with reference to the implementation of the Recommendations of the UN Representative on internally displaced persons, as contained in his follow-up mission to Colombia carried out in May 1999, are as follows:

With regard to recommendations 109 and 110 [...] on taking measures for policy implementation and creation of the institutional mechanisms foreseen in Law 387 of 1997, serious difficulties remain despite the important normative development. Decree 2569 of 2000 [...] is a case in point of inconsistencies in the regulation of Law 387. This decree represents a step backwards in terms of the benefits to which the displaced are entitled. It establishes inappropriate causes for the cessation of the condition of displaced and for the exclusion from the Single Registration System of the Population Displaced by Violence; it imposes a time limit on submitting the declaration that permits the displaced person to gain recognition as such on the part of the State and it limits the budget allocated to State's programs for assistance [...].

The institutional framework did not address the ever-increasing needs nor did it follow recommendation 111 with regard to the necessity for strengthening co-ordination of the response at the national level. The National System for the Comprehensive Attention to the Displaced Population does not operate in a co-ordinated manner and many of the public entities that make up this System neither formulated nor carried out any special programs aimed at the displaced population. The local authorities, within the framework for the decentralisation of assistance to the displaced people, showed little commitment and the coverage of the regional, departmental and municipal committees continued to be poor. Insufficient funding and implementation of the existing budget continue to constitute the principal limitations.

Both Guiding Principle 29 as well as recommendation 122, which refer to the right of the displaced to obtain access to definitive solutions that would permit them to overcome their condition as displaced persons, have been ignored. The policy of the State has not gone beyond a response to the emergency phase. Far from guaranteeing self-reliance of the displaced people, the projects aimed at socio-economic recovery merely give rise to a prolongation of the emergency situation.

The State has not taken effective measures in order to prevent forced displacement and protect the lives and physical and psychological integrity of the displaced, along with those working on their behalf (Recommendations 117 and 118). In spite of early-warnings, which are anyway limited for the poor coverage of the Early-Warning System, in many cases the State has failed to act as guarantor for the protection of their human rights.

In addition, the State has not implemented a comprehensive strategy in order to address the profound causes of forced displacement as well as to comply with international recommendations with reference to the struggle against impunity and to the dismantling of paramilitary groups along with their links to the government armed forces [...]. There is an absence of political will to incorporate processes for truth, justice and reparation for the victims of forced displacement into State policies and programs for reestablishment. Those responsible for forced displacements enjoy widespread impunity. This puts the displaced people in a position of vulnerability, insecurity and stigmatisation. This situation also has an impact on national and international organizations working in the field of forced displacement, frequently victims of threats that affect their presence on the ground.

In spite of this situation and of the lack of effective measures in order to insure a “fair redistribution of the land” (Recommendation 124) or to protect the patrimonial assets of the displaced population, the administration of President Alvaro Uribe Vélez gives priority to processes for return of the displaced. It is concerning that these processes could be carried out without the existence of guarantees for security and safeguards against repetition. Nor has the State provided alternatives for resettlement in conditions of dignity and security.

With regard to the specific attention that should be provided to especially vulnerable groups, such as Afro-Colombians, indigenous peoples, women and children (recommendation 123), the recognition of their particular needs found in official documents has not been translated into concrete actions and measures on the part of the State.

In terms of integrating the supplementary work of national and international NGOs with government's actions, through a broad-based consultative and evaluation process, (recommendations paragraph 107, 108 and 109), a marked tendency has been observed on the part of the State in which it makes use of this cooperation in order to avoid its primary responsibility as well as to condition the implementation of some of its programs upon the availability of funding provided by international cooperation.

Along with the lack of compliance summarised above, there are new concerns over negative effects of the measures taken or proposed by the Government under the state of emergency, declared on August 11, 2002 [...].

It is feared that these measures, instead of guaranteeing respect for the fundamental rights, may worsen the structural conditions that give rise to impunity and human rights violations and may thus create even more forced displacements.

A series of institutional counter-reforms was announced which tend to eliminate institutions and mechanisms that serve to protect fundamental rights. The proposal to eliminate the local human rights offices (*personerías*) [7], to reform the writ of injunction (*acción de tutela*) so as to make it inapplicable in cases of economic and social rights [...], the weakening of the Constitutional Court, endanger access to justice and attention on the part of the victims of human rights violations and forced displacement. For example, in many cases, displaced persons have had to exercise the *acción de tutela* with regard to assistance, protection, prevention and reparation, as a last resort in order to demand fulfillment on the part of the State of its duties. The combination of these measures with a reduction in the budgets of those entities responsible for rendering assistance to the displaced population jeopardises their ability to adequately fulfil their obligations.

[Footnote 7: The elimination of *personerías* in the municipalities above 100.000 inhabitants is part of the proposal of Bill 47 of 2002 (Senate), 57 of 2002 (Chamber), calling for a referendum for constitutional reform.]

In addition, the measures adopted in connection with the state of emergency establish a new institutional and normative framework that will have an influence on State policy of assistance to the displaced. However, at the moment of the writing of this report, this change has not been reflected in the adoption of new policies of attention to the displaced population.

Other measures decreed by the administration of President Álvaro Uribe Vélez within the framework of his so-called policy of “democratic security”, threaten to suspend or restrict the rights of the civil population. These will have a particularly marked effect on such vulnerable groups such as the displaced population or those threatened to be forcibly displaced. The justification given for decree 2002 of 2002 [...] that one of the principal support mechanisms for the actions of the criminal groups is “the blending in of its members with the civilian population” (Considering number 3), ignores the principle of immunity of civilian population and also blurs the distinction between combatants and non-combatants, established by humanitarian law. In a similar vein, and in furtherance of the development of that policy of democratic security, creation of a national network of informers could lead to new forced displacements in that these networks could give rise to a paramilitary strategy along with its deadly consequences, as has happened in the past. The imposition of the figure of “peasant soldiers”, who would provide security and control within their communities (part time soldiers and part time peasants), leads to confusion over the differences between civilians and military and violates the rights of civilians and of those communities that do not wish to participate directly in hostilities and could thus be branded as “suspicious.”

This same decree 2002, in addition to making use of generic and imprecise terminology [...], opens the door to arbitrariness on the part of the authorities while conferring judicial functions upon members of the armed forces. In this sense, the capacity of the armed forces to inspect, register and search homes as well as to capture and detain people without judicial authorisation may serve to increase and legitimise the arbitrary abuse of power, as well as injustice and impunity by means of the concealment of evidence as to exonerate members of the armed forces. Undoubtedly, such a situation would lead to widespread impunity, especially in cases of forced displacement arising directly from military operations.

Up until now, in spite of the classification of forced displacement as a crime under article 284 of the penal code that has been in effect since 2001, there are no known results of sanctions imposed on the presumed authors of that crime.

Decree 2002 authorises the Military Commander in the “zones of rehabilitation and consolidation” to detain for up to 24 hours, any persons not carrying identification (Article 20). This regulation makes vulnerable especially the rights of the displaced because in many cases they lack these documents. The State must

implement adequate and efficient mechanisms in order to provide the displaced population with all required documents as stipulated in the Guiding Principle 20.

In these “zones of rehabilitation and consolidation”, Decree 2002 imposes limitations on the civilian population’s freedom of movement and right to reside [...]. The implementation of these regulations could generate cases of forced displacement among persons considered to be “suspicious” and could arbitrarily affect ethnic communities that have voiced opposition to the measures of democratic security. [...] Article 16 also violates Guiding Principle number 3 which states that displaced persons shall have the right to request and receive protection and humanitarian assistance and must not be persecuted or punished for making such a request.

This limitation also applies to foreigners who must request permission from the relevant authorities within a time limit of eight working days in order to enter or remain in these zones (article 22). In addition to being incompatible with the principle of non discrimination [...], this regulation constitutes a possible restriction on the provision of humanitarian assistance on the part of international agencies.

In the realm of international cooperation, the legislative project for the creation of the National System for International Cooperation poses additional cause for concern over the independence of such activities [...]. This system has the aim of “joining together” the organizations that provide and receive international, public, private or mixed cooperation under the direction and coordination of the national Government and is to be headed by the Colombian Agency for International Cooperation (*Agencia Colombiana de Cooperación Internacional*, or ACCI from its initials in Spanish). The ACCI would set general guidelines and define the priorities for international cooperation in accordance with the government’s foreign policy and the National Development Plan.

The right to receive and provide humanitarian assistance and the authorities’ obligation to facilitate the access of such aid, recognised in Guiding Principle 3 as well as Principles 24.6 and 26, could be jeopardised by articles 21 and 23 of Decree 2002 which relate to the inspection of cargo and the use of privately owned services and equipment. This last regulation ignores the principle of distinction between combatants and non-combatants, as recognised under humanitarian law, and at the same time it puts the humanitarian protection to which civilians are entitled at risk due to the fact that they are forced to participate in military activities. Additionally, the possibility of imposing restrictions on access to cargo, which include both humanitarian assistance as well as food, through a unilateral decision on the part of the military authorities, and without there being any provision for a mechanism for appeal, poses the threat of implementation of economic blockade and a resulting aggravation of the humanitarian crisis in these zones. This would have a particularly marked effect on such vulnerable populations as the displaced or those at risk of being forcibly displaced.[...]

Members of the Government have repeatedly and publicly stated [...], that State policy on forced displacement must fit within the framework of the democratic security policy, and they made reference to a possible strategy of protection using Colombian “blue helmets” [...]. Some of the central tenets of this policy, as enumerated by the Social Solidarity Network, include a project for the return of 30,000 families, the strengthening of the system of humanitarian assistance for the displaced population, the consolidation of strategies for prevention and protection within the framework of democratic security, citizen participation and concurrence of efforts with the international community.

It is nonetheless a cause for concern that the Government continues to promote the return of the displaced without providing any of the necessary guarantees for security or non-repetition. Processes of return or re-establishment are not viable unless the authorities seriously address the causes of the displacements and while continue to occur systematic violations of human rights in the areas in which the displaced remain temporally or are resettled.

It is also a cause of concern that authorities responsible for prevention and for assistance for the displaced population treat the phenomenon of forced displacement as though it were a problem of public order or just

another component of the country's persistent and endemic poverty. This understanding ignores the fact that forced displacement involves multiple, massive and continued violations of human rights of the displaced people as well as the right of the victims to the truth, justice and comprehensive reparation. It is essential that the Government recognises its responsibility, for action and omission, in the increase of forced displacement as well as its duty to implement preferential measures and take steps to re-establish those rights of the displaced population that have been violated.

The situation of forced displacement in Colombia continues to worsen along with the persistence of massive human rights violations and widespread impunity. The experience of the last few years has demonstrated that government policies favouring a military option over a negotiated political settlement of the internal armed conflict have only served to generate more forced displacements. Forced displacements generated by the repeated violations of human rights and humanitarian law, as in municipalities such as Mapiripán (department of Meta), forced displacements due to the absence of protective measures as in the case of Bojayá (department of Chocó) and forced displacements that occur because of the lack of concrete actions so as to guarantee that the military recuperation of territory will be accompanied by effective action against paramilitary groups, such as in Medellín del Ariari (department of Meta), prove that the implementation of a human rights and humanitarian policy on the part of the State is an urgent necessity. Otherwise, and given the degradation of the armed conflict, irreparable acts against numerous communities are likely to be repeated and no other option will be left open to the inhabitants other than to be forcibly displaced under conditions that infringe upon their dignity." (CCJ and Mencoldes, 15 November 2002, pp. 3-9)

While assistance mechanisms for IDPs have been decentralized funds are still controlled from the capital (2003)

- Decree 2569 (2001) conditions assistance to IDPs by state institutions to the availability of funds and there were significant budget cuts in 2003
- Government response to IDPs in the areas of assistance, prevention, protection and reintegration suffer from ad hoc budgetary allocations and lack of coordination
- There are many restrictions in the access by displaced persons to programmes like the Social Support Network of Plan Colombia
- The SSN and the Ministry of Health are often the only bodies allocating significant funds for IDPs
- The fact that RSS is the only entity allocated resources from the national budget for IDP projects is an obstacle to the fulfilment of Law 387 and CONPES 3057/1999
- In spite of effort of the Social Solidarity Network, local authorities' response to IDP has often been inadequate owing to lack of political will and to negative stereotypification of IDPs
- By fear of creating a pull-factor, some officials take few initiatives to integrate the displaced who are often stigmatized as supporters of guerrillas
- Social Solidarity Network's response in Putumayo, Magdalena Medio, and Urabá has been limited, owing to the scarcity of resources and the cumbersome nature of the relief mechanisms
- Despite Act. No. 387/97, municipalities and departments bodies mandated to provide assistance to IDPs have not lived up to their responsibilities

“Sin embargo, decretos reglamentarios han limitado el alcance de la ley 387 de 1997. Por ejemplo, el decreto 2569 de 2001 colocó una condición suspensiva al cumplimiento de las obligaciones de las instituciones encargadas de dar respuestas al desplazamiento forzado cuando establece que dichas obligaciones dependen de la disponibilidad presupuestal efectiva. » (CODHES, 10 June 2003)

« El marco presupuestal ha sufrido importantes recortes tanto en las asignaciones a las entidades que conforman el SNAIPDV, como a los programas específicos de atención a la población en situación de desplazamiento. En el caso del desplazamiento forzado, la reducción de los recursos asignados es significativa y en algunos casos absolutamente desfasada de los requerimientos sectoriales y de las necesidades de la población desplazada. » (CODHES, 10 June 2003)

“30. The decentralization of prevention mechanisms and of integration and reconstruction mechanisms have not worked well either due to prevalent restrictive regulations that result in the control of the purse strings by the headquarters of the central State bodies (situated in the capital). Yet, according to law and policy, it is the municipal and departmental committees that are responsible for preventing displacement, making arrangements for alternative ways of settling conflicts, and providing the investment to satisfy the needs of communities which, if neglected, could be precipitated into forced displacement. The committees are also expected to identify, discuss and design integration and reconstruction projects (return, resettlement or consolidation and development) for the clusters of displaced persons, and to submit them to the State institutions for funding. However, the process of getting the projects approved, and having the funds for them transferred, is complex and slow, and hampered by the fact that the bodies at the municipal level are not easily able to meet the various requirements.

31. According to law and policy, NSCADP [National System of Comprehensive Assistance to the Displaced Population] should work in a decentralized way through the local governmental and non-governmental organizations, but, so far, the conventional administrative rules and regulations are still being followed, and they stand in the way of prompt, efficient and effective action. Also, not much has been done to lift the restrictions in the access by displaced persons to normal social investment programmes like the Social Support Network of Plan Colombia, and the restrictions have only been partially lifted in the access to the actual government agencies that form part of the Ssystem, the ones that must take action on housing, loans and the like. Lastly, the bodies that make up the Programme, with the exception of SSN and the Ministry of Health, did not themselves allocate significant funds specifically for programmes of assistance to the displaced population during the years 1999-2000, but did so only at the end of 2001.[12]

[Footnote12: In 2002, the Programme succeeded in having new rules issued for guaranteeing investments in housing through the National Urban Housing Institute (INURBE), land through the Colombian Institute for Agrarian Reform (INCORA) and temporary employment (through the Social Support Network), and this is an important step forward.]” (GTD, 29 November 2002, pp9-11)

« Sin embargo, las dimensiones de la crisis humanitaria están presentando importantes desafíos a la eficacia y capacidad de respuesta del Sistema Nacional de Atención Integral a la Población Desplazada por la Violencia (SNAIPD), tal y como está concebido. El documento CONPES 311 de mayo de 2001 explicitó que no se habían alcanzado las metas planteadas para el SNAIPD en el CONPES 3057 de noviembre de 1999. Entre los obstáculos que se mencionan en el citado documento se encuentran que la RSS ha sido la única entidad que ha contado con proyectos específicos para la atención a la población desplazada en el presupuesto nacional. » (GTD, 23 November 2002, pp.28-9)

"The Social Solidarity Network [...] (hereinafter referred to as the Network) has made efforts to improve the coordination of the national system of care for the displaced population and key sectors have been regulated.

At the same time, local authority response has been inadequate. Access to assistance programmes continues to be problematic. Allocated funding and actual spending have remained insufficient. Prevention continues to be ineffective and ethnic minorities are still disproportionately affected.

[...]

Another source of concern is displaced persons' and returnees' vulnerability to stigmatization and the limited effectiveness of protection mechanisms.

[...]

The efforts of the Joint Technical Unit (Network-UNHCR) at the local level to strengthen the Committees on Care for the Displaced Population have been significant. However, owing to a lack of political will and of awareness of mechanisms, as well as other difficulties, many mayors have not taken the necessary steps to obtain funding at the national level.

[...]

In any case, considering the fact that the majority of displaced persons, especially those in the cities who are of rural origin, are unwilling or unable to return, there are still serious deficiencies in social policy to deal with the problem, including job-creation initiatives." (UN HCHR, 28 February 2002, paras. 224-225, 229, 238, 242)

"While many projects aimed at attaining socio-economic stability tend to support communities' efforts to return to their place of origin, initiatives in urban areas addressed at integrating groups of displaced persons are scarce. This situation contrasts with the vast majority's lack of possibilities to return or relocate. Municipalities barely participate in the search for solutions to integrate those who have suffered displacement. Municipal teams believe that creating displacement assistance programmes will only attract more displaced people to their municipality." (UN CHR 11 March 2002)

"As they arrive, [in the shantytowns where most take refuge] the displaced encounter many situations that stigmatize them as they have to compete for access to welfare services with the population already there and are sometimes seen (even by civil servants) as belonging to one of the parties in the conflict and a potential source of problems. As a civil servant said in Soacha referring to the displaced, "guerrillas, ex-guerrillas or informants, who knows..." (González Bustelo, December 2001, Chapter 5)

"The following evaluation is based on the experience in the above-mentioned three regions. The delegations of the RSS in the three regions have shown a desire to assist the displaced, particularly through their presence and the provision of humanitarian assistance. However, their response has been limited, owing to the scarcity of resources and the cumbersome nature of the relief mechanisms.

Despite the mandate entrusted to it by Act No. 387, which provided for the establishment of departmental and municipal committees, municipalities and departments have played a very limited role in providing assistance to displaced persons. Moreover, with the exception of Barrancabermeja, contingency plans have not been developed (in some cases, the "fear" was expressed that the plan might attract more people to the department). The level of health care provided to displaced persons in many municipalities is also inadequate.

In the case of Putumayo, where the armed shutdown resulted in a widespread humanitarian emergency (scarcity of resources, food, etc.), RSS provided humanitarian assistance, despite the difficulty of travel and transport in the territory. With regard to socio-economic integration and resettlement of the displaced population, there appear to be no clearly defined strategies and activities, only isolated efforts to promote socio-economic stability, as in the case of the returnees from Comunidades de Paz and Cacarica.

Generally speaking, the action of the State has been limited and sporadic compared to the seriousness of the phenomenon of displacement. Moreover, most of the agencies mandated to provide assistance to displaced populations have shirked their responsibilities." (TGD 19 January 2001)

Evaluation of the main achievements and limitations of the policy of attention to IDPs between 1999-2002

- On the main achievements the report highlights the consolidation of the legal framework for IDPs
- More financial resources have been allocated to respond to the IDP crisis than during previous administrations, with a budget of US\$162.000 for 2002

- The RSS was mandated main coordinator of the SNAIPD (integral system of attention to IDPs) and executive of the emergency humanitarian assistance
- The emergency humanitarian assistance has been consolidated however it covers only 33.18% of the needs
- On the main limitations of the policy, the prevention of displacement has had low priority in policy formulation and implementation
- Protection of the rights of IDPs during and after displacement has not been addressed
- The SNAIPD is inefficient and there is no follow-up, nor evaluation of its management
- The way resources have been allocated have posed obstacles to an adequate response to the needs of IDPs
- Post-emergency humanitarian assistance and a differential approach to assisting IDPs are lacking

LOS AVANCES MÁS IMPORTANTES

Entre los avances más importantes merecen destacarse los siguientes:

1. Se ha ido desarrollando un marco normativo relativamente comprehensivo e integral, y se ha promulgado jurisprudencia en la materia.
2. Se ha formulado un marco integral de política pública para la atención al desplazamiento, aunque con un desarrollo desigual de sus componentes tanto en la conceptualización como en la ejecución de la misma. Existe un mejor desarrollo de la AHE, un incipiente desarrollo de la estabilización e integración socioeconómica y social, y hay aún grandes vacíos y debilidades en la prevención del desplazamiento y en la protección efectiva de los derechos de la PID.
3. Se ha desarrollado un esquema institucional sistémico y comprehensivo, el SNAIPD, aunque este demuestra aún dificultades para funcionar con suficiente efectividad en la práctica.
4. El tema de la atención al desplazamiento interno forzado estuvo más presente en la agenda gubernamental que en gobiernos anteriores, aunque no en la medida suficiente.
5. Se han dedicado más recursos que en gobiernos anteriores. La inversión total creció de \$139.000 millones en el período 1995 - 2000, a \$146.000 millones en el año 2001, y a \$162.000 millones (presupuestados) en el 2002.
6. Existe mejor coordinación entre las acciones gubernamentales y las de las agencias internacionales.
7. Se ha consolidado la RSS como coordinadora del SNAIPD y como ejecutora de la AHE.
8. Se ha iniciado el proceso de conformación y consolidación de los Comités Municipales y Departamentales de Atención, aunque esta es una acción incipiente y con baja cobertura respecto a la cantidad de municipios afectados (991 municipios, 82% del país).
9. Se ha consolidado el sistema de AHE en cuanto a diseño y capacidad de respuesta, aunque su cobertura es baja (33.18%).
10. Existe un sistema de atención en salud con buena cobertura y adecuadamente financiado a través del Fosyga, aunque presenta problemas operativos que limitan la accesibilidad de la PID al servicio por el retraso en el pago a las IPS por parte de Fisalud.
11. El SUR se ha descentralizado y consolidado, aunque presenta restricciones tales como el requisito de la valoración previa de la declaración, y deficiencias operativas debidas a la baja capacidad de atención de las personerías municipales y a problemas de confiabilidad de la información.
12. Se han establecido Unidades de Atención y Orientación (UAO) en las principales ciudades receptoras.

LAS LIMITACIONES MÁS IMPORTANTES

Las limitaciones más importantes son las siguientes:

1. El desplazamiento no está en la agenda de la sociedad colombiana como un problema público, ni en la agenda del sector político.

2. La brecha entre la oferta y la demanda es amplia, y tiende a ampliarse aún más, sin que se vislumbre una disponibilidad suficiente de recursos para cubrirla.
3. La prevención del desplazamiento ha tenido muy baja prioridad en el desarrollo de la política, tanto en su formulación instrumental como en su ejecución.
4. La protección de los derechos de la PID antes, durante y después del desplazamiento, sigue siendo una aspiración.
5. El funcionamiento del SNAIPD es poco efectivo: el Consejo Nacional no funciona debidamente, no hay efectos vinculantes de las decisiones del SNAIPD para las entidades que lo integran, es manifiesta la debilidad en la ascendencia del ente coordinador (la RSS) sobre las demás entidades que lo integran, y no hay seguimiento ni evaluación de la gestión.
6. El Plan Nacional, listo para la sanción presidencial desde Octubre de 2001, no fue promulgado. Este sería un instrumento para establecer taxativamente asignación de recursos, responsabilidades de las instituciones, objetivos y metas concretas, seguimiento a la gestión a través de indicadores y una formulación de la política acorde con los Principios Rectores y la normatividad constitucional y legal. El Plan Nacional vigente (Decreto 173/1998) es obsoleto.
7. No se han alcanzado las metas previstas en el Plan Estratégico (1999), en el CONPES 3057/1999 y en el CONPES 3115/2001.
8. Persiste el centralismo en la formulación y en la gestión de la Política, y hay poco espacio para la participación de la sociedad civil en la formulación, en el seguimiento y en la evaluación de la misma.
9. Los mayores recursos se asignan a rubros presupuestales destinados específicamente "para atender a la población desplazada" (y esto es reforzado por la condicionalidad de las normas que rigen su aplicación) y no para atender el fenómeno del desplazamiento interno forzado, lo cual no permite su uso para proyectos de prevención, ni permite la inclusión de población receptora en los proyectos de estabilización e integración de la PID.
10. Existen obstáculos para la disponibilidad completa y oportuna de los recursos presupuestalmente asignados, debido al manejo restrictivo del flujo de caja (Programa Anual de Caja), y también se enfrentan dificultades para la ejecución ágil de los mismos debido a la rigidez en el sistema de contratación. Esto no permite atender de manera ágil y oportuna la emergencia humanitaria, particularmente en los aspectos relativos a la atención de postemergencia.
11. No está garantizada la atención de post-emergencia inmediatamente después de los tres (o seis) meses de AHE, en materia de estabilización económica y social.
12. En los programas de atención no se ha incorporado, en la práctica, el enfoque diferencial en términos de género, edad y etnia, aunque ya existen formulaciones por parte de la RSS.
13. La focalización territorial de la inversión es inadecuada, pues se define de acuerdo con la demanda y no se consideran los municipios en riesgo. Es débil la atención en las grandes ciudades. » (UNHCR, 1 October 2002, Chapt.7)

International response

Overview of the UN System response to IDPs in Colombia (1998-2003)

- The UN has projects in 25 of the 32 departments and field offices in 14 departments
- The UN response to IDPs since 1998 has suffered from lack of coherent coordinated strategy and has been fragmented and scattered
- UN needs to strengthen its presence in micro-regions and areas with high IDP density
- The Thematic Group on Internal Displacement to develop joint-inter-agency coordinated action for IDPs was set up in 1999
- Current UN response focused on 1) institutional-building, providing training and legal advice to strengthen grass-roots organizations and IDP communities

- Focus 2) on displacement prevention and protection, namely registration, land titling, and featuring state and international presence in high risk zones
- Focus 3) on integration and reconstruction by providing assistance in socio-economic integration through income-generating programmes
- Focus 4) and 5) is concerned with health, welfare and education, targeting special needs of different groups, and food security
- UN budget between 2000-2 was 43.124.500 US\$
- The Joint Technical Unit (JTU) created in 1999 supports the work of the RSS through capacity building, monitoring and evaluation of the state response to IDPs
- RSS and UNHCR have set up Working Groups with Displaced Populations however, lack of political will and allocation of funds has undermined its work as stipulated by Law 387 and Decree 2569

“32. The UNS response has focused mainly on national institution-building. The efforts deployed by the various United Nations agencies are fragmented and sometimes scattered all over the country. What is more, there is not always an agency presence in the micro-regions with a concentration of displaced persons. Lastly, there is no coherent, coordinated UNS strategy to mitigate the impact of forced displacement. Each agency’s programmes and projects are consistent with its own mandate and with bilateral agreements with the national counterparts.

33. The UNS team in Colombia has activities and projects in 223 of the 1,099 municipalities comprising 25 [13] of the 32 departments. In 2002, the various agencies have field offices in 14 departments.

[Footnote 13: Amazonas, Antioquia, Arauca, Atlántico, Bogotá, Bolívar, Boyacá, Caldas, Caquetá, Cauca, Cesar, Chocó, Córdoba, Cundinamarca, Guajira, Huila, Magdalena, Meta, Nariño, Norte de Santander, Putumayo, Quindío, Santander, Sucre and Valle del Cauca.]

34. The first UNS activities specifically devoted to displacement date back to 1998. However, in recognition of the scale and complexity of displacement in Colombia, the Thematic Group on Internal Displacement (TGID) was established at the beginning of 1999 to develop joint coordinated action by the agencies. The Group consists of the twelve agencies referred to in paragraph 2; JTU-SSN, ICRC and ECHO participate as observers.

35. The current response to displacement has concentrated on five basic areas of operation, which during the HAP planning process were adopted as operational components: institution-building; prevention and protection; integration and reconstruction; comprehensive assistance with regard to health, education and family welfare; and food security.

36. Current institution-building initiatives are designed to improve the action taken by the National System of Comprehensive Assistance to the Displaced Population. United Nations technical assistance is contributing to the development of normative and protective arrangements, improved planning processes, and the formulation of policies, strategies and operational assistance mechanisms (humanitarian assistance protocol, resettlement protocol, development of guidelines for population targeting, launching of the information and the registry system). On the local front, the creation of CGUs [Care and Guidance Units] and the support rendered to the Territorial Committees are priority United Nations activities. The ICRC launched this initiative jointly with the SSN, and still offers technical advice and training aimed at the creation of CGUs. In order to strengthen the National System’s response capability, UNS is also contributing economic and financial resources to meet the displaced population’s humanitarian assistance needs and facilitating the transition from emergency to medium-term assistance, food aid, provision of material goods, training and financial support to State agencies, and other related activities. It also implements specific projects for the organizational strengthening of grass-roots associations of displaced persons, indigenous and Afro-Colombian organizations and organizations of displaced women, among others. This assistance includes advice on human rights policies and programmes.

37. The United Nations also works with the Ministries of Health and Education to improve the capacity to respond to the challenges of displacement (sexual and reproductive health, psychosocial care, health survey design, water management, solid and liquid waste and vectors; as regards education, school curricula are being overhauled to include displacement and CEP).

38. Displacement prevention and the protection of the rights of displaced persons have received special attention from UNS, in fulfilment of the agencies' mandates. Programmes designed to protect rights include certification and civil registration of the displaced population, strengthening of national protection machinery, establishment of land titles and restoration of the rights of children to places in school, and continuation and support within the education and health systems. The following are some examples of UNS prevention activities: support for the Early Warning System, humanitarian missions and projects in displacement-prone areas. The United Nations System has focused on prevention, favouring a State presence, alongside an international presence, in high-risk areas. It is also monitoring the human rights situation of the displaced population and the implementation of relevant international recommendations in the report on Colombia of the Office of the United Nations High Commissioner, submitted to the Commission on Human Rights in Geneva.

39. Assistance in the return, relocation and economic and social integration of the displaced population is progressing under various programmes: medium-sized, small and microenterprises, production chains, retraining, training for work (in rural and urban areas) and promotion of processes or activities that promote sustainability of the abovementioned actions. In addition, support is given to governmental and State bodies in the preparation of local and regional development plans. Receiving and vulnerable communities are involved in all these activities.

40. Since women and children bear the brunt of displacement, UNS has endeavoured to improve gender tools by training officials and grass-roots associations. The agencies support projects designed specifically for women heads of household with a view to facilitating their economic integration. Likewise, young people aged 13 to 25 receive special attention through activities aimed at preventing the recruitment of child soldiers or releasing those already recruited. Psychosocial work, expanded provision of education, and the prevention of domestic violence are further initiatives specially targeting these groups.

41. Food security is an essential component of prevention and economic and social integration. UNS efforts have taken the form of food aid for the implementation of projects for production, education and health, infrastructure building, and training for work. Attempts are being made to assist and expand lower-cost local production and, possibly, to create employment in rural areas." (GTD, 29 November 2002, pp.11-13)

"La inversión en proyectos destinada a la atención al desplazamiento de todas las agencias entre 2000-2002 asciende aproximadamente a 43.124.500 USD \$." (GTD, 23 November 2002, p.39)

"The Joint Technical Unit (JTU) was created in 1999 as a team of technical experts to strengthen the RSS and the *"Sistema Nacional de Atención Integral a la Población Desplazada"*. The unit focuses on capacity building, monitoring and evaluation of the state response to internal displacement. It formulates national policies and consolidates the National Information Network. The JTU supports the municipal committees in charge of internal displacement. It also supports the registration system *Sistema Unico de Registro* (SUR). The JTU receives funding from UNDP, IOM and the World Bank. During this review the mandate of the JTU was under discussion and due to staff changes continuity was affected. It is generally felt that the unit needs more independence and should function as a kind of "think tank" or "advisory committee" for internal displacement, providing technical advice to the different government institutions involved in the response to displacement. The review team suggests including a gender specialist in the new JTU." (UNHCR, 3 May 2003, p.7)

UN System launches Humanitarian Plan of Action (HPA) for IDPs (2003)

- The HPA is the first comprehensive step to create inter-agency strategic planning and facilitate complementariness among agencies to respond to the IDP crisis
- HPA launched in November 2002 is led by UNHCR and supported by OCHA and includes many NGOs, national and international bodies
- UN 12 agencies have projects in 25 of the 32 departments of Colombia and offices in 17 departments
- The PHA focuses on national institution-building, post-emergency and prevention
- In line with the Guiding Principles the HPA has five main components: 1) coordination and institutional building, 2) prevention and protection, 3) integration and socio-economic reconstruction, 4) attention in health education and social welfare and 5) food security
- The PHA intends to foster application of the international and national normative framework as policy formulation and operative action
- Based on vulnerability criteria 3 pilot areas were targeted for implementation: Magdalena Medio, Chocó and Valle del Cauca
- The PHA aims at increasing international field presence through sub-offices as well as expand activities with IDPs in urban areas
- The UN will double its budget to implement the PHA which has a total budget of US\$ 79,4 million for one year of which only US\$27 million had been received as of June 2003

" La comunidad internacional podrían destinar más recursos para soportar los esfuerzos del gobierno colombiano. Las Naciones Unidas ha elaborado una estrategia dirigida a aliviar los problemas de alimentación, salud, educación y necesidades de protección de los grupos vulnerables en el país, incluyendo los desplazados. Solicitamos USD\$80 millones para implementar el Plan de Acción Humanitaria y la comunidad de donantes ha proporcionado aproximadamente USD\$27 millones." (CODHES, 10 June 2003)

"Given the humanitarian crisis affecting Colombia, the Heads of Agency of the United Nations System, meeting in New York in October 2001, decided to request the UN country team to prepare a Humanitarian Plan of Action of the United Nations System (UN) in Colombia. The UN responsibility for designing the drafting of the Humanitarian Plan of Action (HPA) was assumed by the Thematic Group on Displacement (TGD), led by the United Nations High Commissioner for Refugees (UNHCR), with the support of the Office for the Coordination of Humanitarian Affairs (OCHA). Twelve agencies are part of the TGD: FAO, IOM, OCHA, OHCHR, PAHO- WHO, UNICEF, UNDP, UNFPA, UNHCR, UNIDO, UNIFEM and WFP.

SCOPE AND OBJECTIVE OF THE PLAN

Colombia's armed conflict is having a sustained impact on the civilian population. Internal forced displacement of the civilian population forced by armed groups is the most severe manifestation of this humanitarian crisis. For the UN the humanitarian crisis is circumscribed fundamentally to displacement, including communities that have already been displaced as well as communities at risk of displacement. For that reason, the HPA also will address the needs of populations that are affected by the internal armed conflict, but, are not covered in Law 387/97 and its Regulatory Decrees.

[...]

In his sense, the General Objective of the HPA is to contribute in insuring respect for and access to enjoyment of human rights, as well as the basic humanitarian principles of the population affected by the humanitarian crisis, mainly internally displaced, caused by the armed conflict.

HPA STRATEGY AND APPROACH

The Guiding Principles on Displacement emphasize the fact that the State has primary responsibility for promoting security, protection and assistance for persons displaced by violence. In this sense, the HPA

intends to foster a more effective application of the international and national normative framework as policy formulation and operative action. The HPA is aimed at strengthening the state institutions and the Rule of Law, related to the effects of the humanitarian crisis and victims of conflict. The UN response to the humanitarian crisis, through the HPA should be: flexible, integral, operative, concrete, visible and impartial and its implementation should be centered on a rights approach. The UN action intends to counteract those conditions that generate risks, particularly risk of displacement, and to mitigate conditions that generate vulnerability. For the plan to be viable, security for UN officials is an indispensable condition.

The HPA marks a qualitative leap in UN inter-agency work, it creates a strategic framework or joint planning and strengthens the complementarity of agencies. It also allows UN agencies to establish and agree upon criteria for prioritizing in geographical areas. UN action within the framework of the HPA is not centered on emergency attention or relief, but rather on the post-emergency, with a marked prevention approach.

[...]

The HPA implementation has been structured into five sectoral components to operate during the course of one year, namely: 1) Coordination and Institutional Strengthening [Principle 3]; 2) Prevention and Protection [Principle 5]; 3) Integration and Economic and Social Reconstruction [Principle 28]; 4) Attention in Health, Education and Social Welfare [Principles 19, 17, 23]; and 5) Food Security [Principle 18].

“Current Operations: Participants in the HAP: twelve UN Agencies and its partners, including many of NGOs coordinated within the groups Dial, Coordinación Colombia-Europa-Estados Unidos, and GOEC forum, among others, continue to provide assistance to approximately 2.9 million persons throughout the country. The UN in Colombia has activities and projects in 223 of the 1,099 municipalities comprising 25 of the 32 departments. In 2003, the various agencies have field offices in 17 departments. The UN response has focused mainly on national institution-building. Each agency's programs and projects are consistent with its own mandate and with bilateral agreements with the national counterparts. All UN Agencies participate in the Thematic Group on Internal Displacement (TGID) with the SSN, the ICRC and ECHO participating as observers. The Humanitarian Situation Room supports the TGID, and contributed information collected from UN agencies for the following update:

Coordination and Institution Building: The UN coordinated many of its recent projects with Colombian government actors. The Social Solidarity Network (SSN) has maintained its central coordinating role in humanitarian assistance for displaced persons under the new administration. A wide variety of UN projects are implemented with government agencies such as SSN, the Ombudsman's Office, the National Registry, the Departmental and Municipal Committees on Displacement. IOM has provided a series of rapid assistance offices for displaced persons in cities where that organization has offices. UNICEF was active in lobbying the national congress on legislation to promote the rights of children and adolescents in Colombia.

Prevention and Protection: Prevention and protection is one of the most important sectors of action for the UN due to the ongoing conflict in the country. Increased displacement has caused particular concern in eastern Antioquia, Catatumbo, Chocó, Cauca and the Sierra Nevada de Santa Marta. UN agencies have conducted missions to Arauca, Antioquia, Chocó and Catatumbo. The IOM, UNHCR and the National Registry have jointly held several registration campaigns in eastern Antioquia and Chocó, among other locations. UNICEF and UNHCR provided assistance in Panamá following a displacement from Chocó to that department. UNICEF and IOM have continued their programmes to prevent landmine accidents in several areas throughout the country.

The Ombudsman requested that the UN send a mission of the Special Rapporteur on the Situation of Human Rights and Fundamental Freedoms of Indigenous People due to the killing of 36 indigenous leaders over the course of 2003.

Integration and Reconstruction: The new government announced the goal of returning 300,000 displaced persons to their places of origin in the course of the year. The UN has been promoting a comprehensive and

sustainable approach including protection, local integration and voluntary returns. The UN has evaluated conditions for return and in some cases has assisted returned and relocated displaced persons. IOM is active in housing and income-generation projects in 9 departments in Colombia. UNHCR and OHCHR aid in monitoring conditions for return.

Health, Education and Family Welfare: [...] The UN Commission on Women and Child Refugees made a joint study evaluating the reproductive health situation of displaced persons in Colombia, and found that basic healthcare was not available and made a series of recommendations. A multiagency committee, made up of PAHO/WHO, IOM, the Social Solidarity Network (SSN), FISALUD (a public fiduciary fund), the Colombian Red Cross, ICRC, Doctors Without Borders, is attempting to address new deficiencies in health services related to access to health services for IDPs according to Circular No. 0042 of 2002 of the Ministry of Health. UNICEF and IOM have made important donations to schools in terms of supplies and infrastructure in departments such as Chocó, Córdoba and Caquetá, among other areas.

Food Security: The World Food Program registered a 30% increase in food delivered during the first three months of 2003. More than 10,000 persons participated in their Food for Work and training program, and tens of thousands more benefited from WFP community kitchen programs. The nutritional recovery program has covered more than 7,000 new cases, due to the increasing deterioration of conditions for IDPs, especially in the transition phase after displacement. The WFP is closely monitoring food security situations in six Departments with the implementation of a major new survey program that will identify food security needs of the displaced and vulnerable population. PAHO/WHO collaborated with WFP on several workshops related to food security. IOM has worked with WFP in Food for Work programs, which frequently are combined with housing construction efforts, training, basic sanitation construction, as well as in the construction of new community kitchens in depressed neighborhoods.” (OCHA, 3 June 2003)

[...]

The strategic emphasis of the Plan's components is on the transition between prevention, emergency and post-emergency. It is important to consider that humanitarian emergencies are not linear. Prevention, emergency and post-emergency phases occur simultaneously in different parts of the same country; besides, a single community can go through the three phases indistinctively. As mentioned earlier, the Government, the Red Cross Movement and ECHO, through their partners, are targeting their programmes primarily at emergency humanitarian assistance. To complement the activities of the State, the United Nations is focusing on the phase immediately following the emergency, by means of coordinated and complementary action carried out by its agencies within the Plan framework.

[...]

(1) Prioritization will be based on patterns of expulsion and reception of displaced persons by area (regions, municipalities, large urban centres) and receiving populations.

(2) Areas with populations at risk of displacement, i.e. populations which, inter alia, are the subject of threats, violations of human rights or of International Humanitarian Law, where armed elements are present and are exerting pressure or where there is evidence of illegal crop cultivation or execution of megaprojects. [...]

(3) Besieged, enclaved and isolated populations. Communities that are subject to movement restrictions by armed elements, economic blockades on medicines and foodstuffs, and areas where the State has no civilian presence. [...]

(4) Increased presence of United Nations projects or agencies on the ground.” (GTD, 29 November 2002, pp. 7; 17-18)

“In order to achieve the Plan's objectives, UN agencies will double resources being implemented in Colombia. The total amount for 2003 is 62 US\$ million.” (UNCT, 29 November 2002)

“In an effort to assist more than 2 million persons displaced by the on-going armed conflict in Colombia, on 18 February 2003, the United Nations presented donors with a Humanitarian Action Plan (HAP) with a

total budget of USD 79,4 million for one year. Of this amount, USD 48,9 million is still to be raised.” (OCHA, 21 February 2003)

To access the full Humanitarian Plan of Action click here [[External Link](#)]

To access multi-agency response activities for IDPs by department click on the [[UN Humanitarian Situation Room - Colombia Report October 2003](#)] by the UNCTC

To access multi-agency response activities for IDPs by department click on the [[UN Humanitarian Situation Room - Colombia Report September 2003](#)] by the UNCTC

To access multi-agency response activities for IDPs by department click on the [[UN Humanitarian Situation Room - Colombia Report August 2003](#)] by the UNCTC

To access multi-agency response activities for IDPs by department click on the [[UN Humanitarian Situation Room - Colombia Report July 2003](#)] by the UNCTC

To access multi-agency response activities for IDPs by department click on the [[UN Humanitarian Situation Room - Colombia Report April 2003](#)] by the UNCTC

IDPs in Magdalena Medio assisted through Pilot Project of the Humanitarian Action Plan (2002-03)

- 39,857 people expelled and 22,908 people entered the Magdalena Medio as of 15 October 2002
- TGID led by UNHCR to prepare a diagnosis of displacement in the region
- UNHCR to organize registration campaign for communities at risk with the national Registry and implement land protection programme
- IOM and UNHCR to strengthen the National System of Comprehensive Assistance to Displaced People (NSCADP)
- UNFPA to integrate in its projects preventive mechanisms against sexual violence against women and against the spread to STDs and HIV/AIDS
- UNDP and UNHCHR to strengthen Early Warning System of the Office of the Ombudsman
- UNICEF to prevent recruitment of minors and expand vaccination and Immunization programs
- UNFPA and UNICEF to create a regional hospital reference network for IDPs in need of medical assistance
- WFP to develop mechanisms to evaluate food security in Magdalena Medio

“Magdalena Medio is located along the Magdalena River in northern Colombia, and includes 5 departments and 30 municipalities spread over 30,000 km², 800,000 persons inhabit the region. Other than the key cities of Barrancabermeja, Santander and Aguachica, César, the area is predominantly rural. The region has a strong presence of all major armed actors, a 70% poverty rate and an increasing presence of illicit coca crops. As of 15 October 2002, there have been 39,857 persons expelled from the region and 22,908 received within the region, with large net expulsions from Bolívar and César departments. The municipalities most impacted by displacement are San Pablo, Barrancabermeja and Santa Rosa. The region has faced an increase in the presence of armed actors during the past year, accompanied by an increase in kidnappings and extortion.

The Humanitarian Plan of Action (HAP) for Magdalena Medio is a local plan. The Plan, much like the national HAP, seeks to guarantee respect for, access to and exercise of human rights and humanitarian principles for those impacted by the humanitarian crisis, particularly internally displaced persons (IDP). It does this through strengthening State institutions and guaranteeing United Nations System (UN) flexibility. The regional HAP uses the same national strategy for accomplishing these goals by coordinating the UN in accomplishing the HAP’s 5 components, with bridges between bilateral and multilateral resources to be

made during the second stage in 2003. As per the national HAP, the regional HAP has prioritized communities that are receptors/expulsors, at risk, and isolated, blocked or besieged.

Stage I: Ongoing Pilot Projects, end 2002-beginning 2003

At present, there are 14 projects in march within the five sectoral components of the Humanitarian Action Plan for the region. These projects are led by four agencies based in Magdalena Medio (MM): UNHCR, IOM, UNDP and WFP, with substantial assistance from 3 UN agencies with programs on the ground in the region, UNHCHR, UNFPA and UNICEF. The components of the HAP are Coordination and Institution Building, Prevention and Protection, Integration and Reconstruction, Health, Education and Family Welfare, and Food Security.

Coordination and Institution Building is addressed with 4 projects designed to strengthen the capacity of institutions to respond to the humanitarian crisis by optimizing coordination between the UN and State and other actors, with an emphasis on strengthening local actors and increasing civic participation. The UN coordination is increased by means of a local TGID, led by UNHCR, which will prepare a diagnosis of internally displaced persons in the region, help prepare the local HAP and conduct regional observatories. IOM and UNHCR will work to strengthen the National System of Comprehensive Assistance to the Displaced (NSCADP) by developing an interagency strategy for Community IDP centers of attention, which have lacked coordination in the past. UNDP will construct an Interagency Documentation Center based on UNHCR and UN IDP data, with pertinent literature to be consulted by NSCADP among others, with a cycle of conferences, debates and forums contemplated for 2003. UNHCR will develop an interagency strategy for community strengthening, including an impact study of community work allowing for a diagnosis to be made in 2003 that will improve interagency strategies. IOM and UNDP will aid this project in Bucaramanga.

Prevention and Protection projects work to strengthen the capacity of the State to protect IDPs and prevent displacement in at risk communities. In order to support efforts to limit the vulnerability of at risk populations, UNHCR will organize a registration campaign for at risk communities using *ad hoc* registers, permitted under accords signed with the national Registry. An initial pilot project begun in 2001 and led by UNHCR will be expanded in the at risk populations of las Minas (Santa Rosa and Morales municipalities). UNHCR, with the aid of UNHCHR, will organize humanitarian commissions and interagency visits in order to evaluate and make recommendations on the situation of at risk communities, for example Catatumbo, with the help of the Social Solidarity Network (SSN). A working mechanism, managed by UNHCHR, to transmit information on personnel security to the UN in order to take advantage of that agency's capacity and experience in the area.

Integration and Reconstruction projects will attempt to create a medium term strategy to attend to IDP needs from emergency to longer term social and economic integration, with consideration for environmental sustainability and coordination with State and NGO actors. Local planning processes and social investments will be made in coordination with national and regional authorities. *Alianza por Río Viejo*, within Río Viejo municipality, is a model project to promote the return of internally displaced persons in a high risk zone of MM, coordinating UN projects and large EU investments to be made in 2003, under leadership from UNHCR. A rice project in Carmen del Cucu (San Pablo), begun by the SSN, is a model project for disperse UN action, led by UNHCR and IOM, with contributions from the WFP.

Health, Education and Family Welfare projects are designed to improve the attention provided by national, regional and local authorities in these 3 areas to internally displaced persons. As part of an effort to develop an integral plan for health and sickness prevention, with basic attention to groups impacted by the violence, IOM will lead a project to analyze programs in the area of psychosocial attention in order to help improve responses and coordinate agency work within this health area. UNFPA will lead an effort to incorporate pre-designed prevention and attention models for gender, sexual and domestic violence into current programs directed towards people impacted by violence, especially IDP's. By 2003, the results will have applications throughout the UN in programs directed towards IDP's, education, children and women. In order to strengthen local education capacity and improve response to education demand, UNHCR will

lead a coordinated program to establish a rural secondary school in San Pablo, with important assistance from IOM, the parish of San Pablo and the community of Canaletal.

Food Security projects aim to promote attention and humanitarian assistance in communities without regular access to services and supplies. WFP will develop a complementary plan for UN agencies managing WFP projects. In addition, WFP will create a pilot program of food security kits, beginning with at risk populations in Micoahumado and Catatumbo.

Stage II: Projects 2003

There are 17 projects planned to begin or to be continued within the MM HAP for 2003.

Coordination and Institution Building will include four projects. These are the continuation of the NSCADP strengthening project led by UNHCR and IOM; conferences, forums and debates related to the Interagency Documentation Center to be managed by UNDP; and a UNHCR project to diagnose IDP community relations, with attention to special populations.

Protection and Prevention will include 3 projects. UNDP and UNHCRHR will strengthen the Early Warning System of the Ombudsman's office in the region; UNHCR will implement a land protection program, and UNICEF will be in charge of an interagency campaign to prevent the recruitment of minors into the armed conflict and to prevent APM accidents.

Integration and Reconstruction efforts will be supported by 5 projects. UNDP will integrate internally displaced persons into the Barrancabermeja municipal project *Ciudadela Educativa*; UNHCR will support the ACADEY integral farm project in Yondó; UNDP and IOM will work together to provide technical assistance in formulation, development, execution and monitoring of projects; UNDP will strengthen regional integration networks, and UNHCR will be responsible for the creation of a mechanism of coordination and articulation between the Peace Laboratory and the HAP.

The **Health, Education and Family Welfare** component of the MM HAP includes 5 projects. UNICEF will work to expand its vaccination and cold chain project within the Expanded Immunization Program as well as implement integral attention for infant sicknesses. UNFPA will focus on strengthening institutional capacity for prevention, attention and rehabilitation of persons with STD's, particularly HIV/AIDS. UNFPA and UNICEF will combine efforts to create a regional hospital reference network to aid in the resolution of IDP health problems. UNFPA has plans to create attention modules for victims of sexual and gender violence.

Two projects to be launched within the **Food Security** component of the HAP for MM are for WFP to develop a mechanism for the evaluation of the food situation and to strengthen ICBF." (GTD, 29 November 2002, Pilot MM)

UNHCR assistance to IDPs in Chocó pilot region for implementing the HPA (Mar 2003)

- Quibdó town hosts the largest displaced population relative to its size in the most remote and poorest department of Chocó
- UNHCR has financed construction of a cultural centre for displaced youth who otherwise are prey to forced recruitment
- 7,000 people benefited from 6 UNHCR documentation campaigns during 2002
- 850 families will benefit from a fishing project
- UNHCR accompanied the return of displaced people to Chocó

“For years, irregular armed groups, guerrillas and paramilitaries have waged a war over this waterway, fighting to control the most important route for the trafficking of arms, drugs and contraband in north-western Colombia.

[...]

The Chocó region is considered the poorest and one of the most remote in the country. And of all the cities in Colombia, Quibdó has the sad privilege of hosting the largest proportion of internally displaced persons (IDPs) relative to its size.

[...]

The Chocó region has been chosen as one of the first to benefit from the inter-agency initiative, the Humanitarian Action Plan.

On March 20, the various UN agencies working in the region brought Colombian government representatives, local authorities and officials from eight donor governments to Quibdó to see the humanitarian plan at work on the ground. Local, national and international non-governmental organisations (NGOs) also joined the visit.

The officials visited several projects under the Humanitarian Action Plan, including La Gloria urban school in the Barrio Obrero, a working-class district of Quibdó. Most of the 15,000 inhabitants are IDPs. UNHCR, in co-ordination with the UN Children's Fund (UNICEF) and the Catholic dioceses of Quibdó, will implement a Pedagogy and Protection project that will benefit 1,200 children. The project trains teachers on the specific needs of displaced children and strengthens schools and parent associations helping these children. UNHCR will also contribute to the construction of two new schoolrooms this year.

For the displaced children and youth in Quibdó, integrating in school isn't the only challenge. They also face the risk of being recruited by irregular armed groups. To help provide activities and a sense of community for young people, the refugee agency has financed the construction of a cultural centre for displaced youth, some of whom helped to build the centre.

Another serious problem affecting many of the displaced people and those at risk of displacement in the region is the lack of identity documents. In 2002, UNHCR financed six documentation campaigns in Chocó that reached over 7,000 people.

Other ongoing projects in the region include a fishing project that benefits 850 families, for which the refugee agency helped to link up the communities with funding sources and contributed outboard motors for the fishing boats.

When displaced communities are eventually able to return home, UNHCR accompanies them and follows up on their wellbeing after their return. In 2002, the agency participated in various return movements of displaced people to their homes in Chocó, in co-ordination with local authorities, the church, the communities and other UN agencies.” (UNHCR, 31 March 2003)

UNHCR planned activities for IDPs in Colombia (2003)

- UNHCR core mandate is to strengthen national institutions to enhance IDP protection
- UNHCR 4 core activities, are strengthening institutional framework, protection and prevention, durable solutions return and relocation and coordination, advocacy and dissemination
- UNHCR budget for IDPs in 2003 is US\$5,772,993 and as of June 2003 only US\$1,962,055 had been received
- UNHCR focuses on state and civil society institutional strengthening and capacity-building notably by training Ombudsmen

- UNHCR is also active in documentation and registration activities for IDPs in Antioquia, Bolívar, Boyacá, Amazonas, Cauca, Cesar, Chocó, Córdoba, Cundinamarca, Magdalena, Nariño, Norte de Santander, Putumayo, Santander, and Valle del Cauca
- UNHCR supports programs of return and resettlement, humanitarian assistance and monitoring with focus on communities at risk of displacement

“Main Issues of concern regarding Internally Displaced Persons

- There is no comprehensive prevention policy on the part of the Government. Also, there is a lack of progress in bringing to justice those responsible for the displacement.
- Despite the improved coverage provided by the Single Registration System (SUR) and emergency humanitarian assistance, obstacles for IDPs access to state programmes and to finding lasting solutions persist. IDPs still face difficulties in exercising their economic, social and cultural rights.
- Deficiencies in the documentation of the displaced population continue to exist (national ID cards, birth certificates, military service registration), which affects the IDPs’ access to assistance as established by the law.
- The state programmes do not provide an adequate transition between the emergency phase of displacement and the post emergency socio-economic stabilisation phase.
- The number of traumatised children is alarming and psycho-social support is limited. Displaced children face serious obstacles in continuing their education once displaced by the conflict, despite national legislation facilitating their integration into the schools of the host communities.

[...]

UNHCR operations with IDPs will be framed within the HAP. Based on the above premises, the main programme goal of UNHCR’s operations in favour of Colombian IDPs is:

- To promote a co-ordinated and overall response to the IDP crisis, in order to reinforce protection and assistance for displaced populations and to foster viable solutions, taking into account the needs of specific population groups.

UNHCR’s response to the humanitarian crisis in Colombia is based on a comprehensive regional approach aimed at both protection and solutions for IDPs, and at strengthening international protection of Colombians in neighbouring countries, which includes, in co-ordination with the UNHCR Offices in Venezuela and Ecuador, information on population movements and contingency plans for critical border areas. The four main strategic lines for UNHCR’s IDP programme are:

- i) Institutional Strengthening by promoting an effective, integrated State and civil society response to address the consequences of internal displacement;
- ii) Prevention and Protection by reinforcing and applying the legal framework for IDPs in accordance with international legal standards;
- iii) Solutions and Integration by fostering the socio-economic stabilisation of IDPs in the receiving communities and supporting viable return processes (re-establishment phase), by facilitating the unhindered access of IDPs to basic services and ensuring that IDPs have the same rights and obligations as other Colombian nationals; and
- iv) Co-ordination by contributing to humanitarian initiatives in favour of IDPs through international co-operation and effective co-ordination (on behalf of the UN system), ensuring sufficient attention for the IDP crisis.

UNHCR’s 2003 budget for Protection and Assistance to IDPs: USD 5,772,993 (operational budget for IDPs: USD 3,400,900; administrative budget, incl. Administrative costs related to assistance to refugees: USD 2,372,093).

Earmarked contributions received in 2003 (in USD, as of 12/06/03):

USA 1,500,000

España con ACNUR 176,569

Private Donors Italy 285,486

TOTAL 1,962,055” (UNHCR, 1 July 2003)

“ACNUR está desarrollando proyectos en los sectores de prevención, protección y defensa de DDHH siendo este el sector principal de su intervención. Le sigue, siguiéndole los de fortalecimiento institucional, integración y reconstrucción, educación y capacitación, salud y seguridad alimentaria.

Las actividades que se realizan son las siguientes: promoción y difusión, atención psicosocial y educativa, apoyo a mujeres desplazadas, fortalecimiento institucional, desarrollo comunitario de asociaciones de desplazados e indígenas y apoyo de procesos de retorno y de reasentamiento, asistencia humanitaria y monitoreo de fronteras. Estas actividades benefician especialmente a la población en riesgo de desplazamiento, población desplazada y la población que se encuentra en procesos de reubicación y retorno. En cuanto al enfoque diferencial se dirige a la niñez desplazada, mujeres desplazadas, asociaciones de desplazados y comunidades indígenas y afro colombiana.

[...]

De otra parte ACNUR cuenta con proyectos de ámbito nacional: fortalecimiento institucional, documentación de población desplazada y capacitación a personeros. El proyecto de ACNUR sobre las campañas de documentación y registro civil, se está desarrollando en Antioquia, Bolívar, Boyacá, Amazonas, Cauca, Cesar, Chocó, Córdoba, Cundinamarca, Magdalena, Nariño, Norte de Santander, Putumayo, Santander, y Valle del Cauca. » (GTD, 23 November 2002, p.40)

See full text of the [Memorandum of Intention \(MOI\)](#) [[Internal link](#)]

Overview of UNHCR response to IDPs in 2003

- UNHCR helps the National Indigenous Organisation to monitor displacement of indigenous people
- UNHCR’s representative in Colombia launched a ‘humanitarian alliance’ for IDPs at the World Social Forum in June 2003
- UNHCR in partnership with the Ombudsman’s Office established free legal aid centres for IDPs in response to lack of access to information, effective administrative responses to legal problems faced by IDPs
- UNHCR in coordination with the National Registrar provided 60,000 displaced people with ID cards, to facilitate their access to basic services
- UNHCR deployed mobile emergency registration Units to newly displaced people and priority is given to indigenous and Afro-Colombian people
- IDPs without documents cannot access government assistance neither public services

“UNHCR is helping ONIC [National Indigenous Organisation of Colombia] and other indigenous peoples’ organisations in Colombia to monitor the situation of indigenous groups in the country. We are also involved in public dissemination of existing laws and regulations which protect indigenous peoples and Internally Displaced Persons (IDPs)-- one way of ensuring that at least some of these laws are known and respected.” (UNHCR, 8 August 2003)

“El Alto Comisionado de la ONU para los Refugiados (ACNUR) ha lanzado una alianza humanitaria en favor de los más de tres millones de desplazados por el conflicto en Colombia y ha hecho un llamamiento a Comunidad Internacional por "la indiferencia ante esta realidad".

La iniciativa fue presentada por el representante de ACNUR en Colombia, Francisco Galindo, -con motivo del Día Mundial del Refugiado, que se conmemora el 20 de junio- quien anunció "la creación de una mesa informal en la que participen diversos sectores de Colombia y de la comunidad internacional".

[...]

Galindo presentó la propuesta de alianza en la ciudad caribeña de Cartagena, donde se reúne desde el pasado lunes hasta el 20 de junio el Foro Social Mundial Temático (FSMT), con la participación de 3.000 expertos y delegados de grupos sociales de América y Europa.

En este foro, invitó a todos los colombianos "a forjar una amplia alianza humanitaria", que ayude a aliviar la dureza del día a día de "las personas desplazadas, en riesgo de desplazamiento y las comunidades bloqueadas". » (UNHCR, 19 June 2003)

"Inadequate access to information and lack of effective administrative responses to the legal problems faced by IDPs (i.e. documentation, registration, land restitution, lost property) is perceived as one of the major obstacles to effective protection. In this regard the initiative to establish a network of free legal aid centres for IDPs in partnership with the Ombudsman's office and universities (in Pasto) is a good strategy to enhance UNHCR's protection and outreach capacity, in particular for women and ethnic minorities. The university courses on internal displacement ("*Diplomado*") have also been well received. UNHCR also has a partnership with ILSA (who manages the secretariat of the "*Mesa Mujer y Conflicto*", where 22 agencies including all UN agencies participate) to provide follow up on the recommendations made by the Special Rapporteur on Violence Against Women after her last mission to Colombia." (UNHCR, 3 May 2003, p.10)

Documentation campaign

"UNHCR has worked with the Colombian registry office to provide IDPs with documentation. So far, some 60,000 IDPs have received ID cards (*cedulas*) through UNHCR-funded documentation campaigns. This project has been well received by IDPs. Many IDPs never had ID cards in their places of origin but these are now indispensable to obtaining access to basic services. The project has set as a priority the registration and documentation of Afro-Colombian and indigenous populations, in particular women and girls, through sensitization campaigns and training of local officials." (UNHCR, 3 May 2003, p.9-10)

"Last weekend, the mobile registration unit provided by UNHCR to the Colombian National Registrar arrived in San Francisco, Colombia, some 115 km from the country's second largest city, Medellín, to carry out an emergency documentation campaign for recently displaced people.

Apart from emergency aid and shelter, displaced people need identification documents in order to exercise their rights and to receive the necessary assistance from the authorities. Since most displaced persons lack these documents, UNHCR and the Departmental Committee for Displaced Persons initiated the emergency documentation campaign. To date, 700 ID cards have been issued. A total of 2,000 people, including local residents, will benefit from this campaign. The campaign comes in the wake of major displacement to San Francisco from the surrounding countryside. Heavy fighting between Colombian guerrillas and paramilitary groups has sent all of the area's rural population into the town of San Francisco. Some 1,300 persons, mostly subsistence farmers, have fled the countryside, doubling the town's population.

This is the second emergency documentation campaign organised by the National Registrar and UNHCR in Colombia. The first took place when thousands of people fled the Atrato River region after the massacre of 119 people at a church in Bojaya nearly a year ago. For some people, particularly subsistence farmers, never having received documentation was not a practical problem. Now that they are displaced, however, they need the documents to get government help and services. The mobile unit, provided and equipped by UNHCR, carries out the necessary collection of personal data and takes the photos to be used on the cards. The required blood typing is being carried out at the municipal hospital with support from UNICEF." (UNHCR, 11 April 2003)

WFP plays central role for IDP food security in 12 departments (2003)

- WFP supports the Relief and Recovery Operation for IDPs with a budget worth more than 20 million US\$
- WFP strongest presence is in Córdoba y Antioquia, seguidos por Bolívar, Bogotá, Sucre, Cundinamarca and Magdalena.
- WFP activities for IDPs range from school canteens, nutritional attention to pregnant and lactating mothers and emergency food for mass displacements
- 170,000 IDPs benefited from WFP assistance during 2002
- 273,000 IDPs benefited from WFP assistance between 2000-02 with 6,300 tonnes of food baskets
- WFP plans to extend its target to 375,000 IDPs including 140,000 children in school and pre-school age
- WFP program in Colombia will require an investment worth \$26 million for 2003-2006
- IDPs remain in dire need of food aid during 2 to 3 years following displacement according to WFP Colombia representative
- WFP representative warned funds will be exhausted in April 2003 and that demand for nutritional durable solutions overwhelms resources available

“WFP currently serves 180,600 displaced people in Colombia in more than 120 communities, including the smallest villages and the largest cities. WFP has been assisting displaced persons in Colombia since July 2000 through school feeding programs for children, food-for-work programs for adults and assistance for pregnant and lactating mothers.

The aim of WFP assistance is to not only satisfy the immediate food needs of the displaced, but to encourage children to attend school, and provide displaced persons with the necessary food so that they can participate in productive and skills-development activities.

WFP has been working with vulnerable communities in Colombia since 1969. WFP provides food assistance in Colombia's 13 most conflict-prone provinces.” (USDOS, 13 January 2003)

« El PMA apoya la Operación de Socorro y Recuperación “Asistencia a Personas desplazadas por la violencia en Colombia”, con una inversión que sobrepasa los 20 millones de dólares aportados por partes iguales entre el Gobierno y el PMA como apoyo a la PDV en los procesos de restablecimiento (retorno y reubicación), asentamientos temporales y complementación alimentaria dirigida a mujeres gestantes lactantes y niños y niñas.

El PMA está presente en los departamentos de Antioquia, Atlántico, Bolívar, Cesar, Chocó, Córdoba, Cundinamarca, Guajira, Magdalena, Norte de Santander, Santander y Sucre, con un total de 12 departamentos y Bogotá. De éstos, en donde mayor presencia tiene del PMA son Córdoba y Antioquia, seguidos por Bolívar, Bogotá, Sucre, Cundinamarca y Magdalena.

De la misma manera el PMA actúa principalmente en el sector de seguridad alimentaria, pero también lo hace en los de educación y capacitación, integración y reconstrucción y salud. En estos departamentos se desarrollan actividades dirigidas especialmente a la recuperación nutricional, atención escolar a niños (as) de primaria, alimentos por trabajo y por capacitación en proyectos de restablecimiento, atención a madres gestantes, lactantes y niños (as) menores de dos años, atención alimentaria de socorro en situaciones de desplazamiento masivo, atención a niños (as) en edad preescolar y cocinas comunitarias. Todas estas actividades se han tratado de definir sobre la base de un enfoque diferencial a estas poblaciones.” (GTD, 23 November 2002, p. 41)

“A 170.000 asciende el número de personas desplazadas por la violencia que hoy en día son atendidos por el Programa Mundial de Alimentos a través de su Operación Prolongada de Socorro y Recuperación (OPSR), en 12 departamentos de Colombia. Los beneficiarios reciben asistencia a través de los programas de alimentación escolar y preescolar, madres gestantes y mujeres lactantes, alimentos por trabajo, recuperación nutricional y cocinas comunitarias.

Durante los 2 años de vigencia que tiene la Operación, el PMA ha atendido a un total de 273.000 desplazados con más de 6.300 toneladas de productos de la canasta básica (compuesta por arroz, leguminosas, aceite y panela). Para mediados del próximo año, época en la que se tiene prevista la finalización de este proyecto, la agencia de Naciones Unidas consolidará una inversión de 9.5 millones de dólares con aportes del gobierno nacional del orden de los 11 millones de dólares.

A pesar de la gran magnitud de la operación que desarrolla en el país y dado el incremento del desplazamiento en Colombia, el Programa Mundial de Alimentos tiene la intención de ampliar su cobertura de asistencia a 375.000 personas adicionales a partir del próximo año, para lo cual requiere de una inversión de \$ 26 millones de dólares durante los próximos 3 años (Enero 2003-2006).

"Cuando el PMA dio inicio a su Operación, se esperaba que una tercera parte de los desplazados necesitaría ayuda alimentaria, dos años después, la experiencia nos ha demostrado que la gran mayoría de ellos, si no todos, la necesita por un periodo que oscila entre los 2 y 3 años, por lo tanto, deseamos incrementar el número de beneficiarios para el próximo año", anuncia Els Kocken, representante de la agencia en Colombia.

Como una estrategia para fortalecer la atención a las familias desplazadas que viven en condiciones de emergencia alimentaria, el PMA buscará fortalecer sus programas de alimentación complementaria con la atención a 140.000 niños en edad escolar y preescolar. "Se ha comprobado que alimentar a los niños en la escuela es altamente eficaz, no solo por que mitiga el hambre inmediata y mantiene al niño en la escuela, sino por que se constituye en un instrumento que visibiliza la presencia internacional y ofrece asistencia de largo plazo para el desarrollo de los niños que han sido afectados por el conflicto", afirma la directora del PMA en Colombia.

La demanda de ayuda alimentaria para soluciones duraderas es mayor que los recursos disponibles y los fondos de la Operación estarán totalmente agotados en Abril del próximo año. A este factor se debe añadir que las familias desplazadas consideran insuficiente el tiempo durante el cual reciben la asistencia del PMA, a través de los alimentos por trabajo y por capacitación, toda vez que no les ofrece nuevas formas de supervivencia y un modo de ganarse la vida que les genere ingresos económicos a largo plazo.” (WFP, 15 October 2002)

WHO attention to IDPs through the Disaster Health Project and Complex Emergencies (2003)

- WHO disseminate decrees about the rights of IDPs to health care in various departments (2003)
- WHO opens a technical cooperation office in Pasto (Nariño) in support of health provision to IDPs
- WHO operates through the Program of Country Cooperation in Antioquia, Bolívar, Córdoba, Santander and Valle del Cauca
- WHO activities benefiting IDPs focus on water and sanitation, institutional-building and training in emergency response

“The PAHO/WHO, the Ministry of Social Welfare and the local authorities of each Department are promoting the knowledge, divulging and application of Decrees 2131 and 2287 of 2003, which establish

regulations for medical care top be provided by the State to the displaced population. This activity is being conducted in Antioquia, Bolívar, Cundinamarca, Nariño, Santander, and Valle del Cauca.” (UNCTC, 1 September 2003)

“**Pasto:** The Regional PAHO/WHO Office opened a technical cooperation office in Pasto to support institutional strengthening of the health sector, and to provide health care to the vulnerable displaced population. Nariño is one of the Departments that receives the largest number of displaced persons due to its geographical border location.” (UNCTC, 30 August 2003)

“La OPS-PMS ejerce presencia nacional a través del Programa de Cooperación País y en los departamentos de Antioquia, Bolívar, Córdoba, Santander y Valle del Cauca, mediante el Proyecto Salud en Desastres y Emergencias Complejas.

El Proyecto Salud en Desastres y Emergencias Complejas es un proyecto de cooperación técnica que dispone de oficinas de terreno en las capitales de los departamentos arriba mencionados, a saber, Medellín, Cartagena, Bucaramanga, Cali y Montería. La presencia responde a los grandes centros urbanos receptores de población desplazada con perspectivas de expandir el proyecto a Cundinamarca y Nariño, dependiendo de la disponibilidad de fondos.

Las actividades que se desarrollan tanto en el Programa de Cooperación País como en el Proyecto Salud en Desastres y emergencias Complejas van dirigidas hacia la salud, agua y saneamiento, fortalecimiento institucional, sistemas de formación, capacitación y apoyo a respuesta a emergencias.

Los beneficiarios primarios son diferentes instituciones como ONGs, la Iglesia, autoridades locales y otras agencias del sistema. Diferencialmente, el Programa de Cooperación País beneficia a la población general de Colombia, incluida la desplazada, y el Proyecto Salud en Desastres y emergencias Complejas beneficia a la población desplazada y vulnerable.” (GTD, 23 November 2002, p.42)

Overview of UNICEF activities for IDPs (2002)

- Since 1996 UNICEF has implemented humanitarian assistance for IDPs in Colombia
- 90,000 displaced and traumatized children received psychological rehabilitation and 1,600 adolescents were trained as play therapists between 1996-2002
- Since 2001 UNICEF expanded its programmes for IDPs to cover basic health, pre/primary education in Meta, Caquetá, Putumayo and Córdoba
- In 2002 UNICEF further expanded humanitarian action in Cauca, Nariño, and Chocó where conflict and displacement dramatically increased
- UNICEF requirements for 2003 amount to US\$3 million
- UNICEF operates its program of Prevention, Protection and Humanitarian Assistance in Antioquia, Bolívar, Caquetá, Córdoba, Meta, Putumayo, Urabá Antioqueño y Urabá Choco and Valle del Cauca
- UNICEF main area of attention is education and training
- UNICEF is actively working with IDP children and teenagers in areas of education, psychoaffective support, health and soup kitchen
- UNICEF works with the following counterparts: Pastoral Social, Cáritas, MSF, Médecins du Monde, ICRC, the Colombian Red Cross

“Colombia has a population of 42 million, with 16 million children under 18 years of age. An estimated 55% of the population, 18 million people including 6.5 million children, lived in poverty in 2001.

Experience has shown that the country is also vulnerable to natural disasters, including earthquakes, floods and volcanic eruptions. The most affected by poverty and social exclusion are the 81 Indian tribes and the Afro-Colombian population (constituting 2% and 7% of the total population respectively), and is also the same population which has been forcefully displaced in the country as a consequence of the armed conflict.

[...]

Psychosocial rehabilitation

Since 1996, UNICEF has implemented innovative humanitarian interventions in areas severely affected by the armed conflict where security concerns and tensions limit the action of local governments and civil society. The major focus has been on internally displaced families and on providing psychosocial rehabilitation to traumatized children and adolescents in partnership with the Catholic Church. Some 1,600 adolescents have been trained as play therapists and, under the guidance of psychologists, have supported the psychosocial rehabilitation of 90,000 children between 1996 and 2002. Support for emotional and psychosocial well-being is crucial in the first phases of the response to any humanitarian crisis.

[...]

Basic health and education

Continuing the intensified action undertaken since 2001, when work was expanded to basic health and education beyond psychosocial recovery, the programme has continued to target forcefully displaced communities in the revitalization of primary health care services and pre-primary and primary schools in the Provinces of Meta, Caquetá, Putumayo and Córdoba. Since the second half of 2002, humanitarian action has been expanded to the departments of Cauca, Nariño and Chocó, where conflict and displacement have grown dramatically in the last two years. The integrated assistance provided in 2002 has reached 22,000 children in communities in 22 municipalities seriously affected by the violence and destruction caused by the conflict. Overall, the Social Pastorate has remained the main partner. Meanwhile, the alliance with departmental governments in action carried out in Cauca and Nariño has been very significant and built upon the positive experience UNICEF has developed in Cupertino since the early 1990s in the promotion of child rights oriented good governance. Significant financial commitments have been made by departmental and municipal governments in the area of physical improvement of schools and health centres in the areas most affected by displacement, and in fully funding the recruitment of new teachers and health workers.

[...]

To support its humanitarian interventions for the affected children and women in Colombia during 2003, UNICEF outlined a requirement of US\$ 3 million. To date, very limited funds have been received to support the planned interventions.” (UNICEF, 18 February 2003)

“UNICEF dentro de su programa “ Prevención, Protección y Asistencia Humanitaria”, ejecuta tres proyectos, los cuales se desarrollan en Antioquia, Bolívar, Caquetá, Córdoba, Meta, Putumayo, Urabá Antioqueño y Urabá Chocoano y Valle del Cauca. Tiene también un proyecto que ejecuta a nivel nacional respondiendo a atención humanitaria en el municipio donde ocurra una emergencia.

Actúa en el sector de Educación y Capacitación principalmente, pero también lo hace en el de prevención y protección, y salud. Dentro de estos sectores realiza las actividades de atención integral en educación y salud a la niñez y adolescentes desplazados incluyendo: recuperación psicoafectiva, atención primaria de salud, desarrollo infantil, apoyo a la educación, protección especial y asistencia escolar, fortalecimiento al desarrollo comunitario de asociaciones de desplazados, fortalecimiento institucional, apoyo a la escolarización de los niños (as), y Ollas comunitarias.

UNICEF trabaja en coordinación con ONGs como Cáritas, Médicos sin Fronteras, Médicos del Mundo, también con el CICR, la Cruz Roja Colombiana y entidades municipales. Su contraparte son las Diócesis de cada departamento y sus beneficiarios son la población desplazada, la población receptora, los indígenas y los afrocolombianos.” (GTD, 23 November 2002, p.44)

Follow up on the mission of the OHCHR following the May 2002 displacements in Bojayá Chocó (2003)

- The OHCHR reports that the state did not comply satisfactorily with the recommendations made in May 2002
- In Chocó, the situation of security has deteriorated since May 2002 and many municipalities lack state presence
- In May 2002 about 119 people were killed by a bomb thrown by FARC, in the church of Bojayá Chocó About 7,655 people who fled the conflict involving paramilitary and guerrillas were assisted by the government between May and August 2002
- Many IDPs returned spontaneously due to economic difficulties encountered in the city of Quibdó where they took refuge and the 1,000 IDPs who remained are without assistance since August 2002 (June 2003)
- Government developed a reconstruction project for the people of Bojayá however, the integrity of the funds necessary had not been disbursed due to heavy bureaucratic processes
- The promised resettlement of the Bojayá village to a zone less prompt to inundations had still not materialised as of June 2003, partly due to the change of government
- About 250 paramilitaries established presence in Bellavista late April 2002 passing several army check points without impediments and threatened the civilian population
- The people of Bellavista requested paramilitaries and FARC to withdraw from their village
- Early warnings sent by the OHCHR to the authorities were discredited as 'rumours' to gain access to humanitarian assistance

" El presente informe contiene la evaluación elaborada por la Oficina en Colombia del Alto Comisionado de las Naciones Unidas para los Derechos Humanos sobre la situación en la región del Medio Atrato (departamento del Chocó) y, en particular, del grado de cumplimiento por parte del Estado de las recomendaciones que la Oficina formuló en el informe publicado el 20 de mayo de 2002, a raíz de los trágicos hechos ocurridos en Bojayá (Chocó) el 2 de mayo del mismo año.

[...]

La situación que en materia de seguridad afronta el departamento del Chocó continúa siendo preocupante. A ella contribuyen, de modo significativo, dos factores. El primero es el de la degradación del conflicto armado. El segundo, el del insatisfactorio cumplimiento que allí da el Estado a sus obligaciones internacionales y constitucionales de garantizar, sin discriminación alguna, el ejercicio de los derechos económicos, sociales y culturales, y de adoptar, hasta el máximo de los recursos disponibles, medidas para lograr progresivamente la plena efectividad de esos derechos.

[...]

Los actores armados ilegales se disputan el control de corredores estratégicos para su movilización y para el tráfico y el tránsito de armas y drogas. En los últimos años, el establecimiento de cultivos ilícitos en algunas zonas ha agravado dentro de ellas los niveles de violencia.

[...]

De acuerdo con los datos de la Red de Solidaridad Social (RSS), el 15 de junio de 2002 llegaba a 5.771 el número de personas en condición de desplazamiento registradas en Quibdó. Sin embargo, parte de los habitantes de los lugares afectados en aquella época por actos de violencia, entre ellos los miembros de las comunidades indígenas, decidieron permanecer en sus lugares de habitación. La RSS señala que entre los meses de mayo y agosto de 2002 proporcionó atención de emergencia a 7.655 personas desplazadas [...]

[...]

En los meses que siguieron, principalmente por la falta de fuentes de trabajo y por las dificultades económicas encontradas en el sitio receptor (la ciudad de Quibdó), una parte importante de la población desplazada emprendió de manera voluntaria su retorno, con el apoyo de la Diócesis, de las organizaciones

sociales y de las comunidades mismas. El acompañamiento del Estado a quienes retornaban se circunscribió a exiguos aportes económicos y a la presencia de funcionarios de la Defensoría del Pueblo, de la Procuraduría General de la Nación, del Instituto Colombiano de Bienestar Familiar (ICBF) y de la RSS. Es de destacar la poca participación que en el proceso de retorno tuvieron las autoridades departamentales y municipales del Chocó.

[...]

En lo que respecta a la población que permanece desplazada en Quibdó, estimada ahora en unas 1.000 personas por el Comité de Desplazados del Medio Atrato, no ha recibido ayuda desde el mes de agosto de 2002, ni se ha podido beneficiar con programas de restablecimiento socioeconómico o de reubicación, ya que para ellos no está prevista asignación presupuestal por parte del Estado.

[...]

En julio de 2002 el Gobierno adoptó el documento CONPES 3180 (“Programa para la reconstrucción y desarrollo sostenible del Urabá antioqueño y chocoano y Bajo y Medio Atrato. Ampliación del CONPES 3169: Política para la población afrocolombiana”). En este documento se instó a ejecutar dicho programa en un plazo de 6 meses, adelantando, al mismo tiempo, acciones tendientes a reconstruir Bojayá y a dar apoyo a su municipio vecino, Vigía del Fuerte. Para ello se dispuso la asignación de 2.500 millones de pesos. Sin embargo, el documento puso en cabeza de diversas entidades públicas distintos compromisos, con lo cual se pluralizó la asignación de recursos y de responsabilidades, haciendo así más compleja su ejecución.

Teniendo en cuenta la identificación de Bellavista como zona de riesgo geológico por inundaciones, el Gobierno asumió el compromiso de reubicar la cabecera municipal de Bojayá en otro sitio cercano. Según información de la RSS la destinación de los recursos necesarios para dar respuesta a múltiples necesidades básicas de los pobladores en la actual ubicación del casco urbano se vio impedida por la incompatibilidad de eventuales inversiones en la zona con las normas existentes.

A la fecha los trabajos de reubicación, por diversas dificultades, no se han iniciado aún. Entre esas dificultades pueden citarse los retrasos ligados al cambio de gobierno y la incierta disponibilidad de los recursos suficientes para completar los trabajos necesarios. También es de anotar que está pendiente la legalización del predio donde se planea reubicar la cabecera [...].

Tampoco queda claro para las comunidades cuáles son los beneficios previstos para ellas, ni sus condiciones de participación. Esta incertidumbre, junto con el tiempo prolongado de espera, ha contribuido a generar divisiones internas en las propias comunidades.

[...]

En cuanto a la población indígena, cuyas necesidades no fueron expresamente tenidas en cuenta en los mencionados documentos CONPES, ni la RSS ni la Oficina Nacional de Etnias del Ministerio del Interior y de Justicia manifestaron haber asumido de manera directa la responsabilidad en esta materia, o adoptado con respecto a ella acciones concretas.” (OHCHR, 30 June 2003, pp.2, 4,5,10-13)

«De acuerdo a la información obtenida, el 21 de abril de 2002, un número no inferior a 7 embarcaciones que transportaban un total aproximado de 250 paramilitares arribó a Bellavista, cabecera municipal de Bojayá, y Vigía del Fuerte, provenientes de Turbo. Para realizar ese recorrido, las embarcaciones deben pasar los puestos de control de la Fuerza Pública ubicados en Punta de Turbo (retén permanente de la Marina que exige la presentación de documentación y una requisa), en la entrada de Riosucio, (retén permanente de la Policía Nacional) y en la salida de Riosucio hacia Bellavista, (retén permanente del Ejército. No se registraron incidentes ni detenciones en ese recorrido.

Los paramilitares se establecieron en los cascos urbanos, [...] en donde requisaron y amenazaron a la población, mientras las FARC-EP permanecieron en el área rural [...]. La población de Bellavista solicitó a los paramilitares que se retiraran del casco urbano, como en su momento lo hicieran con la guerrilla, con el objetivo de mantener a la población civil alejada del conflicto. [...]

[...]

El 23 de abril, la Oficina envió una comunicación oficial al Gobierno expresando su preocupación frente a la incursión de grupos paramilitares en las localidades de Bocas de Curvaradó, Vigía del Fuerte y Bellavista y sus posibles consecuencias para las poblaciones allí asentadas. Asimismo, la Oficina instó a las autoridades a adoptar las medidas oportunas y adecuadas para proteger a la población civil, así como para prevenir eventuales desplazamientos de las comunidades de esas áreas. La única respuesta escrita recibida por la Oficina fue la enviada por la Procuraduría, el 24 de abril, en la que transmite su solicitud urgente a los Ministros del Interior y de Defensa para que otorguen una “directa atención a los sucesos que en forma reiterada alteran la tranquilidad en las poblaciones chocoanas, donde la mayoría de sus habitantes son indígenas, campesinos y comunidades negras que viven el enfrentamiento entre todos los grupos armados al margen de la ley”.[...]Aproximadamente a las 10:45 horas, la tercer pipeta estalló al impactar en el altar de la Iglesia. La explosión causó unos 119 muertos [...] y 98 heridos, un porcentaje significativo de ellos menores de edad. »El día 11 de mayo, el Coronel Pulido, Comandante del Batallón Manosalva de la IV Brigada, confirmó a la Oficina que había recibido información sobre la posible presencia de paramilitares en el pueblo y sobre un posible ataque de las FARC-EP. Sin embargo calificó dicha información como un rumor y declaró que no había nadie armado en el pueblo. Asimismo, declaró que el desplazamiento que se había incrementado en los últimos dos días era temporal y que a su criterio se debía más a la perspectiva de recibir ayuda humanitaria en Quibdó que al miedo de ataques o a presencia de combatientes en los pueblos. (OHCHR, 20 May 2002, pp3, 6-8, 10, 13-15, 17-18, 20)

Overview of UNDP activities for IDPs (2003)

- UNDP launched a report of human development in Colombia (September 2003)
- UNDP operates the program of “Rights and Attention to the displaced population” in the departments of Antioquia, Atlántico, Bolívar, Cauca, Cesar, Chocó, Cundinamarca, Huila, Meta, Nariño, Putumayo, Valle and Bogotá
- UNDP operates the Regional Program of Development and Peace in Cesar
- Protection Project for Human Rights defenders is country-wide
- UNDP main area of action is integration and socio-economic reconstruction

“El PNUD ejecuta el programa de “ Derechos y Atención a la población desplazada” , en los departamentos de Antioquia, Atlántico, Bolívar, Cauca, Cesar, Chocó, Cundinamarca, Huila, Meta, Nariño, Putumayo, Valle y Bogotá y los “ Programas Regionales de desarrollo y convivencia y el Programa Regional de Desarrollo y Paz” en el departamento del Cesar.

Por otra parte tiene el Proyecto de Protección a los líderes y Defensores de Derechos Humanos que lo ejecuta en todo el país. Actúa en el sector de integración y reconstrucción socioeconómica principalmente, pero también lo hace en el de fortalecimiento institucional, poniendo énfasis en la contribución para el diseño de políticas públicas. Dentro de este esquema realiza las actividades de: apoyar el diseño y operación de encadenamientos productivos para la generación de ingresos, la organización comunitaria y la generación de alianzas para la población desplazada y con otros sectores de la población civil, diseñar un instrumento para el manejo de micro- créditos y sistematización de las mejores prácticas.

El departamento donde mayor presencia tiene el PNUD, es el Cesar, seguido de Antioquia, Bolívar y Bogotá. Por otra parte, en los que menor presencia tiene son Cauca, Nariño y Putumayo.” (GTD, 23 November 2002, p. 44)

To access the UNDP report which analyses forty years of conflict in Colombia, its impact on human development and ways forward click here [\[External Link\]](#)

Overview of IOM activities for IDPs (2002)

- IOM's activities have focused on strengthening community networks areas receiving IDPs in sectors such as income-generation, education, health, community organization and peace and communication training
- The IOM office in Colombia is managing 181 projects with 131,000 direct beneficiaries
- Between 2000-2003 IOM provided income-generating activities through post-emergency programmes to over 815,000 people displaced and member of receiving communities in the departments of Caquetá, Chocó, Santander, Norte de Santander, Valle del Cauca, Nariño, Cauca, Putumayo and Huila
- IOM opened a Unit of Attention (UAO) for IDPs in Cauca to organize and plan assistance to IDPs and strengthen state institutions responsible for IDPs such as SNAIPD, in June 2003
- IOM launches pilot project focusing on prevention of Sexually Transmitted Diseases and HIV/AIDS to benefit some 1,650 IDPs
- Since 1995, IOM has helped the government to set up an information management system on IDPs
- In October 1998 the new administration approved a project proposal developed by IOM on an 'Information Network on IDP's in Colombia

“Las iniciativas de OIM están diseñadas para unificar y restaurar la red social en las comunidades receptores de desplazados internos, y para incitarlas a ser agentes efectivos en el proceso de paz. Para lograrlo, se ha dividido el programa en seis áreas de intervención que están interrelacionadas entre sí: generación de ingresos; salud; educación; organización y estabilización comunitaria; promoción de la paz y comunicación social; y vivienda. Dentro de estas categorías, se ha identificado intervenciones más específicas que responden a un análisis continuo, participativo y multisectorial de las necesidades en las áreas geográficas priorizadas. El resultado de ese análisis se ha interpretado en la ejecución de un total de 181 proyectos divididos entre los componentes en la siguiente manera: generación de ingresos - 52 proyectos; salud - 31 proyectos; educación - 34 proyectos; vivienda - 18 proyectos; y organización, estabilización comunitaria, promoción de la paz y comunicación social - 46 proyectos. Al final del año 2001, los programas y proyectos de OIM había beneficiado a más de 131,000 beneficiarios directos y aproximadamente 229,000 beneficiarios indirectos.” (GTD, 23 November 2002, p. 43)

“The IOM office in Colombia is managing 164 project in the six northern provinces of Valle del Cauca, Santander, Norte de Santander, Caquetá, Putumayo and Nariño. The projects are meeting the most urgent needs of over 300,000 displaced persons and residents of host communities in water and sanitation, clinics, housing, schools, and income generating projects. [...]

IOM Colombia is working with the Government, other international organizations, UN agencies, NGOs and religious institutions.” (IOM, February 2002)

“IOM programmes currently support the internally displaced persons (IDPs) and receiving communities, address the needs of demobilized children, assist victims of trafficking and promote peace at a community level.

Over the past three years IOM's post-emergency programmes have provided direct assistance to more than 815,000 persons living in the departments of Caquetá, Chocó, Santander, Norte de Santander, Valle del Cauca, Nariño, Cauca, Putumayo and Huila. This USAID funded programme provides IDPs and receiving communities with income-generating activities, health and education, and institutional and community strengthening.” (IOM, 4 November 2003)

“On Friday, June 13th, an inauguration was held for the first Unit of Attention and Orientation (UAO) for the Displaced Population to be opened in the department of Cauca. The UAO will serve as a space for the

planning, organization and articulation of institutional assistance for the population displaced by the armed conflict. The UAO opened its doors to the displaced population of the area on Monday, June 16th.

[...]

The displacement phenomenon in this department in southwestern Colombia has increased considerably over the past few years. This has made the provision of assistance to the displaced more and more difficult.

With the goal of providing institutional strengthening to the State institutions making up the National System for Integral Attention to the Displaced (SNAIPD in Spanish), IOM has supported the UAO with funds donated by USAID for the acquisition of computers, the construction of facilities, economic support for the enrollment of university student interns, training and personnel workshops.” (IOM, 13 June 2003)

“COLOMBIA - HIV/AIDS Prevention and Counselling for Young IDPs - The IOM office in Colombia, in coordination with the Colombian Ministries of Health and Education, and UNAIDS, is today launching a pilot project that will focus on the creation of an inter-institutional response system for the prevention of Sexually Transmitted Diseases and HIV/AIDS that will benefit some 1,650 internally displaced adolescents and young adults.

[...]

Under the scheme, 23 trained facilitators will provide support to the local authorities and train health workers. The project will be implemented through the Department for Gender Studies at the National University and Profamilia, a local NGO specializing sexual and reproductive health. “ (IOM, 29 July 2003)

"In February 1995, the GOC [Government of Colombia] asked IOM's cooperation for IDP's after a visit of a GOC delegation to Guatemala. [...]

[In 1997] IOM was asked to cooperate in the preparation of an information system on IDP's. A first software on Emergency Attention was developed by IOM and delivered to the GOC in September 1997, which has been used by the Government since then.

The GOC authorized the use of the Emergency software by the Catholic Church of Colombia (Episcopal Conference). IOM introduced some additional queries of special interest to the Church and during 1998 organized training meetings in seven cities of Colombia. Cooperation with Episcopal Conference continues at present.

In 1997, IOM took part in a discussion group composed by the Universidad Javeriana, Episcopal Conference, UNHCR, ICRC and some NGO's, where a proposal of rules and regulations for law 387 (on IDP's) was produced.

In October 1998 the new administration approved a project proposal developed by IOM on an 'Information Network on IDP's in Colombia'. This project is ready for fundraising. A training session for 25 staff members of the Ministry of Interior was performed in October, to inform on IOM's activities and also to train them on the use of the Emergency Module of the Information System, responsibility assumed now by that Ministry." (IOM March 1999, p. 22)

The Office of the UNHCHR monitors human rights since 1996 in Colombia (2001)

- Since November 1996, the Office has been monitoring the situation of human rights, in particular in relation to displacement, and advises the Colombian government on the formulation of policies and other measures
- Many NGOs and organizations of civil society receive support and advice from the Office for the formulation and implementation of projects, particularly in the area of assistance to displaced persons
- Poor dialogue between the office and the government

“The Office of the United Nations High Commissioner for Human Rights (OHCHR) in Colombia was established on 26 November 1996 under an agreement signed by the Colombian Government and the then United Nations High Commissioner for Human Rights. Under the terms of that agreement, the Office is to observe and monitor the human rights situation and international humanitarian law in order to advise the Colombian authorities on the formulation and implementation of policies, programmes and measures for the promotion and protection of human rights in the context of violence and internal armed conflict in the country. The High Commissioner should thus be able to submit analytical reports to the Commission on Human Rights. The agreement has been extended for a third time, until April 2002.

The Office increased its legal advisory activities. It attended several working meetings of committees and other bodies to press for investigations of human rights violations and breaches of international humanitarian law, devise programmes, identify ways of protecting and guaranteeing human rights and press for follow-up on human rights-related recommendations. It produced four information leaflets exploring notions in international currency that are helpful in discussing topics of national interest.

As part of its public information and promotion policy, the Office participated in numerous activities (seminars, forums, workshops and conferences). It also held two regional workshops with non-governmental organizations (see chapter VIII). For working with the media, the Office contracted a national public information officer and held workshops and meetings with journalists[...]

The Office has also experienced some difficulties in dealings with the Government. Bodies through which, since starting up operations in Colombia, it has been providing the State with support and advice for the promotion of activities and programmes aimed at overcoming obstacles and implementing international recommendations have been dismantled, sidelined by key Government policies, assigned piecemeal to collateral effects of the major problems faced, or have not had an impact commensurate with the magnitude of the crisis. For example, the overwhelming majority of Governmental responses to Office communications about specific cases and situations (such as early warnings) have been unsatisfactory, inoperative and purely bureaucratic. Even though President Pastrana himself has taken serious note of these situations, the poor governmental response to dialogue with the Office has not been substantially corrected and the potential of the Office has been greatly underutilized by the Government.” (CHR 8 February 2001, Introduction, chapter II-III, paras. 2-17)

See Website of the [Office of the United Nations High Commissioner for Human Rights in Colombia](#) [External link]

UN Inter-Agency Mission to Colombia (16-24 August 2001)

- The inter-agency Mission expressed grave concern over reports extrajudicial killings, enforced disappearances, forced relocation and sexual abuse of civilian populations
- The mission urged the government to address impunity of crimes committed particularly against displaced persons
- Government planned to increase state presence in municipalities affected by displacement

“‘Colombia is facing an acute problem of displacement’, said Kofi Asomani, the United Nations Special Coordinator on Internal Displacement of the Office for the Coordination of Humanitarian Affairs, upon his return from Colombia where he led a UN inter-agency Mission from 16 to 24 August. The inter-agency Mission expressed grave concern over the numerous reports of targeting of civilians in the conflict, extrajudicial killings, enforced disappearances, forced relocation and sexual abuse. It called upon actors in the conflict to respect the norms that protect civilian populations. The Mission included representatives of UNICEF, UNHCR, UNDP, WFP, WHO, UNHCHR, among others. [...]

“In the past months, there has been a progressive increase in the numbers, geographical extension and political complexities of the displacement phenomenon. These populations are in urgent need of protection and assistance in almost every sector”, said Mr. Asomani. [...]

The inter-agency Mission reiterated that the primary responsibility of the Government was ensuring the protection of internally displaced persons and underscored the need for the Government to address the widespread impunity, particularly with regard to crimes perpetrated against the displaced and against those advocating on their behalf. The inter-agency Mission was encouraged by the Government's plans to increase the presence of the State in the affected municipalities and underscored the need for such a presence to encompass civilian authorities entrusted with the protection of displaced populations. While recognizing the significant efforts undertaken by the Government and the humanitarian community to address the needs of the displaced, the Mission noted that these vulnerable populations continued to suffer extreme hardship and poverty.

[...]

The Mission urged the Government to pursue the effective implementation of its Law 387 of 18 July 1997 on attention to displaced populations. Furthermore, given the vulnerable status of the displaced populations, priority concern for this group should be mainstreamed in all areas of national policy, including health, education and social investment. The issue of internal displacement should also be prioritized in the peace agenda, as a critical factor in peace building efforts. [...] The Mission also encouraged the United Nations to develop a comprehensive plan of action to complement efforts of the Government to protect and assist vulnerable populations.

The Mission is part of the on-going work of the UN Inter Agency Network on Internal Displacement, created in September 2000, to review critical situations of internal displacement and make proposals for an improved response to their needs.” (UN Press Release, 31 August 2001)

« la misión tomó como referencia el nivel de cumplimiento de los Principios Rectores de los Desplazamientos. La misión hizo notar la falta de sensibilización, y por consiguiente, la falta de solidaridad con respecto a la difícil situación de los desplazamientos internos. En este sentido propuso que la atención al desplazamiento se incorporase al programa político nacional como política de Estado.

Sus recomendaciones se hicieron públicas mediante un informe y se centraron entre otros en los siguientes temas: 1) mejorar la respuesta y cobertura de los mecanismos de prevención contra los desplazamientos; 2) intensificar el esfuerzo para proporcionar protección efectiva a los desplazados; 3) mejorar las respuestas diferenciales tomando las necesidades especiales de determinados grupos de población; 4) ejecutar la asistencia humanitaria de emergencia de manera que esté vinculada al medio plazo y orientada a la rehabilitación; 5) asegurar que haya mecanismos de análisis de vulnerabilidad alimentaria de las poblaciones desplazadas y que se den respuestas a sus necesidades alimentarias; 6) incorporar la atención psicosocial en la atención en salud; 7) ampliar los cupos educativos y asegurar la escolaridad gratuita para los niños/as desplazados; 8) incrementar los programas de integración y recuperación para los desplazados con enfoque comunitario; 9) fortalecer la coordinación tanto en el nivel gubernamental como al interior del SNU, mediante el fortalecimiento del GTD. » (GTD, 23 November 2002, p.38)

Second visit by the Representative of the Secretary-General (May 1999)

- The visit's objectives were: to assess developments since his 1994 visit, in particular the extent to which the recommendations resulting from it had been implemented; to study to current situation of internal displacement; and to formulate, on this basis, new recommendations for addressing the current situation
- During the course of the visit, the Representative engaged in constructive, candid dialogue with President Andrés Pastrana Arango and a number of government officials, including the Vice-President, the High Commissioner for Peace, the Minister and Vice-Minister for Foreign Affairs, the Vice-Minister of the Interior, the Fiscal (Prosecutor General), the Defensor del Pueblo (People's Advocate - Ombudsman), the Director of the Human Rights Unit of the Ministry of the

Interior, the Manager of the Plan Colombia and the Assistant Director of the National Planning Department.

- During the visits to Santander, Sucre and Bolívar departments, the Representative met with representatives of internally displaced communities from these departments, from the neighbouring department of Córdoba and from the Montes de María region.
- A workshop held in Bogotá for internally displaced women from throughout the country devoted its closing session to sharing its recommendations and conclusions with the mission delegation.
- In Colombia, the Representative used the Guiding Principles as a basis for dialogue with the government and later as an outline for the report

“The official visit was undertaken for the purpose of follow-up to the Representative’s mission to the country in 1994 (see E/CN.4/1995/50/Add.1). The objectives of this visit were: to assess developments since the 1994 visit in light of the serious deterioration in the situation, to evaluate the extent to which the recommendations from the 1994 visit had been implemented, and to formulate new recommendations for addressing the current situation.

Using the Guiding Principles on Internal Displacement (E/CN.4/1998/53/Add.2) as a point of reference, the mission considered the needs and rights of the displaced as well as the responsibilities of the authorities and other relevant actors to address these needs in all phases of displacement - before displacement occurs, during displacement, and in the return and reintegration phase. Indeed, the Commission on Human Rights, in resolution 1998/50, which was adopted without a vote and co-sponsored by more than 50 States, including Colombia, took note of the Representative’s intention to make use of the Guiding Principles in his dialogue with Governments as well as intergovernmental and non-governmental organizations; in resolution 1999/47, it welcomed the fact that the Representative had done so and requested him to continue efforts in this regard.

In Colombia, the Representative’s use of the Guiding Principles as a basis for dialogue was well received by government officials. A number of them had indeed prepared in advance analyses of the situation of internal displacement in Colombia on the basis of the Guiding Principles. The Director of the Human Rights Unit of the Ministry of the Interior expressed the view that the Guiding Principles should be regarded as carrying a morally binding force.

During the course of the visit, the Representative engaged in constructive, candid dialogue with President Andrés Pastrana Arango and a number of government officials, including the Vice-President, the High Commissioner for Peace, the Minister and Vice-Minister for Foreign Affairs, the Vice-Minister of the Interior, the *Fiscal* (Prosecutor General), the *Defensor del Pueblo* (People’s Advocate - Ombudsman), the Director of the Human Rights Unit of the Ministry of the Interior, the Manager of the Plan Colombia and the Assistant Director of the National Planning Department. On a number of occasions, the Representative met with the Vice-Minister of the Interior, a post which until March 1999 also was assigned the role of Presidential Adviser for the Displaced and the Manager of the *Red de Solidaridad Social* (Social Solidarity Network), the institution which just prior to the visit had been designated as the new government focal point for internal displacement. A scheduled meeting with the Minister of Justice and representatives at the national level of the Army and National Police was pre-empted by the resignation of the Minister of Defence. In Santander, Sucre and Bolívar departments, the Representative was received by regional and municipal authorities, including from regional offices of the *Defensoria del Pueblo*, *Personerías* (representatives of the Office of the Procurator at the municipal level) and members of the armed forces and police. During the mission, the Representative received the agreement of the President to meet with insurgent groups, who also consented to the proposed meeting, but in the end scheduling problems did not allow such a meeting to take place.

In a number of different forums, both in Bogotá and in the regions, the Representative had the opportunity to discuss the situation of internal displacement with officials from United Nations agencies and

international NGOs. He also met with representatives of the diplomatic and international donor community. A meeting of the Resource Group, comprised of representatives of United Nations agencies and Colombian intellectuals, as well as discussions held with representatives of the Catholic Church, provided a very helpful analysis of the conflict in Colombia and of the peace process.

Several meetings were held with representatives of the internally displaced and with local NGOs involved with the displaced. During the visits to Santander, Sucre and Bolívar departments, the Representative met with representatives of internally displaced communities from these departments, from the neighbouring department of Córdoba and from the Montes de María region. A number of the mayors in the department of Sucre with whom the Representative met were themselves internally displaced. A workshop held in Bogotá for internally displaced women from throughout the country devoted its closing session to sharing its recommendations and conclusions with the mission delegation. The Representative also visited internally displaced communities on the outskirts of Cartagena (Bolívar department), specifically in the Nelson Mandela *barrio* and the *Ciénaga de la Virgen* settlements".
(UN Commission on Human Rights, 11 January 2000, para.5-10)

First visit by the Representative of the Secretary-General (June 1994)

- Institutions met by the Representative include ministers, presidential advisers, delegates of specialized agencies and non-governmental organisations, church representatives, academics, and groups of displaced
- Participation in seminar on internal displacement jointly organised by the government, UNDP and NGOs
- Country report and recommendations submitted to the United Nations Commission on Human Rights

"At the invitation of the Government of Colombia, by letter dated 7 February 1994, the Representative of the Secretary-General on internally displaced persons visited the country from 10 to 18 June 1994." (UN Commission on Human Rights 3 October 1994, para. 1)

"The Representative was received by the Ministers of Government, Defence and Agriculture, the Vice-Minister for Foreign Affairs and the Presidential Adviser for the Promotion and Protection of Human Rights. He also met with senior officials from the Ministry of Foreign Affairs and the Office of the Presidential Adviser for the Protection and Promotion of Human Rights, as well as delegates of the Procuraduría (Office of the Attorney/Procurator-General of the Nation) for Human Rights and Agriculture and of the Defensor del Pueblo (national ombudsman). The Representative met with delegates of intergovernmental specialized agencies, and the staff of local and international non-governmental organizations (NGOs) as well as representatives of the Episcopal Conference and members of the academic community. He also had the opportunity to hold hearings with a great number of displaced persons and witnesses, both in Bogotá and during his field visits. As during previous similar visits to other countries he endeavoured, within the short time available, to hear a variety of views on the complex situation of displacement in Colombia from the different social, political, legal, religious and intellectual segments of Colombian society. He also had the opportunity to be briefed on developments in Central America by representatives of PRODERE (Programa de Desarrollo para Desplazados, Refugiados y Repatriados) and in other countries in the region by other NGOs. On the other hand, partly because of the short time available to him as well as the timing of the mission (which took place during a period of presidential and other elections), the Representative was unable to meet with more senior authorities of the Government, especially of the Armed Forces and the Administrative Security Department (DAS) and with representatives of the economic and other interests in the country, as he would have wished." (UN Commission on Human Rights 3 October 1994, para. 7)

"The Representative visited areas where the internally displaced live, mostly poor neighbourhoods near urban centres. More specifically, he visited a shelter for displaced persons, known as Albergue Campesino (i.e. shelter for the peasants) in the department of Santander, the city of Barrancabermeja in the same department, Murindó in the department of Antioquia, the city of Medellín, also in the department of Antioquia, and Ciudad Bolívar on the outskirts of the capital city, Bogotá. During these visits he was received by government and military authorities, including the Governor of Antioquia, the Mayors of Medellín, Barrancabermeja and Ciudad Bolívar and the Commander of the Barrancabermeja battalion, field representatives of NGOs and displaced persons.

During his stay in Bogotá the Representative participated as an observer in a seminar-workshop on "Integral policies on internal displacement in Colombia", the first to be organized jointly by the Government (the Presidential Adviser for Human Rights), the UNDP office in Colombia and NGOs from all over the country. This gave him the unique opportunity to meet with NGOs and authorities from almost all the regions of Colombia affected by internal displacement. Had he had more time at his disposal, he would have also liked to visit other areas of the country where displacement is a serious problem." (UN Commission on Human Rights 3 October 1994, para. 33-34)

See full text of the [mission report](#) [External link]; See also "[Follow-up visit by the Representative of the Secretary-General for IDPs: \(May 1999\)](#)" [Internal link]

Coordination

Strengthening coordination structures to assist IDPs: main priority of the Humanitarian Plan of Action (2003)

- UNHCR has played a key coordination role in Colombia operationalised through the GTD since 1998, widely respected by OCHA, other UN organisations and NGOs
- In order to make the HPA integral part of national policy of attention to IDPs, UNCT regularly meets with the Social Solidarity Network (RSS)
- The plan seeks complementarity among the participating agencies among others, ICRC, IOM, RSS, national and international NGOs
- Strengthen Rapid Response System attached to the TGID (Thematic Group on Internal Displacement) by ensuring international presence in crisis/risk zones, information collection/dissemination, assessing and monitoring
- Establish inter-agency information centre to monitor and evaluate the HAP and the humanitarian situation
- TGID responsible to follow-up implementation of HAP every three-months
- In 1999 the UNDP Resident Coordinator informally requested UNHCR to facilitate coordination between UN agencies on IDP issues

"41. UNHCR is playing an important coordination role in Colombia. Within the UN system UNHCR is heading the Thematic Group for Displacement (GTD), which has been operational since 1998. IOM is a member of the GTD and the Joint Technical Unit, ICRC and ECHO are observers. The objective of the GTD is to operationalize coordination and to ensure complementarity amongst the participating agencies. Over the years the GTD has collected a wealth of information, which has led to four publications. Following a high-level UN meeting in October 2001 in New York it was felt that the UN system in

Colombia needed to be better prepared for the unfolding humanitarian crisis. Through the GTD, headed by UNHCR and OCHA, the UN Country Team developed the Humanitarian Plan of Action (HPA), with the objective of coordinating all activities dealing with IDPs and communities that risk being affected by the conflict.

[...]

45. Coordination amongst UN agencies in Colombia has proved a daunting task. All agencies have their own way of working and it has taken time to produce a joint document acceptable to all. Donor countries have welcomed the coordination process that led to the HPA. However, they have also been very critical of the UN system; the fact that there has been no Resident Coordinator for more than a year has negatively affected the UN role in Colombia. It is now becoming urgent to sort out the coordination roles within the UN system in Colombia. UNHCR seems to be wellplaced to continue with the coordination of the GTD, having shown expertise in bringing partners together around the theme of internal displacement.

46. UNHCR's relations with OCHA are excellent. After a difficult start, UNHCR and OCHA have gained the respect of the other UN agencies in coordinating activities on behalf of IDPs. Two OCHA staff are working in the UNHCR premises and report directly to the UNHCR representative. They fully accept UNHCR's humanitarian coordination role and would prefer to continue with the existing structure. The OCHA staff have been instrumental in developing the HPA and should be given a central role during the implementation and monitoring of the plan. It would be advisable to expand the role of OCHA in relation to the HPA and develop a Humanitarian Information Centre, managed in close coordination with the JTU. UNHCR has already started looking for funds and office space to realise this initiative.

[...]

48. UNHCR has established good working relations with ICRC. Regular consultation is taking place in the field and centrally ensuring complementarity and a fluid exchange of information. UNHCR has been active in bringing together NGO partners working with IDPs. The Colombian PARinAC (Partnership in Action) forum has been active, serving as a body for exchange of information and reflecting on strategies to follow. NGOs respect UNHCR's coordination role. Often UNHCR is seen as the "mediator" between government authorities and NGO partners that have been critical of IDP policies. This bridge function of UNHCR is important and has created "*espacios de coordinación*" for the NGOs working with IDPs." (UNHCR, 3 May 2003, p.13-14)

"Coordination structure"

68. To respond to the challenges facing UNS in implementing the Humanitarian Action Plan, the existing coordination structures must be gradually strengthened and expanded. In addition, these structures must be linked to the coordination structures of the Government, NGOs, international agencies, and others.

Strengthening the Thematic Group on Internal Displacement

69. At the strategic level, TGID needs to establish or, when applicable, strengthen working mechanisms with and among: (a) UNS; (b) Government/State; (c) donors and aid workers; (d) national and international NGOs; and (e) the Red Cross Movement.

70. In the case of the State, regular contacts and coordination mechanisms will be established with the National Council for Comprehensive Assistance to the Population Displaced by Violence and other agencies of the Colombian Government responsible for assisting IDP or dealing with humanitarian crises; SSN acts as the coordinating body of the National Programme of Comprehensive Assistance to the Displaced Population.

71. The Thematic Group on Internal Displacement, headed by UNHCR, with the support of OCHA, and comprising FAO, IOM, PAHO-WHO, UNDP, UNFPA, UNDCP, UNHCHR, UNIC, UNICEF, UNIDO and WFP, is the existing coordination structure within UNS responsible for dealing with displacement and the humanitarian crisis. To strengthen this structure, it is necessary:

- **To reinforce the Rapid Response System (RRS) that would be attached to TGID with the general goal of providing a rapid, effective and comprehensive response at the onset of a crisis situation. [...]**

- **To establish a rapid response fund within SSN** as an instrument to minimize the impact of the humanitarian crisis on the most vulnerable populations. The fund would be characterized by flexibility and promptness and be used to support HAP priorities, promoting prevention and expanding sectoral and regional coverage to deal with any changes in the humanitarian situation. Similarly, the fund will be used for temporary or short-term financing so that UNS agencies can implement initiatives which are not included in their regular activities.

- **To establish an inter-agency information centre on the humanitarian situation**, which will permit the collection, classification, analysis and dissemination of information on the humanitarian crisis, particularly about displacement, in close collaboration with the information sources. [...] **Operational coordination: expansion of the coordination structure in the field**

72. The operational coordination level involves planning actions on the ground, organizing tasks and defining concrete coordination mechanisms. The local humanitarian plans of action would be the mechanism which coordinates the definition of the inter- agency strategy at the local level.

73. The zones where UNS agencies are located would be the first priority for the expansion of the coordination structure. The most important examples are the Pilot Plan for Magdalena Medio and RRS in Choco.

Evaluation and follow-up of HAP implementation

74. Follow-up of HAP will be the responsibility of TGID. Implementation of the Plan is a flexible process and, as such, must be reviewed every three months by TGID. This does not rule out the possibility that, should there be a new crisis situation, TGID itself would adapt the Plan, transforming it into a useful instrument to assist the populations affected by the humanitarian crisis, particularly those displaced by violence.” (GTD, 29 November 2002, pp.4, 29-31)

"In order to enhance coherence and limit risks of overlap, the UNDP Resident Coordinator has requested UNHCR, on an informal basis, to facilitate interaction between agencies of the UN system on IDP issues. Such action takes place on two levels; on the policy level through regular meetings between the Heads of Agencies and on the technical level through four thematic working groups." (UNHCR 1999, para. 22)

UNHCR's institutional arrangements for IDPs in Colombia (2003)

- UNHCR's main government counterparts are the Social Solidarity Network (RSS), Procuraduría General de la Nación, and the Ombudsman's Office
- UNHCR has 6 field offices and one branch office in Bogotá
- UNHCR opened new field office in Barranquilla May 2003 in a region which expelled one quarter of all IDPs which strengthens physical protection through expanded field presence
- In May 2003 UNHCR signed an agreement to strengthen the capacity of the Colombian Senate and Human Rights Commissions to legislate on IDP issues
- Early warning of and response to displacement at both national and local level will be supported through an agreement signed in 2000 with the National Ombudsman's Office
- In January 1999 UNHCR signed a Memorandum of Intent (MOI) with the Government which sets the scope of UNHCR's role in favour of IDPs

“Today, UNHCR is inaugurating a new field office in Colombia, in the northern city of Barranquilla, to deal with the humanitarian crisis in five provinces (departments) on the country's Atlantic Coast. The office will cover the departments of Magdalena, Sucre, Guajira, Atlántico, and the North of the department of Bolívar. Three of these -- Atlántico, Bolívar and Sucre - are considered among the poorest regions of the country.

The region covered by the new office saw the expulsion of around one quarter of the overall number of registered internally displaced persons in the country last year, according to official figures of the Social Solidarity Network, the government body in charge of policy on internally displaced people.

[...]

The new Barranquilla office brings the number of UNHCR offices throughout Colombia to seven. In addition to its branch office in Bogotá, UNHCR has existing field offices in Puerto Asís, Barrancabermeja, Apartado and now Barranquilla, plus two satellite offices in Pasto and Quibdó.” (UNHCR, 30 May 2003)

“The importance of UNHCR’s presence in the field has been highlighted during the review, in particular because it is the only UN agency, together with UNHCHR, that has deployed international staff in the field. The fact of being close to the IDP communities and providing “physical” protection by accompanying communities in areas controlled by one of the illegal armed actors, has been appreciated throughout.” (UNHCR, 3 May 2003, p.9)

“The United Nations Refugee Agency (UNHCR) signed on Thursday (15 May) a landmark agreement to strengthen the Senate of the Republic of Colombia and its Human Rights Commission. The agreement, signed by the President of the Senate, the President and Vice-president of the Senate's Human Rights Commission and the UNHCR Representative in Colombia, is designed to reinforce the Senate and the Commission's capacity to legislate on internal displacement issues.

Under this agreement, UNHCR will co-operate with the Senate and the Commission in the promotion and dissemination of national and international refugee and internal displacement legislation, and will provide advice and specialised training for members of the Senate and other relevant institutions. UNHCR will also advise the Senate on the design of mechanisms to protect the rights of internally displaced persons in Colombia, to prevent forced displacement and to provide comprehensive assistance to displaced persons.” (UNHCR, 16 May 2003)

“EL ACNUR tiene tres Oficinas Regionales (en Apartadó para la región de Gran Urabá, en Barrancabermeja para la región de Magdalena Medio y en Puerto Asís para la región del Sur) con el objetivo de fortalecer la atención al desplazamiento en el nivel local. Estas oficinas también funcionan como puntos de coordinación con otras Agencia y sus principales socios: Defensoría, Procuraduría, Registraduría, RSS (UTC), Opción Legal, CODHES, SNPS, Cedavida.

[...]

El ACNUR trabaja con Opción Legal, Cedavida, CODHES, SNPS, Casa de la Mujer, ONIC, Compartir, Taller de Vida, OIA, Limpal y OZIP como contrapartes, además trabaja con la RSS, Defensoría, Procuraduría, Registraduría, Pastoral Social, otras ONGs nacionales e internacionales y Asociaciones de Desplazados.” (GTD, 23 November 2002, p.40)

“UNHCR’s priorities in Colombia will be to: strengthen the national institutional framework for addressing the plight of IDPs; promote area-based programmes in the three UNHCR priority regions; and improve co-ordination amongst international partners working with IDPs.

Strengthening the National Institutional Framework for IDPs: UNHCR will continue to support major institutional and policy changes needed to enhance the protection of IDPs in Colombia and identify solutions for them. Legal advice will be provided to draft regulations needed for the implementation of Law 387, which defines the rights of IDPs and the institutional framework for their protection. Another high priority will be implementation of the revised national registration system, to ensure effective and safe access by IDPs to State benefits. UNHCR’s support of the *Red de Solidaridad* (Joint Technical Unit) will encourage co-ordinated, local-level application of national IDP policy in accordance with international standards.

The dissemination training programme and campaign for members of the armed forces and the police is intended to help prevent forced displacement and improve the protection of IDPs. Other advocacy efforts

will target the local and international media to increase awareness of the plight of IDPs, and widely disseminate the UN's 'Guiding Principles on Internal Displacement'. In addition, early warning of and response to displacement at both national and local level will be supported through an agreement signed in 2000 with the National Ombudsman's Office. In co-operation with the Civil Registry, extensive personal documentation campaigns will be carried out in areas with high concentrations of IDPs to improve safety access to social services, such as health and education." (UNHCR 2001)

"In Colombia, UNHCR's involvement with IDPs stems from the official request made by the Colombian authorities in June 1997, addressed to the High Commissioner and requesting provision of UNHCR's expertise in favour of national institutions working with IDPs as well as the opening of a UNHCR office in Colombia. This request drew broad support from key donors, Latin American countries and the non-governmental community. After having consulted with key partners and with the concurrence of the UN Secretary-General, the High Commissioner replied positively to the Colombian Government in November 1997. In June 1998 a UNHCR Liaison Office was established in Bogotá, operating under the purview of the UNHCR Regional Office in Caracas (Venezuela). The Office has since been upgraded to the status of Chargé de Mission." (UNHCR 19 November 1999, para. 3)

"In January 1999, a Memorandum of Intent (MOI) was signed with the Government which sets the scope of UNHCR's role in favour of IDPs, further to the official request in this regard in June 1997. The MOI covers provision of specialized expertise and technical cooperation by UNHCR in favour of national institutions working with IDPs, in all phases of displacement, from prevention through to solutions. Support by the Office for resource mobilization and coordination of national and international efforts on behalf of IDPs is also foreseen. The MOI also reiterates the validity of the October 1996 Agreement covering UNHCR's mandate activities in Colombia.(UNHCR August 1999, p. 179)

“UNHCR’s Government Counterparts in Colombia

•**Red de Solidaridad Social (RSS):** UNHCR provides expertise (a consultant) to the Joint Technical Unit (JTU). The JTU supports and promotes the development and evaluation of the institutional framework on internal displacement (e.g. support to the Government on IDPs). It also helps municipalities to e.g. establish centres to provide information and guidance to IDPs.

•**Procuraduría General de la Nación:** Follows-up and monitors the implementation of public policies for IDPs, pilot projects in Chocó and Magdalena Medio of the newly established system for the follow-up and monitoring of public policies for IDPs.

•**Defensoría del Pueblo (Ombudsman’s Office):** Develops a national system for the attention to IDPs. Disseminates information related to IDP rights, provides support to IDP organisations through training, e.g. on project formulation and self-management. Monitors humanitarian situation in high-risk areas and follows-up with authorities.” (UNHCR, 1 July 2003)

See full text of the [Memorandum of Intention \(MOI\)](#) [[Internal link](#)]

Deteriorating relations between the Uribe administration and NGOs working with IDPs (2003)

- President Uribe accused some NGOs of acting ‘in the service of terrorism’
- Member of the NGO Intercongregational Commission for Peace and Justice have been sued for working in league with FARC similar accusations on IDP communities in Chocó were made by a General of the Armed Forces
- Some highlighted that Uribe’s remarks endanger the lives of human rights defenders

- Some embassies also criticised NGOs of information bias in favour of guerrillas and too one-sided condemnations of paramilitary and state actors
- The lesson drawn is that radical discourses discourage dialogue and are easily dismissed by the opposition

“The day after the book was launched, President Uribe took the opportunity to lash out against NGOs in a speech during a military ceremony. He fiercely referred to the NGOs and accused some of the book’s authors - without naming them - of acting “in the service of terrorism.” The 25-minute speech broadcast on national television used the words “terrorism,” “terrorist” or “terrorists” 59 times, usually to describe Colombian guerrilla groups and tactics but occasionally referring to Colombian NGOs. He called paramilitaries, widely blamed for most of the war’s atrocities, “private justice groups.”

In his speech, Uribe divided NGOs into three basic categories: (1) theoretical NGOs, which he says he respects but largely disagrees with; (2) ‘respectable human rights organizations’, with which he is willing to dialogue; and (3) ‘political hack organizations, which serve terrorism and use the human rights discourse to disguise themselves’. He claims that the latter are seeking to jeopardize his ‘democratic security plan’ with their continuous allegations.

[...]

Defense Minister Marta Lucía Ramírez followed up Uribe’s remarks with a September 11 announcement in Washington that the Colombian government is beginning an “analysis of the activities” of the country’s 1,300 registered nongovernmental organizations, claiming that some of the groups “are being used to attack the government.” Her comments may be perceived as in line with recent tendencies of persecuting NGOs with legal actions. Last month the National Prosecutor’s Office filed suit against the Intercongregational Commission for Peace and Justice, accusing some of its members of working in league with leftwing FARC rebels. This lawsuit was first announced by a Commander of the Colombian Armed Forces, General Jorge Enrique Mora Rangel, who also made similar accusations against displaced peasant communities that are currently trying to return to their land in the Cacarica River area of the Chocó department.

[...]

Much of the international community has condemned President Uribe’s references to the NGO community as intolerant of opposition and putting lives of human rights activists in danger.

[...]

In contrast, meetings involving international NGOs including PCS, UN peace envoy James LeMoyne and the diplomatic corps have made it clear that a number of embassies present in Colombia, while not approving Uribe’s statements as a whole, do share a concern about the impartiality of the NGO sector. Some embassies have criticized NGO tendencies to distort figures to serve their purposes and their focus on human rights violations committed by the paramilitary and state actors while avoiding highlighting and condemning those committed by the guerrilla movement.

[...]

The weeklong row between the government and NGOs, exhibited in the national and international press, only shows how radical discourses are discouraging dialogue and are easily dismissed by the opposition. What is perhaps required is a more diplomatic and analytical approach by NGOs in order to be taken seriously.” (PCS, 26 September 2003)

NGOs working with IDPs operate in fragmented and uncoordinated manner (2002)

- Many national NGOs, grass-roots organizations and indigenous organizations work with IDPs in isolation
- Most IDPs organize themselves around concrete activities
- Many community or organization leaders keep a low profile as often they are considered military targets by armed actors
- Absence of physical security hampers the long-term planning of organizations

“In spite of such pragmatic approaches, the NGO sector remains fragmented and lacks coordination. While Bogota has become a melting pot of different cultures considering the high number influx of Afro-Colombian and indigenous communities grass-root organizations (GROs) tend to act separately and without taking other organization into account. In Bogota, numerous GROs, NGOs and church organizations are operating, however, there is little coordination or coherence between them. Most displaced people organize themselves around concrete activities, such as humanitarian assistance, housing or education. The reluctance to pursue a longer-term approach has much to do with the absence of physical security. Community leaders prefer to keep a low profile in order to avoid threats by armed groups.” (PCS, 31 December 2002)

GAD: an umbrella organisation for national NGOs working on issues of displacement (1999)

"The Grupo de Apoyo de los Desplazados (GAD) was formed in 1994 as an umbrella organization for 13 different national NGOs working on issues of displacement. The focus of GAD, and of its member organizations, is accompaniment and legal protection. It also seeks to promote dialogue between organizations of the displaced and the Colombian government, as well as to focus attention on the issue by the international community. GAD both reports on the ongoing crisis and publishes information from other national sources. GAD does not include women's rights or children's rights organizations as members." (Women's Commission May 1999, p. 14)

"The GAD has been instrumental in systematizing and compiling reliable data on the problem of displacement, as well as being a permanent interlocutor with the government and the international community." (PCS May 1998, p. 58)

See Exodo, the bulletin edited by the GAD [External link]

Coordination of international NGOs working with IDPs: DIAL (1999)

- Role of DIAL is the promotion of inter-agency dialogue and coordination of advocacy efforts

"At the initiative of such Agencies as: Dia konia, Save the Children Fund, Oxfam Great Britain, Christian-Aid, Project Counseling Service; and such observers as: The Norwegian Council for Refugees and Peace Brigades International, the Inter-Agency Dialogue 'DIAL', (Diálogo Inter-Agencial, in Spanish) has been carrying out its mandate in Colombia since 1997.

DIAL provides a space where international agencies for cooperation and humanitarian aid, can coordinate their efforts and come to exercise an influence. Some of these agencies work directly with affected populations, but our primary focus is on national non-governmental organizations dedicated to sustainable development projects which directly benefit the communities which are experiencing forced displacement, as well as other vulnerable population groups within Colombia.

We see our role within the national context, as promoting immediate responses which become the policies governing attention both in emergency situations and in terms of socio-economic and socio-psychological reconstruction, as well as permanent solutions in the areas of security and legal support; our aim is to attack the problem of forced displacement from all possible angles." (DIAL November 1999, "Profile")

See Dialogo, the bulleting edited by DIAL [External link]

NGO response

Colombian NGOs implementing partners of UNHCR's IDP programme (2003)

“•Secretariado Nacional de Pastoral Social (SNPS): Provides IDP associations with technical assistance and training to support associative and participatory process among IDPs and to improve networking among IDP associations. Works with ethnic minorities to strengthen their self-protection capacities to limit or prevent displacement (e.g. early warning systems, cultural resistance, etc.). Implements activities such as teacher-training and provides psycho-social attention to young IDPs. Distributes didactic material to improve the quality of life and effective enjoyment of children's and adolescents' rights under circumstances of displacement. Collects, systemises, analyses and disseminates data on the humanitarian crisis, and population movements. Acts as an umbrella agency for the implementation of projects with local Pastorals and Dioceses.

•Compartir: Supports IDP associations with technical assistance and training on civil rights. Provides psycho-social support principally targeted at IDP children in Urabá.

•Opción Legal (OL): Provides IDP associations with technical assistance and training to support associative and participatory processes among IDPs. Implements pedagogy and childhood protection projects and documentation campaigns of IDPs. Provides technical support (training and guidance) to indigenous organisations. Raises public awareness of the situation in Urabá. Provides training to armed forces on the prevention and protection of internal displacement. Analyses and compiles information on national IDP legislation. In addition to direct implementation of projects, OL also operates as an umbrella agency to establish agreements with e.g. the National Registry, local authorities, the National University, NGOs and IDP communities.

•CEDAVIDA (Fundación Social Colombiana): Provides IDP associations in Putumayo with technical assistance and training to support associative and participatory processes among IDPs. Provides psycho-social support to children and adolescents through IDP associations in Río Viejo.

•Consultoría para los Derechos Humanos y el Desplazamiento (CODHES): Monitors and follows-up on internal displacement in Colombia.

[...]

•Centro de Investigación y Educación Popular (CINEP): Works with ethnic minorities to strengthen their self-protection capacities to limit or prevent displacement (e.g. early warning systems, cultural resistance, etc.) in Urabá.

•Universidad Nacional de Colombia (under the umbrella of OL): Holds university courses on displacement in Bogotá and supports a legal aid clinic in Pasto which provides legal counselling to IDPs at no cost. Will establish three more legal aid centres to provide counselling and legal assistance to IDPs.

•Liga Internacional de Mujeres por la Paz y Libertad (LIMPAL): Provides legal aid to women and their associations in the Atlantic Coast region and supports productive projects that will enhance women's self-reliance. LIMPAL also advocates children's rights.

•Instituto Latinoamericano de Servicios Legales (ILSA): Provides legal assistance in the protection of IDP property. Organises the “Mesa de mujer y conflicto”.

•Organización Nacional Indígena de Colombia (ONIC): Protects indigenous IDPs and indigenous-at-risk of displacement.

•Organización Indígena de Antioquia (OIA): Protects and supports, with training and technical support, indigenous IDPs and their communities.

•Organización Indígena de Putumayo (OZIP): Protects indigenous IDPs and implements projects to strengthen their self-protection capacities to limit or prevent displacement (e.g. early warning systems, cultural resistance, etc.).” (UNHCR, 1 July 2003)

Bucaramanga Commitment organization established an Observatory for Forced Displacements in the Northeast (2003)

- The Observatory for Forced Displacements, Human Rights and Armed Conflict aims at improving the level of information to find solution to the plight of displacement in the Santander region

“**Bucaramanga:** The Northeast Observatory for Forced Displacements, Human Rights and Armed Conflict was established. This initiative, coordinated by the Bucaramanga Commitment organization, seeks to convene different organizations, entities and displaced population associations interested in finding solutions to the problems of forced displacement and human rights. This effort is aimed at improving the level of information on human rights and forced displacement in the northeast region of Colombia, a zone that has traditionally shown weaknesses in the databases of the different information systems. It also intends to exert a positive influence for the improvement of information opportunities in the search for humanitarian solutions to the problems of displaced populations.” (UNCTC, 30 August 2003)

Overview of Project Counselling Service (PCS) activities for IDPs (2003)

- PCS is an international consortium created in 1979, made up of the Danish Refugee Council (DRC), Norwegian Refugee Council (NRC), Action by Churches Together (ACT/NL), Swiss Interchurch Aid (HEKS), and the Canadian agency Inter Pares (IP)
- PCS works with local counterparts, IDP organisations, grassroots and church organisations
- PCS addressed its work in three directions: humanitarian assistance and protection; development and strengthening of the human and institutional capacities; and political advocacy
- In Colombia PCS works in Uraba-Atrato since 1992, in the Northeast since 1995, in Bogota since 2000 and in frontier areas
- PCS has projects in Soacha with IDPs in the areas of food, income generation, housing, education and psychological attention
- PCS accompanies local NGOs and advocates better conditions for IDPs before state authorities and the international community
- Funds are channelled through Mencoldes, a local social organization that provides relief aid to IDPs in Soacha through low-cost micro-projects
- PCS supported the construction of five humanitarian and community socio-cultural centres through local organizations which will serve as reception centres for IDPs and will offer training on human rights
- In Magdalena Medio, PCS designed a protection plan in 2003 for rural populations in areas where state presence is weak, where irregular armed actors are disputing territories and impose food and economic blockades

“The **Project Counselling Service (PCS)** is an international consortium of European and Canadian co-operation agencies created in 1979. It is made up of the Danish Refugee Council (DRC), Norwegian

Refugee Council (NRC), Action by Churches Together (ACT/NL), Swiss Interchurch Aid (HEKS), and the Canadian agency Inter Pares (IP). PCS works in Peru, Central America / Mexico and Colombia.

PCS is developing activities in countries in conflict and post-conflict situations. It works with local counterparts, grassroots and church organisations; and recognises those affected by the internal conflicts, especially refugees and displaced peoples and their organisations and social movements, as the participant population.

PCS addressed its work in three directions: humanitarian assistance and protection of the refugee and displaced populations; development and strengthening of the human and institutional capacities; and political advocacy. In Colombia, PCS works in the following sub-regions: Uraba-Atrato (Urabá Chocoano, Urabá Antioqueño, Medio Atrato), the Northeast (Catatumbo and Magdalena Medio), Bogota and frontiers (with Venezuela, Ecuador and Panama).” (PCS, 26 September 2003)

Cundinamarca - Soacha

“Given the lack of state investment to provide for the ever-increasing numbers of displaced and urban poor in Soacha, NGOs have taken on the task of responding to the humanitarian crisis. For the past three years, Cazuca’s NGOs have embarked on a campaign they call ‘Cazuca Lives,’ which seeks to highlight the plight of the displaced and threats against communal leaders and NGOs and to denounce human rights violations before the state. Some international organizations are also involved in Cazuca. ACT Netherlands sponsors numerous interventions in Soacha through the Project Counselling Service (PCS), which accompanies local NGOs and advocates better conditions for internally displaced peoples before state authorities and the international community. Funds are channeled through Mencoldes, a local social organization that provides relief aid to those who fled to Soacha and promotes low-cost micro-projects for people to start their own small informal businesses such as coffee sales and handicrafts. ACT also funds housing projects for displaced families in cases where the state does not provide them with adequate dwellings, and supports various umbrella groupings consisting of NGOs and other social organizations that work with the displaced in Soacha.

[...]

The Project Counselling Service has been working in Bogota and Soacha since 2000. PCS works on a number of areas: (1) relief and development aid; (2) local capacity building with particular emphasis on the construction of local processes, and work with the displaced, minors and women; and (3) political advocacy. PCS works in the urban neighborhoods of Usme, Bosa, San Cristóbal and Ciudad Bolívar in Bogota; and Altos de Cazuca in the municipality of Soacha.

Through its local counterparts PCS supports relief and development projects which include food aid, income generation projects, housing, education and psychological attention.

As part of its political advocacy work, PCS supports, advises and ‘accompanies’ local organizations in negotiating better living conditions for internally displaced persons before state authorities. PCS also promotes and facilitates the construction of ‘round table discussions’ in which humanitarian and development agencies working in the area coordinate their activities. PCS continuously highlights the detrimental human rights and socio-economic situation before state authorities and international actors.” (PCS, 4 December 2003)

Magdalena Medio

“The Project Counselling Service (PCS) has been working in the Magdalena Medio (MM) since 1995.

[...]

(1) Through its local counterparts, PCS supports projects of food security, local capacity building and housing. PCS works through a number of local organizations in the Magdalena Medio, among them the Dioceses of Magangue and Barrancabemeja, OFP (Popular Feminine Organization), Asodesamuba (a social organization consisting of approximately 400 displaced families), Fidhap (responsible for housing improvements), and ATCC (Peasant Association of the Carare).

(2) Capacity building emphasizes administrative, organizational and financial support. For example, the Foundation 'Women and Future' is currently doing a consultancy for Asodesamuba, which focuses on characterizing the displaced population associated with that social organization. This will involve doing a needs assessment of the associates and strengthening the participatory process within Asodesamuba.

(3) In light of the perpetuation of armed conflict and increasing lack of protection for the rural population in the Magdalena Medio, PCS designed a protection plan for the MM region earlier this year. The plan is aimed at vulnerable rural populations living in areas controlled by irregular armed actors or disputed zones that are constantly facing food and economic blockades, are forcibly recruited and stigmatized. The plan's first phase – currently underway – seeks to build alliances with other organizations present in the region (UNHCR, the Dioceses of Barranca and Magangue, the Jesuit Refugee Service and the regional Ombudsman's Office). Initially the plan will be implemented in three rural zones, which are currently being identified. Under the plan, humanitarian principles and criteria are to be disseminated, rural communities accompanied, and the development of armed conflict and humanitarian crisis monitored. The plan seeks to distribute relief aid in zones of humanitarian emergencies.” (PCS, 28 August 2003)

Uraba – Atrato region

“The Project Counselling Service (PCS) has been working in the Uraba- Atrato region since 1992, currently centering on the urban centers of Quibdó and Riosucio and the rural areas of the Middle and Lower Atrato. It focuses on three aspects: (1) relief and development aid, (2) local capacity building and (3) political advocacy.

Through its local counterparts, mostly ethno-territorial and church organizations, PCS supports projects of relief aid, income generation, education and housing. As a result of the massive displacements of Bellavista in 2002, local organizations supported by PCS constructed five humanitarian and community centers along the Atrato River. While they will serve as reception centers for displaced families, they are most importantly seen as communal and cultural spaces in which communities plan socioeconomic activities and receive training on human rights issues. The centers are part of a protection plan that seeks to develop adequate protection mechanisms for social processes and local communities.

PCS also supports the construction of a regional Afro agenda through the Interethnic Solidarity Forum of Choco and of indigenous agendas. As part of its political advocacy work we support and accompany local organizations in deepening their dialogues with state authorities, particularly on the issue of voluntary returns of internally displaced people.” (PCS, 2 December 2003)

Diakonie (DEA) appeal for project activities for IDPs in 2004

- Diakonie has a regional office in Bogotá since 2001
- Diakonie's activities target IDPs in the Department of Caquetá
- The state in that area is part of the conflict and RSS makes only partial registration of IDPs
- IOM, ICRC, the Red Cross and MSF are some of the few organizations present in the area
- DEA activities appealed for include agricultural assistance for minimum provision of food to IDPs and psychological assistance amounting to US\$ 341,181
- The operations will target about 6,500 IDPs as well as 230 IDPs who will benefit from additional psychosocial activities

“Diakonie of the Evangelical Church in Germany (EKD)” is the central institution for social services. Within this structure the Diakonie – Emergency Aid (DEA) department works in close collaboration with “Bread for the World”. DEA is committed to assisting people in need and in emergency situations and it is governed strictly by the basic principles of humanitarian aid contained in the *Code of Conduct* of the

International Red Cross and NGOs working in the field of emergency aid. DEA is also a founding member of *ACT*.

Since 2001 DEA has a Regional Office located in Bogotá, and has been carrying out emergency, rehabilitation and disaster prevention projects in several countries of Central America namely Venezuela, Cuba, Haiti and Colombia. Activities are carried out through local organisations or directly by DEA professional teams.

In Colombia activities are being concentrated on support to the displaced population in the southern department of Caquetá. The DEA team is currently made up of 6 agricultural professionals, 7 professionals for psychosocial work and office and field support staff. Work is undertaken in the neighbourhoods of Florencia, capital of the department, where thousands of families, displaced by the violence, have arrived. The projects currently in progress are directed towards the recovery of individuals and families, the stimulation of the formation of social, local and mutual help networks, and community organisation. The work focuses on urban agriculture, which allows the families threatened by hunger to produce a part of their food requirements, with special play and cultural activities aimed towards children, young people, women and men.

In rural zones in the south of Caquetá DEA co-operates with local organisations such as the Vicaría del Sur, which promotes the resistance of besieged communities in the middle of the conflict against forced displacement. In this area food production is also combined with the strengthening of community cohesion. [...]

The State, which is part of the conflict, neither wants nor has resources to attend to these problems. The *Red de Solidaridad Social*, the responsible state authority, limits itself to undertaking some partial registrations that do not reflect the size of the tragedy, and to a haphazard distribution of food to the displaced people for the first three months after they have registered.

International aid organisations are not well represented in Caquetá. The United Nations has only one office - the *International Organisation for Migration (IOM)* in Florencia. In addition, the Spanish NGO *Medicos sin Fronteras* is operating in the northern area of the department. The *International Committee of the Red Cross* does some protection work and distributes emergency aid via the *Colombian Red Cross*. The *Dutch Red Cross* carries out work focussing on improved housing. However, all these activities put together do not even cover the minimum basic needs of the population affected by the conflict. Although there is no formal co-ordination between the actors, there is a permanent dialogue and a distribution of tasks and zones of intervention.

Meanwhile, in the rural zones many communities resist, amongst them Belén de los Andaquíes, Remolino del Caguán, San Vicente del Caguán and Cartagena del Chairá. In addition to the mortal threat of conflict, the inhabitants confront hunger, and their continued presence in the villages depends on their capacity to produce the essential food on their small plots of land.

[...]

The humanitarian situation clearly exceeds the current capacity for humanitarian response. One of the most serious problems that the displaced and highly vulnerable population face is that of hunger. At the same time, the city and the surrounding areas have land that is potentially suitable for the production of food. Benefiting from the experience that DEA has in this line of work, it has been decided, after a rigorous study of the situation in several departments in the south of Colombia, to extend the work of DEA towards the city of Popayan.

IV. GOAL & OBJECTIVES

Goal: the overall goal is to provide emergency support to the displaced and vulnerable populations in the departments of Caquetá and Cauca. These direct and indirect victims of the armed conflict will be assisted through agricultural assistance to ensure a minimum provision of food, psychosocial assistance and strengthening of social networks.

Objectives

To improve the food situation of 450 families affected by the conflict in Florencia, Belén de los Andaquíes, Remolino del Caguán, San Vicente del Caguán and Cartagena del Chairá, through the setting up of vegetable gardens and small subsistence crops.

-To improve the food situation of 200 families in the urban zone of Popayán and neighbouring municipalities through the setting up of small plots of land for horticulture.

-To deliver emergency food rations to 400 families in Caquetá and Cauca as an initial support mechanism while setting up farming production.

-To continue to support 650 families in Florencia and Belén de los Andaquíes that have vegetable gardens through technical and community accompaniment by trained promoters and facilitators.

-To strengthen the construction and consolidation of social networks through psychosocial assistance to individuals, families, groups and local organisations.

-To start or to complement the training of 85 promoters and facilitators that will accompany the agricultural and psychosocial activities and processes.

-To educate groups of mothers (80), children (90), men (60) and families (80) through ludic and artistic elements directed towards the reconstruction of their life projects and peaceful communal living in conditions of human dignity.

[...]

1,300 families will benefit from the project, equivalent to approximately 6,500 people. 230 people will also benefit from additional measures of a psychosocial nature.

[...]

FOOD SECURITY

All the activities for the establishment of vegetable gardens and subsistence crops encourage active participation of the beneficiaries. The project will work with new knowledge based on ecological farming practices that enable intensive production on small areas of land. It will also generate common spaces for interchange and mutual help during implementation with the basic idea of generating and / or strengthening informal social networks.

[...]

PSYCHOSOCIAL ASSISTANCE

Diakonie will use Gestalt therapy for the psycho-emotional recuperation of the beneficiaries, such as expressive elements (painting, games, art, guided journeys and writing) and relaxation directed at helping the participant make contact with the *inner child*. The therapy will take place in group sessions and will be aimed at the individual expression of painful experiences. At the same time it will generate through this sharing an element of collective identity that can be used to strengthen the group ties and realise the potential of group work.

[...]

TOTAL ESTIMATED EXPENDITURE US\$ 341,181” (ACT, 23 October 2003, pp.6-15)

Lutheran Church in Colombia (IELCO) appeal for project activities for IDPs in 2004

- The Evangelical Lutheran Church of Colombia (IELCO) established a Social Development Office in 1982 and worked with IDPs since 1996 promoting integral development and self-reliance
- IELCO assists IDPs in the departments of Meta, Boyacá, Tolima, Santander and Cundinamarca
- IELCO projects will target about 3,900 IDPs in areas of nutritional assistance, health, psycho-social attention, training in risk management, advocacy and human rights for an appealed budget of US\$ 322,254

“The Evangelical Lutheran Church of Colombia (IELCO) was founded in 1958 and joined the LWF in 1966. IELCO's Social Development Office was established in 1982, with a mission to promote integral development projects for families and marginalised communities to assist them in becoming self-reliant.

The main objective of the Development Office is to promote, advise and execute integral development projects in both rural and urban communities, in order to improve their social, economic, cultural and spiritual level as well as foster self-reliance and community commitment. IELCO has also provided emergency assistance to victims of earthquakes (1983 - 1985 - 1999) floods (1985 - 1987 - 1994 - 2000).

IELCO has been working with internally displaced people since 1996. Its work is limited as funds are not always available to target all displaced, and co-operation agreements have been signed with both NGOs and other Government agencies working with the displaced to complement activities.

[...]

[Areas of operation]

Villa Hermosa Settlement in the city of Villavicencio, Department of Meta [...] Municipality of Sogamoso, Department of Boyacá [...] Neighbourhood of Las Delicias in Ibagué, Department of Tolima [...] Nueva Colombia Settlement, Municipality of Piedecuesta, Department of Santander [...] Sectors of Divino Niño and Ducales in the Municipality of Soacha, Department of Cundinamarca [...]

Goal

To provide humanitarian assistance to IPDs through components that develop communities, preserve dignity and prevent new displacements, in zones located in the Departments of Cundinamarca, Boyacá, Santander, Tolima and Meta.

Objectives

- To provide nutritional assistance to 300 children from families displaced by the violence and to 60 elderly people
- To contribute to promoting the self reliance of 290 displaced families through the implementation of small productive projects, the raising of domestic animals and the generation of vegetable gardens
- To provide basic medical assistance to 700 displaced families that do not receive health care from the state
- To promote the psycho-social recovery of approximately 310 families who are the victims of the armed conflict
- To provide training for five reference groups and extension workers in the communities and the IELCO field team, in risk management and disaster prevention.
- To promote and disseminate information on human rights in order to empower the displaced to be assertive in their demands to the authorities.
- To make an impact on local state policies related to assistance to the displaced population.

[...]

A total of approximately 786 families will benefit or approximately 3,900 IDPs. 60% of these will be women, in particular heads of households, and consequently an important number of children will benefit that are malnourished and have stopped attending school owing to the situation of their families.

[...]

TOTAL ESTIMATED EXPENDITURE US\$ 322,254” (ACT, 23 October 2003, pp.15-24)

Project Counselling Service (PCS) appeal for project activities for IDPs in 2004

- PCS is a consortium composed of the Danish Refugee Council (DRC), the Norwegian Refugee Council (NRC), the Aid of the Evangelical Churches of Switzerland (HEKS), Joint Action by Dutch Churches - ACT/NL and the Canadian agency Inter Pares (IP)
- PCS works for IDPs through local counterparts and grassroots organisations notably the Mennonite Church
- PCS's three objectives focus on humanitarian assistance and protection, capacity-building and policy impact at national and international level

- PCS activities will benefit about 1,160 IDPs in Bogotá, Usme, Bosa, Ciudad Bolívar and Soacha
- State and municipal authorities of Bogotá and Soacha have not taken IDPs into account in any of their socio-economic plans
- The Unit for Integrated Assistance to the Displaced Population of the Office of the Mayor of Bogotá reported that between 1999 and 2002 only 8,3% of the IDPs in Bogotá received assistance
- PCS activities in Soacha and Bogotá aim at facilitating relocation, integration and social reconstruction of IDPs and help in particular women and children to overcome intra-family violence for an appealed budget of US\$ 81,700

“The Project Counselling Service (PCS) is an international consortium of European and Canadian agencies created in 1979 and composed of the Danish Refugee Council (DRC), the Norwegian Refugee Council (NRC), the Aid of the Evangelical Churches of Switzerland (HEKS), Joint Action by Dutch Churches - ACT/NL and the Canadian agency Inter Pares (IP).

PCS in Colombia works with local counterparts, grassroots and church organisations. The work is, carried out with the full participation of the population affected. The work of PCS has focussed on three objectives:

- humanitarian assistance and protection of the populations affected by internal conflict;
- development and strengthening of the capacities of people, local NGOs, church and popular organisations aimed at achieving lasting solutions to the problems of conflict resolution; and
- policy impact at a national and international level.

PCS Colombia has programmes in the following regions: Urabá-Atrato (Bajo Atrato, Urabá Antioqueño, Medio Atrato), North East (Catatumbo and Magdalena Medio), Bogotá and the Border Areas (with Venezuela, Ecuador and Panama).

Description of ACT Member's Implementing Partners

Mennonite Church: Programa Pastoral para Desplazados [...]

This program seeks to instil hope in the people through assisting in the psychological, spiritual and social restoration of the displaced families and in the reconstruction of their social fabric.

The Mennonite Church, as an executing counterpart, will contribute infrastructure: rooms and equipment for carrying out the workshops and voluntary staff (some twenty people), in order to undertake the project. [...]

Neither the Plans for Socio-Economic Development and Infrastructure of Bogotá and the neighbouring municipality of Soacha for the three-year period 2002-2004, nor the mechanisms for citizen participation, such as the Local Planning Councils and the district and municipal mayor's offices, took the displaced population into account. Consequently, there is no strategic planning to confront the problems of displacement, which continues to become more worrying and complex in these two municipalities. In a forum on forced displacement held by the *Bogotá cómo vamos* project [...], the Unit for Integrated Assistance to the Displaced Population of the Office of the Mayor of Bogotá reported that between 1999 and 2002 it had assisted 8,362 families, equivalent to approximately 42,000 people, out of a total of 90,000 families, approximately 450,000 people, which is the estimated displaced population in Bogotá. That is to say, they have assisted only 8.3% of the total displaced population, which has arrived, in Bogotá. The assistance provided is only humanitarian and emergency aid and provides practically no help in terms of socio-economic stabilisation.

The project will intervene in the city of Bogotá and in the municipality of Soacha, as these are two centres that receive an important percentage of IDPs in Colombia. It is currently calculated that approximately 20% of the displaced population in Colombia is in Bogotá. The IDPs in Bogotá and Soacha are considered to be very vulnerable and in highly precarious living conditions.

The specific places where the project will intervene in Bogotá are: Usme, Bosa, Soacha and Ciudad Bolívar.

[...]

Goal

To facilitate the relocation, integration and social reconstruction of women and children who are the victims of forced displacement due to violence, and to help them overcome intra-family violence. This will be done through psychosocial and nutritional support; financing; technical and administrative training for the mounting of productive projects; and advice and accompaniment in organisational processes and negotiation and dialogue with the state.

Objectives

-To reduce levels of inequality, intra-family violence, preventable illnesses, child abuse, malnutrition and lack of affection currently existing within the families that are victims of forced displacement, through an educational, psychological and nutritional programme.

-To generate income for a group of female headed families through the setting up and implementation of four small enterprises in the localities of Bosa, Ciudad Bolívar and Usme in Bogotá and in the area of Altos de Cazuca in Soacha.

-To begin a process of negotiation, dialogue and enforceability of the rights of women beneficiaries of the project through training and education in human rights, participation and leadership and the creation of autonomous internally displaced women's organisations.

Expected Outcomes

-Implementation of 4 Child Teaching and Community Centres (CCTC) in Bosa, Soacha, Ciudad Bolívar and Usme, for the execution of a psycho-pedagogical rehabilitation programme for training, education and improvement in the health of 120 displaced children.

-Training of 20 women on the pedagogical proposal to be developed in the CCTC

-4 small enterprises created: one in Ciudad Bolívar and one in Soacha, both for the manufacture and trade of crafts, one in Bosa for the manufacture and trade of cleaning equipment and one in Usme for the manufacture and trade of cleaning equipment.

-Four autonomous organisations created for women victims of forced displacement. These will negotiate, discuss and demand their rights from the state and seek resources from private and official sources in order to guarantee the continuity and sustainability of the 4 Child Teaching and Community Centres.

V. TARGETED BENEFICIARIES

The beneficiaries will be the displaced population (women and children) located in Ciudad Bolívar, Usme and Bosa in Bogotá and the area of Altos de Cazuca in Soacha.

Total direct beneficiaries: 560

Total families benefiting directly: 120

Total indirect beneficiaries: 600

[.....]

NUTRITIONAL RECOVERY & PSYCHOSOCIAL ASSISTANCE

The project will benefit 120 children who are the victims of forced displacement, providing them with teaching and psychological assistance and health protection. 240 displaced children and children from the receiving communities will also benefit from nutritional feeding.

[...]

INCOME GENERATION

120 displaced women and women from the receiving community will benefit through the generation of employment.

[...]

EMERGENCY FUND – RETURN & RELOCATIONS

A fund to help IDP's in the communities where the project is working and that are not beneficiaries of the other activities. The support will be directed to cover travel and legal expenses for returns to their places of origin and to support relocation within the country or exodus due to insecurity.

ORGANISATION & ADVOCACY

The displaced mothers responsible for the Child Teaching and Community Centres, the associates of the small enterprises or associative work enterprises and other women who are the indirect beneficiaries of the Centres and productive projects (approximately 200 displaced women and women from the receiving communities).

[...]

TOTAL ESTIMATED EXPENDITURE US\$ 81,700" (ACT, 23 October 2003, pp.24-32)

The Church plays a central humanitarian role for Colombian IDPs (2003)

- The Catholic Church also assists IDPs through Pastoral Social and the Colombian Red Cross
- Pastoral Social registers IDPs and monitors displacements
- Local dioceses defend IDPs help strengthening human rights organizations
- The Church provides IDPs with emergency and temporary post-emergency assistance in its reception centers, like in Cucúta
- The Church accompanies communities at risk of displacement
- The Church is part of the verification commissions to guarantee safe returns and accompanies IDPs in all stages of return
- Despite the fact that the Church closely cooperates with international organizations for protection, many of its members (Catholics and Protestants) have been assassinated by armed actors

"The Catholic Church, through the Pastoral Social, and the Colombian Red Cross are the most important non-governmental humanitarian actors in Colombia.

Pastoral Social monitors and maintains a registry of internal displacement. [...] Dioceses across the country provide support to IDPs by strengthening organisations that defend the rights of indigenous and Afro-Colombian people, such as OREWA and the Integral Peasant Association of the Atrato (ACIA). There are also Church reception centres for IDPs, such as the *Centro de Migración* in Cúcuta. In these, displaced persons and families are provided with emergency and, temporarily, postemergency assistance. Missionaries visit and stay in villages threatened by the armed groups. In emergencies, Pastoral Social organises aid operations, supplying blockaded and isolated communities with food and other basic provisions. [...]

Members of the Church are also involved in the return operations. They form part of the return committees organised by RSS and the municipalities. In order to guarantee a safe return, Church verification commissions visit the first and then accompany the returnees. If there are armed groups in the areas, Church members engage them in humanitarian talks aimed at reducing any risk for the returnees. The Church also promotes the interests of returnees by reminding the authorities to comply with their resettlement obligations.

Despite being generally perceived and treated as a neutral actor, the Church has experienced difficulties in carrying out humanitarian work. For example, in 2002 the FARC looted the boat used by the dioceses of Quibdó to supply the community shops on the Atrato River. To increase protection, the Church seeks to cooperate closely with international organisations in its humanitarian operations. [...] As part of the escalation of the armed conflict, priests and missionaries are increasingly threatened. The figures are

alarming: 36 members of the Catholic Church assassinated since 1995, sixteen in 2001 and 2002 alone, and 82 protestant priests assassinated between 2000 and 2002. [...]” (ICG, 9 July 2003, p.19)

Profamilia makes up for state’s absence of reproductive health services for IDPs (2003)

- Profamilia provides 70% of Colombia’s reproductive health services through 42 clinics in 32 cities and mobile health projects, about 70 percent of the reproductive health and family planning services available
- Under Law 100 the General Social Security System was introduced and health services including to IDPs were decentralized and fell under the responsibility of mayors
- Municipalities are not supported with resources or technical assistance to respond to IDP needs
- MOH said it was easier to assist mass displacements as for individual displacement no resources were available
- Profamilia implements positive-discrimination policy for IDPs subsidizing 99% of their services to IDPs
- Even though Profamilia charges a symbolic fee they never turn away IDPs emergency cases who cannot pay
- Profamilia in Soacha slums established mobile services such as gynaecology, antenatal care, family planning as most IDPs could not afford to pay transport to clinics

“As a result, government family planning services are marginal. A good majority of family planning services are provided instead by Profamilia, which is subcontracted through the Social Solidarity Network.

Profamilia provides, through its 42 clinics in 32 cities and mobile health projects, about 70 percent of the reproductive health and family planning services available in Colombia. Profamilia received the 1988 United Nations Population Award.

(Marie Stopes International, etc..., 13 February 2003, p.12)

“The Ministry for the Environment and Population, responsible for the formulation of public policy on population and health, has not yet developed a national population policy. [...] In 1993, the Colombian government and the Ministry of Health began restructuring the health system by introducing a General Social Security System (Law 100). Under this system, mayors are responsible for formulating a plan to ensure local health services, including reproductive health services, to every citizen.

Since 1993, the public health sector has experienced major difficulties in reaching much of the population, especially the very poor and the displaced.” (Marie Stopes International, etc..., 13 February 2003, p 12)

“The decentralized system requires municipalities to provide services to IDPs but the municipalities are not supported with resources or technical assistance to do so. Moreover, officials explained, some host municipalities do not want to provide solutions or make things too comfortable for IDPs as it might encourage them to stay.

MOH representatives said that it was easier to manage health services for people displaced in large groups than it was to support individuals. They explained that during the initial emergency of a mass displacement there are a lot of resources and NGOs to assist the IDPs.” (Marie Stopes International, etc..., 13 February 2003 p.17)

Profamilia in Bogotá

Profamilia manages four centers in Bogotá and initiated its first IDP project with funds from the Reproductive Health for Refugees Consortium small grants program with technical support from Marie Stopes International (MSI). Since then, Profamilia has secured funding from the British National Lottery Fund (\$400,000 for two to three years) and is now funded by USAID (\$1.5 million 2001; \$2.5 million per year from 2002–2004) to provide services and education to IDPs.

Profamilia provides services to everyone and 99 percent of its services to the displaced are subsidized. Profamilia charges 500 pesos (\$0.27) for a family planning consultation; 1,000 pesos (\$0.54) for general medicine and 2,000 pesos (\$1.08) for female/male sterilization (the most common family planning method in Colombia). Profamilia's perception is that health sector reform has led to a major financial crisis in the public health system. Profamilia does not distinguish IDPs from their general beneficiary population, including the urban poor, and is committed to the contributory system they worked hard to establish to sustain reproductive health services, to which all Colombians have a right.

Profamilia refers emergency obstetric cases to hospitals. The director of Profamilia said that no emergency cases, such as survivors of sexual violence, are turned away if they cannot pay; an emergency fund supports these cases.

Profamilia works closely but quietly with local churches. However, Profamilia has been in conflict with the Church over the last year because they introduced and began social marketing of emergency contraception, selling 120,000 doses in 2001.

[...]

Soacha

Many IDPs have settled in Soacha, a large urban area on the outskirts of Bogotá in Barrio el Progreso, in the department of Cundinamarca. There is a 90 percent concentration of IDPs living in makeshift shelters of scrap wood with dirt floors and tin roofs. Generally, IDPs do not own the land they settled on and some pirate electricity. Water is available to the community three half-days per week via a garden hose attached to community roof-top water tanks provided by Médicos sin Fronteras (MSF – Doctors without Borders). Most homes use outdoor latrines and open sewage water drains into paths to a ravine.

Profamilia implements a mobile project to assist IDPs in Soacha. Profamilia initiated the project three years ago following an evaluation analysis and meetings with community leaders. Their findings revealed IDPs' problems with transport and access to Profamilia clinics in Bogotá. Profamilia responded by working with the community to establish health committees and community sites to provide mobile services.

Profamilia currently provides mobile services once a month to approximately 25 sites in Cundinamarca, including some community members' homes. Mobile services include general medicine, gynecology, pap smears, antenatal care, family planning and health education workshops.”(Marie Stopes International, etc..., 13 February 2003, pp.28-9)

NRC projects for IDPs implemented through partner organizations (2003)

“The Norwegian Refugee Council has the following goals for its work in Colombia:

- Strengthen protection measures for internally displaced persons and refugees
- Promote the rights of internally displaced persons and refugees
- Improve internally displaced persons' and refugees' living conditions

This is what we are doing:

- Advocate the rights of Internally Displaced Persons and Refugees.
- Support to NGOs working on education, dissemination and training related to Human Rights and IDPs.
- Capacity building of local NGOs

- Humanitarian assistance to internally displaced in four regions (Urabá, Magdalena Medio, North East and Bogotá), and refugees in the border regions:

- Food security through establishment of community kitchens and distribution of non-food items
- Information, counselling and legal assistance on return for IDPs and refugees
- Shelter (construction and rehabilitation)
- Income generating activities
- Education

Recent developments in projects

A common feature of all the Norwegian Refugee Council's projects in Colombia is that it is local organizations that do most of the work. This ensures good local anchoring of the activities.

For a long time now, the Norwegian Refugee Council has been very active in Choco and the Urabá area. Projects here include building homes, schools and shared premises for internally displaced persons and returning refugees. Funds have also been spent on providing free legal aid, partly to support the internally displaced persons' negotiations with the authorities concerning return to their homes and partly to ensure that the displaced persons' land rights are maintained until they are able to return to their homes. Establishment of fishing and farming projects ensure that the target group are able to earn an income. From May 2002, we will be building reception centres, schools and homes for almost 10 000 Afro-Colombians and Indians that have been displaced in the Choco province after the massacre.

In the Catatumbo region, on the border with Venezuela, the Norwegian Refugee Council has initiated distribution of food, construction of schools and communal kitchens to alleviate the humanitarian crisis that arose where more than 7000 Colombian farmers with driven from their land.

On the borders with neighbouring Venezuela, Panama and Ecuador, we are collaborating with the UN High Commissioner to assist refugees from Colombia, providing shelter, food and legal assistance and information.

Education is a relatively new project area, and in 2003, the Norwegian Refugee Council will initiate projects to ensure that internally displaced children have access to schooling where their rights and needs are protected.” (NRC, 2 January 2003)

Local NGOs and civil society organisations working with IDPs (1999)

- Civil society organizations, including the Catholic Church, local NGOs and universities, play a very important role in protecting and assisting IDPs, given the obvious limitations of the State's response
- NGO action in particular tends to be fragmented, poorly coordinated and limited mostly to emergency assistance, according to UNHCR

"In Colombia, civil society organizations, including the Church, local NGOs and universities, play a very important role in protecting and assisting IDPs. The Catholic Church is the one of the most important social institutions in Colombia and one of the few with a local level presence throughout the country. It has shown an active interest in the IDP problem, inter alia, through the project of the Bishops' Conference to document IDPs displaced at parish level, as well as 'pastoral dialogue for peace' projects. The work of local NGOs is widespread, ranging from grass roots organizations, aid-providers and advocates for IDP rights. Leading national universities are involved in research on different aspects of the IDP phenomena.

Civil society response to IDP needs is especially crucial given the obvious limitations on the response of the State to IDP needs and traditionally limited State presence at local level in many areas. NGO action in

particular tends to be fragmented, poorly coordinated and limited mostly to emergency assistance. A supportive and facilitating role in favour of civil society entities working with IDPs is thus clearly needed." (UNHCR 1999, paras. 18-19)

National and local NGOs

Association for the Promotion of Social Alternatives (MINGA)
CEDAVIDA [[External link](#)]
Center for Popular Investigation and Education (CINEP)
Colombian Commission of Jurists
Colombian Red Cross
Consultoria for Human Rights and Displacement (CODHES) [[External link](#)]
Corporation for the Support of Victims of Socio-Political Violence (AVRE)
Corporation Maria Cano
Episcopal Conference (or Bishops' Conference)
Fundación Educativa Amor
Javeriana University Law School
Justicia y Paz
Latin American Institute for Alternative Legal Service (ILSA)
Medellin Human Rights Committee
National Association of Peasant, Indigenous and Black Women (ANMUCIC)
National Association of Solidarity and Assistance (ANDAS)
Pastoral Social (Caritas) [[External link](#)]
Popular Women's Organization of Barrancabermeja (OFP)
Profamilia
Taller de Vida
(Source: Women's Commission May 1999, p. 20)

Selected activities of the Red Cross Movement

ICRC provides IDPs with relief aid and protection nationwide (2003)

- 180,000 IDPs were assisted by ICRC in 2002 with food and essential household items, compared to 108,000 IDPs in 2001
- From January to July 2003 ICRC assisted 74,271 IDPs
- ICRC mainly provides emergency humanitarian assistance to IDPs for three months but also assists individually displaced people in urban centres
- ICRC assisted the RSS to open six new reception centres for IDPs (Unidades de Atención y Orientación), bringing total number of centres to 16
- ICRC assisted reintegration of IDPs and resident communities with Quick Impact Projects (QIPs) for income-generation, agricultural activities and rehabilitation of infrastructure
- ICRC improved access to health facilities for IDPs through mobile health units run by Red Cross Societies
- ICRC is the only organization which covers the entire country with its 17 offices, maintaining contacts with all parties to the conflict
- ICRC humanitarian assistance provided is linked to protection work by recording incidents and violations of humanitarian law causing displacement

“The year 2002 was marked by a substantial intensification of the conflict, following, foremost, the breakdown of peace negotiations between the government and the principal armed opposition movement, the Revolutionary Armed Forces of Colombia (FARC).

[...]

Operations by armed groups were stepped up, including the sabotage of civilian infrastructure, indiscriminate urban attacks involving explosive devices, hostage-taking and summary executions.

[...]

This resulted in a substantial increase in the number of displaced persons. The number of displaced people assisted by the ICRC reached 179,142 compared to 107,572 in 2001. Consequently the initial budget allowance providing for 115,000 IDPs was too little and the ICRC decided to launch a Budget Extension Appeal in September to cover the needs of another 80,000 IDPs by the end of 2002.

[...]

Assisting people affected by the conflict

In 2002, the ICRC, assisted by the Colombian Red Cross, distributed aid to 179,142 IDPs (39,986 families) from 764 affected municipalities (68.5% of the municipalities in Colombia). IDPs remained the main recipient of ICRC aid. Emergency food parcels were adapted to local norms and contained rice, beans/lentils, vegetable oil, sugar, coffee, powdered chocolate and salt/vegetable stock cubes. Hygiene parcels, bedding material, dishes and cooking utensils were also provided according to individual needs.

The ICRC provided emergency relief for three months to people displaced en masse throughout the country and to individually displaced people in cities where it had a structure. In areas where the ICRC had no structure, the Social Solidarity Network (SSN) distributed emergency aid to the individually displaced. In addition, the SSN was responsible for providing complementary assistance, such as housing, access to health care and education, to all the displaced. With the technical support of the ICRC, the SSN opened six new reception centres⁴ offering comprehensive guidance for displaced people with the aim of centralizing the various State assistance programmes. This brought the total number of centres to 16.

[...]

The ICRC also launched eight QIPs for 3,428 resettled people and completed five others for 1,484 beneficiaries to facilitate the coexistence of residents and displaced/resettled people. The projects included repairing or constructing schools and implementing income-generating projects. In Antioquia and Sucre, two agricultural projects were also initiated for 309 returning IDPs. Furthermore, the ICRC provided 2,092 people resettling in Bolívar, Chocó, Huila and Antioquia with two-week food parcels, hygiene parcels, dishes and bedding material.

While the emergency needs of IDPs and residents were to a large extent covered, their long-term needs, such as housing, education and employment, were still not being met. This was particularly the case for IDPs who were unable to return to their places of origin and instead moved towards the poverty belts of the main cities to join hundreds of thousands of other stranded IDPs.

[...]

Improving access to health services for populations living in conflict-affected rural areas, for IDPs and for war-wounded individuals remained an ICRC priority. To achieve this, the ICRC ran mobile health units; accompanied local medical teams in order to ensure their protection and thereby allow them to run health brigades; and directed beneficiaries to the services provided by the national health system.

The ICRC's four mobile health units in Colombia were run as delegated projects financed by the Red Cross Societies of Norway (in Antioquia and Chocó), Canada (in Bolívar), Sweden (in Putumayo) and Germany (in Caquetá). They provided preventive and curative services including dental care, carried out vaccination campaigns and gave technical advice to communities on rainwater collection, water treatment and the construction of latrines.

[...]

Additionally, the health insurance system did not cover all the medical costs incurred by specialized care. As well as directing individuals to the national health system, the ICRC itself provided specialized medical care covering part or all of the costs incurred such as transport, housing, food, medicines, surgery or physical rehabilitation of the patients. In 2002, the ICRC facilitated access to appropriate specialized

medical care for 428 IDPs, 304 civilian war-wounded and 144 residents of conflict-affected areas.” (ICRC, 19 June 2003)

“In June, the ICRC provided emergency assistance to 9,881 new displaced persons (2,307 families). This assistance reached 2,497 women (442 of them heads of family), 2,162 men and 5,222 children under 18. From January to July 2003, the ICRC has provided assistance to 74,271 displaced persons (16,723 families) 43,623 of them received individual assistance while 29,117 were part of general distributions. Assistance was also extended to 1,331 residents (427 families) and 200 resettled people (40 families).” (UNCTC, 30 August 2003)

“42. The ICRC in Colombia, under the Geneva Conventions framework, carries out protection activities and the dissemination of International Humanitarian Law. These two activities are directly linked to humanitarian aid, and are the central axis of ICRC work. In Colombia, ICRC implements under its mandate various humanitarian aid programmes adapted to basic needs for up to three months. At this emergency stage, the persons affected receive food baskets to meet their nutritional needs, as well as non-food aid. ICRC also facilitates access to other basic services.” (GTD, 29 November 2002, p.13)

“The ICRC delegation in Colombia covers the entire country [and] guarantees a rapid emergency response in terms of protection and assistance, while maintaining regular contacts with all armed groups. Activities in Bogotá and occasionally in the field, were disrupted during the course of the year when the delegation was occupied by several hundred displaced persons seeking to put pressure on the government. Their aim was to obtain humanitarian aid that would enable them to achieve socio-economic rehabilitation.” (ICRC July 2001)

“The ICRC has been present in Colombia since 1980. Presently the ICRC runs 17 offices throughout the country and carries out essential protection and assistance activities for the victims of the ongoing conflict. Some 53 delegates and 200 national employees contribute to the effort. Although the humanitarian consequences related to the latest developments are thus far limited, the ICRC is poised to deal with any needs that may arise from an intensification of the conflict at any part of the country.

[...]

Outside the former "zona de despeje", in particular in the south of the country, the situation has become more tense in many areas. [...] Since January, the ICRC has provided emergency assistance to over 15,000 people.” (ICRC, 1 March 2002)

"During 2000, the ICRC observed a steady increase in the number of civilians displaced either individually or en masse. A total of 124,000 people received emergency assistance provided by the ICRC and, whenever circumstances permitted, by the Colombian Red Cross. ICRC's technical support for the government rehabilitation programme for displaced persons was also increased.

The majority of the displaced continued to suffer directly or indirectly from the prevailing lack of security. The humanitarian assistance provided was therefore clearly linked to the protection work carried out nationwide by ICRC delegates, who recorded the incidents and violations of humanitarian law that caused displacement. Numerous representations were subsequently undertaken with the parties to the conflict so as to convince them of need for greater compliance with international humanitarian rules.

Post-emergency aid was channelled through formal ICRC programmes such as “Quick Impact Projects”. These programmes, which were implemented by the ICRC in several departments in coordination with public agencies and other organizations, are designed to help displaced, returnee and host communities during the critical transition period between relief, rehabilitation and community integration. The projects focused on the restoration of small-scale infrastructure such as community centres, schools and bridges, and on income-generating projects in the agricultural and fisheries sector.

Medical personnel abandoned State-run health centres in several conflict areas owing to the steady deterioration in security conditions. In other areas the ongoing conflict prevented civilians from having

access to health services. Together with Colombian Red Cross workers, the ICRC's four mobile health units (some of them water-borne) regularly visited isolated communities, providing basic medical assistance and conducting health-promotion activities." (ICRC July 2001)

Regional response

Inter-American Commission on Human Rights (IACHR) of the OAS has is taking preventive measures against displacement in Colombia

- The IACHR solicited the Colombian state to take preventive measures to prevent human rights violations against returned communities in Chocó
- In 1992 the Permanent Consultation on Displacement in the Americas (CPDIA) was created to the initiative of the regional UN representatives
- The Inter-American Institute of Human Rights is the secretariat of the CPDIA which members are IOM, the Inter-American Commission on Human Rights, and ICRC
- In 1997 CPDIA undertook its second mission to Colombia to assess the deterioration of the problem of internal displacement and observe whether GOC had implemented its recommendations

"Es importante también recordar que algunas comunidades desplazadas o en retorno accedieron a mecanismos regionales de protección de los derechos humanos, como las medidas cautelares de la Comisión Interamericana de Derechos Humanos (CIDH). En estos casos, resulta profundamente preocupante la inobservancia por parte del Estado colombiano de los pactos suscritos en la materia y la falta de adopción de medidas efectivas para responder a las recomendaciones de los organismos internacionales. Lo anterior se hace más agudo en cuanto al ejercicio del derecho a la justicia por el nivel de impunidad generalizado.

Es el caso de las comunidades en retorno de la cuenca del Cacarica (Chocó), Comunidad de Autodeterminación Vida y Dignidad. Desde el 17 de diciembre de 1997, la CIDH solicitó al Estado colombiano la adopción de medidas cautelares ante la perpetración de violaciones de derechos humanos contra los miembros de esta comunidad. A pesar de eso, los factores que generaron el desplazamiento forzado, permanecen cinco años después. Grupos paramilitares mantienen presencia cerca de esta comunidad, han establecido bloqueos económicos, perpetrar asesinatos y desapariciones forzadas y hostigan continuamente a estos pobladores [...]" (Mencoldes, 20 August 2003, p.9)

"The Permanent Consultation on Displacement in the Americas (Consulta Permanente para el Desplazamiento Interno en las Américas – CPDIA) was established in November 1992 on the initiative of the regional representatives of specialized agencies of the United Nations System and the World Food Program (WFP). The Inter-American Commission on Human Rights, the Organization for International Migration, the Inter-American Institute of Human Rights, and the International Committee of the Red Cross joined this initiative. Several international non-governmental organizations and independent experts have also taken part in it. The Inter-American Institute of Human Rights acts as the Technical Secretariat for the Group." (IACHR 1999, chapter VI, endnote 17)

The Permanent Consultation on Displacement in the Americas undertook two fact-finding missions, in November 1993 and April 1997. In 1997, the CPDIA undertook its second mission in the country to assess the deteriorating displacement situation and to observe government policies and implementation of recommendations that the CPDIA and other international organizations made in previous years. (IACHR 1999, chapter VI)

Policy and recommendations

Recommendations from the evaluation of UNHCR's programme for IDPs in Colombia (May 2003)

- UNHCR should facilitate the rehabilitation of IDPs in addition to capacity building activities
- UNHCR should link up with development-orientated organizations to research durable solutions for IDPs
- UNHCR should facilitate NGO work by creating humanitarian spaces
- Independent legal advice to IDPs should be made more accessible
- The seniority of staff on the field should be increased

“5. UNHCR's mandate on IDPs in Colombia should be expanded following the Humanitarian Plan of Action (HPA). By increasing UNHCR's field presence, through the opening of a new office in Barranquilla (and satellite offices in Pasto, Quibdó and Cali), enhanced national coverage will be achieved. An increased field presence will reinforce UNHCR's protection role, including the accompaniment of vulnerable IDP communities. Despite the deteriorating humanitarian crisis and increased UNHCR involvement, discussions should continue about a clear timeframe for the programme and exit strategy.

6. Governmental and international responses to internal displacement need to be improved, with a greater focus on concrete action in remote areas affected by the Colombian conflict. UNHCR should not only undertake capacity building activities, but also facilitate the rehabilitation of IDP communities.

7. The Joint Technical Unit will need more independence to properly guide the National IDP Assistance System. Although UNHCR is concentrating on capacity building and technical advice for IDP protection during the emergency phase attention also needs to be given to the search for durable solutions.

8. To research and put forward durable solutions UNHCR will have to consider the post-emergency phase of displacement. Whenever feasible, voluntary return movements should be promoted and IDP communities should be accompanied. Local integration of IDPs could be more successful if the needs of the receiving communities are taken into account and a community-based approach is followed. There is great need for socio-economic stabilization programmes; in this respect UNHCR could link up with more development-oriented organizations with relevant experience.

9. UNHCR should continue to facilitate the work of NGO partners by creating “humanitarian spaces” and ensure access to IDP communities. UNHCR can play a mediating role between government institutions and NGO partners. UNHCR's implementing partners should be closely involved in UNHCR programming exercises.

10. As head of the Thematic Group on Displacement (GTD), UNHCR with the support of OCHA, will initiate the implementation of the HPA. Once the new UN Resident Coordinator is on board, coordination mechanisms will need to be reviewed.

11. The HPA will need to focus on pilot initiatives to allow the UN system to conduct detailed, joint planning. The plan will also be used as a donor appeal document. The monitoring of the plan's achievements will only be possible if the different agencies commit themselves to measurable indicators. The HPA will have to be in line with government policies and ensure

good co-operation with the ICRC and NGO partners. UNHCR should further support the UN Rapid Response System as an integral part of the HPA.

12. UNHCR and its partners should increase efforts to further mainstream gender equality in all its activities on behalf of IDPs. This may require renewed management support, both at branch office and field level; increased visibility (i.e. COPs, public information activities, protection strategy) of gender equality processes and activities to advance the right of IDP women and children, reinforced partnerships with local organizations and government institutions, as well as building implementing partner capacity to operationalize this approach. UNHCR, in co-operation with IDP associations, will have to facilitate access to basic services and participation of IDPs in income generating activities (e.g. employment schemes, micro-credit). Additional efforts should be made to orient and inform IDPs about their rights.

13. Protection of IDPs could be enhanced by additional and up-to-date public information. IDP issues still need more visibility in Colombia. UNHCR could increase its advocacy role, always balancing it with security concerns. A joint UN public information strategy is recommended, in conjunction with the implementation of the HPA. The creation of a Humanitarian Information Centre could assist in offering structured background information on internal displacement.

14. The local, decentralized application of the Colombian IDP legislation will need increased enforcement. UNHCR could play a supportive role here by training local authorities on IDP protection, following a rights-based approach. Training activities should be more concrete and result-oriented. Independent legal assistance for IDPs should be made more accessible, allowing IDPs to document lost property and address other legal problems they face. The documentation campaign could be accelerated.

15. More UNHCR involvement in Colombia requires stronger management, which in turn requires more experienced staff. To this end, the seniority of staff in the field should be increased. UNHCR staff in the field should be closely involved in the programme cycle for all UNHCR's funded activities. This could enhance a uniform country-wide strategy. Security concerns for IDPs and humanitarian staff should remain a high priority of UNHCR in Colombia. The continuation of a UNHCR oriented security system should be ensured.

16. In order to address the regional implications of the Colombian conflict, UNHCR Colombia should continue its border-monitoring role in high-risk areas. Country-of-origin information needs regular updating to enhance contingency planning and emergency preparedness in neighbouring countries. UNHCR staff on both sides of the border should be encouraged to have cross border meetings to exchange information on population movements and to develop joint strategies for border monitoring and the establishment of protection networks." (UNHCR, 3 May 2003, pp.2-3)

Recommendations from the Emergency Relief Coordinator (June 2003)

- During his visit to Colombia, Kenzo Oshima recommended the government of Colombia to more actively seek solutions to the IDP crisis and allocate more funding to respond to it
- The ERC recommended that the return of IDPs should guarantee reparation for the rights violated and support to re-build livelihoods
- Regarding the policy of 'democratic security' the ERC recommended that the responsibility to maintain law and order should be balanced with the respect of human rights and the need to protect civilians
- The ERC recommended that attacks against civilians and humanitarian personnel should stop

“Los ataques contra civiles deben cesar inmediatamente y es necesario garantizar tanto el acceso a la asistencia humanitaria por parte de los civiles, como la seguridad de quienes ofrecen dicha asistencia”, señaló Kenzo Oshima.

[...]

"Debido a la magnitud del desplazamiento interno en Colombia, el gobierno podría jugar un rol más amplio en términos de recursos y dedicar más esfuerzos para resolver este problema porque, en lo que se refiere al desplazamiento interno, la responsabilidad principal de proteger a los desplazados reposa en el Estado. Por eso hay expectativas de que el gobierno colombiano haga más de lo que ha tratado de hacer hasta el momento", indicó Oshima.

[...]

Igualmente, el Secretario General adjunto de Naciones Unidas para Asuntos Humanitarios resaltó la necesidad de que los retornos de población desplazada, una de las políticas que busca implementar el gobierno Uribe, cuenten con las garantías suficientes para permitir el restablecimiento integral de los derechos vulnerados de la población y la reconstrucción de su proyecto de vida.

[...]

señaló Kenzo Oshima, quien además sostuvo que la vigencia de la política de seguridad democrática del actual gobierno sólo se garantiza en la medida en que equilibre la necesidad de mantener el orden, con el respeto y vigencia de los derechos humanos. » (CODHES, 10 June 2003)

NGOs recommendations on return of IDPs (2003)

- Authorities should guarantee and facilitate the accompaniment of returned IDP communities by humanitarian organisations
- NGOs recommend the Colombian state to ensure returned IDPs are not drawn into the conflict
- Insure that returns are voluntary and not to promote return in areas where security cannot be guaranteed
- To allocate funding to facilitate returned IDPs access to land, socio-economic and psychological reintegration

“Por otra parte, es importante recordar la obligación de las autoridades de brindar las garantías necesarias para que las organizaciones humanitarias internacionales como el Acnur, la Oacnudh, el Comité Internacional de la Cruz Roja, Brigadas Internacionales de Paz, Equipos Cristianos de Acciones por la Paz, puedan acompañar a las personas desplazadas retornadas, en ejercicio del derecho a brindar asistencia, contribuir con la recuperación de las víctimas del desplazamiento y promover los derechos humanos.

[...]

Al Estado Colombiano

1. Evaluar rigurosamente las experiencias de retorno anteriores y las actuales a la luz de la normatividad nacional e internacional y de las recomendaciones internacionales, en particular las formuladas por el Representante del Secretario General de las Naciones para las personas internamente desplazadas y los Principios Rectores de los desplazamientos internos relativos al retorno, reasentamiento y la reintegración. De acuerdo con los resultados de esta evaluación, las autoridades deben reformular su política de soluciones duraderas al desplazamiento y de retorno y brindar alternativas al retorno, como el reasentamiento rural o la reintegración urbana;

2. Respetar y garantizar plenamente el derecho internacional de los derechos humanos y el derecho humanitario, en particular los principios de distinción entre civiles y combatientes, de manera que las personas que retornan no sean involucradas de ninguna manera y bajo ningún pretexto en el conflicto armado;

3. Garantizar el derecho reconocido por los Principios Rectores de protección de la población desplazada contra el retorno forzado y por lo tanto abstenerse de promover el retorno o el reasentamiento sin que se brinden garantías de seguridad;
4. Cumplir las recomendaciones del Comité de Derechos Económicos, Sociales y Culturales y garantizar que se implementen las decisiones de la Corte Constitucional relacionadas con el diseño y la ejecución de una política de atención que dé una prioridad real a la situación de la población desplazada;
5. De acuerdo con la anterior recomendación, adoptar medidas concretas y asignar recursos presupuestales suficientes para garantizar la seguridad del acceso a la tierra y medidas de compensación por la pérdida de los bienes abandonados por las personas desplazadas;
6. Adoptar todas las medidas necesarias para garantizar la reintegración de la población retornada, tanto en materia de estabilización socioeconómica como también psicosocial;
7. Cumplir con los preceptos de ley 387 de 1997, la ley 589 de 2000 y el Código Penal, adoptando todas las medidas necesarias para garantizar la investigación, el juzgamiento y la sanción para los responsables de provocar los desplazamientos forzados;
8. Adoptar todas las medidas necesarias para garantizar la reparación integral a las víctimas del desplazamiento por los daños materiales y morales causados por el desplazamiento;
9. Garantizar la seguridad del personal y de los medios de las organizaciones nacionales e internacionales que acompañan a la población desplazada y el pleno ejercicio de su derecho a acompañar a las comunidades y personas desplazadas y a defender sus derechos.

A las Naciones Unidas y la comunidad internacional

1. Garantizar que la cooperación internacional contribuya a la vigencia de los derechos humanos de las personas desplazadas durante el desplazamiento, el retorno y el reasentamiento;
2. Garantizar que las actividades de la cooperación internacional en materia de desplazamiento interno se desarrollen de acuerdo con su misión de complementar las medidas y acciones que son responsabilidad primaria del Estado colombiano;
3. Instar al Estado Colombiano a que observe las recomendaciones formuladas por el Representante del Secretario General de las Naciones Unidas para las Personas Internamente Desplazadas, en especial aquellas recomendaciones relacionadas con el retorno en condiciones de voluntariedad, seguridad y dignidad;
4. Incrementar la presencia internacional de acompañamiento a las comunidades desplazadas en proceso de retorno con el fin de:
 - verificar oportunamente las condiciones de los retornos;
 - contribuir a su protección;
 - velar por la observancia de las recomendaciones internacionales, especialmente en cuanto a la prohibición del involucramiento de la población civil en el conflicto armado;
 - instar al Gobierno a que garantice plenamente los derechos civiles, políticos, económicos, sociales y culturales de la población desplazada. » (Mencoldes, 20August 2003, pp.12-13)

To access the report of the Bogotá Working Group on IDPs return (30 June 2003) see bibliography below

Representative on IDPs recommends GOC to appoint IDP focal point (Dec 2002)

- The situation of IDPs needs to be a national priority
- Dr Deng recommends the Uribe administration of appoint a high-official as focal point on internal displacement within the government
- The IDP focal point would work together with all other actors involved with the issue of displacement
- The IDP focal point would ensure that the institutional and normative framework of attention to IDPs are duly implemented and that solutions for present gaps are seek

“Es necesario que a la situación de los desplazados internos se le otorgue alta prioridad nacional por parte del Gobierno para que obtenga la visibilidad y la atención de las que hoy día carece. Me han alentado las declaraciones que hiciera en el mes de Octubre el Presidente Alvaro Uribe a la Conferencia Espiscopal y la Arquidiócesis de Bogotá, en las cuales dijera que se deben hacer esfuerzos para terminar con los desplazamientos y subrayara que el problema del desplazamiento interno debe ser una de la prioridades de la inversión social. Al igual que en mis últimas declaraciones, quisiera recomendar a la Administración del Sr. Presidente Uribe que considere la designación de una persona de alto nivel como punto focal de contacto dentro del Gobierno. Dicho punto focal de contacto debería trabajar con todos los actores involucrados en el tema, para asegurar que las garantías proporcionadas por las normas y marcos institucionales existentes sean plenamente aplicadas y que se busquen soluciones para las deficiencias existentes en el sistema de respuesta para los problemas de los desplazados.” (Deng, 5 December 2002)

Recommendations to the UN Representative on IDPs from Colombian NGOs (2003)

- Various NGOs strongly advocate for a new official visit of the UN S-G Representative on IDPs
- GTD must become more operational and prioritise follow up on the state’s implementation of recommendations pertaining to IDPs
- Urgent need to strengthen, and enlarge UNHCR’s mandate to protect IDPs
- Maintain UN’s good offices to encourage the state to fulfil its human rights obligations and facilitate negotiated solution to the conflict
- Develop an Instrument of Regional Protection for the Americas to respond to the particular needs of IDPs

“Solicitamos al Secretario Adjunto que recomiende al Gobierno colombiano invitar oficialmente, a la mayor brevedad posible, al Representante del Secretario General para las personas internamente desplazadas, Sr. Francis M. Deng. Sin duda una visita de seguimiento del Representante contribuirá significativamente, con las autoridades colombianas y con las agencias del Sistema de las Naciones Unidas, en el diseño de estrategias adecuadas para enfrentar los nuevos retos del desplazamiento interno en Colombia. » (CODHES, 10 June 2003)

“4.1 Since 1999, the UN System has developed mechanisms for internal coordination such as the Thematic Group on Displacement lead by the UNHCR. In doing so, it has promoted mechanisms for consultation and coordination with the national and international NGOs interested in this subject. This forum has favored dialogue and contact with participating organisms. However, faced with the growth and intensification of the phenomenon of forced displacement, a clear approach on the part of this instrument for coordination is needed in order to be able to bring pressure to bear on behalf of the implementation of international recommendations on the part of the State.

The Representative could use his influence so that this forum for coordination can become more operational and so that it could give priority to following up on the Colombian State's implementation of the recommendations on forced displacement.

4.2 Reiterating the importance of the development, on the part of the UN agencies as a whole, of permanent follow-up on the Colombian State's implementation of international recommendations on forced displacement, we recommend that the Representative carry out a new official mission to Colombia as soon as possible.

4.3 With regard to protection of the displaced population, the UNHCR has enlarged its presence by means of the creation of field offices. This commitment must be acknowledged along with the need to maintain it as well as to expand the ability to protect the most vulnerable segments of the population.

The humanitarian crisis afflicting the country requires that the UNHCR reinforce, strengthen and enlarge its mandate in pursuit of more expeditious and effective mechanisms of protection to the displaced population. The strengthening and enlargement of the UNHCR's mandate in Colombia along with enlargement of the content of the memorandum of intention between it and the Colombian State are urgently needed.

4.4 We are extremely concerned about the intensification of the armed conflict and its dramatic repercussions on the populations at risk of forced displacement. The UN has recently reiterated its commitment to use its good offices in support of the search of a negotiated settlement to the conflict.

It is of fundamental importance to maintain the role of the UN as a whole in order to encourage fulfillment on the part of the Colombian State of its obligations to respect and guarantee human rights, to favor and facilitate the search for a negotiated political solution to the armed conflict.

It is important in this sense to emphasize the duty of the State as a member of the United Nations to cooperate with regard to human rights and basic liberties.

4.5 In line with this, the Representative can play an important role by supporting the efforts of the UN agencies as a whole in urging adoption by the Government of a policy for peace and talks with the insurgent groups. His work could be particularly significant in encouraging the Government to answer the call of the UN High Commissioner for Human Rights Office in Colombia with respect to "giving urgent consideration to adoption of an Overall Agreement on Human Rights and Humanitarian Law." Such an agreement must include, among other things, a commitment, on the part of the parties involved in the conflict to abstain from generating forced displacements or making threats and attacks against the civilian population, including the displaced, as well as to respect the principles of neutrality and impartiality in providing humanitarian assistance, along with a commitment not to recruit displaced children and young people.

[...]

4.7 Faced with the crisis of the internally displaced in Colombia as well as concerns regarding the Right to Refuge, instruments such as the Declaration of Cartagena acquire added relevance. Such documents expand the causes that are considered to give rise to the search for refuge, in that they state that "widespread violence" constitutes a valid motive for requesting protection.

From this perspective, we propose the development of an Instrument of Regional Protection for the Americas that would respond to the particularities of the current problem as well as the needs of those persons who are displaced or who have crossed the frontiers." (CCJ and Mencoldes, 15 November 2002)

UNHCHR follow-up recommendations on human rights and international humanitarian law (2003)

- The Director of the UNHCHR reported in September 2003 that the Colombian state has so far not taken necessary measures to implement the April 2003 recommendations
- HCHR recommends the GOC to provide the Procurator-General's Office and the Ombudsman's Office the means to establish offices in areas with high proportion of IDPs, Afro-Colombians and indigenous people, and in "rehabilitation and consolidation zones"
- HCHR recommends all armed actors to refrain from attacking civilian populations, recruiting minors and committing acts of terrorism
- HCHR recommends the Attorney-General to establish a group to investigate on potential links between members of the security forces and paramilitary
- The HCHR recommends the Minister of Defence to suspend any member of the security forces involved in human rights violations or war crimes

"During the September 15 [2003] seminar "Colombia Insists on Human Rights," UNHCHR director Michael Fruehling took the opportunity to say that there are few signs to date that the government is implementing the 27 UN recommendations of April 2003: "The Colombian state has so far not shown itself to be as speedy and expeditious as desired and expected. With respect to the majority of the recommendations, no significant concrete events have been recorded that allow one to consider them satisfactorily implemented." (PCS, 26 September 2003)

"Recommendations of the HCHR concerning prevention and protection:

155. The High Commissioner exhorts the Government, with the active participation, cooperation and response of the Office of the Vice-President of the Republic, the Ministry of the Interior and the Ministry of Defence, to activate the Early Warning System established in the Office of the Ombudsman.

[...]

158. The High Commissioner exhorts the Government to identify, in conjunction with the Office of the Ombudsman and the United Nations system, communities placed at risk by the internal armed conflict and, in consultation with those communities, to develop and put into practice, as soon as possible, preventive and protective actions and programmes. With respect to displaced populations, the Guiding Principles on Internal Displacement should be strictly applied.

159. The High Commissioner urges the Government and Congress to provide the Procurator-General's Office and the Office of the Ombudsman with the means to establish themselves in localities where they are not yet represented, especially in rehabilitation and consolidation zones and in areas with a high proportion of indigenous, Afro-Colombian and displaced inhabitants.

[...]

163. The High Commissioner urges FARC-EP, ELN, AUC and other guerrilla and paramilitary groups to respect the right to life of all civilians. He urges them in particular to refrain at all times from attacks on the civilian population, indiscriminate attacks, the recruitment of minors, and acts of terrorism.

[...]

172. The High Commissioner urges the Attorney-General, within his Office's Human Rights and International Humanitarian Law Unit, to establish a group specializing in the investigation of possible links between members of the security forces and paramilitary groups. He also calls on international cooperation agencies to back this initiative.

173. The High Commissioner calls on the Minister of Defence to suspend from duty with immediate effect any members of the security forces involved in serious human rights violations or war crimes, and to inform the judicial and investigative authorities accordingly." (UNCHR, 24 February 2003, paras 131, 117, 118, 155-159, 163, 172-3)

Recommendations to the Commission on Human Rights of National NGOs working with IDPs (2002-2003)

“1. Strongly state its deep concern

Based on the High Commissioner’s report and on other pertinent information, that it express strong concern for the crisis in human rights and humanitarian law in Colombia and because of the non-compliance with its recommendations.

2. Urge the State to comply with all the recommendations, among them:

- a. Not to continue to misuse emergency measures.
- b. To seek a negotiated political solution to the conflict, respecting human rights, especially those of the victims.
- c. To promote respect for humanitarian laws.
- d. To guarantee the independence of the judiciary branch.
- e. To dismantle and to eradicate paramilitary groups, break their ties with State agents, and investigate and bring their members and collaborators to justice.

3. Support and strengthen the OUNHCHR and the U.N. presence in Colombia:

- a. To request that the High Commissioner present an interim report to the General Assembly on the human rights situation and the state of compliance with his recommendations.
- b. To appoint a Special Rapporteur for Colombia as an complementary mechanism for the OUNHCHR.
- c. To create a group to analyze why the Colombian State repeatedly ignores recommendations and to present its report during the following sessions.
- d. To encourage the Colombian State to invite the Commission’s thematic mechanisms to Colombia.
- e. To recommend the strengthening of UNHCR in Colombia, to extend its mandate of protection and to include a follow-up to its recommendations.” (Asamblea Permanente de la Sociedad Civil por la Paz, etc... 31 December 2002)

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Recommendations to GOC on IDP reproductive health needs from NGOs (2003)

- GOC should allocate significantly more financial and technical resources for IDP health care particularly at local level
- Ministry of Health (MOH) should disseminate comprehensive information on who is doing what and where for IDP health care
- UNFPA should provide hospitals and health centers with MISP (minimum initial services package) for reproductive health
- GoC, UN and NGOs should ensure access and availability of services for victims of gender-based-violence
- GOC, UN and NGOs should organize community out-reach education on family planning and emergency contraception for IDPs

“The Colombian government should provide significantly more financial and technical support for health care, including reproductive health care, to IDPs, particularly at the local level and at referral hospitals for IDP women suffering from obstetric emergencies.

The Ministry of Health (MOH) should collect and disseminate comprehensive information on who is doing what and where for IDPs and convene representatives of key organizations to improve the coordination of services.

The MOH and humanitarian assistance providers should improve funding and institute data collection and monitoring mechanisms of IDP health services at major health centers and hospitals.

The UN should scale up its efforts to promote human rights awareness and knowledge and demand for services among the IDP population.

The UNFPA should address the MISP in Colombia by providing hospitals and health centers with the MISP kits, including safe delivery supplies, emergency contraception, condoms and essential medicines. UNFPA could also provide MISP kits to Profamilia to facilitate the MISP activities in their community outreach to IDPs.

The MOH and humanitarian assistance actors should raise awareness about GBV, including sexual violence, by promoting community information and education about GBV and ensuring documentation and verification of incidents to identify and address these widespread human rights violations.

The government, UN agencies and NGOs should seek to ensure that medical, legal and social services are available for IDP survivors of GBV.

The government, UN agencies and NGOs should initiate multisectoral efforts to mobilize and support IDP adolescents and their parents. Programs should be implemented to provide health care, including reproductive health services, educational opportunities, recreational activities, income generation projects and family support groups to address household stress and domestic violence.

Greater efforts must be made by the government, UN agencies and NGOs to conduct community outreach to educate IDPs, especially adolescents, about family planning and emergency contraception. (Marie Stopes International, etc..., 13 February 2003, p.3)

Donor response

ECHO grants 6.2 million Euros for IDP reintegration and improved living conditions (2004)

- In 2004 ECHO will grant 33 million Euros for 'Peace Laboratories' in Magdalena Medio, Norte de Santander, Eastern Antioquia and the Colombian Massif
- In 2003 ECHO granted EUR 8 million for food and non-food assistance to 200,000 IDPs in urban and rural areas
- Funds earmarked for medium-term projects aimed at socio-economic stabilization including water and sanitation, health care, housing, psycho-social support and income-generating activities
- ECHO has been active in Colombia since 1993 and supports 14 operations in 18 departments
- Aid is to be provided as close as areas of origin as possible in order to prevent further displacement to urban centres
- In 2001, ECHO granted 10 million Pounds in emergency as well as post-emergency assistance for the return and resettlement of displaced persons
- Government of Germany grants EUR 1,300,000 to ICRC for its operations for IDPs

“Colombia (€ 39.2 million)

In Colombia, Community assistance is given to the "Peace Laboratories", the concept of which arises from the existence of large movements of civic participation in favour of peace, which in some regions transformed themselves into social laboratories where paths for dialogue and coexistence are explored, as well as peaceful mechanisms to deal with the ongoing armed conflict. The attempt is to deactivate, through initiatives emerging from the social base, the root causes of the conflict, fostering a sustainable socio-economic development and a life with dignity for all the citizens in the three targeted regions. Building on the progress made so far with the first peace laboratory in Magdalena Medio, the second EU-funded (€ 33 million) peace laboratory will target the regions of Norte de Santander, Eastern Antioquia and the Colombian Massif, covering a total of 62 municipalities.

In addition, a € 6.2 million contribution will be provided to support the reintegration process and to improve living conditions of internally displaced people.” (16 January 2004)

“The European Commission has granted €8 million in humanitarian aid to help victims of conflict in Colombia. The funding is being channelled through the Humanitarian Aid Office (ECHO), which comes under the responsibility of Commissioner Poul Nielson. Most of this aid will go to providing food, bed sheets, cooking sets and hygiene products to around 200,000 people in the country who have been displaced by the conflict.

[...]

In 2003, ECHO will finance short-term assistance and protection to IDPs immediately following their displacement. This includes the distribution of food parcels, bed sheets, cooking sets and hygiene products. An estimated 200,000 people will benefit from this aid, which will be available in both rural and urban areas.

Financing is also earmarked for medium-term projects to promote the social integration of IDPs in the places of reception. Projects envisaged include the construction of small-scale water supply systems, sanitation improvements, health care, housing, psychosocial support and small-scale income generating activities.” (ECHO, 11 March 2003)

“47. The European Commission Humanitarian Aid Office (ECHO) funds humanitarian aid activities for victims of natural disasters or man-made conflicts. Established at the end of 1992, ECHO has been active in Colombia since 1993. Since that time it has engaged in three types of activity: programmes to prevent and prepare for natural disasters, post-earthquake emergency support to the coffee industry (1999), and, most importantly, humanitarian aid programmes for the population displaced by violence.

48. Since 1997, six global humanitarian assistance plans have been approved for the population displaced by violence. These annual plans enable ECHO's partners (agencies in the United Nations System, ICRC and National Red Cross Societies, and European NGOs) to conduct operations in support of IDP, in close coordination with local agencies (SSN, local and municipal authorities). The current global plan (2002-2003), costing 8 million euros, supports [...] humanitarian assistance operations in Colombia in 18 departments seriously affected by displacement. For the most part, the assistance is given to the population displaced most recently, i.e. within the previous 12 months.

49. The European Union's humanitarian aid will be expanded in 2001-2004 through a specific activity designed to support medium-term solutions for IDP. The focus will be on IDP socio-economic stabilization, with special emphasis on finding sustainable solutions." (GTD, 29 November 2002, p.14)

"The European Commission has adopted an €8 million global plan for 2002 to help internally displaced persons in Colombia who have been forced to flee by the ongoing conflict. In the next few months, some 125 000 people will benefit from emergency assistance provided via the Humanitarian Aid Office (ECHO), which comes under the responsibility of Commissioner Poul Nielson. The aid will essentially take the form of food, non-food items (such as hygiene products), health care, sanitation infrastructure and building materials. This decision brings the funding granted by the Commission as humanitarian aid for victims of the conflict in Colombia to €42 million since 1997.

As a result of this Community financing, aid cover can be extended to Colombia's rural areas. The humanitarian aid provided by ECHO is targeted at internally displaced persons and highly vulnerable groups in rural areas. The aim is to guarantee the recipients minimum living conditions and help to make them self-sufficient. Assistance will be provided as near as possible to the communities of origin in order to encourage people to return and to prevent migration to marginal urban areas. In the short term emergency humanitarian relief will be provided for displaced persons immediately following displacement, followed by more sustained post-emergency assistance designed to improve their living conditions and promote social integration. The main components of the operation are: distributing food (family food parcels) and non-food items (bedclothes, cooking utensils, hygiene products), setting up community canteens for vulnerable groups among the displaced population (children, pregnant women), creating health brigades in inaccessible areas, distributing building materials, repairing drinking water supply systems, improving sanitation conditions and providing psychosocial assistance." (ECHO, 8 April 2002)

"The European Commission has granted £10 million to help internally displaced persons (IDPs) in Colombia." (ECHO 5 April 2001)

"The Federal Foreign Office has this year made a total of EUR 1,300,000 from its humanitarian aid budget available to the International Committee of the Red Cross (ICRC) for aid and support measures to benefit internally displaced persons in Colombia." (Government of Germany, 9 December 2003)

Japan gives US\$540 thousand for social programmes for IDPs (2003)

- GoC states that initially the funds will go to isolated regions such as Magdalena Medio in order to strengthen programmes for displaced people
- Programmes will seek to promote the reconstruction of social capital and socio-economic stability in order to prevent displacement
- The World Bank will finance those programmes of 'peace and development' with a loan of US\$30 million

"Recursos por 540 mil dólares donó Japón al Gobierno Nacional para financiar programas sociales en las diferentes regiones apartadas del país.

Tras la firma de un convenio de cooperación internacional entre el Gobierno de Japón, el Banco Mundial, la Agencia Colombiana de Cooperación Internacional y el Departamento de Planeación Nacional -suscrito esta tarde-, el Gobierno Nacional podrá diseñar programas de paz y desarrollo.

Inicialmente los recursos se destinarán a regiones como el Magdalena Medio para fortalecer los planes de atención a la población desplazada.

Los programas apoyarán iniciativas locales que promuevan la reconstrucción del capital social y la estabilización socioeconómica para prevenir el desplazamiento forzado.

El Banco Mundial, por su parte, financiará estos programas de paz y desarrollo con un crédito de 30 millones de dólares. « (GOC, 24 November 2003)

USAID grants \$167 million over 5 years for IDP program (2003)

- USAID works through 5 organizations with 300 projects in 25 departments and 200 municipalities
- 545,000 IDPs have directly benefited from USAID programs in areas of physical and mental health, community strengthening, income and employment generation, shelter, water, sanitation and education
- About 930,000 IDPs will benefit from USAID programs over the 5 year period
- USAID, reports it has provided relief to about 1,092,000 IDPs among which 42,900 IDPs were provided with employment, 14,000 with vocational skills, over 520,000 with health care and about 92,600 IDP children with education
- ICG recommend that security assistance be conditioned on respect for human rights

“In FY 2000, USAID/Colombia initiated its support of President Andres Pastrana's Plan Colombia. USAID will contribute up to US \$561 million over a five-year period (9/00-9/05). The funds will be used to support the following programs: alternative development (US\$265 million), internally displaced persons (\$167 million) and democracy (\$125 million). These investment areas support the Bush Administration's Andean Counter-drug Initiative.

[...]

USAID's program offers medium and long-term assistance to persons internally displaced by violence and to other vulnerable populations. USAID works through five organizations that have developed more than 300 projects in 25 departments and 200 municipalities throughout the country.

The program encompasses the economic incorporation of the displaced into the labor markets of receptor communities, in some cases facilitating return to their previous places of residence, and improving access to and the quality of basic services. These goals will be accomplished through a municipal focus, in which alliances with municipal and departmental governments, as well as local NGOs and displaced persons associations, are key.

To date, over 545,000 displaced persons and their families have received direct assistance in the areas of physical and mental health, community strengthening, income and employment generation, urban assistance (shelter, water and sanitation), and education. For example, families have participated in return or relocation programs; have received credit or technical and vocational assistance; and educational quality and access have improved, benefiting many children. Over the life of the program, an estimated 930,000 displaced persons will benefit directly from USAID's activities.” (USAID, 15 November 2002)

International Crisis Group recommend:

“11. Insist that any security assistance be conditioned on respect for human rights, measures to end impunity, and the severing of remaining linkages between security forces and the paramilitaries.

12. Insist that demobilisation of the paramilitaries and the insurgents adhere to international human rights standards, ensuring that those who were responsible for crimes against humanity neither escape jail nor are permitted to retain land or other assets obtained through murder, intimidation or other illegal action.

13. Provide technical, financial and communication aid to the Colombian government and civil society to design, fund and implement a comprehensive national rural development strategy to reduce rural poverty, which should be the centrepiece of the next international donors meeting, be implemented incrementally as security conditions permit, and become a model for similar action in other Andean countries.” (ICG, 13 November 2003)

"Colombia has one of the largest populations of internally displaced people (IDP) in the world, about 2.5 million people, and the only IDP population in the Western Hemisphere. USAID has provided relief to about 1,092,000 IDPs and demobilized child soldiers, targeting aid specifically at female heads of household. At the beginning of the IDP program, USAID planned to assist about 400,000 IDPs by this time. Thus far, approximately 42,900 IDPs are employed in new jobs and 14,000 have been given vocational and skills development training. Over 520,000 IDPs have received health care and almost 92,600 IDP children have been provided with improved and more specialized access to education." (USAID, 29 October 2003)

US DOS gives \$2 million to WFP assisting IDPs (Jan 2003)

- US donates \$2 million to WFP who will help to assist 375,000 IDPs
- US contribution will help continue mother-child health and nutritional recovery programs
- US aid expanded to fund humanitarian relief as well since 1999
- There was a disproportionately ratio of 131:1 between US military assistance such as illegal crop spraying and armament with humanitarian assistance
- For the displaced the US privileged rather short term and short sighted emergency hand outs

“The United States has donated \$2 million to the United Nations World Food Program (WFP) to help hungry and displaced people in Colombia.

In a January 9 press release, the WFP said the U.S. contribution will help assist 375,000 displaced Colombians.

The WFP said the U.S. donation will enable it to continue with mother-child health programs and nutritional recovery activities, and to support preschoolers.

[...]

Other donors to WFP Colombia have been Japan and Switzerland and WFP is actively seeking another \$6 million in donor support to assist displaced persons in 2003. “ (US DOS, 13 January 2003)

"The first tangible evidence of this support is the recent decision to greatly increase US funding for Colombian security and counter-narcotics efforts. In early December [1998], at the same time the Women's Commission was in Colombia, the US approved almost \$300 million in additional security assistance for Colombia. This assistance, pushed through by Congressmen concerned about the drug trade, is earmarked for the fight against drugs (such as spraying coca crops).

Humanitarian assistance from the US to Colombia totals only \$2.2 million. \$2 million is from the US Bureau for Population, Refugees and Migration for the work of the International Committee of the Red Cross. The remaining \$200,000 is US Agency for International Development funding for Catholic Relief

Services' development work in the Chocó region. The three-fold increase US military assistance to Colombian security forces has created a ratio of 131:1 between US assistance to counter-narcotics and US humanitarian assistance (\$289 million to \$2.2 million). The existing US humanitarian support largely supports short-term emergency assistance to the displaced under the auspices of the ICRC." (Women's Commission May 1999, p. 15)

US military assistance to Colombia

"Pues bien, el gobierno de Estados Unidos se propone ahora aumentar la asistencia militar en más de 490 millones de dólares para el próximo año, dirigidos a la guerra contrainsurgente, ya sin condicionamientos y sin reparar la situación de derechos humanos o el crecimiento del paramilitarismo." (CODHES 15 February 2002)

"On January 10, 2002, United States President George W. Bush signed Public Law 107-115, which covers most foreign aid. The legislation included \$625 million for the Andean region, most destined for Colombia. A large portion of this aid will be spent on security assistance to the Colombian military." (AI, HRW and WOLA, 5 February 2002)

Reference to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles on Internal Displacement (as of May 2002)

- References to the Guiding Principles in the national legislation
- Other References to the Guiding Principles
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles

"Colombia is the country with the most comprehensive and judicially advanced IDP legislation. A legal framework made up of law, presidential decrees, government policy documents and court decisions, regulate the prevention, protection, assistance and return/resettlement of the displaced persons. This framework also sets up coordinating structures and defines concrete responsibilities of each government institution.

The centerpiece of this legal framework is IDP Law 387 from 1997. [...] In addition, the government has developed an extensive array of IDP policy documents: the most recent one being the CONPES from 1999. [...] The Colombian Constitutional Court has issued several decisions and opinions interpreting the legal rights of the displaced, often basing their opinion on the UN Guiding Principles." (Global IDP Project, May 2001, p.1)

References to the Guiding Principles in the national legislation

Constitutional Court Decision SU-1150

"This decision, from August 2000, is elaborated and handed down in response to three different IDP situations reportedly not attended to by the authorities. In one of the three cases, the Court order the President of Colombia to assure the provision of shelter to a displaced community in Medellín and to include them in existing IDP support programmes. More importantly, as a result of its exhaustive analysis of the IDP situation the Court calls on the President to further develop and regulate ("reglamentar") existing legislation in order to better define the government agencies' responsibilities in relation to IDPs.

The court sentence reviews the Special Representative, Mr. Francis Deng's two reports on Colombia as

well as the UN Guiding Principles. It suggests that the Principles be the "parameter for any new legislation on displacement as well as for the interpretation of the existing IDP legislation, and the assistance to displaced persons."

Source: Global IDP Project, May 2001, p. 16

Date: August 2000

Constitutional Court Decision T-327

"Decision T-327 from 26 March 2001 is a 40-page analytical document deciding in favor of a displaced person refused entry into the government's Central IDP Registry. Through out its analytical deliberations leading up to the decision, the Court emits important and critical opinions on the government's distinction between the "condition of being displaced" vs. "a de facto situation of being displaced". The former is a requirement for access to government support, but requires the displaced's formal "certification" as an IDP. The Court, holding up the concept of "presumption of good faith", argues that displacement is a de facto situation, which does not have to be "certified" by the authorities. It further emits a critical view of the government's concept of "cessation of displacement" and the exclusion from the IDP registry.

In this decision, the Constitutional Court frequently uses the UN Guiding Principles as a yardstick, when commenting on national norms. It even places the Principles above national legislation, referring to them as "supranational legislation". It also stresses the need for training in the Guiding Principles, particularly for recipients of IDP declarations, e.g. Municipal Human Rights Ombudspersons."

Source: Global IDP Project, May 2001, pp. 16-17

Date: 26 March 2001

Presidential Directive No.6

This Directive, promulgated by the then Presiden Pastrana, in October 2001, is meant to further strengthen already existing legislation and confirms the Constitutional Court's opinion that the Guiding Principles on Internal Displacement are on the same level as the Colombian Constitution. In order to improve its response mechanisms to displacement, Directive No.6 mandated the Social Solidarity Network (Government Agency dealing with displacement) to issue 'humanitarian orders' to all appropriate ministries, government officials, authorities, the police and state agencies, as well as the media, to take action pertaining to the situation of displacement, within ten days. This, in the fields of prevention, protection humanitarian assistance, as well as resettlement and long-term sustainability.

Source: Government of Colombia

Date: 28 November 2001

Other References to the Guiding Principles (in chronological order)

"[...] even if the instruments above could be seen as the most importat, a large number of other laws, presidential and ministerial decrees, court decisions ect., refer to and affect the response to the situation of the displaced" (Global IDP Project, May 2001, p. 17)

CONPES 3057

"The current IDP policy document, CONPES 3057 from 10 November 1999, up dates the two previous CONPES from 1995 and 1997. It provides an analysis of the current (1999) IDP situation and the existing mechanisms to attend to IDPs, including a graphic presentation of the institutional arrangements in place. Next, it goes on to present the activities foreseen in the field of prevention,

protection, humanitarian assistance and return/resettlement. In the introduction to the document, the government explicitly states its commitment to "promote and respect the implementation of the Guiding Principles"

Source: Global IDP Project, May 2001, pp. 16-17

Date: 10 November 1999

Availability of the Guiding Principles in local languages

The Guiding Principles are widely available in Spanish. Published by OCHA, translated by : Principios Rectores De Los Desplazamientos Internos

Source: OCHA; Mr Francis Deng, the Representative of the Secretary-General on Internally Displaced Persons; Mr Sergio Vieira De Mello Assistant to the Secretary General for Humanitarian Affairs, To download the full document click here: [\[External Link\]](#)

Date: 1998

Training on the Guiding Principles (in chronological order)

"From 27 to 29 May 1999, a Workshop on Implementing the Guiding Principles on Internal Displacement was held in Bogotá, Colombia.

[...]

The workshop was jointly convened by the Brookings Institution Project on Internal Displacement (Washington D.C.), the Grupo de Apoyo a Organizaciones de Desplazados (GAD), (Bogotá), The GAD (the Support Group for Organizations of Internally Displaced Persons), is a coalition of 13 Colombian human rights NGOs working with displaced populations and the U.S. Committee for Refugees (Washington D.C.).

The main objective of the workshop was to disseminate and promote implementation of the Guiding Principles in Colombia through a detailed analysis of the degree to which the Guiding Principles are currently being applied. For this purpose, the convening organizations invited to the workshop representatives of the Government of Colombia, United Nations agencies present in Colombia, the International Committee of the Red Cross (ICRC), national and international non-governmental organizations (NGOs), the Catholic Church, as well as representatives of communities of IDPs."

Source: UN HCHR, 16 November 1999, paras.1-3

Date: 27- 29 May 1999

Documents: E/CN.4/2000/83/Add.2, 16 November 1999

Report of the Representative of the Secretary-General on Internally Displaced Persons, Mr. Francis M. Deng, submitted pursuant to omission resolution 1999/47 Addendum

To download the full document click here:

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"From the 15-17 May 2001, the Global IDP Project of the Norwegian Refugee Council (NRC) and the Colombian Human Rights Ombudsman's Office organized a [Workshop on the UN Guiding Principles on Internal Displacement and the Colombian IDP legislation in Santa Fe de Antioquia (Colombia)]. [...]

In the Colombia workshop as much time and attention was dedicated to the Colombian IDP legislation as to the UN Guiding Principles. In addition to Colombian Law 387 on internal displacement (1997), the workshop analyzed and discussed the government's latest IDP policy document (CONPES 3057 from

1999), two presidential decrees on displacement (Decree 173 from 1998 and 2569 from 2000) and several decisions by the Colombian Constitutional Court (SU-1150 from 2000, T-327 from 2001, etc.).

[...]

Unlike previous workshops, which targeted a wider audience the Colombian workshop focused specifically on MOs. Forty-three recently elected Municipal Ombudspersons were selected from the province of Antioquia, the region most affected by internal displacement. [...] The Ombudspersons, and the institution they represent, play a key role in Colombian legislation as it relates to IDPs. The Public Ministry, and particularly the Human Rights Ombudsman's Office within that ministry, has been assigned a lead role on prevention as well as the protection of IDPs during displacement, and once they are returned or resettled. In addition, the Ombudsman's Office has been called upon by the Colombian Constitutional Court to target civil servants for dissemination of relevant laws and norms, which regulate the authorities' treatment of IDPs (Decision SU-1150/2000, par. 40). Responding to that court decision, the Ombudsman's Regional Office in Antioquia and the Global IDP Project exclusively targeted Municipal Ombudspersons for this workshop.

The three-day programme also received support from the National Ombudsman's IDP Unit in Bogota, the Social Solidarity Network, the UN High Commissioner for Human Rights and the UN High Commissioner for Refugees. Each of these institutions presented and facilitated the development of a respective agenda item."

Source: Global IDP Project, 15-17 May 2001, p.2

Date: 15-17 May 2001

Documents: To access the full workshop report in English click here:
http://www.idpproject.org/training/reports/colombia_2001.pdf

To access the full workshop report in Spanish click here:

http://www.idpproject.org/training/reports/colombia_2001_spanish.pdf

From May 16-18 2001, the TGD (Theme Group on Displacement) and OCHA (UN Organisation for the Coordination of Humanitarian Affairs) organized a workshop in Bogotá, coordinated by UNHCR (UN High Commissioner for Refugees), on the Guiding Principles in with internally displaced women. The workshop, Consulta con mujeres desplazadas sobre principios rectores del desplazamiento, was an inter-institutional effort to address the special needs of displaced women, adolescent and girls, to integrate them the national agenda on internal displacement. The workshop's goals were not only technical and juridical but also sociological, by addressing displacement during conflict as experienced by Colombian girls, adolescent and women. It aimed at strengthening the legal instruments and policies to integrate the gender-specific protection as well as assistance needs.

Source: UNHCR, TGD, OCHA

Date: 16-18 May 2001

Document: Consulta con mujeres desplazadas sobre principios rectores del desplazamiento

ABBREVIATIONS AND ACRONYMS

ACCU	Peasant Self-Defense For Córdoba and Urabá (Autodefensas Campesinas de Córdoba y Urabá)
AFP	Agence France Press
AI	Amnesty International
ANMUCIC	National Association of Peasant, Indigenous and Black Women
AUC	United Colombia Self-Defense Organisation (Autodefensas Unidas de Colombia)
AVRE	Corporation for the Support of Victims of Socio-Political Violence (Corporación de Apoyo a Víctimas de la Violencia Sociopolítica Prorecuperación Emocional)
CCA	Common Country Assessment
CEDECOL	Council of Evangelicals of Colombia
CHR	United Nations Commission for Human Rights
CINEP	Center for Popular Investigation and Education (Centro de Investigación y Educación Popular)
CCJ	Colombian Commission of Jurists (Comisión Colombiana de Juristas)
CODHES	Consultancy for Human Rights and Displacement (Consultoria para los Derechos Humanos y el Desplazamiento)
CONPES	Council for Economic and Social Policy
CPDIA	Permanent Consultation on Internal Displacement in the Americas (Consulta Permanente para el Desplazamiento Interno en las Américas)
CSN	Colombia Support Network
DAS	Administrative Security Department
DIAL	Inter-Agential Dialog in Colombia
DMT	Disaster Management Team
DRC	Danish Refugee Council
ECHO	European Commission Humanitarian Aid Office
EIU	Economis Intelligence Unit
ELN	National Liberation Army (Ejército de Liberación)
EPL	People's Liberation Army (Ejército Popular de Liberación)
EST	Eastern Standard Time
EU	European Union
FAO	Food and Agriculture Organisation
FARC	Revolutionary Armed Forces of Colombia (Fuerzas Armadas Revolucionarias de Colombia)
FIP	Peace Investment Fund
GAD	Support Group for Displaced People's Organizations (Grupo de Apoyo de los Desplazados)
GOC	Government of Colombia
HRW	Human Rights Watch
IACHR	Inter-American Commission on Human Rights
IADB	Inter-American Development Bank
ICBF	Colombian Institute for Family Well-Being
IFI	International Financial Institution
ICRC	International Committee of the Red Cross
IDP	Internally displaced person
IFRC	International Federation of the Red Cross and the Red Crescent Societies
INCORA	Colombian Institute for Agrarian Reform
IOM	International Organization for Migration
MINGA	Association for the Promotion of Social Alternatives
MOI	Memorandum of Intent
NGO	Non-governmental Organisation
OFP	Popular Women's Organization of Barrancabermeja
OHCHR	The Office of the United Nations High Commissioner for Human Rights

OIA	Indigenous Organization of Antioquia
OIDHACO	Oficina Internacional de Derechos Humanos –Acción Colombia
ONIC	National Organization of Colombia's Indigenous
OZIP	Organización Zonal Indígena de Putumayo, Regional Indigenous Organization for Putumayo
PAHO	Pan American Health Organization
PCS	Project Councelling Service
PRODERE	Programme of Development for Displaced, Refugees and Returnees (Desarrollo para Desplazados, Refugiados y Repatriados)
PRRO	Protracted Relief and Recovery Operation
SNPS	Secretariado Nacional de Pastoral Social
RSF	Reportes Sans Frontières
RSS	Red de Solidaridad Social, Social Solidarity Network
RUT	El Sistema de Información sobre la población por la violencia
SEFC	System for Estimates of Forced Displacement and Contrasting Souces
STD	Sexually Transmissible Diseases
TCM	Technical Cooperation on Migration
TGD	Theme Group on Displacement
UN	United Nations
UNDAC	United Nations Disaster Assessment and Coordination
UNDAF	United Nations Development Assistance Framework
UNDP	United Nations Development Programme
UNFPA	United Nations Population Fund
UNHCR	United Nations High Commissioner for Refugees
UNICEF	United Nations Children's Fund
UNOCHA	United Nations Office for the Coordination of Humanitarian Affairs
USCR	U.S. Committee for Refugees
U.S. DOS	United States Department of States
USD	U.S. Dollars
WB	World Bank
WFP	World Food Programme

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